CONSERVING NATURE

Conservation Reform Issues Paper

Environmental Defence Society

Deidre Koolen-Bourke and Raewyn Peart

CONSERVING NATURE

Conservation Reform
Issues Paper

Deidre Koolen-Bourke and Raewyn Peart

Environmental
Defence
Society

First published July 2021

Published by:
Environmental Defence Society Incorporated
P O Box 91736 Victoria St West
Auckland 1142

Phone (09) 302 2972

manager@eds.org.nz

www.eds.org.nz

www.environmentguide.org.nz

ISBN 978-0-9951186-4-5

© Environmental Defence Society Incorporated 2021

Front cover image: Kea. Neil Silverwood

Back cover image: Mount Cook lily. Bernard Spragg

Copies can be downloaded from www.eds.org.nz

Table of contents

1	**Introduction**	1
1.1	Why the conservation system is important	2
1.2	The need for reform	3
1.3	Methodology and approach	6
1.4	Structure of report	7
2	**Conservation legal framework**	9
2.1	Evolution of the legal framework	10
2.2	Current legal framework	10
2.3	Giving effect to Te Tiriti o Waitangi	21
2.4	Land classification system	29
2.5	Conservation covenants	30
2.6	Summary of key legal framework issues	32
3	**Conservation Institutions**	35
3.1	Department of Conservation	36
3.2	New Zealand Conservation Authority and Conservation Boards	42
3.3	New Zealand Fish and Game Council	51
3.4	Game Animal Council	54
3.5	Summary of key institutional issues	56
4	**Conservation planning**	59
4.1	Historical context	60
4.2	Range of planning documents	60
4.3	Development of planning documents	62
4.4	Review of planning documents	72
4.5	Content of planning documents	75
4.6	Summary of key planning issues	77
5	**Stewardship land**	79
5.1	Protection of stewardship land	80
5.2	Disposal and exchange of stewardship land	81
5.3	Reclassification of stewardship land	85
5.4	Summary of key stewardship land issues	86
6	**Concessions**	89
6.1	Historical context	92
6.2	Concessions within the planning framework	93
6.3	Grant of concessions	97
6.4	Variation and renewal of concessions	101
6.5	Charging for concessions	101
6.6	Monitoring and enforcement of concessions	102
6.7	Summary of key concessions issues	104
7	**Species protection**	107
7.1	Historical context	108
7.2	Threatened species	109
7.3	Protecting ‘wildlife’	111
7.4	Protecting freshwater species	117
7.5	Protecting marine species	122
7.6	Species protection under the Resource Management Act	125
7.7	Managing ‘wild animals’ and game species	130
7.8	Managing biosecurity threats	135
8	**Drawing the threads together**	143
8.1	Conclusions	144
8.2	Summary of key issues	148
8.3	Next steps	153
References		154

List of Figures

1.1 Overview of the conservation management system 6

2.1 Timeline of conservation-related legislation 10

2.2 Core conservation legislation 11

2.3 Classification of conservation land 29

3.1 Changes in Department of Conservation and Vote Conservation budgets 2014/15-2023/24 38

3.2 Legislation which the Department of Conservation administers or has a function under 41

4.1 Hierarchy of conservation policy and planning documents 61

4.2 Objectives of conservation policy and planning documents 62

4.3 Process to prepare conservation management policies and plans 65

4.4 Date of Conservation Management Strategies 72

4.5 Date of National Park Management Plans 73

6.1 Types of conservation concessions 90

7.1 The New Zealand Threat Classification System 110

Acknowledgements

EDS would like to thank the Department of Conservation for providing financial support for the preparation of this report. We would also like to thank those who generously agreed to be interviewed for the study, and the many peer reviewers, all who made invaluable contributions.

1 Introduction

Moira Gate, Ôpārara Basin, Kahurangi National Park.

Neil Silverwood

1.1 Why the conservation system is important

The history of 'conservation' is inextricably linked to wide-scale deforestation, and the general destruction of the natural environment, which occurred at the end of the 18th century throughout the western world. The conservation movement was a response to the resulting loss of wild places and connection with that natural world. It was also driven by deep equity concerns; concern to ensure the populace benefitted from those natural resources, and not just a minority, and that the heritage of future generations was protected. It was thus characterised by Theodore Roosevelt as a "duty to the whole, including unborn generations" that created a responsibility to "restrain an unprincipled present-day minority from wasting the heritage of [those] unborn generations … The movement for the conservation of wild-life and the larger movement for the conservation of all our natural resources are essentially democratic in spirit, purpose and method."[1]

This sentiment was very much in the minds of those who enacted the Conservation Act in 1987, who when introducing the Bill to the House of Representatives characterised conservation lands as "our national heritage" and declared that the new legislation would represent "an end to the colonial or pioneer mentality which saw resources as being infinite and always available".[2] Instead, "an ecosystem approach" would be taken "from mountain tops to the outlying islands". The newly formed Department of Conservation (DOC) would be an advocate, protector and trustee; acting as a "voice for conservation", as "kaitiaki or guardian" of our most precious parks and reserves and "caretaker"; ensuring that "the needs and aspirations of future generations are to be provided for".[3]

In Aotearoa New Zealand this conservation ethic takes on an added significance, since many of our indigenous plants and wildlife are endemic: if they perish here, they exist nowhere else. "They are ancient and unique – we have giant invertebrates, flightless birds, penguins that live in the forest, trees that live for over a thousand years, and the smallest dolphin in the world. Many of these creatures and plants have been isolated to the islands and waters of Aotearoa New Zealand since the days of the dinosaurs."[4]

And to Māori, these lands are more than simply lands, they are Papatūānuku, a living ancestor.

Neil Silverwood

Morgan Gorge, Waitaha River, Waitaha Forest Conservation Area. This was the proposed site of the Westpower 'run of the river' hydro-electric scheme which was declined consent by the Minister of Conservation.

> "Māori place enormous value on the conservation estate, at two levels. First, it is not only a vast landscape by New Zealand standards; it is also where most of the surviving taonga places can be found. Unlike the rest of New Zealand, which has been so heavily modified by farming, urbanisation, and other land use changes, many parts of the DOC estate remain similar, at least, to that in which te ao Māori was created. And although it is owned by the Treaty partner, every inch of it is tribal territory. Landscapes and landforms evoke the old stories, and they in turn evoke whakapapa. For this reason, individual iwi and hapū relationships with conservation land remain tangible in ways not usually possible in more modified environments. Sometimes relationships with flora and fauna can be recreated within the DOC estate as substitutes for those that have been lost elsewhere."[5] *(Waitangi Tribunal)*

The conservation management system is crucially important. It provides front line protection for most of the country's remaining intact ecosystems and what are frequently the last remnants of now rare indigenous habitats and the native species that rely on them for survival. It is the guardian of the country's wilderness areas, protecting the quality of water sources and providing increased resilience to climate change. It protects some of the last places where 'natural quiet' and 'dark skies' can be experienced. And critically, it protects the environment in which mātauranga Māori evolved, which is vitally important for ensuring enduring cultural connections to the land and water. In addition the conservation system directly supports people and communities, who use conservation spaces for aesthetic appreciation and recreational enjoyment, and a growing conservation economy including a large tourism industry supported by visitors seeking a wilderness experience.

The risks and potential losses that accrue if the conservation management system fails are therefore severe: the loss of habitats, species and cultural connections that exist nowhere else in the world; the reduction of life supporting ecosystem services; and the undermining of an economically important tourism sector.

Conversely, the benefits *of getting it right* are also substantial.

1.2 The need for reform

In 2019, DOC released *Te Koiroa o Te Koiora: A discussion document on proposals for a biodiversity strategy for Aotearoa New Zealand*. In that document, the Department described the legislative framework for conservation as "overlapping, contradictory, contested, ineffective", "slow" and "outdated", and the legislative regimes as being "not able to adapt well to the current and future pressures they need to respond to".[6] Indeed, the core statutes in the conservation management framework (Conservation Act 1987 and National Parks Act 1980) date back to the 1980s, and some such as the Wildlife Act 1953, date back even further to the middle of the twentieth century.[7] The legislation was designed to respond to a set of pressures, concerns and priorities quite unlike those we face today.

Most conservation-related legislation predates modern Te Tiriti o Waitangi (Te Tiriti) settlements. A decade ago, the Waitangi Tribunal recommended that "conservation legislation be reviewed with the aim of bringing together and reconciling the differing approaches to conservation management represented by mātauranga Māori and te ao Pākehā, and that such a review should identify and respond to any statutory barriers to kaitiakitanga."[8] The dated nature of the statutory framework, together with some 40 years of ad hoc amendments, has created an unintegrated and highly complex regulatory environment.

Conservation legislation also fails to incorporate contemporary issues such as the growth in tourism and climate change. In the mid 1980s, when conservation legislation was being contemplated, there were half a million international tourists visiting New Zealand.[9] By 2019, this number had increased almost eight-fold to 3.9 million. In the year ending March 2020 (and prior to Covid-19), total tourism expenditure was estimated at $41.9 billion, with tourism directly contributing $16.4 billion of Aotearoa New Zealand's GDP (5.5 per cent).[10] This made tourism the country's biggest export industry, with over 225,000 people directly employed and another 158,000 indirectly employed in the sector.[11] It has also been a very fast-growing industry, with an annual growth rate of 11 per cent between 2014 and 2017.

This growth has placed increasing pressure on public conservation land and the conservation management and planning system more generally. A 2017 analysis found that 53 percent of international visitors, comprising some 1.7 million people, went to national parks during their stay.[12] Unsurprisingly, a large number of concessions for activities on public conservation land are tourism related: in May 2020 there were 1,034 active tourism concessions.[13]

Neil Silverwood

Storm damage on State Highway 6 at Punakaiki on the edge of the Paparoa National Park.

Climate change also impacts management of the conservation estate in multiple ways. For example, a changing climate has serious implications for pest management, as evidenced by recent beech masting events where heavy seed loads in South Island forests have fueled plagues of rats and stoats which predate on native birds.[14] The urgent need to mitigate greenhouse gas emissions will impact DOC's operations where, for example, the use of helicopters for tahr control or 1080 dispersal may need to be rethought.[15] The mitigation imperative also has implications for concessionaires, and raises questions such as whether high greenhouse gas emitting activities like tourist helicopter flights should be consented within national parks.

Despite being a world leader in threatened species management, and applying substantial effort to conservation, Aotearoa New Zealand's biodiversity continues to decline. Around 4,000 species are threatened or at risk of extinction.[16] For example, seventy-five per cent of native fish fauna assessed in a recent study were found to be in decline, and for 65 per cent of these, the decline was significant.[17] A number of commentators have warned that political and legal inertia, delays in implementing protection, conflict between stakeholders, limited coordination amongst agencies and lengthy legal procedures are exacerbating the already complex management of species.[18] As one study concluded, if we are to address this continued decline "the next 30 years of conservation (will) require new tools".[19]

A review of the literature, and of the annual reports of DOC, the New Zealand Conservation Authority (Conservation Authority) and individual Conservation Boards from around the country, reveal the same sentiment; the legislative framework is no longer fit for purpose, the planning framework is laborious and complex, there is systemic inertia, and significant gaps remain. This is particularly the case for the protection of freshwater and marine habitats and species. Some also question whether the purpose of the legislation is still appropriate. In short, the conservation legal framework does not provide for a modern conservation approach.

> "Almost all of the key areas of conflict in conservation management revolve around the problem of values. And these issues are political issues. All the legislation and policies in place were developed at a time when we had quite different values as a nation. They were developed at a time when there was a focus on incentivising land use for primary production. But as values change we need to move and assist to incentivise those changes. Lots of people want to do things differently and we need to enable that to happen." (*DOC interviewee*)

These increasing concerns reflect a clear need to revisit the design of the country's conservation management framework, to ensure it is responsive, coherent and effective. To this end, the Environmental Defence Society (EDS) launched its Conservation System Reform Project in May 2020. Modelled closely on EDS's Resource Management System Reform project, the objective of the current project is to examine the laws that are designed to protect nature and manage public conservation land in Aotearoa New Zealand. We have evaluated the utility of the present legal and policy framework and the institutional arrangements for its implementation.

Our conclusion that the system is under significant stress, the current framework is no longer fit for purpose, and the time is right for reviewing the country's conservation frameworks, is supported by the large number of reviews, discussion documents and policy initiatives currently underway in this area, including:

- The partial review of conservation policies by DOC and appointment of the Options Development Group[20]
- A governance review of the New Zealand Fish and Game Council (Fish and Game)[21]

Raewyn Peart

Walkers on the Mount Arthur track, Kahurangi National Park.

- The recent report on *Biodiversity in Aotearoa* (August 2020), release of *Te Mana o te Taiao – Aotearoa New Zealand Biodiversity Strategy 2020* (see spotlight), and establishment of a Biodiversity Strategy Reference Group[22]
- A review of the Biosecurity Act 1993[23]
- Reform of the Crown Pastoral Land Act 1998
- Increasing debate over protecting indigenous versus introduced species (eg tahr management control plans)
- A review of the tourism system and tourism planning by the Tourism Futures Taskforce[24]
- The Government's recent announcement that mining will be prohibited on conservation land
- The major reform of resource management laws following the Resource Management Review Panel's recommendations[25]

EDS's Conservation System Reform Project has a wider and more strategic objective than these more circumscribed reviews and initiatives. As well as reviewing individual elements of the framework, we are scrutinising how it is operating as a whole. We are also investigating interfaces with other legislation (such as the Resource Management Act 1991 (RMA)). The objective is to be forward-looking and to contribute ideas that will help create a system fit for the next generation.

A spotlight on the Biodiversity Strategy

The preparation of a Biodiversity Strategy is one of the principal means by which the country meets its obligations under the Convention on Biodiversity. *Te Mana o te Taiao – Aotearoa New Zealand Biodiversity Strategy,* which was prepared by DOC in 2020, recognises that "several aspects of our current biodiversity system, including decision-making and regulatory processes, act as barriers to protecting and restoring biodiversity".[26] It notes that the current system is far too complex and is not working as it should to tackle the scale of the problems and the cumulative loss of indigenous biodiversity.[27] Specific issues identified in the Strategy include:

- Lack of a single overarching point of governance, leadership or coordination
- An extensive array of players each with their own governance, structure and priorities
- No overarching accountability for any players or body that actively monitors and polices the system, and those within it

This reinforces the case for system reform and makes the next stage of the biodiversity package, the development of a plan for *implementing* the Strategy, all the more important. The goal is for a biodiversity implementation plan to be collaboratively designed and then reviewed and updated every five years.[28] However, there is a limit to what such an implementation plan can achieve without more substantive reform of the legislative framework for conservation.

1.3 Methodology and approach

The EDS Conservation System Reform Project is examining the conservation system as whole. This includes the key statutes, policy and planning documents, and the system of granting concessions as shown in Figure 1.1.

Figure 1.1 Overview of the conservation management system

The project is split into two phases. Phase 1 has investigated challenges that the conservation system currently faces, culminating in this *Issues Report*. Phase 2 will analyse the conservation system as a whole in more detail, taking a first principles approach, and will propose solutions and options for reform.

It is important to note at the outset that our work for Phase 1 has focused on identifying *issues* within the conservation system, the problems and points of tension that currently exist, rather than the areas that are working well. We want to acknowledge, before delving deeper into those issues, the hard work of many people operating at the conservation 'coal face'. Many innovative projects and partnerships are making positive progress, despite having to work within a flawed framework. We also want to underscore that, in the next phase of the project which will be canvassing solutions, we will be highlighting these positive efforts since it is that work that will need to be strengthened, retained and built on going forward.

However, that is not the focus of Phase 1 and this Report.

Phase 1 commenced in May 2020 with a review of relevant literature to distill what had already been written on the topic. This enabled us to identify reoccurring issues, themes and concerns raised by academics, scientists, regulators and other commentators. The review included an examination of key discussion documents and reports published by DOC, the Ministry for the Environment and the Conservation Authority. It was particularly useful in highlighting issues which have already been widely acknowledged and those which are seen as especially urgent or important.

Recent annual reports produced by DOC and the Conservation Authority were also reviewed, as were the most recent two years of Conservation Board annual reports. The latter were particularly useful in building up a picture of the extent to which particular issues occur across the country and how they vary from place to place. We found, not surprisingly, that weaknesses in the system were most visible in areas of the conservation estate under the greatest pressure. These places effectively serve as a 'canary in the coalmine' for broader systemic issues within the system as a whole.

We also examined *Hansard* to track Parliamentary debates during the introduction and passage of core conservation-related statutes through the House. This provided insights into the political and regulatory context within which the statues were developed, including the issues and stakeholders foremost in the minds of Ministers at the time. Parliamentary debates were also useful in outlining the original intention and purposes

of the legislation. In turn, this enabled us to assess the extent to which the legislation has delivered on its promises and been effectively implemented on the ground.

With this material as background, EDS then undertook an extensive round of engagement with participants in the conservation system. This included several workshops with DOC staff and more than 50 interviews with a wide range of people who have engaged with the system including those from Conservation Boards, the Conservation Authority, the Game Animal Council, Fish and Game councils, iwi/hapū, environmental NGOs and local councils, as well as academics and broader stakeholders. To enable interviewees to express their views frankly and freely, all interviews were held in the strictest confidence and the identities of those interviewed have been kept anonymous. A draft report was circulated widely for peer review, including to those we interviewed, prior to finalisation.

We have not sought to traverse the full range of issues identified and discussed in the many hours we spent talking with interviewees. Instead, we have highlighted the most significant ones; the issues that are widespread, often mentioned and causing the most tension within the current regime. We have also sought to highlight some of the most serious issues from a biodiversity perspective.

In this *Issues Report* we have sought to document the pressures, conflicts and problems that exist within the conservation system, to explore their dynamics, and to reflect the different experiences and views of those attempting to work within the system. We found that significant disagreement exists around some issues. Indeed, there are a range of views even at the macro level; around what the purposes and priorities of the conservation management system should be and what the governance structures should look like. However, what all interviewees and commentators agreed on was that there are serious issues within the system that need to be urgently addressed.

1.4 Structure of report

Beyond this introductory chapter, the Report is divided into six main sections.

Chapter 2 starts by introducing the current legal framework that underpins the conservation system. It provides an overview of the core conservation legislation within that system and its purposes and roles. We briefly discuss the interface of the system with other legislation, such as the RMA and Crown Minerals Act 1991. The complexity of the legal framework, and its poor fit with te ao Māori, is also explored. We highlight the implementation gap inherent in the Conservation Act, which requires decision-makers to give effect to Te Tiriti principles, but fails to provide mechanisms to implement that requirement. We discuss relevant Waitangi Tribunal reports and case law and draw out their implications.

Chapter 3 examines the core institutions within the conservation system and their purposes, roles and membership. They include DOC, the Conservation Authority, Conservation Boards, Fish and Game and the Game Animal Council. We canvass the historical rationale for these institutions, assess the extent to which they have fulfilled their original

Raewyn Peart

Whakapapa skifield, Tongariro National Park. Ruapehu Alpine Lifts has a licence to occupy the skifield area granted by the Minister of Conservation.

purposes, and note the changed context in which they now operate. The chapter highlights the traditional watchdog role of the Conservation Authority, the lack of clarity on the role of Conservation Boards, and the inadequate provision for Māori within these institutions.

Chapters 4 and 5 collectively consider the regime for managing and protecting conservation *land*. We provide an overview of the scale and size of the conservation estate and the types of land that sit within it. Chapter 4 explores the conservation planning system, and the different types of documents that exist within the planning hierarchy, focusing on Conservation Management Strategies (CMS), Conservation Management Plans and National Park Management Plans. We discuss the processes for developing and approving these documents, the role of various institutions in that process, and the core issues arising within the planning framework. Chapter 5 takes a closer look at one particular type of conservation land, stewardship land, and the controversy that surrounds its purpose, protection and review. This includes an examination of land exchange provisions and the arguably lower level of protection accorded to these areas.

Chapter 6 introduces the framework for concessions that authorise commercial activities on conservation land. We describe the legal framework for the application and approval process including recent reforms. We highlight some of the most oft-mentioned criticisms of the concessions framework, including it being an overly complex system, lack of compliance with planning documents, and project 'creep' through variations. Monitoring and compliance issues are reviewed along with the need for improved mechanisms to allocate concessions on a more selective basis. The importance of this last issue to iwi, and compliance with section 4 requirements under the Conservation Act, is also discussed.

In Chapter 7 we shift from considering protections for *land* to scrutinising those in place for rare, endangered and indigenous *species*. A core issue identified in our examination of the conservation framework is its struggle to protect our native flora and fauna. The reasons for this are many. This chapter canvasses some of the reoccurring themes and problems raised by academics, scientists and regulators. They include the lack of special-purpose threatened species legislation, the very dated Wildlife Act (and the problematic provisions within it), the uneasy balance between introduced and indigenous species protection, and the interface between the conservation estate and private land (under the RMA).

In Chapter 8 we draw the threads from the various chapters together to highlight the core issues with the conservation management system as a whole.

Endnotes

1 Roosevelt, 1916, passage 25

2 Marshall, 1986, *New Zealand Parliamentary Debates*, Conservation Bill (Introduction, 11 December 23 1986), 476, 6140

3 Marshall, 1986, *New Zealand Parliamentary Debates*, Conservation Bill (Introduction, 11 December 23 1986), 476, 6140

4 Department of Conservation, 2020b, 4

5 Waitangi Tribunal, 2011, 127

6 Department of Conservation, 2019a

7 Some statutes are even older, like the Native Plants Protection Act 1934

8 Waitangi Tribunal, 2011, 147

9 https://teara.govt.nz/en/tourist-industry/page-6

10 https://www.mbie.govt.nz/immigration-and-tourism/tourism-research-and-data/tourism-data-releases/tourism-and-the-economy/#:~:text=Total%20tourism%20expenditure%20was%20%2441.9,exports%20of%20goods%20and%20services.

11 https://www.tia.org.nz/about-the-industry/quick-facts-and-figures

12 https://www.newsroom.co.nz/blasting-report-sends-conservation-ripples

13 Sage, 2020, *New Zealand Parliamentary Debates*, written question to Minister of Conservation (Question 9905, 29 May 2020), https://www.parliament.nz/en/pb/order-paper-questions/written-questions/document/WQ_09905_2020/9905-2020-maureen-pugh-to-the-minister-of-conservation

14 https://www.doc.govt.nz/news/media-releases/2019/mega-mast-confirmed-for-new-zealand-forests/

15 Department of Conservation, 2020a, 25 and 69

16 An additional 4,245 are data deficient so their status is unclear. See Department of Conservation, 2019c, 119

17 Joy et al, 2019, 117

18 See Hare et al, 2019 and Department of Conservation, 2019a

19 Hare et al, 2019

20 https://www.doc.govt.nz/our-work/partial-reviews-of-conservation-general-policy-and-general-policy-for-national-parks/ and https://www.doc.govt.nz/news/media-releases/2020-media-releases/options-development-group-appointed-as-partial-reviews-of-conservation-policies-get-under-way/

21 See Clark and Mills, 2021

22 https://www.doc.govt.nz/globalassets/documents/conservation/biodiversity/anzbs-2020.pdf

23 https://www.mpi.govt.nz/law-and-policy/legal-overviews/biosecurity/biosecurity-act-1993-overhaul/

24 https://www.mbie.govt.nz/immigration-and-tourism/tourism/tourism-recovery/tourism-futures-taskforce/

25 Resource Management Review Panel, 2020

26 Department of Conservation, 2020b, 22

27 Department of Conservation, 2020b, 22

28 Department of Conservation, 2020b, 55

29 Where no Conservation Management Plan or National Park Management Plan exists concessions must comply directly with the relevant CMS. Regulations and bylaws may also be in place that restrict or impact on concession decisions.

2 Conservation legal framework

Weheka Cook River, Te Wāhipounamu World Heritage Area.

Neil Silverwood

2.1 Evolution of the legal framework

To provide a sense of how the conservation legal framework has evolved, we have set out a timeline for some of the more substantial or formative legislation (see Figure 2.1).

1934	Native Plants Protection Act
1948	Land Act
1949	Forests Act
1953	Wildlife Act
1971	Marine Reserves Act
1977	Queen Elizabeth the Second National Trust Act Reserves Act Wild Animal Control Act
1978	Marine Mammals Protection Act
1980	National Parks Act
1986	Environment Act → Formation of Ministry for the Environment and Parliamentary Commissioner for the Environment
1987	Conservation Act → Formation of Department of Conservation
1989	Trade in Endangered Species Act
1990	Conservation Law Reform Act → Formation of the New Zealand Fish and Game Council
1991	Resource Management Act Crown Minerals Act
1993	Biosecurity Act
1996	Fisheries Act Hazardous Substances and New Organisms Act
1998	Crown Pastoral Land Act
1999	Animal Welfare Act
2011	Environmental Protection Authority Act → Formation of Environmental Protection Authority Marine and Coastal Area (Takutai Moana) Act
2012	Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act
2013	Game Animal Council Act → Formation of Game Animal Council
2014	Te Urewera Act
2015	Environmental Reporting Act
2017	Te Awa Tupua (Whanganui River Claims Settlement) Act
2018	Conservation (Infringement Systems) Act
2019	Conservation (Indigenous Freshwater Fish) Amendment Act

Figure 2.1 Timeline of conservation-related legislation

As can be seen from Figure 2.1, some of the statutes date back to the 1930s, and one of the most central pieces of legislation, the Wildlife Act, dates back to 1953. Unsurprisingly then, of all the conservation legislation currently in place, the Wildlife Act was almost universally identified by interviewees as the most problematic, the least fit for purpose and the most difficult to integrate within a modern conservation management approach.

By the 1970s, the need for more specialised conservation-related legislation had become clear, and this era saw the introduction of a range of new statutes. These were most notably; the Marine Reserves Act in 1971, the Reserves Act and Wild Animal Control Act in 1977, and the Marine Mammals Protection Act in 1978. The National Parks Act followed closely in 1980. Collectively this means that most of the core conservation legislation in place today is now at least 40 years old.

Even by the mid 1980s, there was growing acknowledgment that these legislative developments had been too ad hoc, and the system was growing too complex. This was particularly due to management being spread across several agencies. The introduction of the Conservation Act arose in that context. The establishment of a single conservation-focused department, in the form of DOC (as described in Chapter 3), was intended to improve the functioning of an already problematic framework.

2.2 Current legal framework

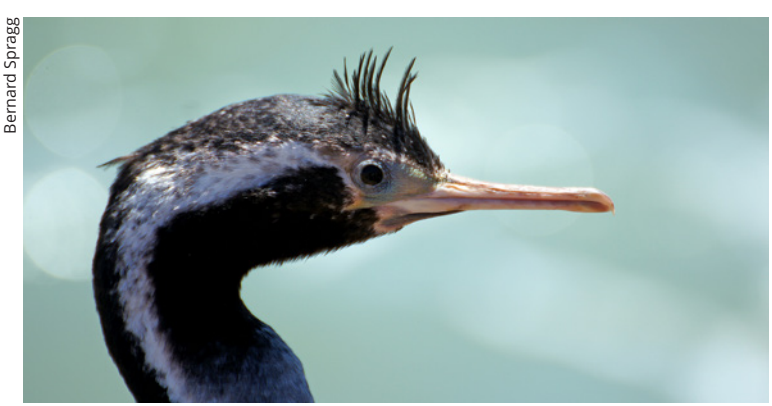
> "The regulatory and policy frameworks we have in place for protecting biodiversity in Aotearoa New Zealand have been criticised for being inconsistent, disjointed, under-resourced and poorly enforced, resulting in a failure to achieve many biodiversity outcomes. There is no clear and universal mandate to protect or manage species or ecosystems across all environments, and there are inconsistencies in how species and habitats are managed under different legislation."[1]

Eight pieces of legislation make up the core of the conservation law system (Figure 2.2). At its heart lies the *Conservation Act*. This establishes a series of institutions (DOC, the Conservation Authority, Conservation Boards and Fish and Game councils) and central planning mechanisms (Conservation General Policy, CMSs and Conservation Management Plans) that operate within the conservation framework. It also sets out a regime for the regulation of activities within conservation land and waters including the grant of concessions.

Legislation	Overall purpose
Conservation Act 1987	Preserve and protect natural and historic resources to maintain their intrinsic values, provide for their appreciation and recreational enjoyment by the public, and safeguard the options of future generations.
National Parks Act 1980	Preserve national parks as far as possible in their natural state. Preserve indigenous species and exterminate introduced species as far as possible. Subject to the above, provide the public with freedom of entry and access.
Reserves Act 1977	Preserve, and manage for the benefit and enjoyment of the public, areas of New Zealand that possess a range of values.
Wildlife Act 1953	Protect indigenous and exotic wildlife.
Wild Animal Control Act 1977	Control problem introduced wild mammals generally and eradicate them locally where necessary and practicable.
Game Animal Council Act 2013	Establish the Game Animal Council, create powers to manage herds of special interest and provide a fee and levy system to fund the Council
Marine Reserves Act 1971	Preserve marine areas, as far as possible, in their natural state for the purpose of scientific study of marine life.
Marine Mammal Protection Act 1978	Protect marine mammals from hunting and other harassment and threats.

Figure 2.2 Core conservation legislation

Bernard Spragg



Spotted shag.

No explicit purpose is set out for the Conservation Act (or system). But the Act does define terms such as 'conservation', 'nature conservation' and 'natural resources' (see box below). Thus the mission and purpose of the Act must be deduced from these definitions. The lack of a clear purpose creates ambiguity and uncertainty about the scope of the public interest in conservation that the Act is intended to protect.

Key definitions under the Conservation Act[2]

Conservation means the preservation and protection of *natural and historic* resources for the purpose of maintaining their intrinsic values, providing for their appreciation and recreational enjoyment by the public, and safeguarding the options of future generations.

Nature conservation means the preservation and protection of the *natural* resources of New Zealand, having regard to their intrinsic values and having special regard to indigenous flora and fauna, natural ecosystems, and landscape.

Natural resources means—

(a) plants and animals of all kinds; and

(b) the air, water, and soil in or on which any plant or animal lives or may live; and

(c) landscape and landform; and

(d) geological features; and

(e) systems of interacting living organisms, and their environment;

and includes any interest in a natural resource

Preservation, in relation to a resource, means the maintenance, so far as is practicable, of its intrinsic values.

Protection, in relation to a resource, means its maintenance, so far as is practicable, in its current state; but includes its restoration to some former state and its augmentation, enhancement or expansion.

The definitions emphasise "preservation and protection" and maintaining "intrinsic values" rather than sustainable use (although the definitions of both preservation and protection are qualified by the term "so far as is practicable"). The definitions also apply more broadly than

to just biota and include geological features and landscapes as well as historic places (such as archaeological sites and historic buildings and structures). The importance of people being able to appreciate natural and historic areas, and enjoy them recreationally, is recognised as is the interest of future generations.

Interestingly, the more nature-focused term, 'nature conservation', which recognises "intrinsic values" and directs "specific regard" to "indigenous" flora and fauna is only employed twice in the Conservation Act: in relation to the functions of the Conservation Authority and selection criteria for members of Conservation Boards. This means that the term is of minimal relevance to the work of DOC and that the Conservation Authority operates under a more nature-based and indigenous-focused conservation lens than the Department.

Rather strangely for conservation legislation, the things to be preserved, protected and maintained are termed "resources" implying that their value is in their use. At the time the Act was passed, conservationists raised concerns about the reference to resources and omission of direct reference to the protection of flora and fauna in the core definition of conservation.[3] Some of our interviewees echoed this view.

There is no mention of tourism in these definitions, but the functions of DOC as set out in section 6 of the Act, include to "*foster* the use of natural and historic resources for recreation, and to *allow* their use for tourism" to the extent that such use is "not inconsistent with" conservation. There is no definition of 'recreation' or 'tourism' in the Act. Nor are the terms defined in the Conservation General Policy. The definition of 'conservation' in section 2 of the Act includes providing for "recreational enjoyment by the public". But it is unclear when a visitor to a park for recreational purposes becomes a 'tourist'. A number of interviewees highlighted the practical difficulty of disentangling recreation from tourism, in order to determine the approach to be adopted for each activity.

The scope of the function "to allow" for tourism, and extent to which it includes upgrading tourism infrastructure which encourages more visitors, has been the subject of some debate (see the Ōpārara Basin spotlight). Conservation legislation was developed at a time when there was only a small tourism industry and it provides little guidance on how the important interface between tourism and conservation land should be managed.

The Conservation Act does contain a strong Te Tiriti clause but, as discussed below, little elaboration on how it might be applied within

Raewyn Peart

Aoraki Mount Cook National Park.

the conservation system itself. In addition, "(t)he fundamental ethos of NZ's conservation law offers limited rights and opportunities for tangata whenua to apply their own environmental ethic".[4]

During our interviews we found that the underlying principles of the Conservation Act, and the extent to which protection of conservation land should take priority over its economic use, remains contested. Interviewees expressed a diverse range of perspectives on what the purpose of the Conservation Act should be. For example, we were told by some that the current regime is too focused on protection, particularly when it applies to a diverse array of conservation land types and values. Instead, DOC should be empowered to apply a "broader lens" to enable greater consideration of the "social, cultural and economic context and outcomes". But others felt that the focus of the system needed to be more strongly on "preservation", and that despite recognition of intrinsic values by the Act, these were too often compromised to enable activities such as tourism.

> "The Conservation Act does not have a clear enough statement of purpose. It adopted the same hopeless multiple use approach that was there under the old Forests Act. There is no overriding purpose and few safeguards, so it too easily manipulated to suit current political expressions. It doesn't perform well from a strategic design perspective, it is absent a mission." (*Interviewee*)

The *National Parks Act* is arguably the second most important component of the conservation law system, not only because of the high conservation value of the land protected under the Act, but for its role within the conservation planning system. The Act also has no explicit stated purpose but it importantly sets out principles to be applied to the management of national parks. These include that national parks "shall be preserved as far as possible in their natural state".[5] They give clear priority to indigenous species within national parks stating that "native plants and animals of the parks shall as far as possible be preserved and the introduced plants and animals shall as far as possible be exterminated" except where the Conservation Authority "otherwise determines".[6]

The principles also provide for public access stating that "subject to the provisions of this Act and to the imposition of such conditions and restrictions as may be necessary for the preservation of the native plants and animals or for the welfare in general of the parks, the public shall have freedom of entry and access…".[7] There is no mention of Māori interests or values in the Act nor tourism. Despite emphasising the importance of public access, the statute makes it clear that in national parks, nature is to come first. However, the reference to "freedom of entry and access" means that it is difficult to manage visitor numbers in national parks in order to maintain the visitor wilderness experience.

The National Parks Act provides for its own regime of planning documents, which apply specifically to national parks, including the General Policy for National Parks and National Park Management Plans. It also creates additional restrictive requirements when concessions are granted.

Neil Silverwood

Tourism infrastructure at Dolomite Point, Punakaiki, Paparoa National Park.

A spotlight on tourism development at the Ōpārara Basin, Kahurangi National Park

"The Ōpārara Basin boasts unique and fragile karst terrain, including the Ōpārara Arch, reportedly the largest limestone arch in Australasia."[8] The 35 million year old complex of limestone caves, arches and channels is popular with walkers and cavers. The Basin is also home to many rare native species, such as the short-tailed bat, giant land snail, whio and Aotearoa's largest spider (*Spelungula cavernicola* or Nelson cave spider) which has a leg span of up to fifteen centimetres. The spider is highly sensitive to light. Due to its rarity and restricted habitat it was the first species of spider to gain protection under the Wildlife Act.[9]

The Ōpārara Basin is a relatively established tourist destination hosting around 15,000 visitors per year. In November 2018, DOC was awarded $5.6 million from the Provincial Growth Fund (a government fund aimed at supporting regional development)[10] to develop infrastructure at Ōpārara. Phase one of the work started in August 2020. The project includes track upgrades, improved road access, the installation of flush toilets, development of signage and an interactive app, and the possible construction of a viewing platform. DOC is leading the planning and implementation of the work which is designed to increase visitor safety and better manage the environmental impact of visitors to the area.[11]

The project originated out of the 2016 Tai Poutini West Coast Growth Study undertaken by the Ministry for Primary Industries (MPI) and Ministry of Business, Innovation and Employment. The study proposed developing the Ōpārara Arches as a tourism attraction to encourage people to travel to the area, spend more and stay longer.[12] Development West Coast and Tourism West Coast were highly supportive of the scheme, with their 2017 marketing plan aiming to increase visitor numbers to 66,837 by 2021.[13] The first plan, dubbed 'Moa town' by some, would have included not only infrastructure upgrades but a light show and giant moa installation, as well as a suspended walkway through one of the Ōpārara Arches.

Regional development and tourism sector aspirations appear to have driven the Ōpārara development, at least initially. While DOC substantially downsized the earlier ambitious plans, it is unclear whether the current project fits within the purpose of the National Parks Act, which is to preserve national parks as far as possible in their natural state. There is an inherent tension between achieving this and upgrading infrastructure in a way that makes the site more attractive for tourists. As the Parliamentary Commissioner for the Environment concluded in his 2021 report, it is an example of how "by increasing the physical carrying capacity of particular places, infrastructure investment can trigger a self-fulfilling dynamic of visitor growth, greater environmental pressure and the need for additional infrastructure investment."[14]

Local Conservation Board member and caving expert, Neil Silverwood, is concerned that the Nelson cave spiders will not survive increased visitor numbers. "The spiders are light sensitive and tourism pressures are already pushing these animals to the edge. I used to guide in there 20 years ago and we would see 15 to 20 of these spiders the size of your hand … Now you can't see any … the PGF [Provincial Growth Fund] is a really poor fit for DOC. The aim is to drive up visitor numbers, while DOC is supposed to be protecting nature."[15]

Ōpārara Arch, Ōpārara Basin, Kahurangi National Park

A third core piece of conservation legislation is the *Reserves Act 1977***.** This provides for the acquisition of land for reserves, and for its classification and management, as well as the grant of leases and licences for its use. Reserves may be administered by DOC, Ministers of the Crown, Māori entities, boards, trustees, local authorities, societies and other organisations appointed to control and manage reserves, or in whom reserves are vested. Many reserves are owned by local councils.

Unlike the other more recent legislation described above, the Reserves Act does have an explicit purpose. This refers to the "preservation" but also the "management for the benefit and enjoyment of the public" of areas of Aotearoa New Zealand that possess a range of values including for recreation, wildlife, indigenous flora and fauna, environmental and landscape amenity and other values. The Act then puts in place a number of different reserve classifications such as scenic, scientific and local purpose reserves, with varying degrees of protection to accommodate these distinct values and uses. The purpose of the Act also refers to ensuring, as far as possible "the survival of all indigenous species of flora and fauna" in their "natural communities and habitats" and preserving public access along the coast, lakes and riverbanks.[16] The Act has a strong focus on public access, use and enjoyment of protected land.

A spotlight on free access to conservation land

A principle of free access is evident in the Conservation Act, National Parks Act and Reserves Act. Section 17 of the Conservation Act has the strongest articulation of this principle and states that "entry to and use of conservation areas by the public shall be free of charge" and that a "reasonable fee" may only be charged for use of facilities provided "other than paths or tracks". In addition, section 4 of the National Parks Act states that "the public shall have freedom of entry and access to the parks" and section 3(1) of the Reserves Act reiterates the need to preserve "freedom of entry and access" to the public.

These legal requirements to provide free access prevent the collection of entry and user fees, not just from New Zealanders, but from overseas visitors as well. In contrast, all Australian states use some form of user pays system for conservation areas. Many national parks require purchase of a vehicle pass for entry or of passes that can be bought at parking areas and visitor centres.[17] Canada has also shifted towards more tourism-based fees and charges. Overseas park management authorities can use these funds to supplement government funding and this can be invaluable to assist with the upkeep of high use areas which attract larger numbers of tourists.[18] The statutory framework in Aotearoa New Zealand means that this potential funding stream is not available to support management and maintenance of the conservation estate.

The National Parks Act and Reserves Act, and to a large extent the Conservation Act, focus on the protection and management of public conservation land. There is also a body of legislation that focuses on the protection of *species*.

The *Wildlife Act* is the core species-focused piece of legislation in Aotearoa New Zealand. It deals with the protection and control of wild animals and birds (including indigenous and introduced species) and the management of game. There are also some marine species (such as corals, sharks and fish) that are declared to be 'animals' for the purposes of the Act.[19] There is special provision for the development of population management plans to limit the level of fishing-related mortality of marine wildlife including seabirds.[20]

The Wildlife Act sets out a permitting regime which applies to specific wildlife. The level of protection afforded to a specific species can vary. The default setting is absolute protection, with variations to this set out within schedules to the Act. The Act also regulates game bird hunting and makes provision for wildlife sanctuaries, wildlife refuges, wildlife management reserves and wildlife districts. It contains no clear purpose or principles to be applied to management decisions. The Act does not recognise Māori interests or values apart from consultation requirements limited to population management plan preparation.

The Wildlife Act is coupled with the *Wild Animal Control Act 1977* which is designed to control introduced wild mammals. Its purpose is the control of "wild animals" generally and eradication of them locally "where necessary and practicable".[21] Wild animals are defined as including deer, chamois, tahr, goats and pigs. The Act aims to address the damaging effects of such wild animals, to coordinate hunting measures, and to provide for the regulation of recreational hunting and wild animal recovery operations. It also establishes recreational hunting areas as well as a permitting regime for deer farms and safari parks.

The more recent *Game Animal Council Act 2013* establishes the Game Animal Council to oversee the hunting sector. It creates a system of fees and levies to fund the Council and enables the Minister to declare "herds of special interest" for which management can be delegated to the Council.

Somewhat strangely, the protection of indigenous plant species has received much less focus from legislators. The *Native Plants Protection Act 1934* was introduced to protect native plants, particularly those located outside public conservation land, but it has languished without notable use ever since. The Act is still on the law books, and provides penalties if any individual "takes" a native plant without landowner consent, but the amounts are nominal.

Two additional pieces of legislation apply specifically to conservation in the marine area. The *Marine Reserves Act 1971* addresses spatial protection within the territorial sea (extending 12 nautical miles from high water). It provides for the establishment of marine reserves which are designated areas protected from the sea surface down to the seafloor including adjacent foreshore areas. The purpose of the legislation is to preserve areas "for the scientific study of marine life"[22] and there is no mention of conservation or biodiversity protection.

The purpose of the Marine Reserves Act reflects its genesis. It was initiated by a group of scientists from the University of Auckland. They were seeking protection of marine life in an area adjacent to their Leigh research laboratory where they were undertaking scientific experiments.[23] Marine reserves are to be preserved "as far as possible" in their "natural state".[24] Activities such as fishing and other extractive uses are prohibited except when expressly authorised. Although Māori interests and values in the marine area are not generally recognised in the Act, iwi and hapū are identified as one of the limited parties that can apply for a marine reserve.[25]

The Marine Mammals Protection Act 1978 provides for the conservation, protection and management of marine mammals. It is unusual legislation in that a legislative regime has been developed to protect a specific group of animals. Its genesis was in the wake of the anti-whaling movement and the political decision to stop the hunting of whales in Aotearoa New Zealand.[26] The Act protects all marine mammals (eg dolphins, whales, seals and sea-lions). It is illegal to "take" a marine mammal without a permit, which includes hunting, harassing, disturbing or tagging the animals. The Act also provides for the establishment of marine mammal sanctuaries, providing species-specific spatial protection.

Bernard Spragg

New Zealand fur seal.

Similar to the provisions in the Wildlife Act for marine species, population management plans can be developed to address marine mammal bycatch in fisheries. There are also regulations promulgated under the Act that manage marine mammal tourism and require commercial tourism operators to obtain a permit.[27] Apart from consultation on the preparation of population management plans, Māori interests are not recognised within the Act. However, most iwi now have a protocol with DOC to allow the extraction of resources from stranded whales.

Although there was general consensus amongst interviewees that the conservation system is in urgent need of reform, there was also a degree of hesitancy and anxiety around *how* that reform would proceed: of the risks associated with opening up a debate around the core underpinnings of our conservation management system. This included concerns at what the terms of reference would be, the mix of interest group representation, and the influence of powerful and economically important stakeholders in any law reform process. Some urged caution at undertaking any significant overhaul of the system at a time of considerable environmental fragility. Others highlighted that the next five to 10 years would be "critical" for our waterways and climate change response, and there was therefore an urgent need to transition to a more agile and responsive framework. These concerns highlight the challenges that any law reform initiative will face. As one interviewee noted:

> "There have been many attempts to undermine the protections in place under the National Parks and Reserves Acts, to open areas up for development. The drafters of those Acts put in strong recognition and references to intrinsic values and protection. The National Parks Act gives a degree of priority to intrinsic values and nature, over recreation, that some of the other legislation doesn't. We need to be wary, because that's possibly *better* than we could achieve today. Today it all seems to be about 'ecosystem services' – the value of these spaces to *people*."

A range of interviewees were concerned to ensure that any law reform initiative locked in the *positive* features and gains made under legislation such as the National Parks Act and did not "move backwards". At the same time, there was a need to "sort out" the "huge problems" in the conservation management and planning system that can undermine current protections.

Other important legislation

In addition to the core conservation legislation described above, many other statutes impact on the protection of conservation values, and interact with the conservation system. One of the most significant is the *Resource Management Act* which focuses on the regulation of all land, including private land, air, freshwater bodies and the coastal marine area. This is in order to "maintain" indigenous biological diversity[28] amongst many other things. The Act has as its purpose the promotion of "sustainable management" of natural and physical resources so is less protective than the core conservation legislation. However, it does set out a number of matters of national importance which include preserving the natural character of the coastal environment, wetlands, lakes and rivers and their margins; protecting outstanding natural features and landscapes from inappropriate subdivision, use and development; and protecting "areas of significant indigenous vegetation and significant habitats of indigenous fauna".

Unlike the core conservation legislation, the RMA provides explicit recognition of Māori interests and values in nature. In particular, "the relationship of Māori and their culture and traditions with their ancestral lands, waters, sites, waahi tapu, and other taonga" is recognised as being of national importance and "kaitiakitanga" is a matter to be paid particular regard to.[29]

The resource management system is currently being reformed and this will have implications for any subsequent changes to the conservation management system. The interface between the RMA and the conservation system is important because species frequently move between different land tenures. In addition, many areas of high conservation value are on private land and such land can provide important habitat for protected species. Activities on private land can also have significant implications for the conservation estate through adjacent or downstream impacts.

Under section 6(b) of the Conservation Act, one of the roles of DOC is to advocate for conservation. This means that the Department regularly makes submissions on plans and policy developed under the RMA. In addition, the Minister of Conservation has specific functions under the RMA in relation to the preparation, monitoring and implementation of New Zealand Coastal Policy Statements, monitoring of coastal permits for restricted coastal activities, and approving regional coastal plans.[30] These issues are explored in Chapter 7 which focuses on the protection of species.

Many other pieces of legislation interface with the conservation system. For example, where permission is sought to mine on conservation land, the *Crown Minerals Act* is of direct relevance as permissions are considered jointly by the Minister of Conservation and Minister of Energy and Resources. There is also a conservation services levy regime under the *Fisheries Act 1996* which seeks to address the impacts of fishing on protected species. In addition, the management of invasive species under the *Biosecurity Act 1993* has important implications for indigenous biodiversity.

Conservation legislation and te ao Māori

> "We are all very thankful that the mindset that has been guarding these lands has been a conservation mindset that has valued these places. But the management framework has been a Pākehā based one built on the exclusion of Māori." (*Interviewee*)

The framing of Aotearoa New Zealand's conservation legislation clearly does not reflect a te ao Māori world view. It draws from the European tradition of wild places being kept apart from people, to be *visited* from time to time, rather than being an integral part of society.[31] This is very different to viewing natural features and systems as having a reciprocal relationship with humans, being tūpuna (ancestors) to which responsibilities accrue, as in te ao Māori.

The Iwi Chairs Forum has framed the connection of tangata whenua to place as centred around the notion of *respect* and a "*relationship* with the natural world and an understanding that the well-being of human beings depended upon the well-being of Papatūānuku [Mother Earth] as a living entity rather than a resource".[32] Activities such as mining, or environmental degradation from the over-exploitation of resources, were viewed fundamentally as *attacks* on Papatūānuku.[33]

There is a long history of Māori being excluded from land in order to protect it for conservation purposes. For example, a significant proportion of Tūhoe land was appropriated by the Crown to establish Te Urewera National Park. It was that historical dispossession that formed the basis for a claim lodged with the Waitangi Tribunal. In considering the claim, the Tribunal acknowledged the ongoing support of Tūhoe for the conservation of their high-altitude forests, but also the fundamental incompatibility of the preservationist approach of the Crown with the Tūhoe world view, and the negative impacts this has had on the Tūhoe economy, culture and well-being.[34]

The legal recognition of Te Urewera as a legal entity (with all the rights and powers of a person) under the Te Urewera Act 2014, and vesting of this customary territory (as freehold) to a majority Tūhoe governance authority (Te Urewera Board),[35] has enabled the restoration of kaitiakitanga (guardianship) to Tūhoe over their natural resources and the implementation of a management system centred on a Tūhoe world view. It underscores the fact that land held in the conservation estate typically breaks these relationships, and often fails to maintain the traditional linkages of indigenous peoples to their lands and resources. As one interviewee noted:

> "the overriding philosophy of legislation, of the Reserves Act, Marine Reserves Act and National Parks Act is to put blanket restrictions in place. That's not compatible with the Treaty or Māori view of the environment. This has become a fundamental roadblock. We get caught in a cycle of argument, which is essentially an argument over the definition of conservation, and what the end goals of that conservation are."

The rich, connected, relationship-based system of values held by Māori is not currently reflected in law and is frequently undermined. A conservation system developed in partnership with tangata whenua would look very different. It is important to note that these differences do not simply impact on the framing of the legislation and its definitions – they have very practical implications (for example, see spotlights on cultural harvest and the use of mountain summits).

Bernard Spragg

Figurehead of Ngā Puhi waka taua Ngātokimatawhaorua.

A spotlight on cultural harvest

Cultural or customary harvest has been an ongoing issue of contention for Māori. During the hui that took place around the partial reviews of Conservation General Policy and General Policy for National Parks (General Policies), customary harvest provisions and access to cultural materials was an area identified as needing change.[36]

At present the statutory framework places wildlife under Crown ownership and prohibits use without express authorisation:

> The *Wildlife Act* declares all wildlife to be owned by the Crown and section 53 requires authorisation from the Director-General of Conservation (Director-General) to catch alive or kill (or possess dead) protected species. Schedule 3 lists wildlife that may be hunted or killed subject to Ministerial notification and this currently includes a number of bird species used for customary purposes, most notably sooty shearwater (mutton birds).
>
> The *Conservation Act* requires approval from the Director-General for the removal of any plant intended to be used for "traditional Māori purposes" and removal for other purposes must be approved by the Minister of Conservation.
>
> The *Reserves Act* prohibits the cutting or destruction of trees and shrubs without approval from the Minister of Conservation. There is provision for the Minister to grant Māori the right to take birds within a scenic reserve that was created on land that was Māori-owned prior to the designation; and to bury or inter the remains of their deceased in ancestral burial grounds within scenic or historic reserves.[37]
>
> The *National Parks Act* similarly prohibits removal of any plant, or part of a plant, without approval from the Minister.

Ngā Aitanga ā Nuku agreements, that enable the development of cultural or customary materials plans, are sometimes included in Te Tiriti settlements. These plans are jointly created by iwi and DOC and are approved by the relevant decision maker (either the Minister or Director-General). A specific whānau, hapū or iwi

based legal entity is typically established to accept and consider requests that align with the plan. This body then applies to DOC for the necessary authorisations.

Despite this innovation, it is clear that existing statutory frameworks were not designed with customary use and the needs of iwi/hapū front of mind. They fail to incorporate, at a purposes level, the aspirations and values of Māori. Māori have called for a move towards "a sustainability model that allows for customary harvest" rather than the current situation where "every decision to grant access or harvest rights [is] an exception to a 'no access' rule".[38] The Predator Free 2020 initiative has already taken the step of recognising that, if successful, one of the benefits of the programme may well be that "taonga species could become so abundant that cultural harvest might resume".[39]

> "We all, Māori and Pākehā, want flourishing land and waters. We all understand that is deeply connected to the health and well-being of our people. But what happens when we get there? Do we just visit it to look at, or can we start the discussion on things like cultural harvest and include that as a priority amongst our goals? We need to reconsider how we define the purposes of conservation, to prepare a ground where Māori and Pākehā can meet, and think about what it means to have bicultural foundations and multicultural dynamics." (*Interviewee*)

Cultural harvest, especially of iconic bird species, is likely to trigger highly emotive and polarised views, but it is an important conversation to have. It goes to the heart of questions such as what purposes, values and approach should underpin the conservation system, what Te Tiriti requires, and how we might develop a more inclusive, equitable, bicultural and uniquely Aotearoa New Zealand approach.

A spotlight on tapu and mountain summits

Tapu is the strongest force in Māori life. It can be interpreted as 'sacred' or 'spiritual restriction', containing a strong imposition of rules and prohibitions. A place that is tapu may not be touched or, in some cases, even approached.[40]

In many cases, there is significant tapu associated with mountain summits. For example, as a sacred mountain and ancestor of Ngāi Tahu, Aoraki is subject to restrictions on its use. Māori would not climb to the summit and consider that standing on the very top denigrates its tapu status. For Ngāi Tahu, it was important that the Ngāi Tahu Claims Settlement Act 1998 contained a statutory acknowledgement of Aoraki as a most sacred ancestor from which they descend and which "provides the iwi with its sense of communal identity, solidarity, and purpose".[41]

In contrast, non-Māori trampers and climbers often see getting to 'the summit' of a mountain as their prime goal; it is an inherent part of being able to say they have 'climbed the mountain'. In this situation, Māori values and traditions come into direct conflict with Pākehā mountaineering practice. Absent any legal means of enforcing tapu, Pākehā values and preferences frequently prevail.

One mechanism to address this issue within the current legal framework is for DOC to refuse the grant of concessions to guiding companies taking people to the summit. Doing this has seen a significant drop in the number of people attempting to summit mountains which are considered tapu, such as Aoraki and Tongariro.[42] In some instances, the Department has also issued an advisory, recommending that people avoid the summit. But such measures fall short of a ban.

Examples such as this underscore the issue that Māori currently lack legally enforceable governance authority to protect their sacred places and traditional resources. This significantly undermines tangata whenua's role as rangatira and kaitiaki as well as the protection of their sacred sites and taonga. It means that Māori are reliant on Crown agencies to act.

Complexity of the legal framework

The Public Services Act 2020 was enacted to promote a more modern, joined up and citizen-focused public service. It creates an obligation to proactively promote stewardship of the public service, including its systems and processes and the legislation administered by its agencies.[43] Chief executives of departments and departmental agencies are given a general responsibility to support their Minister in acting as a steward of the public interest by "maintaining the currency of any legislation administered by their agency".[44] This means that there is now an express *responsibility* to ensure that legislation is clear, accessible and understandable by the public. Much of the legislation within the conservation management system would fail one or more of these criteria.

During our interviews, many people commented on the messy nature of the current legislative system, with numerous pieces of overlapping legislation that are not designed to work together. At least one interviewee noted that, were the Law Commission to turn an eye to the conservation framework and DOC's work within it, they would find substantial issues in need of urgent resolution.

Bernard Spragg

The summit of Aoraki is sacred to Ngāi Tahu.

The difficulties with undertaking pest management activities, such as administering aerial 1080, is a case in point. Regulators need to check out requirements for different parcels of land which may include reserves under the Reserves Act, conservation land under the Conservation Act, national park land under the National Parks Act and parcels of private land, all which have different requirements. Te Tiriti obligations under section 4 of the Conservation Act need to be met and the relevant CMS and Conservation Management Plans considered. There may also be requirements under the Biosecurity Act, Hazardous Substances and New Organisms Act 1996, RMA[45] and Wildlife Act. Different permissions are required depending on whether traps or bait stations are being used or an aerial drop. Land boundaries, the time of year and weather conditions have to be considered. Overlooking any one factor can expose DOC to legal risk. This makes the task of conserving biodiversity, and even undertaking basic pest control operations, much more difficult than it needs to be.

In 2005, the complexity of the legislative regime was highlighted by the *NZ Waterways Restoration*[46] case. This involved an application for permission to capture and export koi carp which was classified as a pest under the Conservation Act and Freshwater Fisheries Regulations. The frameworks for obtaining permission were particularly complex. The court stated that the case revealed "a difficult set of statutory provisions including the Fisheries Act 1996, the Biosecurity Act 1993, the Conservation Act 1987 and the Freshwater Fisheries Regulations 1983, and the uncertainty about which provisions apply to what activities".[47]

The court had to reconcile several concurrent and overlapping provisions, and characterised the "systems of permits and authorisations spread over several statutes" as "chaotic", to the extent that the situation created "the potential to treat an applicant unfairly", since "an applicant could face different decisions by different decision-making bodies … More importantly it may face different and contradictory conditions imposed by them".[48] The judge made an express "plea for legislative change" saying that "there is, as far as I can see, no reason for such a complex process. Such complexity and potential inconsistency brings the administrative process of government into disrepute".[49]

The age and complexity of the legislation, and its lack of clarity, increases DOC's risk of legal challenge through the courts. As one interviewee noted:

> "over the last eight to nine years DOC has faced far more litigation than in the past. It used to be exceedingly rare for DOC to be in the courts. In part it's probably just a sign of the times, people are getting more litigious and likely to challenge things. But there is no getting past the fact that there is a lot of ambiguity in the legislation that can be used to get into the courts."

In addition, another interviewee highlighted that it is not uncommon for the Department to lose such cases, and this is because DOC is often trying to do things which are not provided for in the legislation. This serves to further underscore fundamental inadequacies of the legislation in relation to clarity and functionality.

Neil Silverwood

Kea.

2.3 Giving effect to Te Tiriti o Waitangi

The Conservation Act contains one of the strongest legislative references to Te Tiriti that exists in law. It states in section 4, "this Act shall so be interpreted and administered as to give effect to the principles of the Treaty of Waitangi". What such 'principles' consist of has been considered by the courts, the Waitangi Tribunal and government (see spotlight).

A spotlight on the Treaty of Waitangi/Te Tiriti o Waitangi

Section 2 of the Treaty of Waitangi Act 1975 provides that "Treaty means the Treaty of Waitangi "as set out in English and in Māori". Where the Treaty is referenced in legislation it therefore refers collectively to both texts as set out in the Treaty of Waitangi and Te Tiriti o Waitangi.

There is no definitive list of what the Crown's obligations under Te Tiriti are, since they are ongoing and constantly evolving.[50] They were broadly outlined in the landmark 1987 Court of Appeal case *New Zealand Māori Council v Attorney General*[51] and subsequently defined by the Fourth Labour Government in 1989 as:

- the principle of government (the kāwanatanga principle)
- the principle of self-management (the rangatiratanga principle)
- the principle of equality
- the principle of reasonable cooperation
- the principle of redress[52]

The courts have characterised the Crown-Māori relationship under Te Tiriti as a 'partnership', and this concept is now well-recognised through case law and many Waitangi Tribunal reports. There is also a duty on the Crown to actively protect Māori interests. The principles encompass the right of the Government to govern, but also its duty to protect rangatiratanga, and to act reasonably and in good faith.

The centrality and importance of section 4 cannot be overstated. The strength of the clause arises, not only from its clear direction to "give effect to" the principles of Te Tiriti, but also from the core role the Conservation Act plays within the conservation system (as described above). The primacy of Te Tiriti under DOC's empowering statute means that its

considerations infuse the entire conservation management framework and *all* the work of DOC (and the other institutions within the core system). Because DOC actively administers a host of other legislation (eg the National Parks Act, Wildlife Act, Reserves Act and Marine Reserves Act), and also plays an important role under more (eg the RMA), the reach of section 4 is extensive. It drove DOC to be one of the first government agencies to establish a national network of iwi liaison officers (Pou Kura Taiao) in the early 1990s under the former conservancy system.[53]

It is doubtful that the full implications of section 4 were appreciated at the time it was crafted. There was scant debate on the clause in the House when the Conservation Bill was introduced. In addition, the general direction to "give effect to" the principles of Te Tiriti stands alone within the Act, without any further detail on how it is to be applied in practice.[54] When the Act was first passed, section 4 contained its only reference to Te Tiriti. It was not until three years later, when the Conservation Law Reform Act 1990 established the Conservation Authority and system of Conservation Boards, that express provision was added to enable greater representation of Māori within the conservation framework (as discussed in Chapter 3). Further references have since been added, in specific sections, to implement various pieces of Te Tiriti settlement legislation.

The Whales Case

A substantial body of case law now exists on section 4 and a number of Waitangi Tribunal reports have also examined the provision and its implications. Until recently, the leading case was *Ngāi Tahu Māori Trust Board v Director-General of Conservation* (*Whales Case*) decided by the Court of Appeal in 1995.[55] This concerned the grant of commercial whale watching permits in Kaikōura by the Director-General, and the rights and expectations of Ngāi Tahu in relation to other applicants.

In making its assessment of the legal entitlements of Ngāi Tahu, the Court of Appeal had to consider what a 'reasonable Treaty partner' would do. This underscores some of the inherent subjectivity in determining the application of Te Tiriti principles. The Court considered, in some detail, the nature of Ngāi Tahu's interest in natural resources, their relationship with land, seas and fisheries, and the status of those resources as taonga. It also considered the traditional role of tangata whenua in welcoming and guiding people within their rohe.

The Court reiterated that the principles of Te Tiriti "are not to be approached narrowly" and that more than mere procedural checks, such as consultation, is required.[56] It also held that the interests of Ngāi Tahu, in this particular context and circumstances, "in substance and on the merits", were such that the iwi was entitled to a "reasonable degree of preference" in the allocation of permits.[57]

The Waitangi Tribunal has commented on the *Whales Case* and its implications, stating that it does not mean that "Māori should always receive preference in every concession application. That is clearly not contemplated by Treaty principle" but that it does make clear that "it is incumbent upon the department to *develop rational policies and procedures that address the issue*, in particular to guide the preparation of documents for tendering or in situations where there are multiple applications. There will be instances where Māori preference arises because there is some te ao Māori, mātauranga Māori, or taonga Māori aspect … in other cases, the intensity of Māori relationships with, or tikanga about, a place, reserve, or national park ought logically to suggest a level of Māori priority".[58]

In making this statement, the Tribunal was highlighting the policy and procedural gap that existed in relation to Te Tiriti and section 4 under the Conservation Act, and it was making a call for this gap to be remedied. In particular, this required a process to ensure that all authorisations, including concession applications by Māori, were properly considered and prioritised against other parties where appropriate. The Tribunal went on to suggest that a tendering process could be used to ensure that preference was available to iwi.[59] However, as discussed in Chapter 6, the vast majority of concessions and permits continue to be issued on a 'first come first served' basis.

The reasoning in the *Whales Case* applies not only to the grant of marine mammal permits, but to concessions more generally. It also has implications for the broader operation of the conservation management and planning system.

The Wai 262 Report

In addition to seeking redress through the courts for failure to uphold the Te Tiriti clause in the Conservation Act, Māori have taken claims to the Waitangi Tribunal. The most significant of these is the Wai 262 claim, commonly known as the 'flora and fauna' claim, which was first lodged in 1991. This claim against the Crown raised the issue of who has authority to make or participate in decisions over indigenous flora and fauna and the environment, and who controls Māori traditional knowledge, culture and the products of that culture – or te tino rangatiratanga over ō rātou taonga katoa. It resulted in the Waitangi Tribunal issuing a formal report in 2011 titled *Ko Aotearoa Tēnei: A report into claims concerning*

New Zealand law and policy affecting Māori culture and identity (Wai 262 Report). This was one of the most significant reports to be released by the Tribunal. It recommended wide-ranging reforms. An entire chapter of the report (chapter 4) is devoted to a discussion of taonga and the conservation estate.

The Wai 262 Report acknowledges the centrality of section 4. Unlike other statutory provisions that simply require Te Tiriti principles to be 'taken into account' or had 'regard to', the direction in the Conservation Act to 'give effect to' them creates a fundamentally different starting point. The Tribunal stated that this "creates positive obligations to find ways to give effect to the Treaty in all of DOC's activities".[60] While Te Tiriti is not the only consideration for the Department, and it may not always be the dominant or overriding one, it is a matter of significant importance. As the Tribunal stated:

> "... the government principle affirms the right of DOC to give primacy to its conservation mission, but this right is not absolute. It must be achieved in a manner that is based on partnership, and to the *greatest extent practicable* supports the tino rangatiratanga of hapū and iwi, and provides active protection for their interests in taonga."[61]

The Tribunal reiterated that Māori interests in taonga need to be balanced with other legitimate interests on a case-by-case basis. It also noted that, although "the *paramount* interest should be that of the environment itself",[62] and while all decisions were "subject to that overriding concern", it was "important that processes exist to *balance those remaining interests* (scientists and researchers, recreational users, tourism, the community etc)" with those of Māori. Further, kaitiaki should influence those decisions "with appropriate priority in all other situations".[63]

The Tribunal found significant flaws within the General Policies. Although these are *legally required* to comply with the Conservation Act,[64] and therefore section 4, the Tribunal highlighted that both failed to provide adequate direction in relation to Te Tiriti. As discussed further in Chapter 4, this is a considerable problem since these are powerful documents within the conservation system. They provide guidance for the implementation of the Act and CMSs and Conservation Management Plans are bound by them.[65] Work is now belatedly underway, in the form of partial reviews of General Policies, to ensure Te Tiriti responsibilities are made clear and guidance provided on them, in order to remedy these deficiencies.

A spotlight on the recommendations in the Wai 262 Report

Chapter 4 of the Wai 262 Report, which specifically addresses the conservation estate, contains five recommendations. These are (paraphrased):

- *Partnership between DOC and iwi*: Reflect the partnership in the General Policies and formalise it through the statutory establishment of a national Kura Taiao Council and conservancy-based Kura Taiao boards. Review conservation legislation to bring together mātauranga Māori and te ao Pākehā.
- *Treaty principles*: Amend the General Policies to reflect the full range of Te Tiriti principles as articulated by the courts.
- *Co-management of customary use*: Make provision for full statutory co-management (joint decision-making) of customary use by DOC and representatives of kaitiaki (through pātaki komiti). Amend the General Policies accordingly and create a presumption in favour of customary practices.
- *Ownership of protected wildlife*: Amend the Wildlife Act so no-one owns protected wildlife. Provide for shared management of protected wildlife species in line with the partnership principle. Amend the Act to allow tangata whenua to have lawful ownership of taonga crafted from natural materials.
- *Commercial activity on the conservation estate*: Amend DOC policies and practices to give tangata whenua interests in taonga a reasonable degree of preference when making decisions about commercial activities in the conservation estate. Formalise policies for consultation with tangata whenua about concessions within their rohe.

Raewyn Peart

Umupuia Marae, principally associated with Ngāi Tai.

The Wai 262 Report provided important guidance to decision makers on where Te Tiriti considerations should fit within the overall scheme of the conservation management system. They are subject to the overriding environmental and conservation objectives set out in statute, but must be provided for to the greatest extent practicable within those regimes. In addition, they are likely to *prevail* (and attract a degree of preference) over competing interests and claims of other user groups and stakeholders.

> Formal legislative review and amendment of the Conservation Act (and other relevant statutes) would greatly assist more robust implementation of Te Tiriti principles and a system-wide shift in this area more broadly.

The Ngāi Tai Case

In 2018, the Court of Appeal decision in *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation*[66] (*Ngāi Tai Case*) provided further guidance on the application of section 4. It also served to illustrate the growing complexity of the conservation management system, particularly with the multitude of Te Tiriti settlements. Over the past few decades, a large number of settlements have been signed between iwi and the Crown. As of August 2018, 73 of these had been passed into law.[67] Many of these statutes have implications for the conservation system and make special provision for iwi and hapū to have greater input and control over the land, rivers, fisheries, flora and fauna in their rohe including that incorporated within conservation areas.

The *Ngāi Tai Case* involved judicial review of the Minister of Conservation's decision (through delegation to a senior DOC official) to grant two commercial tour concessions on Rangitoto and Motutapu islands in the Hauraki Gulf. The action was brought by the Ngāi Tai ki Tāmaki Tribal Trust on several bases:

- The Trust was concerned about the negative impacts of the concessions on their culture and whakapapa. This included current tour operators showing a lack of understanding of tikanga; poor background knowledge of motu names, pā sites and native flora and fauna; and a lack of respect for Ngāi Tai stories and language with te reo Māori being consistently mispronounced. The Trust claimed that the right to welcome and host visitors to the island, and to tell their tribal stories, lay with iwi as part of their responsibility as mana whenua to exercise manaakitanga and kaitiakitanga in their traditional rohe.

- The Trust claimed that as mana whenua, with rangatiratanga, they were entitled to preference in the grant of concessions and that any concession opportunities on the islands should be preserved for the economic benefit of iwi within their rohe. The processing of concession applications, as they were submitted (in chronological order), undermined this.

- The Trust opposed the rollover of concessions while Te Tiriti negotiations were underway, as any settlement might have implications for how the concessions were granted, particularly as iwi had their own aspirations for the area.

Raewyn Peart

Motutapu Island which was the subject of the Ngāi Tai case which tested the application of section 4 of the Conservation Act.

A spotlight on the statutory complexity of the Ngai Tai case

The *Ngāi Tai Case* took place against a complex regulatory backdrop. The concessions decision was made under Part 3B of the Conservation Act, which lacks detail on the process to be followed, particularly in relation to consultation with iwi and Te Tiriti compliance. In addition, as discussed in Chapter 6, the list of matters to be considered is very broadly worded and there is little direction for the assessment process.

A range of other statutory provisions, and several settlement agreements, were also relevant to the concessions decision in the *Ngāi Tai Case*. The islands are within the Hauraki Gulf and therefore subject to the Hauraki Gulf Marine Park Act 2000. This additionally requires decision-makers to "have regard to" a range of matters. They include (in section 7) the "historic, traditional, cultural, and spiritual" relationship of tangata whenua with the Gulf and its islands and (in section 8) the protection and, where appropriate, enhancement of "those natural, historic, and physical resources (including kaimoana) of the Hauraki Gulf, its islands, and catchments with which tangata whenua have an historic, traditional, cultural, and spiritual relationship". The preamble to the Act also recognises Te Tiriti as forming a basis for the protection, use and management of the Gulf and its islands, being underpinned by the Te Tiriti relationship.

Two key Te Tiriti settlements affect Rangitoto and Motutapu islands. The Ngā Mana Whenua o Tāmaki Makaurau Collective Redress Act 2014 gives effect to the Deed of Settlement between the Crown and Ngā Mana Whenua o Tāmaki Makaurau (the Tāmaki Collective). Thirteen iwi and hapū participated in the negotiations, including Ngāi Tai ki Tāmaki. The Deed of Settlement provides for redress in respect of the maunga, motu (islands) and lands that the multiple iwi and hapū in the area collectively have an interest over.

Under this legislative framework, there is a requirement that a Conservation Management Plan for the inner islands of the Hauraki Gulf (titled the Tāmaki Makaurau Motu Plan*)* should be prepared in consultation with relevant iwi.[68] The Plan must be approved by both the Director-General and the Tupuna Taonga Trust (representing iwi).[69] The relevant CMS, the *Auckland Conservation Management Strategy,* makes express reference to the Collective Redress Act and these provisions, noting that they provide the basis for the Tāmaki Collective to "have a role in the *co-governance* of the islands".[70] This reflects the significant nature of the Collective Redress Act and the governance role anticipated for mana whenua under it.

Various parts of the motu relevant to the court decision also fell under the jurisdiction of the Reserves Act. As part of the Collective Agreement, four of the motu (including Rangitoto and Motutapu) were vested in the Tāmaki Collective and then gifted back to the Crown. The gifting excluded the summit of Rangitoto (Ngā Pona-toru-a-Peretū) and other small sites. Ownership of Ngā Pona-toru-a-Peretū was retained by iwi, but the area was classified as a scenic reserve under the Reserves Act, and is managed by the Crown. The balance of Rangitoto is categorised as a scenic reserve and Motutapu Island is designated a recreation reserve. This means that the purposes and provisions of the Reserves Act were also relevant to the decision.

A further settlement agreement and its relevant statute came into play. The Ngāi Tai ki Tāmaki Deed of Settlement is given effect to through the Ngāi Tai ki Tāmaki Claims Settlement Act 2018. This provides statutory acknowledgement of the relationship between Ngāi Tai Ki Tamaki and Motutapu Island and its surrounding area with the historical account in the Act stating that "Motutapu is an island of great significance to Ngāi Tai".[71] The Deed also provides for a conservation agreement to be negotiated between DOC and the iwi. The conservation agreement outlines the tribe's aspirations to meaningfully influence policies. It also highlights the tribe's desire to welcome and host all visitors to Motutapu as part of any cultural concession it acquired, and a strong interest in exploring opportunities for concessions, included guided walking tours on the motu.[72] Although not officially concluded, the terms of that Agreement and the Settlement Act had been substantially finalised at the time the concessions were being considered and the court determined that these too were "clearly relevant to the decisions".[73]

Ngāi Tai ki Tāmaki argued that the Minister had made several errors in law when granting the concessions; that the Minister had a duty of care to actively protect the interests of iwi, and granting the concessions limited or removed opportunities for the tribe which could further their economic development. They also claimed that, as mana whenua, they were entitled to a preference when concessions were issued and that the granting of concessions fell within the scope of their responsibilities as mana whenua and as part of their rangatiratanga.

Conversely, the delegated DOC official who made the decision on behalf of the Minister had taken a different view on these points, stating that "there is no basis for preferential entitlement to concessions in favour of any party under the relevant legislation or current planning processes" and that the "(e)conomic benefit" of concessions or "the fact that another applicant is interested in that same benefit, is not something that can be taken into account under the Conservation Act for the purposes of determining a concession".[74]

Both the lower courts and Supreme Court applied the *Whales Case* and agreed that these statements revealed clear errors in law. The statutory provisions for giving effect to Te Tiriti were not to be narrowly construed, the principle of active protection required more than mere consultation, and Māori interests extended to more than mere matters of procedure. The view that there was no basis for preferential treatment could not be reconciled with the *Whales Case*, and the assertion that economic benefit to iwi could not be considered, failed to recognise the principle of active protection that arose from Te Tiriti.[75] These errors of law meant the matters were "essentially excluded from consideration" when the "decision-maker should have grappled with that preference".[76] This meant that section 4 had not been properly considered. Following the approach in the *Whales Case*, the court necessarily emphasised the importance of the factual context in determining how section 4 is applied to decisions. This included a range of Te Tiriti settlement legislation which are now becoming more prominent in these kinds of decisions (see spotlight).

The Supreme Court also highlighted the inconsistency between section 4 and the (now former)[77] provisions in the Conservation General Policy which stated that, where there was an "inconsistency between the provisions of any of these Acts and the principles of the Treaty, the provisions of the relevant Act will apply." The Court *disagreed* that this direction was correct,[78] stating that section 4 "should not be seen as being trumped by other considerations".[79] The Court clarified that the correct way for DOC to proceed in such situations is to attempt to read provisions consistently if at all possible. How this reconciliation is achieved will depend on the specific principles and statutory and non-statutory objectives affected.[80] Certainly, where Te Tiriti principles are weighed against matters that must only be 'had regard to' or 'taken into account', there is a strong argument that the principles should prevail.

> "We acknowledge that s 4 does not exist in a vacuum and a number of other factors must be taken into account in making a decision on a concession application … But s 4 should not be seen as being trumped by other considerations … nor should s 4 merely be part of an exercise balancing it against other relevant considerations. What is required is a process under which the meeting of other statutory or non-statutory objectives is achieved, to the extent that this can be done consistently with s 4, in a way that best gives effect to the relevant Treaty principles."[81]

Interestingly, this approach is not dissimilar to that taken for other constitutional-level considerations, such as under the Bill of Rights Act 1990. That Act requires enactments to be given a meaning that is consistent with rights and freedoms and to prefer that interpretation over other possible meanings.[82] The Supreme Court in the *Ngāi Tai Case* is suggesting a broadly similar approach, in recognition of the statutory authority, importance and strength of the Te Tiriti provision in the Conservation Act.

Raewyn Peart

Waharoa, customary gateway, at Rangitoto wharf.

A spotlight on rangatiratanga and section 4

The *Ngāi Tai Case* touched on the application of rangatiratanga within section 4 of the Conservation Act. Counsel for the Ngāi Tai ki Tāmaki Trust argued that the guided tour activities fell within the scope of the Trust's customary rights and responsibilities and that the iwi had mana whenua and rangatiratanga over the motu. On that basis, in addition to having preference for the grant of concessions, iwi should also have a role in the determination of concessions affecting the area.

It was not disputed that Ngā Tai ki Tāmaki was mana whenua of the motu, but the issue of rangatiratanga and its practical consequences was more complex. Under the Ngāi Tai Settlement Deed, the Ngāi Tai ki Tāmaki Trust was to receive "exclusive redress" and it was argued that this confirmed their "pre-eminent interest" in the motu. However, the court noted the existence of multiple claims and overlapping interests with other iwi and hapū, as confirmed under the Collective Redress Act. The lack of an exclusive interest did not undermine the claim as to active protection or a preference in concessions, but meant the Court would not determine the issue of rangatiratanga, or the implications arising from it.[83]

The Court also refused to make any finding as to whether section 4 gave rise to a requirement that no other concessions be granted for the motu other than to mana whenua applicants. The judges ruled that section 4 "does not create a power of veto by an iwi or hapū over the granting of concessions in an area in which the iwi or hapū has mana whenua."[84] This means that the issue of what might be required under section 4 when rangatiratanga *is* established remains unresolved.

The *Ngāi Tai Case* has triggered many hard conversations and has been described as a "true game changer" for mana whenua in strengthening the role of Te Tiriti and developing a closer partnership relationship with DOC.[85] In April 2019, the Minister of Conservation asked DOC to consider ways to improve the delivery of its section 4 responsibilities across all levels of its work. A Treaty Partner Engagement System pilot has also been launched and funding provided to support the resourcing of a Treaty Partner Collaborative Working Group to develop recommendations for further improvements.[86] A phased response is envisioned, since many of the solutions will by necessity require more extensive discussion and negotiation with Māori to put in place new processes and institutional arrangements. In addition, as already mentioned and described in more detail in Chapter 4, partial reviews of the General Policies have commenced.

A spotlight on the consideration of economic benefit under the Conservation Act

The consideration of economic benefit within the context of the conservation system was the area of the *Ngāi Tai Case* of most concern to interviewees. Previous case law, for example *Buller Electricity Ltd v Attorney-General* (a 1995 High Court decision) has asserted that the consideration of "social or economic or other aspects which may be relevant" are outside the "terms of this statute" [the Conservation Act] and constitute "purposes other than conservation purposes".[87]

While the *Whales Case,* decided in the same year by a higher court (Court of Appeal), did not expressly refer to economic matters in determining that Ngāi Tahu was entitled to a reasonable degree of preference in the allocation of whale watching permits, the court also noted, in *obiter*, that their interest was such that "a period of complete protection sufficient to justify the development expenditure incurred by Ngāi Tahu, may be part-and-parcel of this".[88] The clear implication from this is that the financial situation of the iwi was relevant and could be taken into account. The Supreme Court in the recent *Ngāi Tai Case* went further and found a decision-maker's statement "that economic benefit to an iwi with mana whenua cannot be taken into account failed to recognise the active protection principle of the Treaty".[89]

On the face of it, the *Ngāi Tai Case* overules the Buller decision on the matter of considering economic benefit. However, the contradiction between the two cases may be more apparent than real. They were considering very different contexts and could be easily distinguished on that basis. In the *Buller* case, for example, the decision-maker was determining whether protections in place over a piece of conservation land should be removed (and the land disposed of) in order to permit hydro-electric development. Conservation matters and protection of the conservation estate were at the centre of that determination. The *Ngāi Tai* and *Whales* cases were focused on the much more specific matter of the allocation of concessions, rather than more substantive environmental considerations. The fact that the Supreme Court in the *Ngāi Tai Case* does not refer to the *Buller* case further reinforces this approach.

Raewyn Peart

Ōnuku Marae, associated with the hapū of Ngāi Tārewa and Ngāti Īrakehu.

Some interviewees expressed concerns that, where iwi have a strong commercial interest in ventures such as mining or tourism, the principle of active protection and direction for a degree of preference for Māori applicants in the grant of concessions, might be sufficient to tip the balance in a decision-maker's mind towards *approving a project that would not otherwise have been approved because of its environmental impacts*. This concern is less about the *Ngāi Tai Case* itself and more about the uncertainty as to how DOC might respond in its wake. As one interviewee said, "there are a lot of high expectations now, and we all agree that Māori have been treated terribly, but I am still not sure how it's all going to work".

Some view the *Ngāi Tai Case* as a timely "wake-up call" and "good shake up" of decision-makers, to ensure full consideration of Māori rights and interests under Te Tiriti, and meaningful engagement with iwi and hapū. Most interviewees saw the case as providing an opportunity to develop a more aspirational approach, one which enables the country to "take the next steps towards also addressing some of the equity issues" that currently exist.

> "The case has provided a fantastic lever for us to push the organisation to extend itself and step out of its comfort zone, to figure out our own interpretation – and it is also going to provide a lever for iwi, so we need to deal with that". (*DOC interviewee*)

2.4 Land classification system

The conservation estate is comprised of land units of highly variable size distributed across a multitude of diverse environment, landscapes and habitats of varying and often unknown conservation value. They are classified under a large number of different designations and managed under a variety of statutory regimes (see Figure 2.3). Each category has different legislative requirements which apply to the management of the land.

Classification	Legislation
National parks	National Parks Act
Specially protected area (s12)	
Wilderness area (s14)	
Amenity area (s15)	
Conservation areas	Conservation Act
Specially protected areas:	
Conservation park (s19)	
Wilderness area (s20)	
Ecological area (s21)	
Sanctuary area (s22)	
Watercourse area (s23)	
Amenity area (s23A)	
Wildlife management area (s23B)	
Marginal strip	
Stewardship area	
Wildlife areas:	Wildlife Act
Wildlife sanctuary (s9)	
Wildlife refuge (s14)	
Wildlife management reserve (s14A)	
Reserves:	Reserves Act
National reserve (s13)	
Recreation reserve (s17)	
Historic reserve (s18)	
Scenic reserve (s19)	
Nature reserve (s20)	
Scientific reserve (s21)	
Government purpose reserve (s22)	
Local purpose reserve (s23)	
Marine Reserve	Marine Reserves Act
Marine mammals sanctuary	Marine Mammals Protection Act
Faunistic Reserve	Freshwater Fisheries Regulations 1983

Figure 2.3 Classification of conservation land

As can be seen from Figure 2.3, rather than reducing the complexity of the classification framework, the introduction of the Conservation Act in 1987 served to substantially increase the number of land categories. To understand how and why this occurred, it is important to understand the origins of the Conservation Act itself.

The creation of DOC in 1987 (discussed in Chapter 3) was part of a broader project to rationalise the management of Crown land. The land held by agencies under the Land Act and Forests Act was divided between two commercially-orientated bodies – Landcorp and the Forestry Corporation – and the newly formed DOC. While some of the land transferred to DOC had a clear land designation (eg under the National Parks Act or Reserves Act), much did not. Those remaining areas were placed under an additional set of designations created under the Conservation Act, further complicating an already complex system of land classification and management.

Some of the new designations are self-evident; they constituted amenity areas or areas of land adjoining rivers, streams and lakes ('water course areas'). Land that had been previously held as forest park was deemed 'conservation park' (section 61(2)) and former forest sanctuary land became 'sanctuary' areas (s 61(1)). The conservation values that existed on many of these parcels of land was unknown, so provision was made for their review and redesignation. For example, under section 61 of the Conservation Act there is provision to review conservation parks that were formally forest park areas, and to redesignate them as conservation areas or to vest them in a state-owned enterprise.

Any remaining land, not already dealt with under other designations and whose conservation value was unknown, was placed into the stewardship land category. The end use of this land had yet to be determined and stewardship land can therefore be considered a residual 'holding pen' category, where land is held and managed pending its review and more formal designation.[90] In the interim, the Department was to act "in the role of kaitiaki, or guardian".[91] As stewardship land comprises 30 per cent of the land administered by DOC, and its management has proved controversial, we have undertaken a deeper dive into this area in Chapter 6.

It is clear from the *Hansard* Parliamentary debates on the Conservation Act, that the complexity of navigating the requirements for each of these designations, across multiple statutes, was acknowledged as a problem at the time. There was political consensus that this situation needed to be remedied, and that the land classifications required consolidation and rationalisation, in order to simplify and add clarity to the conservation framework.

However, the conservation values of many areas under the conservation estate were unknown, and as some of the areas were extensive, reclassification would require their detailed assessment and review. The consultation required with local communities, iwi and other stakeholders would take significant time. In addition, since the designation of a parcel of land effectively determines its availability for use, and the types of activities that would likely be permitted on it, the review of land classification was hotly contested. The size and complexity of the task was such, that it was not possible to achieve at the same time as the passage of the Conservation Act through the House. It was placed in the too hard basket and put off for another day.

No comprehensive systemic review of these land designations has yet occurred more than thirty years later. The system remains highly complex and the conservation values of significant areas of the conservation estate have yet to be fully assessed and reviewed. The unknown value of these areas makes decisions affecting them particularly difficult. The Minister has recently started a fresh review process aimed at finally resolving this vexed issue.

2.5 Conservation covenants

Although the Department currently manages around one third of the land in Aotearoa New Zealand, the conservation values on that land are not representative of all landscapes and habitats. Higher altitude more mountainous terrain, for example, is over-represented while lowland forests are critically under-represented within the conservation estate. This reflects that much of the uncleared land that was available for protection had been left intact because it was not considered suitable for other purposes, like agriculture or settlement. What it also means is that rarer and less represented indigenous cover that does remain is frequently fragmented and under private ownership.

One of the main additional mechanisms through which the conservation values and biodiversity that exists on private land can be protected is through conservation covenants. At present a range of covenants are provided for under various statutes. Under the Conservation Act covenants for conservation purposes may be granted under section 27 and Ngā Whenua Rāhui kawenata under section 27A. Protective covenants can also be provided for as a condition of a concession under section 17X(j) of the Act. Conservation covenants and Ngā Whenua Rāhui kawenata are also provided for under sections 77 and 77A respectively, of the Reserves Act.

In addition 'open space covenants' are provided for under the Queen Elizabeth the Second (QEII) National Trust Act 1977 to preserve or facilitate the preservation of landscapes of aesthetic, cultural, recreational, scenic, scientific or social interest value (section 2). Protective covenants may also be required under section 108(2)(d) of the RMA, as a condition of consent approval.

Open space covenants

The QEII National Trust is an independent statutory organisation established under the QEII National Trust Act "to encourage and promote, for the benefit of New Zealand, the provision, protection, preservation and enhancement of open space."[92] The Trust partners with private landowners in order to protect natural sites on private land in perpetuity through covenant agreements. At present more than 4,400 areas, comprising over 180,000 hectares of private land, are protected in this way. The Trust is administered by a Board of Directors which is appointed by the Minister.[93] The bulk of the Trust's funding (80 per cent) comes from Vote Conservation and is administered through a memorandum of agreement with the Minister of Conservation.

Despite the relative success of the programme, only a small percentage of landowners participate and a more targeted approach could be valuable.[94] A 2018 review of the Trust regime, commissioned by DOC, recommended increased funding, greater education of private landowners of the importance of the biodiversity on their land, greater targeting of priority sites and greater focus on enhancing connectivity.[95] The review noted that similar regimes overseas provide much greater levels of regulation, funding and incentives, and a wider set of tools than those available under the QEII framework. This includes biodiversity offset funds and revolving land protection funds. Those interviewed for the review stated that inadequate funding was the most significant barrier to the ability to make more progress.

Effective protection requires more than solely covenanting. Agreements generally cover matters such as pest and weed control, restoration and revegetation work and fencing. A lack of support and resourcing in these areas can greatly limit the conservation and protection work possible. The QEII Trust's *Annual Report 2020* notes that it has been unable to meet the demand for its services and resources for support work are highly constrained.

In order to assist participating landowners, the QEII Trust has the power to pay, wholly or in part, the rates on covenanted space[96] and the Trust has asked for a more certain and consistent rates relief policy from councils.[97] The Trust has also called for a National Revolving Land Fund to

be established to purchase, register covenants and on-sell land, based on successful models operating in Australia and the USA.[98]

In addition to its support role, the Trust is responsible for monitoring compliance with covenanting agreements, and taking legal action where necessary to enforce the protections in place. Although covenants can be enforced through the use of injunctions, the legislation makes no special provision for the Trust to have statutory rights of access in order to monitor covenant compliance, or for statutory consideration of the 'public' interest in proceedings for an injunction. This reflects that open space covenants are private, voluntary agreements.

The legal costs of the Trust's enforcement function can be significant in the context of a growing covenant network. Over the last decade, the area under the Board's management has increased by more than 42 per cent and the number of covenants have grown by 30 percent.[99] The Trust considers that the funding mechanisms in place are "not a sustainable model".[100]

Ngā Whenua Rāhui

> "Land with large areas of intact native forest is typical of Māori land across the country, partly because of the customary relationship Māori have with the land but largely because of the land development history of Aotearoa New Zealand. The more fertile and productive Māori land was the first to be taken for settlement leaving Māori with the less productive and mountainous areas. Ironically these areas now represent a reasonable proportion of the remaining one third of the indigenous forest in Aotearoa New Zealand."[101]

The Ngā Whenua Rāhui Fund was established in 1990 to facilitate the protection of indigenous forests on Māori-owned land while recognising the rights guaranteed to Māori landowners under Te Tiriti. Under the regime, the land is managed by DOC, pursuant to the terms of the kawenata, conservation covenant or management agreement in place.[102]

The most commonly utilised mechanism supported by the Fund is kawenata which is a form of covenant. Section 77A of the Conservation Act explicitly enables the land to be managed so as to preserve and protect not only the natural environment but also the "spiritual and cultural values which Māori associate with the land".[103] Māori historical experience with land loss and alienation, as well as collective ownership considerations, have led to the crafting of a more flexible covenanting regime.[104] Ngā Whenua Rāhui does not require land to be placed under formal protection in perpetuity. Kawenata can be put in place for an agreed term, so long as that term is of at least 25 years.

The Fund has faced similar funding issues to those of the QEII Trust. In 2018, it was recognised that annual funding was no longer sufficient to meet the financial commitments in place and this led to changes being made to the operating structure and a movement from a district to more regionalised model.[105] One of the strains on this system has arisen because large clusters of 25-year kawenata have started coming up for review. That review has prompted deeper engagement with landholders as they consider renewal, revise their goals and objectives for the land, and start discussion on what support is available through the Fund.[106]

The task set for Ngā Whenua Rāhui is complex. "Māori landowners who want to protect their land can face extreme difficulty due to multiple ownership … many Māori landowners struggle with planning and making decisions. Supporting Māori landowners through the application process is crucial … (and) can sometimes take years."[107] There is also increasing pressure on landowners to make their land more commercially viable, and balanced decision making is necessary to ensure that the cultural, historical and spiritual values of Māori landowners are respected and kaitiaki obligations maintained.

> Recent changes to the Te Ture Whenua Māori Act 1993, due to come into effect on 1 July 2021, will remove rate charges from unused Māori land, including that under Ngā Whenua Rāhui kawenata, so should reduce some of the economic pressures driving removal of kawenata protection.

The 2020 *Annual Report* of Ngā Whenua Rāhui outlines a range of capacity, management and budgetary challenges. There is also the difficulty of navigating the now complex space between settlement entities and Māori landowners.[108] It is clear that the Fund is at a critical point: landowner *rationales* for kawenta have shifted. Māori are seeking to benefit from their lands which may have been tied up for 25 years. Despite these pressures, the vast majority of kawenata are renewed, demand for new kawenta remains strong, and the net number of Agreements in place continues to grow year on year.[109] Over 180,000 hectares is now protected under the scheme.

2.6 Summary of key legal framework issues

Overall framework

- Most core conservation legislation is now at least 40 years old and was crafted in a different era, to meet different needs, concerns and values. It predates most Te Tiriti settlement legislation, the climate, freshwater and biodiversity crises and the growth of Aotearoa New Zealand's international tourism market.
- Existing legal frameworks do not reflect a te ao Māori worldview. This means that the relationship-based system of values held by Māori is not currently reflected in law and can be undermined. This also disrupts the critically important cultural connections that exist between Māori and their lands and resources.
- The legal framework was developed on an ad hoc basis and is fragmented. The number of statutes in place, and inconsistencies and lack of alignment between them, makes them difficult to navigate and reconcile.
- The Conservation Act lacks a clear purpose, and there is a diverse range of purposes throughout the different pieces of legislation within the conservation system, some providing a stronger protective imperative than others.
- Core terms employed in the legislation lack definition, such as 'recreation' and 'tourism'.
- Much legislation within the conservation system fails to meet the requirement of the Public Services Act that legislation is clear, accessible and understandable by the public.

Te Tiriti o Waitangi

- Current legislation does not provide adequate mechanisms or processes to implement section 4 of the Conservation Act which requires decision makers to "give effect to" the principles of Te Tiriti.
- General Policies have also not adequately set out how section 4 is to be implemented despite a growing body of case law and Waitangi Tribunal reports providing further clarification on the matter.
- Te Tiriti settlement legislation has placed additional obligations on DOC and changed the nature of relationships between DOC and iwi. This has added significant legal complexity to the conservation system.
- The lack of statutory implementation mechanisms, and increasing legal complexity, creates legal risk and is making DOC's task of complying with section 4 particularly difficult.

Conservation land classification system

- The conservation land classification system is overly complex, with more than 20 different types of land designations across six different statutes.
- Navigating the requirements for multiple land types is a complex task for DOC. There is a need to rationalise the designations in order to simplify the system.
- No systematic review has been undertaken to ensure that land is appropriately classified, and as a result, some conservation values remain at risk.

Conservation covenants

- Covenanting regimes overseas provide for much greater levels of regulation, funding and incentives and a wider set of tools than those available under the QEII or Ngā Whenua Rāhui covenanting regimes.
- The QEII regime lacks sufficient funding to enable effective monitoring and enforcement and the QEII Trust has no statutory rights of access for these purposes.
- Ngā Whenua Rāhui kawenata are coming up for renewal in increasing numbers and there is a need to review the support available to assist landowners to meet their current aspirations for their land.
- The fund faces a range of capacity, management and budgetary challenges.

Endnotes

1 Department of Conservation, 2020b, 23

2 Conservation Act 1987, s2

3 It was argued, for example, that the Reserves Act wording provided a far "better philosophy" in making reference to "the survival of all indigenous species of flora and fauna" (Upton, 1987, *New Zealand Parliamentary Debates*, Conservation Bill (second reading, 24 March 1987), 479, 7981. The views of submitters are discussed at 7981 and 7888. In the absence of more robust checks, there was also concern that the wording was "effectively a charter for continued multiple use of resources" (Upton, 1986, *New Zealand Parliamentary Debates*, Conservation Bill (introduction, 11 December 1986), 476, 6151

4 Lyver et al, 2019, 397

5 National Parks Act 1980, s4(2)(a)

6 National Parks Act 1980, s4(2)(b)

7 National Parks Act 1980, s4(2)(e)

8 Parliamentary Commissioner for the Environment, 2021, 69

9 https://www.nzgeo.com/stories/nelson-cave-spider/

10 https://www.growregions.govt.nz/what-weve-done/projects-we-have-funded/the-provincial-growth-fund/

11 https://www.doc.govt.nz/news/media-releases/2018/oparara-investment-to-protect-environment-and-visitors/

12 Ministry for Primary Industries, 2016, 10

13 See Tourism West Coast, 2017, 25 and West Coast Governance Group, 2017, 15

14 Parliamentary Commissioner for the Environment, 2021, 71

15 https://www.stuff.co.nz/national/politics/local-democracy-reporting/122073027/upgrades-to-west-coasts-oparara-area-a-threat-to-rare-spiders-expert-warns

16 Reserves Act 1977, s3(1)

17 Pinkerton, 2009, 8

18 Pinkerton, 2009, 3

19 Wildlife Act 1953, Schedule 7A

20 Wildlife Act 1953, s14F

21 Wild Animal Control Act 1977, s4(1)

22 Marine Reserves Act 1971, s3(1)

23 Peart, 2016, 327-328

24 Marine Reserves Act 1971, s3(1)

25 Marine Reserves Act 1971, s(1)(a)(iv)

26 Mulcahy and Peart, 2012, 5-6

27 Marine Mammals Protection Regulations 1992

28 See regional council and territorial authority functions under sections 30 and 31 of the Resource Management Act 1991

29 Resource Management Act 1991, Part 2

30 Resource Management Act 1991, s28

31 The term "fortress conservation" was coined by Brockington. See Brockington, 2002

32 Matike Mai Aotearoa, 2016, 68

33 Matike Mai Aotearoa, 2016, 81

34 Waitangi Tribunal, 2012, 770-773

35 Te Urewera Act 2014

36 Department of Conservation, 2020e, 16

37 Reserves Act 1977, s46

38 Department of Conservation, 2020e, 15

39 Department of Conservation, (undated), 1

40 https://www.iponz.govt.nz/about-ip/maori-ip/concepts-to-understand/

41 Ngāi Tahu Claims Settlement Act 1998, Schedule 14 Statutory acknowledgement for Aoraki/Mount Cook

42 https://www.wildernessmag.co.nz/to-summit-or-not-to-summit/

43 Public Services Act 2020, s12(1)

44 Public Services Act 2020, s52(1)(d)(ii)

45 The enactment of the Resource Management (Exemption) Regulations 2017 has simplified one step in the process, under the RMA at least. The Act provides an exemption from obtaining resource consent to use sodium fluroacetate for killing vertebrate pests providing that certain conditions (set out in Schedule 2) are met.

46 *New Zealand Waterways Restoration Ltd v Director-General of Conservation* [2006] CIV 2005-485-1824

47 *New Zealand Waterways Restoration Ltd v Director-General of Conservation* [2006] CIV 2005-485-1824 at [1]

48 *New Zealand Waterways Restoration Ltd v Director-General of Conservation* [2006] CIV 2005-485-1824 at [67]

49 *New Zealand Waterways Restoration Ltd v Director-General of Conservation* [2006] CIV 2005-485-1824 at [70]

50 This was reiterated by the Court of Appeal in *Te Runanga o Muriwhenua Inc v Attorney-General* [1990] 2 NZLR 641 at [656]. As a consequence, the glossaries of the General Policies define the principles as those principles that are identified from time to time by the Government, in recognition of that fact that they are continually developing

51 [1987] 1 NZLR 641

52 Waitangi Tribunal, 2011, 129

53 Waitangi Tribunal, 2011, 130

54 In contrast, section 12 of the Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012 sets out a number of provisions to give effect to the principles of Te Tiriti, including a Māori Advisory Committee to provide advice on consents and ensure decisions under the Act are informed by a Māori perspective, requiring consultation processes to be established and for iwi authorities, customary marine title groups and customary rights groups to be notified where consent applications affect them.

55 [1995] 3 NZLR 553

56 *Ngāi Tahu Māori Trust Board v Director-General of Conservation* [1995] 3 NZLR 553 at [560]

57 *Ngāi Tahu Māori Trust Board v Director-General of Conservation* [1995] 3 NZLR 553 at [562]

58 Waitangi Tribunal, 2011, 362

59 Waitangi Tribunal, 2011, 362

60 Waitangi Tribunal, 2011, 129

61 Waitangi Tribunal, 2011, 130

62 Waitangi Tribunal, 2011, 135

63 Waitangi Tribunal, 2011, 135

64 See section 17B(2) of the Conservation Act 1987 which states "Nothing in any such general policy shall derogate from any provision in this Act or any other Act"

65 Conservation Act 1987, s17D and s17E

66 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122

67 https://teara.govt.nz/en/te-tai/about-treaty-settlements

68 See Subpart 10 of the Ngā Mana Whenua o Tāmaki Makaurau Collective Redress Act 2014. Under the Act, iwi operate jointly through the Tūpuna Taonga o Tāmaki Makaurau Trust Limited

69 Ngā Mana Whenua o Tāmaki Makaurau Collective Redress Act 2014, s97

70 Department of Conservation, 2014, Volume 1, 103. This was noted by the court in *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [42]

71 Ngāi Tai ki Tāmaki Claims Settlement Act 2018, s8(6)

72 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [46]

73 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [44]

74 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [57]

75 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [69]

76 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [70]

77 In August 2019, following the *Ngāi Tai Case* the Minister approved a technical amendment to the General Policies to remove the error

78 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [77]

79 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [54]

80 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [55]

81 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [54]

82 See New Zealand Bill of Rights Act 1990, s6

83 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [64]

84 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [95]

85 https://ngaitahu.iwi.nz/our_stories/a-step-closer-to-a-treaty-partnership-tk82/

86 https://www.doc.govt.nz/news/issues/budget-2020-ngai-tai-ki-tamaki/

87 *Buller Electricity Ltd v Attorney-General* [1995] 3 NZLR 344, 13-14

88 *Ngāi Tahu Māori Trust Board v Director-General of Conservation* [1995] 3 NZLR 553 at 13

89 *Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation* [2018] NZSC 122 at [69]

90 Upton, 1987, *New Zealand Parliamentary Debates,* Conservation Bill (second reading, 24 March 1987), 479, 7979

91 Marshal, 1986, *New Zealand Parliamentary Debates,* Conservation Bill (Introduction, 11 December), 476, 6140

92 Queen Elizabeth the Second National Trust Act 1977, s20

93 Queen Elizabeth the Second National Trust Act 1977, s4

94 Pannell et al, 2021, 3427

95 Logan and Hutchings, 2018, 27

96 Queen Elizabeth the Second National Trust Act 1977, s21(2)(e)

97 This currently varies from council to council, see Queen Elizabeth II National Trust, 2015, 15

98 Also referred to in some of the Trust's submissions as a Land Environments Acquisition Fund (or LEAF). See Queen Elizabeth II National Trust, 2015, 12 and Land Information New Zealand, 2019b, 63 (referred to in the Report as Submission reference 2760)

99 Queen Elizabeth II National Trust, 2020, 4

100 Queen Elizabeth II National Trust, 2020, 4

101 Ngā Whenua Rāhui, 2019, 22

102 Conservation Act 1987, s29

103 For example, of the 281 agreements in place in 2020, 212 (or 75 per cent) were kawenata under section 77A of the Reserves Act.

104 For a discussion of the historical debate and establishment of the Fund see Ngā Whenua Rāhui, 2019, 18

105 Ngā Whenua Rāhui, 2019, 12

106 Ngā Whenua Rāhui, 2019, 12

107 Ngā Whenua Rāhui, 2019, 22

108 Ngā Whenua Rāhui, 2019, 11

109 Ngā Whenua Rāhui, 2019, 9 and 13

3 Conservation Institutions

West Coast beach with public conservation land in the background.

Neil Silverwood

Many institutions interface with the conservation system. Here we take a close look at the core ones created under the Conservation Act: DOC, the Conservation Authority, regional Conservation Boards and Fish and Game. We also review the Game Animal Council established under the Game Animal Council Act 2013.

3.1 Department of Conservation

Historical context

DOC was established in 1987 under the Conservation Act. To fully understand the challenges that the Department has faced over the years, it is important to recognise the political context within which the Conservation Act was formulated, and DOC established.

The period of legislative reform in Aotearoa New Zealand that followed the election of the Fourth Labour Government marked a distinct change in approach, introducing a radical new neoliberal-based platform, with an agenda of industry deregulation and privatisation. This drove fundamental ideological and systemic change that would alter the political landscape for decades to come.

In his economic statement to the House, the then Minister of Finance Hon Roger Douglas argued that with traditional markets in decline, an adjustment was required. The "burden of regulation" was to be removed and the public sector made more efficient.[1] Following the Labour Government's embrace of neoliberal policies, its focus shifted away from effective regulation and oversight, towards enhanced economic efficiency and fiscal austerity. These new goals would shape the legislative frameworks, institutional arrangements and policy decisions that were made for environmental protection and conservation during this era.

This means that the establishment of DOC was part of a much broader rationalisation project embarked on by government at this time. The first step involved the introduction of the State Owned Enterprises Act 1986. This dismantled a number of government departments and agencies, corporatised some of their functions, and transferred responsibility for them to a new Minister for State Owned Enterprises. Amongst the agencies affected were the Forest Service, Wildlife Service and Department of Lands and Survey. DOC was created out of a blend of parts of these organisations. Coastal and foreshore responsibilities from the Ministry of Transport were also transferred to the new Department.

Viewed in its totality, one of the immediate effects of the state sector rationalisation process was the loss of significant expertise and staff from the conservation management system. This was at the critical time when DOC was being established. Even today, those interviewees that had experience in the conservation system prior to the 1987 restructure, spoke of the ongoing effects that the drain of experienced, highly skilled, practical and scientific expertise has had on key institutions.

In addition to the streamlining and downsizing of staff, there were immediate financial challenges for DOC. The new Director-General envisaged a "spare, lean DOC team".[2] He had little option. DOC was to be provided with only two-thirds of the pre-1987 conservation budget.[3] As *Hansard* records:

> "(T)he establishment of this important new department is being undertaken at a time of financial austerity. As a result, the Department of Conservation will be a 'no frills' agency. In a time of less pressure on the public sector the Government would have liked to launch the department with a shopping list of new tasks to perform. This year the list will be short."[4]

The budgetary allocations initially set aside for DOC were insufficient to cover costs. In 1988, DOC was forced to borrow $11.5 million in order to make ends meet. The first restructuring occurred not long afterwards, in 1989, with regions and districts being reformed into 14 conservancies. A four-tier structure was reduced to three tiers, with the district conservator level being removed, and 188 staff were made redundant.[5] A fee system for national park huts was introduced to increase revenue.

One of the consequences of the ongoing lack of resourcing, was that some things simply fell through the gaps. The most notable example was the Cave Creek Tragedy in 1995, when a viewing platform in the Paparoa National Park collapsed, with the loss of 14 lives. The subsequent inquiry found that DOC was functioning "as well as could reasonably be expected" but that it lacked adequate national project and risk management systems. In part, this was because significant engineering expertise had been lost when the Forest Service and Department of Lands and Survey had been disestablished.[6] The incident was followed by a second round of restructuring in 1996, and as one commentator has noted, "restructuring has been a regular feature of the department's life since".[7]

One of the most significant of these restructures came in 2013, on the back of a $54 million funding cut during the previous year. This saw the loss of nearly 100 jobs, many of them regionally-based frontline positions. In addition, many Pou Kura Taiao (iwi advisor) positions were removed. The conservancy system was dismantled and replaced with six partnership

and six conservation services regions as the Department moved to a 'strategic partnering model' with a strong focus on service delivery.[8] DOC was encouraged to "do more with less".[9]

A number of concerns were expressed about the most recent restructure, particularly regarding the loss of competent and long-term professional staff. For example, the Conservation Authority warned "that the separation of those who plan, strategise, integrate and build partnerships from those who know the lie of the land" was inadvisable.[10] Former Pou Kura Taiao Matapura Ellison was concerned that robust iwi input into high level statutory policy documents, like CMSs, had been made more difficult through the restructure.[11]

Many of the dis-established positions were in the regions, where the vast majority of on-the-ground iwi engagement occurs. One of the Ngāi Tahu representatives on the Southland Conservation Board lamented that "(w)e used to have the best Treaty relationship with DOC of any other government department anywhere" but during the previous five years they had seen this considerably "watered down". They were being pushed away "so that we are insignificant and we don't even get consulted anymore."[12]

In 2013, while DOC was being restructured and required to save an additional $8.7 million,[13] the government announced an additional $158 million for New Zealand tourism promotion over the coming four-year period.[14] The subsequent increase in tourist numbers placed the conservation system, and the national parks framework in particular, under increasing stress at a time of tighter budgetary constraint.

> "If there was a war tomorrow we would find the money. Well DOC is always in a war to look after Aotearoa's treasures." (*Interviewee*)

Many were highly critical of the 2013 restructure, claiming that it had made DOC less functional than before it was 'fixed'. An independent post-implementation review raised similar concerns. It found that the restructure had led to a breakdown in communication, inefficiencies and leadership difficulties and was actively preventing DOC from achieving its conservation goals.[15] The review also found that the changes had a significant impact on staff morale. By 2015, in recognition of the gaps that had been created, some staff were relocated back to the regions – although it was emphasised that staffing numbers would remain the same, only their roles were being altered.[16] It is apparent that restructuring decisions have often been undertaken in order to reduce costs rather than necessarily to improve functionality.

A spotlight on organisational restructuring

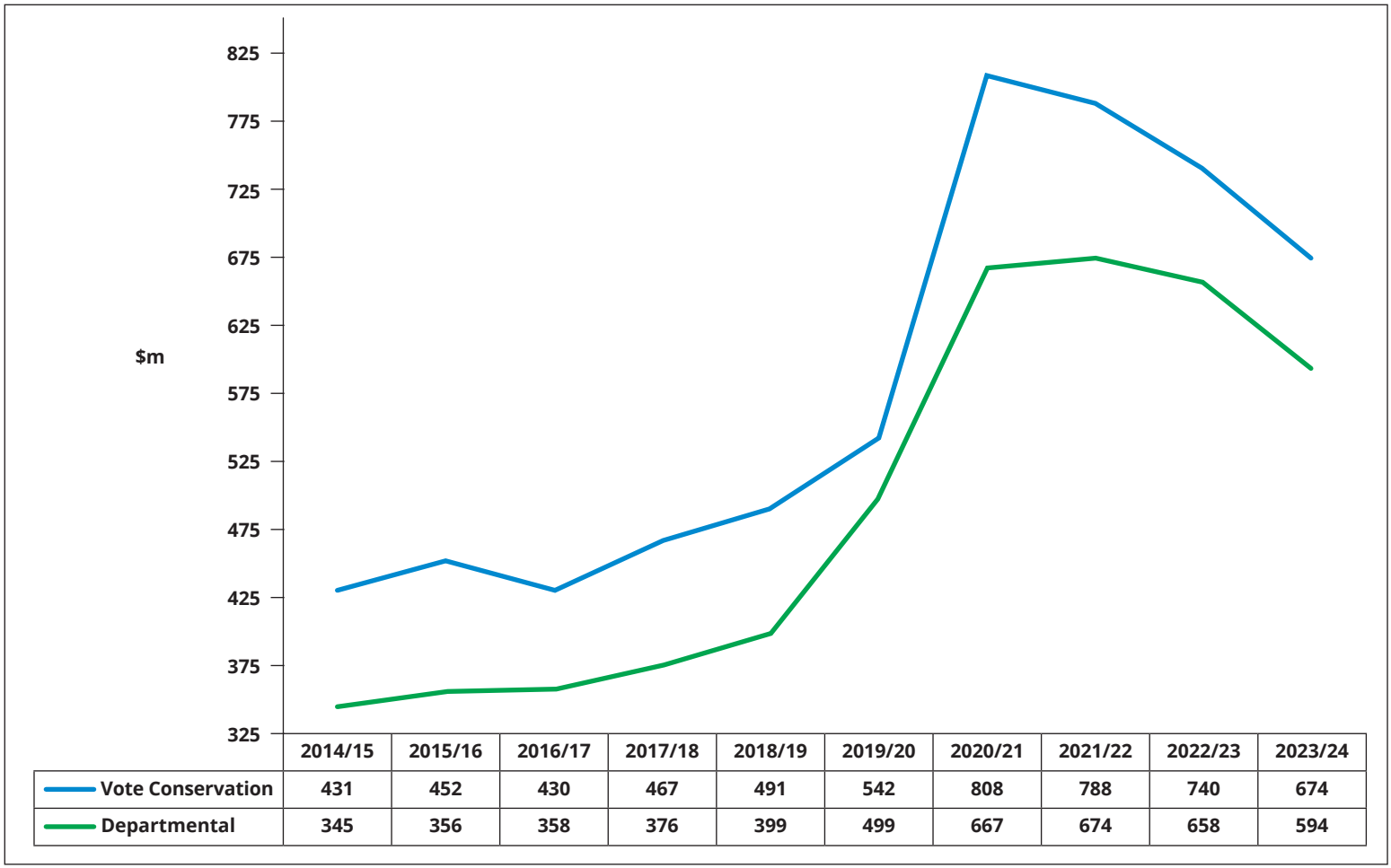
Much has been written about the consequences and costs of frequent organisational restructuring. Many consider it to be an extremely over-used lever for change in Aotearoa New Zealand, one that enables government to be seen as acting in response to failings, but which frequently fails to tackle the core underlying causes of problems.[17]

Constant restructuring of an organisation likely signifies that more fundamental problems exist and that deeper, more fundamental changes are necessary to resolve performance issues. Restructures are disruptive for organisations, stressful for staff and reduce institutional knowledge as well as resilience. Each restructuring event in DOC has been accompanied by a significant loss of skills and expertise that is very much greater than changes in staffing levels and budgets might suggest. This has impacted the Department's ongoing ability to perform its core functions.

In addition to the ongoing cycle of departmental review and restructuring, DOC has faced long term funding and resourcing constraints. The issue of funding is a highly political one, and budgetary allocations can vary significantly across electoral cycles. The Department has gone through a number of expansion and contraction periods and is currently in a boom phase, although this is not projected to continue (See Figure 3.1).

Neil Silverwood

Whio blue duck on the Waitaha River, West Coast.



	2014/15	2015/16	2016/17	2017/18	2018/19	2019/20	2020/21	2021/22	2022/23	2023/24
Vote Conservation	431	452	430	467	491	542	808	788	740	674
Departmental	345	356	358	376	399	499	667	674	658	594

Figure 3.1 Changes in Department of Conservation and Vote Conservation budgets 2014/15-2023/24 *(Department of Conservation)*

The impacts of a constantly shifting growth and collapse cycle on organisations can be severe. Such cycles create a 'paradox of plenty', whereby sudden large injections of capital (a 'resource boom') can cause what is known as 'the voracity effect'.[18] Historically under-resourced departments have had an increased propensity to 'squander the windfall'.[19] There can be a perceived need to spend the new funding rapidly, in order to justify its allocation, and to establish a platform for securing future funds. In addition, knowledge that the new allocations may be relatively short-lived, can provide an incentive to do as much as possible, as quickly as possible, while the funds *are* available.

Agencies that have been historically starved of sufficient funding, also tend to lack the long-term strategic planning and staffing expertise at the scale required, to utilise additional funds to their best purposes within the requisite timeframes. It takes time to rebuild capacity and expertise.

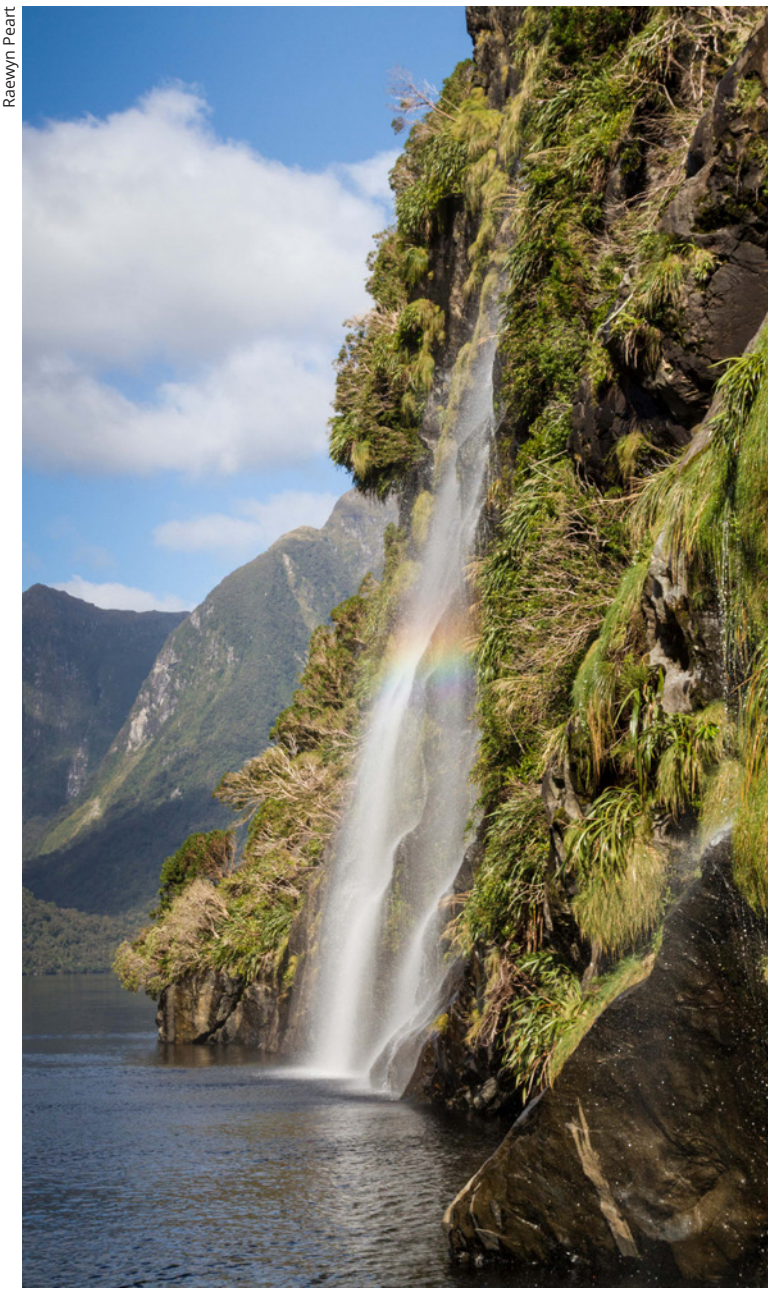
Coming out of a collapse phase of such a cycle, the list of matters that are either urgent and/or important is typically long. To put the additional funding to its best use, complex decisions must be made carefully, thoroughly and strategically. The collapse cycle reduces an institution's ability to respond in this manner.

Regardless of any legislative reforms that might be made to the conservation management system, without a more adequate and reliable income stream over multiple electoral cycles, DOC will continue to struggle to undertake its core function – the effective management and protection of Aotearoa New Zealand's unique indigenous species, its waters and one third of the country's most precious lands.

DOC's role in the conservation management system

DOC functions are set out in section 6 of the Conservation Act. They are necessarily broad, as the Department's work extends across many different domains (terrestrial, coastal, marine and freshwater), and across areas with different conservation values.

Raewyn Peart



Water falling into Doubtful Sound, Fiordland National Park.

Statutory functions of DOC under the Conservation Act (section 6)

The functions of the Department are to administer this Act and the enactments specified in Schedule 1, and, subject to this Act and those enactments and to the directions (if any) of the Minister,—

(a) to manage for conservation purposes, all land, and all other natural and historic resources, for the time being held under this Act, and all other land and natural and historic resources whose owner agrees with the Minister that they should be managed by the Department:

(ab) to preserve so far as is practicable all indigenous freshwater fisheries, and protect recreational freshwater fisheries and freshwater fish habitats:

(b) to advocate the conservation of natural and historic resources generally:

(c) to promote the benefits to present and future generations of—

(i) the conservation of natural and historic resources generally and the natural and historic resources of New Zealand in particular; and

(ii) the conservation of the natural and historic resources of New Zealand's sub-antarctic islands and, consistently with all relevant international agreements, of the Ross Dependency and Antarctica generally; and

(iii) international co-operation on matters relating to conservation:

(d) to prepare, provide, disseminate, promote, and publicise educational and promotional material relating to conservation:

(e) to the extent that the use of any natural or historic resource for recreation or tourism is not inconsistent with its conservation, to foster the use of natural and historic resources for recreation, and to allow their use for tourism:

(f) to advise the Minister on matters relating to any of those functions or to conservation generally:

(g) every other function conferred on it by any other enactment.

The scale of the task that DOC is charged with is extensive, almost unworkably so. The Department is responsible for managing 8.6 million hectares of public conservation land, the country's system of marine reserves and marine mammal sanctuaries (which account for an additional 4.5 million hectares of marine space) and around 600 archaeological and historic sites.[20] The terrestrial component alone encompasses the management of *one third* of the country's land, and amongst that, our most precious and vulnerable sites. The near practical impossibility of this task, particularly with the meagre resources available to DOC (as described above), and with the constant threats from introduced predators, is not lost on anyone who works within the conservation management system. Charged with doing the impossible, it becomes necessary for the Department to make very hard decisions: what areas and species to prioritise and what to leave; where to direct monitoring and enforcement focus; and how to deploy limited resources and research efforts.

In addition to the enormous task of managing the conservation estate, DOC has a significant advocacy function for natural resources beyond the conservation estate, arising from section 6(b) of the Conservation Act which states "to advocate the conservation of natural and historic resources generally". This function is exercised through a range of legislation, including the RMA. In addition, the Department has an administrative or advisory role under more than 40 different pieces of legislation (see Figure 3.2). The task of administering and managing the interfaces between such disparate, unaligned, overlapping and often contradictory legislation is a difficult, if not impossible, one.

Neil Silverwood

Morning forest mist at the Ōpārara Basin, Kahurangi National Park.

DOC administers	DOC has a function under
• Canterbury Provincial Buildings Vesting Act 1928 • Conservation Act 1987 • Conservation Law Reform Act 1990 • Freedom Camping Act 2011 • Harbour Boards Dry Land Endowment Revesting Act 1991 • Hauraki Gulf Marine Park Act 2000 • Kaikōura (Te Tai o Marokura) Marine Management Act 2014 • Kapiti Island Public Reserve Act 1897 • Lake Wanaka Preservation Act 1973 • Marine Mammals Protection Act 1978 • Marine Reserves Act 1971 • Mount Egmont Vesting Act 1978 • National Parks Act 1980 • Native Plants Protection Act 1934 • Ngāi Tahu (Tūtaepatu Lagoon Vesting) Act 1998 • Queen Elizabeth II National Trust Act 1977 • Queenstown Reserves Vesting and Empowering Act 1971 • Reserves Act 1977 • Stewart Island Reserves Empowering Act 1976 • Subantarctic Islands Marine Reserves Act 2014 • Sugar Loaf Islands Marine Protected Area Act 1991 • Trade in Endangered Species Act 1989 • Tutae-Ka-Wetoweto Forest Act 2001 • Waitangi Endowment Act 1932-33 • Waitangi National Trust Board Act 1932 • Waitutu Block Settlement Act 1997 • Wild Animal Control Act 1977 • Wildlife Act 1953	• Biosecurity Act 1993 • Crown Forest Assets Act 1989 • Crown Minerals Act 1991 • Crown Pastoral Land Act 1998 • Fiordland (Te Moana o Atawhenua) Marine Management Act 2005 • Fisheries Act 1996 • Forest and Rural Fires Act 1977 • Forests Act 1949 • Land Act 1948 • Local Government Act 1974 • Local Government Act 2002 • Māori Land Amendment and Māori Land Claims Adjustment Act 1926 • Marine and Coastal Area (Takutai Moana) Act 2011 • Public Works Act 1981 • Resource Management Act 1991 • And more than 70 active Te Tiriti settlement Acts

Figure 3.2 Legislation which the Department of Conservation administers or has a function under

DOC's statutory advocacy role under section 6(b) of the Conservation Act necessitates providing input into a wide range of decisions affecting indigenous biodiversity, recreation and landscape values, and historic areas under other legislation such as the RMA. This includes engaging in plan and policy development. The Minister also has specific functions under the RMA, including the development and implementation monitoring of the New Zealand Coastal Policy Statement and approval of regional coastal plans.[21]

In performing its functions, DOC interfaces with a wide range of parties including iwi and hapū, landowners, business entities, community and recreational groups, environmental NGOs, regional councils, territorial authorities and other government departments. Where a party does not like the outcome of a decision, or where a piece of the complex conservation puzzle has fallen through the gaps, DOC frequently finds itself at the centre of controversy and conflict, if not outright legal action.

During interviews, many noted the lack of clarity in DOC's purpose and the need for clearer priorities. As one Conservation Board member stated, "the statutory body setting the culture of the framework is important, yet there are fundamental conflicts in what DOC has to do, and that puts it on the backfoot … the organisations [in the conservation management system] are set up to fail – to upset half the people all of the time – and in fact sometimes they upset all of the people most of the time".

It is important to keep in mind the issues highlighted in this section when reading the rest of this Report, since it would be easy to lay the fault of many of the issues canvassed at the feet of DOC. But when the tasks set and the frameworks within which DOC must function are inherently untenable, we need to look to deeper problems within the system.

3.2 New Zealand Conservation Authority and Conservation Boards

Historical context

As noted earlier, land now in the conservation estate was managed by the Forest Service and Department of Lands and Survey prior to 1987. One of the key controversies at that time was the extensive logging of native trees on public land. The conservation movement of the 1970s did not trust a government department, previously involved in such activities, to manage the land for conservation. The establishment of the Conservation Authority and regional Conservation Boards in 1990 (under the Conservation Law Reform Act) was designed to create an oversight mechanism to ensure that DOC followed a conservation mandate in the broader public interest.[22] This is why we still see today a framework where significant powers within the conservation system are delegated to independent 'watchdog' entities.

The Parliamentary debates in *Hansard* reflect, for example, that the Conservation Authority was designed to be independent "rather than being under the domination of the Department of Conservation". This was "a matter of widespread public concern"[23] and some wanted greater statutory independence and authority vested in the Authority. Membership of the Authority was also highly contentious and there were criticisms that its membership was "virtually put in place by a Minister, by appointment",[24] something seen to undermine its independent role.

The trust issue was a core theme expressed in our discussions around the role of Conservation Boards in particular. The general sentiment from the DOC staff and environmental NGOs we interviewed was that things had moved on significantly over the subsequent 30 years. DOC had proven its commitment to conservation and the need for Boards to play a role of 'system watchdogs' had passed. As one interviewee pointed out, "other agencies don't have that same check and restriction in place. LINZ [Land Information New Zealand], for example, manages two million hectares of Crown land and is trusted to do the job." Another interviewee noted that, today, "concerns at DOC pillaging conservation resources have been replaced with criticisms that the conservation estate is 'too locked up'".

"The view, that DOC cannot be trusted and somehow needs external checks, is frankly out of date. The system needs to be replaced with an agile, modern framework and policy, not the immensely time-consuming system where hundreds of people *govern* DOC. DOC can be trusted. We need to let it do that job." *(Interviewee)*

Bernard Spragg

Bush robin.

These views are supported by independent research. The *2020 Colmar Brunton Public Sector Reputation Index*, a survey conducted each year to provide an independent benchmark of public trust in government bodies, put DOC in 6th position, just beneath New Zealand Fire and Emergency, the New Zealand Defence Force, Customs Services, the Ministry of Civil Defence and research agency Callaghan Innovation. The Department ranks even higher on the 'social responsibility' pillar, coming third.[25]

DOC has received consistently high scores in the annual survey. In 2019, DOC was one of only six agencies that over 50 per cent of New Zealander's viewed as "positively contributing to wellbeing".[26] This means that, despite the challenges and conflicts that exist around conservation matters, the Department and its work has a high degree of social license within the broader community. This is in striking contrast to most other government departments.

Rather than indicating a need to remove the 'watchdogs' from the system, some interviewees attributed the elevated trust in the conservation system to the unique framework of checks and balances, and increased channels of communication for the public, that exist in this area. It should also be noted, as discussed below, that Conservation Boards perform a range of functions in addition to acting as system watchdogs.

The complex character of the current conservation management system, in part, stems from the framework being designed to keep DOC in check. This has several implications:

- It operates as an inherent barrier to DOC 'getting the work done'.
- It provides considerable leverage to parties seeking to *contest* how the conservation estate is managed.
- It draws out the process of CMS and National Park Management Plan development, review and approval.
- While it does make the system more responsive to public and stakeholder concerns, it arguably elevates those concerns in a way that exacerbates the degree of conflict within the system. This can make every small change and update a subject of debate.
- It makes the membership and composition of the Conservation Authority and Conservation Boards highly political and contested.

Role of the Conservation Authority

The Conservation Authority is responsible for the approval of General Policy for National Parks, CMSs and National Park Management Plans. It may also approve Conservation Management Plans, in place of the Conservation Board, where directed by the Minister of Conservation or the Authority itself. In addition, the Authority has the statutory function of advising the Minister on General Policy; is tasked with reviewing the effectiveness of DOC's administration of such policy; has powers to investigate conservation issues of national importance; and can make proposals for the classification of areas of national and international importance. The Authority also has a statutory role in advising the Minister and Director-General on annual priorities for the expenditure of money and therefore can potentially influence how scarce conservation resources are deployed.[27]

In theory, the role of the Conservation Authority in approving statutory planning documents gives it significant power to influence the conservation management system. However, in practice, the Authority is relatively removed from the development of these documents with this work being undertaken by DOC. The Authority is also not involved in the hearing of submissions on draft plans. One interviewee explained that, while the distance between the Conservation Authority and the development of planning documents serves to ensure a degree of independence, this separation between affected parties (those who submit on plans and present at hearings) and the ultimate decision-maker, may create potential natural justice concerns.

"It's not an approval in the sense you would think. It's not like when a council approves a plan. The Authority is quite removed from the creation of the document so the process does put the Authority at a distance in comparison to councils who draft, consult and approve plans". *(Conservation Authority interviewee)*

Several of our interviewees also noted that, more broadly, the Conservation Authority has historically played a relatively passive role in the conservation management system. In turn, it was "not taken seriously" and was viewed as "mostly irrelevant". DOC representatives seldom attended meetings and the Authority lacked access to the information and support necessary to proactively discharge its functions. The effectiveness of an agency is strongly impacted by the support it receives, and strong statutory powers may not translate into actual authority without that support.

This situation changed significantly with the change of government in 2017, when conservation received greater political priority and resourcing. Within this more positive political environment, the Conservation Authority provided advice to the Minister of Conservation on a range of matters including seabird conservation, tahr management in national parks, responses to COVID-19, predator free priority areas, the management planning template, specific permits of concern, whitebait, environmental reporting, stewardship land assessment and review, sea bird bycatch and various CMS and National Park Management Plan reviews.[28]

This increase in activity coincided with the Conservation Authority creating better lines of communication with the regional Conservation Boards. Each Conservation Board now has a Conservation Authority member allocated as a liaison person. This has enabled the Authority to keep abreast of issues as they emerge, within and across the regions, and to obtain a better overview of the reach and significance of issues nationally. The relationship between DOC and the Authority has also strengthened. This reflects a shift in framing, from the Authority acting primarily as an oversight body for DOC, to its work being seen as *complementary* and providing "a direct conduit to the Minister from outside the Department".

Interviewees expressed support for the advisory role of the Conservation Authority, its independent voice and the interface it provides with stakeholders and the community more generally. It was seen as "incredibly useful – if the Authority itself was working well". The open public nature of the Authority's meetings was seen as providing a valuable forum for matters to be brought to its attention and several noted the key role the Authority had played in driving action on number of important issues.

The Conservation Authority's role within the planning framework was more contested. This may be a reflection of the more general view that conservation planning is spread across too many agencies and interest groups, and is far too complex. The Authority's role within the system adds to that complexity.

There was also criticism around the lack of structure, direction and processes for the operation of the Authority. This means that its approach remains relatively ad hoc; "where and how the Authority identifies issues and selects to become involved – there is no formal process, no structure". Interviewees also noted that the culture and approach of the Authority can alter across the electoral cycle, as the political focus changes. This was seen as a source of instability. It was suggested that greater direction as to the required skills, experience and expertise of members (such as that in place for the Environmental Protection Authority), could assist to depoliticise appointments. This tension also points to a lack of clarity on the role of the Conservation Authority: in providing for both stakeholder representation *and* professional expertise and advice.

> The Conservation Authority fulfils an important role as a direct conduit of independent advice to the Minister of Conservation. Recent progress in this area could easily be lost with a change of Minister and/or DOC staff. Better processes, lines of communication and support mechanisms would help to ensure that these gains are 'locked in' and the Conservation Authority is able to fulfil its functions under the Act over the longer term.

Role of Conservation Boards

There are 15 Conservation Boards across the country. Under section 6M of the Conservation Act they have a mix of approval, recommendary and advisory roles. Boards normally approve Conservation Management Plans developed within their areas. Although they are involved in the development of National Park Management Plans, and hear submissions on them, they do not approve the final document. Similarly, while they hear submissions on CMSs, they only make a recommendation as to their approval. In addition, they are tasked with providing advice to the Conservation Authority and the Director-General on the implementation of CMSs and Conservation Management Plans within their area, proposals to change the classification of land, and "any other conservation matter relating to any area within the jurisdiction of the Board".[29]

In practice, Conservation Boards have played a much broader and varied role. For example, the *Otago Conservation Board Annual Report* indicates that the Board, during 2018:[30]

- Reviewed all applications for new concessions at each meeting to discuss whether input and a submission from the Board should be made
- Convened a biodiversity forum with a wide range of representatives to generate collective thinking about how to provide a more coherent approach across the region
- Ran an in-house governance workshop to take an in-depth look at the role of a Conservation Board

- Attended regular meetings with Ngāi Tahu to continue relationship building and ensure they were working together across relevant plans
- Attended Fish and Game meetings and liaised with relevant district councils
- Held several public fora with presentations on a range of issues including; vehicle disturbance, use of trails for horse riding, the 'Battle for the Birds' and predator control operations, and the cutting of kelp by paua divers
- Participated in the Land and Water Working Group
- Undertook regular field trips to ensure Board members were kept apprised of issues on the ground across different areas within their region

Boards may also, though much more rarely, be involved in litigation. In 2017, for example, the Taranaki-Whanganui Conservation Board lodged an appeal against the Environmental Protection Authority's approval of seabed mining by Trans-Tasman Resources Limited off the coast of the South Taranaki Bight.[31]

Neil Silverwood

Rubbish strewn along the beach at Greymouth after storm damage to an old refuse dump. Conservation Boards typically get involved in a wide range of environmental issues within their regions.

Such a wide range of activities has generated considerable confusion as to the what the role of Conservation Boards actually is. Are they primarily governance bodies (tasked with providing oversight of DOC's performance and approving/recommending planning documents), or advisory bodies (providing advice to DOC), or are they intended to represent their communities within the conservation system? The lack of clarity on the role of Conservation Boards was the most frequently raised concern by those Board members we interviewed.

A spotlight on interviewee comments on Conservation Boards

"Are Boards representative bodies, advisory bodies or governance bodies? At the moment we try to be all things, to be representative of community views and to include people with governance skills. But there is frustration at trying be everything, to do everything."

"If we are supposed to be a governance body then there are too many people involved, too many conflicting roles, priorities and interests. It all needs to be rationalised."

"Boards bring community involvement and input. But is the current model the only way – the best way – to do that? Wouldn't it be better to have community hubs?"

"I support a collaborative governance model. It has the potential to make the system more durable through building consensus. But the people that come to Conservation Boards often come with an agenda to run, a theoretical objection, a position that they won't shift. So in practice, collaborative governance isn't working."

"The issues Boards have to deal with in planning are so political, that in reality, the Boards often just get too paralyzed to do anything in the system. This is especially so with trying to resolve Treaty-related matters. And should it even be our role to resolve those political debates and balances?"

"We need to take a serious look at the value of Boards. Are they relics of the past? If we are to retain them, then we need to take another look at their membership and how to make that work."

Conservation Board interviewees spoke of an historically weakened relationship with DOC, with the Department keeping Boards apart from substantive decision-making on matters such as concessions. In more recent years, Boards have experienced improved cooperation and a higher level of engagement with the Department. This has resulted in a freer flow of information and more formal arrangements for progress reports on matters such as biodiversity goals, plan implementation and review of stewardship land. These more formal monitoring and reporting processes have increased accountability and strengthened the role of the Boards. However, it was also evident from our interviews, that the effectiveness of the DOC-Conservation Board relationship is variable across the country.

Interviewees highlighted two core factors impacting on the level of support and communication provided by DOC. First, Boards in areas of higher conservation value (eg with more national parks) or where conservation issues are more serious and urgent, are (understandably) prioritised by the Department. This has created some disparities, and frustrations for Boards in less prioritised areas, particularly when they are seeking Departmental assistance to make progress in planning. The impacts of these disparities are discussed in more detail in Chapter 4. A second factor was the attitude of staff interfacing with a specific Board. Some staff value the role of Conservation Boards and others see them as an impediment to DOC's work and an anachronism. Both these factors were seen as an obstacle to progressing the work of Boards.

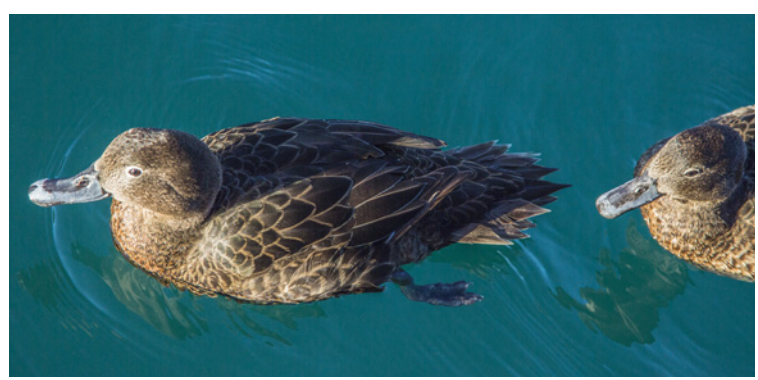
Conservation Boards often become involved in highly politicised issues. Many interviewees felt that this was inappropriate, that Boards were not sufficiently skilled in resolving such issues which were better left for DOC senior management or the Minister to determine. They included matters such as the role of Te Tiriti partners, the weight given to economic considerations (and the balance between protection and use across a range of land classifications), how climate change considerations should be incorporated into planning and policy at the local level, how new issues and concerns should be dealt with (eg drones and e-bikes), and how specific conflicts should be resolved such as the recent debates over tahr management, mining on conservation land, whitebaiting restrictions and 1080 control.

Many of these matters could be dealt with at a nation-wide policy level. This would serve to improve consistency across Conservation Boards and help ensure a robust and objective consideration of the important policy aspects these issues highlight. At present, Conservation Boards are caught up in many of these debates. And as the primary interface between local communities and DOC, they are frequently stuck in the middle. These issues are not easy to resolve at the Departmental or Ministerial level, but are even more intractable at the Conservation Board level.

> Greater clarity in roles and increased legislative and policy guidance would assist Conservation Boards to navigate their way through the complex issues they must consider and manage.

The procedural requirements for Conservation Boards also merit revisiting given the difficult conflicts they face. The Conservation Act states that a majority of members at a meeting shall form a quorum and that for voting purposes, where there is an equality of vote, the chairperson has the deliberative vote.[32] In official documents, the recommendations and approvals of Conservation Boards are typically expressed in simplistic form, "the Conservation Board approved the Plan". Reference to a public consultation and submissions process and Board approval may also be used to reassure the public that a controversial measure has gone through robust checks. What this can mask, however, is the extent of internal conflict that might have existed within the Board and situations where a significant minority had dissented.

During our interviews, several people expressed their concern about very controversial and close-run decisions being presented as if a broad consensus had been reached, and how this can mean that the extent of controversy is masked from public view. This can also have consequences for the Board's relationship with the local community and stakeholders, where dissenting groups subsequently feel that their views were not adequately heard or represented by the Board. A more formalised process for recording minority views would provide greater transparency to the decision-making process. A mechanism for review of borderline decisions could also be valuable, since these tend to occur when there are complex issues to be resolved.



Raewyn Peart

Pakete, brown teal.

Membership of the Conservation Authority and Conservation Boards

Members of the Conservation Authority are appointed by the Minister of Conservation, typically for a three-year term. In appointing members, the Minister is required to have regard to the "interests" of "conservation, natural earth and marine sciences, and recreation".[33] DOC employees are not eligible for appointment. The Authority is large – having 13 members in total. The Act allocates specific positions as follows:

- 2 persons appointed after consultation with the Minister of Māori Affairs
- 2 persons appointed after consultation with the Minister of Tourism
- 1 person appointed after consultation with the Minister of Local Government
- 1 person nominated by Te Rūnanga o Ngāi Tahu
- 1 person appointed on the recommendation of the Royal Society of New Zealand
- 1 person appointed on the recommendation of the Royal Forest and Bird Protection Society (Forest and Bird)
- 1 person appointed on the recommendation of Federated Mountain Clubs
- 4 persons appointed following public notice (ie 4 members of the general public)

This representation mix is reflective of the set of values and concerns that were considered a priority when the Act was formulated. It provides a minimum of three seats out of 13 for Māori. Were the legislation being debated today, it is likely that the balance and composition would be different, and there could be merit in updating the list. However, the Minister still has considerable discretion in appointments and current members have varied backgrounds in policy development and regulation, law, tourism, te ao Māori, Te Tiriti negotiation, local government, farming, botany and marine ecology. Collectively this represents a complex matrix of skills, interests and experiences.

The statutory requirements for members of Conservation Boards are much less stringent. Each Board may contain up to a maximum of 12 members, appointed by the Minister, after consultation with the Conservation Authority. They also may not include DOC employees. Appointments to Boards are notified and nominations are called for from members of the public. In making the appointments the Minister must "have regard to":

- The features of the land administered in the region
- The interests of nature conservation, natural earth and marine sciences
- Recreation and tourism
- The local community
- Tangata whenua[34]

These broad criteria provide little guidance on how different interests are to be accommodated and this can make appointments controversial. For example, in 2020, Ngāi Tahu rūnanga filed judicial review proceedings against the Minister's appointment decisions for the West Coast Conservation Board (see spotlight).[35]

A spotlight on the political nature of Conservation Board appointments

Under the Ngāi Tahu Claims Settlement Act, Ngāi Tahu is guaranteed two members on the West Coast Conservation Board. There has been ongoing conflict within the Board over the balance between conservation and development in the context of a range of decisions, many impacting on iwi. There have been several iwi walkouts amidst accusations of cultural insensitivity and that the Board has been "stacked" with anti-development and "extreme environmentalists". In return, other Conservation Board members have alleged procedural impropriety ("major conflicts of interest") in relation to Ngāi Tahu's involvement in conservation matters including the writing of the Paparoa National Park Management Plan.[36] This reflects the highly contested nature of many of the issues being dealt with by the Board.

In October 2020, Ngāi Tahu filed judicial review proceedings against the Minister of Conservation contesting the legality of the Board member appointment process.[37] The iwi has also accused the government of failing to operationalise the findings in the *Ngāi Tai Case*, where the court found that DOC should have considered the economic well-being of mana whenua, on the West Coast. When determined by the courts, these proceedings will likely have implications for the appointment process, the role of iwi within Conservation Boards and the Board system more generally.

We were told by interviewees that the mix of people sitting on Conservation Boards can sometimes contribute to unhelpful dynamics within these bodies. Issues most frequently cited were:

- Differing levels of knowledge, experience and expertise between lay members and specialists
- Age and/or gender dynamics
- The length of time a person has spent on a Board and their familiarity with the conservation system
- Differences in capacity to take on tasks and the additional resourcing and support members have available
- Whether members sit on the Board in an individual capacity or are linked to a specific institution
- Whether a member's participation has statutory support (such as exists for some iwi members)
- Individual personalities
- The quality of the Chair

Power imbalances, lack of clarity on the role of individual Board members, lack of a highly skilled chair and strong personalities within a Board can all contribute to significant conflict. Many interviewees spoke of their often daunting first weeks and how out of their depth and overwhelmed they had felt. Greater clarity on the criteria for membership, and the roles of representatives on Boards, may assist in this regard. As one interviewee noted "we are lucky to have a great Board – but it shouldn't be about luck. There is a huge diversity of Boards, skills and experience".

> "There is a real mixture of people. Some have been part of the system and its politics for ages. When lay people come on it's all new to them and they can feel really overwhelmed, like they don't know a thing. On top of that, the issues you're dealing with are tough. It's a hard bleak world that first couple of years." *(Conservation Board Interviewee)*

Some interviewees were concerned about the lack of diversity on the Conservation Authority and Conservation Boards. In particular, an age imbalance exists. "The average age is probably 60 and there is next to no youth voice". Membership also often fails to reflect the multicultural nature of Aotearoa New Zealand, with a lack of members from specific communities, notably Pasifika.[38] These communities likely hold additional values and perspectives on conservation resources not currently represented within existing frameworks.

In recognition of these issues, a strategic attempt has been made in recent years to boost the diversity of members. Following the 2020 appointments round, the proportion of women members on Conservation Boards now sits at 53 per cent, with 38 per cent of members identifying as Māori. The most recent appointment round also increased age diversity, but this has been one of the more difficult issues to address.[39] We were told that the core barriers to greater diversity on Boards included low rates of reimbursement coupled with the unpredictable and often high workload. This made membership prohibitive to younger people, and those with full time work commitments, and served to increase the representation of retirees in the system.

Lack of diversity is a common issue on such bodies internationally. For example, in May 2018 the United Kingdom government commissioned an independent review of the country's National Parks and Areas of Outstanding Natural Beauty.[40] One of the findings was that Conservation Boards had become too big, unwieldly and unrepresentative, with a very small ethnic mix. Diversity was found not only to be an issue of ethnic background, but "one of age, wealth or educational background" as well as for marginalised groups, such as those with disabilities.[41] The review recommended "reformed governance to inspire and secure ambition in our national landscapes and better reflect society" and a new financial model to enable that.[42] The review also proposed new long-term programmes to increase the ethnic diversity of visitors.[43] These 'MOSAIC' programmes attempt to introduce the conservation estate to new audiences (and users), targeting lower socio-economic and more marginalised communities, and engaging them in activities on conservation land to encourage a more active participatory role.

A 2013 review of Conservation Boards in Aotearoa New Zealand underlined the importance of Boards "representing the interests of their local communities" in order to remain relevant.[44] The reviewers considered that the skill set requirements of Board members needed to be more clearly identified and specified.[45] However, without greater clarity on the

purpose of Boards, it is difficult to determine the appropriate criteria and requirements for Board membership.

Māori representation

Some Boards have additional membership requirements arising from Te Tiriti settlement legislation. For example, Conservation Boards within the Ngāi Tahu claims area must contain two persons appointed on the nomination of Te Rūnanga o Ngāi Tahu, and the Auckland Conservation Board has representation for three different iwi and hapū. Provision has also been made in the Act for the paramount chief of Ngāti Tuwharetoa, the Taranaki Māori Trust Board and the Whanganui River Māori Trust Board to each recommend the appointment of one member to their respective Conservation Boards.[46]

> Iwi representation on the Conservation Authority and Conservation Boards is highly dependent upon Te Tiriti settlement legislation. Not all iwi have settled and this means that representation between iwi is variable. The current ad hoc development of these positions is far from ideal. In short, there is a need for a more strategic, coherent and equitable approach (and framework) for consultation, engagement and representation of Māori to be developed.

What was clear from our interviews was that, while many increasingly question the role and utility of Conservation Boards as a management and planning mechanism within the conservation system, Māori representation on them has added significant value. Interviewees spoke almost universally of the positive impacts Māori voices and perspectives had brought, especially in terms of providing:

- A broader appreciation of history, context and place – contributing to a more nuanced understanding of the significance and value of sites within the conservation estate
- The sharing of traditional ecological knowledge on specific sites and species, and ecological changes witnessed over time through a long and close association with an area
- Greater understanding of bias in the current system and alternative ways of looking at the world
- A feeling of greater connection and relationship between people and the natural world and between Māori and non-Māori
- A mechanism to build bridges and joint understanding

The DOC staff that we interviewed, who work regularly with iwi groups, also underlined the importance of Māori representation on Conservation Boards, especially in ensuring that the Department is alerted to issues of potential concern to Māori at the local level.

Despite the positive contribution that Māori Conservation Board members are making, it is still unclear what their role is. Some of the most frequently posed questions from other Board members on this topic can be summarised as follows:

> What is the role of iwi members on Conservation Boards – are they there to represent their specific iwi or hapū? In an individual capacity? In a liaison type role to ensure local iwi have their eyes across potential issues in their rohe? Are they there to ensure a te ao Māori perspective is brought into the conservation system and to highlight issues of concern to Maori? All of these things?

In the Wai 262 Report, the Waitangi Tribunal commented on this issue, highlighting that expectations placed on individual Māori members of these bodies were often inappropriate. Too often individuals are expected to be a proxy for what should be a more formalised Te Tiriti partner role.[47] Non-Māori Conservation Board members often have little understanding of Te Tiriti, their section 4 obligations, or the relevant Te Tiriti settlement legislation in their region. They may have little familiarity with mātauranga Māori and the learning curve for many is steep when they take up their position. Too often it falls to the iwi members of Boards to educate and inform other members, making their role a far more time consuming and complex one.

> "At the beginning there was an expectation that the Māori representatives were there to service our lack of knowledge, but that's really not fair and shouldn't have to happen. That dynamic has now shifted, but it took some time to get our heads around it. We have come a long way as a Board. The [Māori] reps do a huge amount of work and make an invaluable contribution – they constantly ask the questions that as Pākehā we would just never think to ask." *(Conservation Board Interviewee)*

Although DOC is now offering Boards additional support in this area, and most Boards we spoke to had been provided with specific advice and assistance (often in the form of section 4 and Te Tiriti related workshops), many interviewees remain concerned at the lack of formal guidance, particularly for new members. A number of interviewees felt that a more comprehensive induction process is needed to assist new Board members in understanding the conservation system more generally, and Te Tiriti requirements and arrangements more specifically.

Whether Māori membership of the Conservation Authority and Conservation Boards is the way to progress a partnership model for conservation, as envisaged under Te Tiriti, is questionable. As the Wai 262 Report emphasised, "in reality the Māori voice is included only as one among many on these boards" when what is needed is "a model which gives the Māori voice its own distinct space. The integrated model is useful as far as it goes, but it is not a Treaty partnership."[48] Similarly, other commentators have argued that the Conservation Board and Conservation Authority model is fundamentally "Crown-controlled, Crown dictated and Crown implemented. The Conservation Board is a pre-determined structure endorsed by the Crown … While the Conservation Act must be read to give effect to Treaty principles, the Board structure greatly limits the forum and methods of input to the classic bureaucracy-based approach to resource governance".[49]

Neil Silverwood

Kea.

While many iwi groups clearly value the representation afforded on Conservation Boards, evidenced by the inclusion of this matter in Te Tiriti settlements (and their presence brings significant gains), it can be questioned whether this representation is valued because of the *absence of other, potentially more effective, channels of communication* with both the Department and Crown. Further, although a position on a Conservation Board affords iwi opportunities to play a greater role in conservation management and planning and in the consideration of concessions (that is otherwise not provided for under the legislative framework), is it the best mechanism for achieving this?

A spotlight on a new model for Māori engagement in the conservation system

It is important to ask whether there is a *better* pathway for iwi and hapū engagement in the conservation system other than through membership on the Conservation Authority and Conservation Boards; one that would implement greater partnership between DOC and iwi and provide greater clarity. This could be facilitated by the establishment of new structures to engage and interface with existing entities such as DOC, the Conservation Authority and Conservation Boards.

To this end, the Waitangi Tribunal recommended in its Wai 262 Report the establishment of a national Kura Taiao Council and conservancy-based Kura Taiao boards, to sit alongside the existing Conservation Authority and Conservation Boards. The new bodies would set their own strategies and plans which would form part of the statutory CMSs and Conservation Management Plans. "These structures are necessary in part because there are so many points of intersection between the two worlds" and something more is necessary in order to implement and elevate Māori above the status of just one more stakeholder among many.[50]

More recently, DOC has attempted to reduce conflict within the system through an increased focus on providing organisational support and strengthening linkages between Conservation Boards, the Conservation Authority and iwi. The annual reports of Conservation Boards note that DOC is holding workshops with Boards around the country to talk through their roles and the requirements around Te Tiriti. Meetings of Conservation Board chairs are assisting to improve communication and networks, and enable the sharing of knowledge, experience and advice.

Interviewees universally spoke highly of the value of these meetings. Conservation Boards now have specific representatives responsible for maintaining contact with adjacent Boards and many are trying to increase their visibility within the community. DOC has also started clustering the review of CMSs in adjacent areas to improve alignment and consistency.[51] The 2013 review of Conservation Boards recommended many of these actions, including convening annual meetings of chairs, improving liaison between adjacent Boards and providing more comprehensive briefings to Boards on Te Tiriti settlements and requirements.[52] This all reflects the significant effort recently being put into the system to help it function more effectively.

While there is no doubt that improving relationships and linkages can assist to reduce conflict, significant tensions remain despite these efforts, demonstrating that more systemic problems are still unresolved. The lack of clarity on the roles of Boards and their members, how Te Tiriti is to be implemented, and how conflicts between conservation and development are to be addressed (and the consequential lack of transparency arising from these deficiencies) are flaws that cannot be mended without more formal legislative change and direction. Despite a general consensus that some kind of systemic reform is required, what that might look like remains unarticulated.

3.3 New Zealand Fish and Game Council

Historical context

The beginnings of Fish and Game stem back to the early years of colonisation when acclimatisation societies were established in Aotearoa New Zealand by early European settlers. 'Acclimatisation' was official policy in Britain during the early 1860s and involved bringing species from Europe and 'acclimatising' them within countries in the 'New World'.[53] This meant that, by design, immigrants brought with them their own cultural array of animals and sought to establish them in their new home.

The first acclimatisation society in New Zealand was established in Auckland in 1861, and its rules focused on introducing new species so long as they were "innoxious".[54] Others soon followed. By 1865, the beginnings of a regional network of societies had been established around the country and they would last for some 130 years.[55] Early Animal Protection Acts formally recognised acclimatisation societies and gave protection to the introduced species they brought into the country.[56]

The societies frequently had links to shipping agencies so that the transport of new plants and animals was often free. Hatcheries were built for breeding trout and aviaries for raising game birds for release into the wild. Some introductions only succeeded after many efforts. For example, despite repeated attempts, mallard ducks took until the 1930s to become established.[57]

Acclimatisation societies were responsible for bringing into New Zealand many of the common introduced plants and animals that we see today including starlings, blackbirds and sparrows. The establishment of fish and game species was a focus of the societies from the outset, with trout being introduced as early as 1867.[58] By the 1890s, the management of introduced fish and game, setting of hunting seasons and licensing of hunters and anglers had become core activities for the societies.[59]

Hunting, game birding and trout fishing licences were issued by the acclimatisation societies and funds raised went to support their work. When poaching became an issue, the societies employed the first full-time rangers, which resulted in significant increases in licence sales, providing the basis of the licensing system in place today.[60]

In retrospect and from a modern conservation ethic, the approach and activities of the societies would likely be judged harshly. But at the time, the introduction of new species was widely accepted and supported. The practice continued on into relatively modern times. Concern to protect introduced species meant that native species which preyed on them were historically deemed vermin, and bounties paid for their removal, particularly for species like harrier hawks, black shags and eels (which preyed on juvenile trout). Many of these schemes continued until the 1960s before being abandoned. The widespread practice of raising and releasing game birds, like pheasants, only ended during 1990s,[61] but still occurs in some areas.[62]

Acclimatisation societies were amongst the first to raise concerns over cattle effluent and the spillage of waste into waterways, driven out of concern to protect introduced trout, salmon and game bird populations.[63] The widespread drainage of wetlands for farming and irrigation from the 1950s onwards intensified their work in this area and focus on freshwater and wetland habitat protection.[64]

Following a government review in 1990, the acclimatisation societies collectively became what is now known as Fish and Game New Zealand, with a statutory responsibility for managing freshwater sport fishing and game-bird hunting.[65] Today Fish and Game (and local Fish and Game councils at the regional level) play a key role within the conservation system. The agency is known for both its role in the regulation and support

of sports fish and game hunting, and its advocacy work in relation to wetland and freshwater protection. It frequently supports and initiates freshwater protection such as Water Conservation Orders and opposes proposals to drain wetlands, dam rivers or take water for irrigation.

Fish and Game's role in the conservation system

Fish and Game is formally established under section 26B of the Conservation Act "to represent nationally the interests of anglers and hunters and provide co-ordination of the management, enhancement, and maintenance of sports fish and game." Its statutory functions include:

- Developing national policy for sports fish and game and implementing policies established under the Wildlife Act
- Advising the Minister on issues relating to sports fish and game
- Advocating for the interests of Fish and Game in statutory planning processes (eg the development of CMSs and National Park Management Plans)
- Liaising with the Conservation Authority
- Participating in the development of a research programme promoting management of sports fish and game
- Preparing, and recommending for approval, notices for game seasons
- Recommending fees for fishing and hunting licences, and guide licences

The Director of Fish and Game may also appoint Fish and Game employees as rangers under the Conservation or Wildlife Act (section 26FA of the Conservation Act). Fish and Game rangers play an important monitoring and enforcement role, with powers to require information and evidence of offences and to issue infringement notices.[66]

Fish and Game also has 12 regional councils, which have as their primary function under section 26Q of the Conservation Act to "manage, maintain and *enhance* the sports fish and game resource in the *recreational* interests of anglers and hunters". This means that the role of these regional councils is more narrowly focused on recreational uses. Their core functions include:

- Assessment and monitoring of sports fish and game populations and the condition and trend of ecosystems and their habitat
- Maintaining and *improving* the sports fish and game resource, including through improving access, maintaining hatchery and breeding programmes for restocking purposes, formulating and recommending fish and game seasons, and undertaking such works as necessary for maintaining and *enhancing the habitat* of sports fish and game
- Promoting and educating recreation-based sports fish and game, and ethical standards of behaviour for anglers and hunters, and keeping that community informed of matters affecting their interests
- Assessing the costs, and developing and recommending appropriate licence fees and distribution of levies
- Representing the interests and aspirations of anglers and hunters in statutory planning processes and liaising with Conservation Boards, preparing draft sports fish and game management plans under the Conservation Act, identifying requirements for research and implementing national policy of Fish and Game
- Issuing hunting and game licences under the Wildlife Act

It is notable that the objectives and functions of Fish and Game regional councils include *improving* and *enhancing* the fish and game resource and habitat. This is a much higher objective than that for DOC in respect of indigenous species and habitat under the Conservation Act, where the goal is simply protection. Even the National Parks Act only directs that those places be maintained and preserved. The Wildlife Act does not identify as a priority the improvement or enhancement of *indigenous* species. In addition, no conservation statute sets firm or specific management requirements for indigenous species, either in terms of research priority or habitat restoration initiatives. The result is that, in relative terms, the goals set for indigenous species are lower.

Fish and Game has an unusual governance structure. Regional council members are elected by adult holders of season licences, and then each of the councils puts forward a representative who sits on the national Fish and Game body. An internal source of tension within the organisation has been reconciling regional-specific interests, which are represented on the national Fish and Game body, with its national overview as required under the Conservation Act.

A spotlight on the independent review of Fish and Game

An independent review of Fish and Game's governance and organisational arrangements was initiated in 2020. The review has been described as a "health check" given that the laws governing the agency were enacted some 30 years ago.[67] The review found that the organisation was struggling to be effective due to a host of governance issues and provided more than 35 recommendations for change.

The review found that engagement with Māori and compliance with section 4 was highly variable. While there is a convergence of interests between Fish and Game and Māori in some areas, such as with freshwater quality, they differ in others such the level of protection given to trout versus native galaxias on which trout predate (see spotlight in section 7.4).

The review also found that, despite section 17(L)(4)b of the Conservation Act requiring Fish and Game to have regard to the impact on other natural resources and other users, Fish and Game regional councils "rarely, if ever, take into account the impact or concerns of other users" and that this aspect of section 17 "is mostly ignored".[68] The Reviewers noted that the majority of third parties spoken to indicated that Fish and Game was difficult to deal with, unnecessarily aggressive and confrontational, and had a "single minded focus on the interests of anglers and hunters" that was detrimentally affecting community relations.[69]

Another worrying finding was that some conflicts of interest were not being adequately managed, "[i]n particular outside roles and interests that have a substantial commercial interest in the use or management of the resources that Fish and Game is responsible for" and which "by their nature create actual or perceived conflicts of interest".[70] Some of the measures suggested to help address this was to provide a paid Chair position, create a fixed term of office for council members, enable the Minister to remove any councilor, and for Fish and Game to adopt a full suite of governance and corporate policies for its accredited members, including a conflict of interest policy.

Fish and Game is currently working to strengthen governance and good practice using the review for guidance. However, implementing some of the recommendations will require legislative change. The Minister of Conservation is currently seeking further advice as to the policy and legislative implications of the review's findings.[71] It certainly reinforces the need for legislative review.

Raewyn Peart

Tekapō River.

Fish and Game is funded almost entirely by licence fees, with revenue for the 2019/2020 year being approximately $11 million.[72] This income flow enables the organisation to have a significant presence at place across the regions, to undertake a range of lobbying and advocacy work, and to play a strong role in planning, monitoring and research. As a result, there is far more knowledge of the ecological values of rivers and lakes that contain trout and salmon, and robust monitoring and management of them, than for other water bodies.

While it makes some sense for fees collected from hunting and fishing licences to go back into those sectors, and although some of that revenue is used for freshwater and wetlands conservation, it is used to maintain and enhance *introduced* fish and game species. This creates an inherent tension within the *conservation* system, given that some of the introduced species supported through these funding sources have a detrimental impact on native species.

A significant diversity of opinion was expressed on the role of Fish and Game within the conservation system. Most interviewees described its role as, at least "unusual". A number characterised it as a "colonial hangover" or "legacy reflecting traditional English values and way of operating". Fish and Game's advocacy role for introduced sports fish and game species *within the conservation system* was generally seen as "uneasy fit", especially where current frameworks do not always provide a high level of protection for native species.

Conversely, all interviewees also highlighted the invaluable role that Fish and Game has played in seeking habitat protection, being "the strongest advocate for freshwater" and wetlands protection, noting that "Fish and Game is one of the major, if not the main voice for freshwater advocacy in New Zealand, actively pursuing water conservation orders and advocating in regional planning processes." The value of having an organisation with significant scientific and monitoring capacity, as well as a presence at place, was also underscored. Much of Fish and Game's advocacy is to protect freshwater quality and ensure adequate minimum flows – leading to better outcomes for both indigenous and introduced species. It also plays a role in preventing expansion of introduced species into virgin waterways. Given the current implementation of the government's Essential Freshwater package, which has introduced new rules and regulations to help improve water quality and freshwater habitats,[73] it will be important for Fish and Game's advocacy role to continue to be focused and effective given its much larger resource base for advocacy than environmental NGOs.

3.4 Game Animal Council

The Game Animal Council was established in 2013 under the Game Animal Council Act. It has a number of functions in relation to game animals including:[74]

- Advising and making recommendations to the Minister
- Developing voluntary codes of practice for hunting
- Raising awareness of the views of the hunting sector and providing information and education to that sector
- Liaising with hunting groups, tangata whenua, local authorities, landowners, the Conservation Authority, Conservation Boards and DOC "to improve hunting opportunities"
- Conducting research, including into the hunting of game animals
- Undertaking management functions for the effective management of any "herds of special interest"

Members of the Council are appointed by the Minister of Conservation. The Council must have between 9 and 11 members who are appointed based on their knowledge and experience in recreational and commercial hunting, deer farming and safari park operations, meat processing and exporting, hunting-related tourism, hunting research, Māori-related hunting interests, farming, forestry, conservation, science and kaitiakitanga. DOC employees may not be members of the Council and membership is for a term of three years.

The Act requires people to pay a levy if they wish to export a game trophy from Aotearoa New Zealand with proceeds supporting the activities of the Council.[75] If a 'herd of special interest' is established, there are also powers for the Governor-General to charge fees and levies for the hunting of animals in that herd, as well as for their export as trophies, with those fees also payable to the Council. The levies therefore provide a direct funding source for the Council's work.

The Act was designed as a mechanism to give hunters a greater stake in the management of their resource and to provide a process for establishing herds of special interest. The work of the Fiordland Wapiti Foundation provided a model of how increased recognition of the value of certain herds could be used to drive greater cooperation, monitoring and management effort in order to achieve both better conservation and recreational hunting outcomes.[76]

In supporting the need for the Act, the Leader of United Future, Peter Dunne, argued that provision of a greater management role for hunters, and a partnership-based relationship with DOC, was necessary to get people working in the same direction and consequently reduce conflict.[77] The Act was also intended to enable greater coordination and integration of a somewhat internally divided hunting sector, providing a focal point and agency able to provide specialist advice on big game management.[78]

The Labour Party members on the select committee considering the Bill also noted that a core factor driving the establishment of the Council was hunter frustration with DOC's lack of recognition of the role they play in conservation, and the extent to which their concerns were not being taken into account in decision making. However, they were also concerned that the Council could contest and delay 1080 operations where game animals were seen to be at risk and that the Act and structure would only "create tension between the Game Animal Council and the Department".[79]

There was also debate about the proposed organisational model. The Labour Party thought that an advisory body was more appropriate than a formal separate entity. The separate structure provided for the Council also went against the advice of DOC and Treasury. Their concern was that the establishment of the Council "sets up a direct and competing interest in the management of wild animals, rather than progressing the more collaborative approach that should be pursued".[80]

Therefore, at the time it was established, opinion was split as to whether the Game Animal Council would reduce or exacerbate tensions and conflict. Since that time, the Council has been involved in a wide range of activities. Its *Annual Report 2019-2020* shows that the Council partnered with Zero Invasive Predators to research the impact of 1080 on tahr (which confirmed that tahr are at very low risk from 1080 operations); and partnered with DOC to develop a Tahr Returns App which makes it easier for hunters to record their hunting efforts and therefore contribute to information about harvest levels.[81] The Council is also working with the Kea Conservation Trust and the New Zealand Tahr Foundation to encourage hunters to record their kea sightings.[82] The Council undertakes hunter education, including on the linkages between hunting, the size and composition of herds and the health of habitat.[83] It has made submissions on a wide range of matters including firearms regulation, tenure review and the management of crown pastoral land, conservation land reclassification and the tahr control operational plan.[84]

We have been unable to identify any literature that has reviewed the Council's performance or its contribution to the conservation management system. The Council has now been in operation for more than seven years, and it would seem timely that a stocktake be undertaken to ascertain whether the fears expressed at the time of the Bill's passage were unfounded.

Raewyn Peart

Ben Ohau Range, Ruataniwha Conservation Park, Mackenzie Basin.

3.5 Summary of key institutional issues

- Many diverse institutions interface with the conservation system, some with unclear and/or conflicting purposes. This adds to the complexity, inertia and level of conflict within the system.

Department of Conservation

- The scale of the task that DOC is charged with is extensive, unworkably so.
- DOC has gone through a series of restructures and rounds of budget cuts that have impacted institutional resilience, knowledge and expertise.
- Unreliable funding streams have made long term planning and resourcing by the Department difficult.

New Zealand Conservation Authority

- The Conservation Authority was designed to be an independent 'watchdog' entity at a time of reduced public trust in the Government's management of conservation lands. Thirty years on, the context in which the Conservation Authority operates has significantly changed.
- The Authority's dual role of providing for stakeholder representation (through its wide membership) and providing expert advice to the Minister, creates some tension and lack of transparency.
- The Authority is responsible for approving policies and plans but is not involved in developing or hearing submissions on them. This creates a disjunct between the decision-maker and those impacted by decisions.

Conservation Boards

- There is a lack of clarity over the role of Conservation Boards and significant debate around their ongoing value.
- The role of iwi Board members, and what constitutes a conflict of interest when a Board decision impacts the commercial interests of their iwi, remains unclear.
- There are disparities in iwi representation between Boards due to the unevenness of Te Tiriti settlements around the country.
- The Conservation Board system is not well configured to provide for partnership with iwi.
- There is a lack of diversity amongst Conservation Board members, especially in relation to age, socio-economic background and ethnic diversity.
- Boards often deal with controversial and hotly contested issues without sufficient legislative and policy guidance.

New Zealand Fish and Game Council

- There is a weaker statutory objective of 'maintaining' or 'protecting' native species in contrast to sports fish and game, where the focus is on 'improving' or 'enhancing'.
- The recent governance review of Fish and Game found that Fish and Game regional councils are not paying regard to the impact on other natural resources and users, engagement with Māori and section 4 compliance is variable, and conflicts of interest are not well managed.
- Fish and Game has 'stepped into' the role of primary freshwater advocate and this is not always a good fit with its objectives or its Council members' interests (many of whom are farmers).
- The role of Fish and Game in advocating for introduced species within the conservation system is an unusual and sometimes uneasy fit.
- Fish and Game's advocacy for freshwater quality and ecological health is an important one given the large resource base of the organisation and the extent of freshwater reforms currently rolling out.

Game Animal Council

- The establishment of the Game Animal Council has strengthened advocacy on behalf the hunting sector within the conservation system.
- The Council has also provided a mechanism through which the hunting sector can be more involved in conservation-related initiatives.

Bernard Spragg

Two Thumb Range, Te Kahui Kaupeka Conservation Park where chamois, red deer and tahr are hunted.

Endnotes

1 Douglas, 1985, *New Zealand Parliamentary Debates,* Speech of the Minister of Finance (12 December 1985), 468, 9090–9092

2 https://www.doc.govt.nz/about-us/our-role/our-history/a-short-history-of-doc/

3 https://www.doc.govt.nz/about-us/our-role/our-history/a-short-history-of-doc/

4 Marshall*, New Zealand Parliamentary Debates,* Conservation Bill, (second reading, 24 March), 479, 7976

5 https://www.doc.govt.nz/about-us/our-role/our-history/a-short-history-of-doc/

6 https://www.doc.govt.nz/about-us/our-role/our-history/a-short-history-of-doc/

7 https://rmla.org.nz/2016/06/03/environmental-policy-making-in-new-zealand-1978-2013/

8 Pratt, 2016, 10

9 https://www.odt.co.nz/news/national/doc-restructuring-panned-staff

10 New Zealand Conservation Authority, 2013

11 https://ngaitahu.iwi.nz/our_stories/the-conservation-conundrum/

12 https://ngaitahu.iwi.nz/our_stories/the-conservation-conundrum/

13 https://www.doc.govt.nz/news/media-releases/2013/doc-proposes-changes-to-increase-conservation/

14 http://blog.forestandbird.org.nz/doc-restructuring-a-breach-of-trust-with-the-west-coast/

15 https://www.stuff.co.nz/national/65750301/doc-retreats-from-controversial-125m-restructure

16 https://www.stuff.co.nz/national/65750301/doc-retreats-from-controversial-125m-restructure

17 Norman and Gill, 2011

18 Tornell and Lane, 1999

19 See Ross, 2013, 11

20 Department of Conservation, 2020c, 164

21 Resource Management Act 1991, s28

22 Marshall, 1990, *New Zealand Parliamentary Debates*, Conservation Law Reform Bill (third reading, 5 April 1990), 506

23 Marshall, 1990, *New Zealand Parliamentary Debates*, Conservation Law Reform Bill (third reading, 5 April 1990), 506

24 Cooper, 1990, *New Zealand Parliamentary Debates*, Conservation Law Reform Bill (second reading, 8 March 1990), 505

25 Colmar Brunton, 2020, 10

26 Colmar Brunton, 2019, 19

27 Conservation Act 1987, s6B

28 See https://www.doc.govt.nz/about-us/statutory-and-advisory-bodies/nz-conservation-authority/advice-to-the-minister-and-or-director-general/

29 Conservation Act 1987, s6M(1)(c) and s6M(1)(d)

30 Otago Conservation Board, 2019

31 Taranaki-Whanganui Conservation Board, 2020, 28. See *Trans-Tasman Resources Limited v Taranaki-Whanganui Conservation Board* [2020] NZSC 67

32 Conservation Act 1987, s6T

33 Conservation Act 1987, s6D

34 Conservation Act 1987, s6P(2)

35 https://www.stuff.co.nz/national/politics/local-democracy-reporting/300145021/ngi-tahu-off-to-court-over-west-coast-conservation-board-row

36 https://www.rnz.co.nz/news/ldr/433417/west-coast-conservation-board-at-loggerheads-over-new-conservation-minister

37 https://www.rnz.co.nz/news/ldr/425513/ngai-tahu-pull-out-of-west-coast-conservation-board-again

38 This issue has also been canvassed in the media, see https://www.gov.uk/government/publications/designated-landscapes-national-parks-and-aonbs-2018-review

39 https://www.beehive.govt.nz/release/conservation-board-appointments-boost-diversity

40 https://www.gov.uk/government/publications/designated-landscapes-national-parks-and-aonbs-2018-review

41 Glover, 2019, 84

42 See Proposals 26 and 27 in Glover, 2019, 134

43 Proposal 9 in Glover, 2019, 87

44 Conservation Boards Review Panel, 2013, 3

45 Conservation Boards Review Panel, 2013, 3

46 Conservation Act 1987, s6P(5)-(7)

47 Waitangi Tribunal, 2011, 131

48 Waitangi Tribunal, 2011, 134

49 Joseph et al, 2018, 126

50 Waitangi Tribunal, 2011, 135

51 For example, the review of Northland, Auckland and Waikato's CMSs was aligned to enable simultaneous review in 2014, and the CMSs for Otago, Canterbury and Southland were collectively reviewed in 2016

52 Conservation Boards Review Panel, 2013, 18 and 21

53 Walrond, 2008, 1

54 Walrond, 2008, 2

55 Walrond, 2008, 2

56 The Salmon and Trout Act 1867, for example, enabled the importation and protection of trout

57 Walrond, 2008, 2

58 See Kos, 2017 and Guil, 2011

59 Walrond, 2008, 3

60 Walrond, 2008, 3

61 Walrond, 2008, 3

62 https://fishandgame.org.nz/game-bird-hunting-in-new-zealand/new-zealand-game-bird-species/upland-game-birds/pheasants/

63 Kos, 2017, 244

64 Walrond, 2008, 3

65 Changes were made under the Conservation Law Reform Act 1990

66 See sections 40A (power to require information), 41 (offence to resist or obstruct ranger) and 51W (power to issue infringement notice).

67 https://www.doc.govt.nz/get-involved/have-your-say/all-consultations/2020-consultations/governance-review-of-new-zealand-fish-and-game/

68 Clark and Mills, 2021, 34

69 Clark and Mills, 2021, 34

70 Clark and Mills, 2021, 19

71 https://www.doc.govt.nz/news/media-releases/2021-media-releases/ministerial-review-into-fish--game-released/

72 https://www.doc.govt.nz/get-involved/have-your-say/all-consultations/2020-consultations/governance-review-of-new-zealand-fish-and-game/

73 https://environment.govt.nz/what-government-is-doing/areas-of-work/freshwater/e/freshwater-reform/

74 Game Animal Council Act 2013, s7

75 Game Animal Council Act 2013, s22

76 Wagner, 2013, *New Zealand Parliamentary Debates*, Game Animal Council Bill, (third reading, 19 November 2013), 695, 14908

77 Dunne, 2013, *New Zealand Parliamentary Debates*, Game Animal Council Bill, (second reading, 19 November 2013), 695, 14839

78 See Dunne, 2013, *New Zealand Parliamentary Debates*, Game Animal Council Bill, (second reading, 19 November 2013), 695, 14845-6

79 See Mackey, 2013, New Zealand Parliamentary Debates, Game Animal Council Bill, (second reading, 19 November 2013), 695, 14850

80 Commentary on the *Game Animal Council Bill as reported from the Local Government and Environment Committee*, 7 reported in *Appendix to the House of Representatives* 2011-2014, Vol II: Reports and proceedings of select committees at 645

81 Game Animal Council, 2020, 8

82 https://nzgameanimalcouncil.org.nz/tahr-ballot-kea-sightings-project/

83 https://nzgameanimalcouncil.org.nz/healthy-animals-require-a-healthy-habitat/

84 www.nzgameanimalcouncil.org.nz

4 Conservation planning

Proposed Rakiura Wilderness Area, Stewart Island.

Neil Silverwood

4.1 Historical context

Various statutes within the conservation system provide for the development of policy and planning documents to provide more detail on how the legislation is to be applied in specific regions and areas. The broad framework, however, is primarily set out under the Conservation Act which specifies the basis of the planning system. That framework was introduced by the Conservation Law Reform Act in 1990, which made a series of amendments to the Conservation Act, Reserves Act, Wildlife Act, New Zealand Walkways Act 1990, Marine Reserves Act and the Marine Mammals Protection Act in order to create an "integrated approach to management planning for all protected areas administered by the Department".[1] The hope was that it would create a planning framework that was more workable, and with the public having "a greater say than it [has] had in the past" – it was to be one of the "final pieces of the jigsaw".[2]

Prior to the Conservation Law Reform Act, management plans had been required "for every conservation area" and this had led to a proliferation of plans.[3] The changes made in 1990 aimed to "rationalise department planning" and "reduce the number of separate management plans required".[4] The requirements for National Park Management Plans were left in place under the National Parks Act, but under the Conservation Act plans for other areas became discretionary. Under section 17D, a plan "may" be required, and directions as to what plans are necessary are set out within broader regional-based policy and planning documents (see the section below on CMSs).

It was also hoped that these changes would more clearly divide "the operational role of the Department of Conservation from the policy role of the new quangos."[5] This last comment, from the then Minister of Conservation, Hon Philip Woollaston, reflects the strong decision-making and policy role intended for the Conservation Authority and Conservation Boards, with the Department being left to focus more on operational matters and implementation.

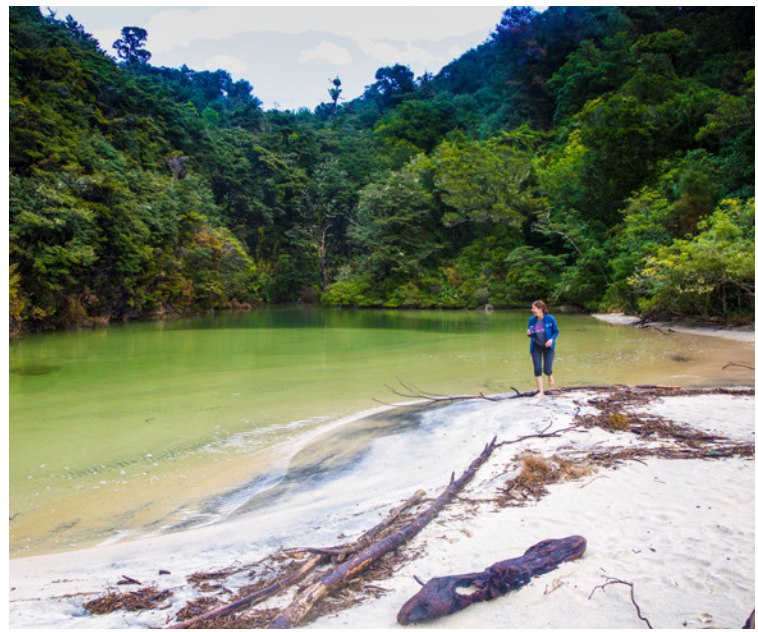
4.2 Range of planning documents

A range of policy and planning documents currently guide conservation management on the ground (see Figures 4.1 and 4.2). They include the Conservation General Policy, General Policy for National Parks, CMSs, Conservation Management Plans and National Park Management Plans. These are powerful statutory instruments that bind a wide range of decisions made under the legislation including, most importantly, those by the Minister of Conservation.

In *Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand* [2017] (*Ruataniwha Case*) it was argued that the provisions of the Conservation General Policy and CMS did not constrain the Minister's revocation decision-making powers under 18(7) of the Conservation Act. This was not accepted by the Supreme Court which stated:

> "The policies in the planning instruments ensure consistency of decision-making while allowing adaptation to meet changing circumstances through plans developed with public participation. It would be unaccountably wasteful of the effort in adopting such planning instruments and there would be a gap in the legislation if the planning instruments it enables and recognises are irrelevant to the exercise of the significant powers conferred on the Minister to alter the classification of protected conservation land and dispose of it, including by exchange."[6]

It seems likely that the reasoning of the Supreme Court on this point would apply to other decisions made by the Minister under the Conservation Act, and that the relevant provisions in conservation policies and planning documents would need to be complied with.



Raewyn Peart

Abel Tasman National Park.

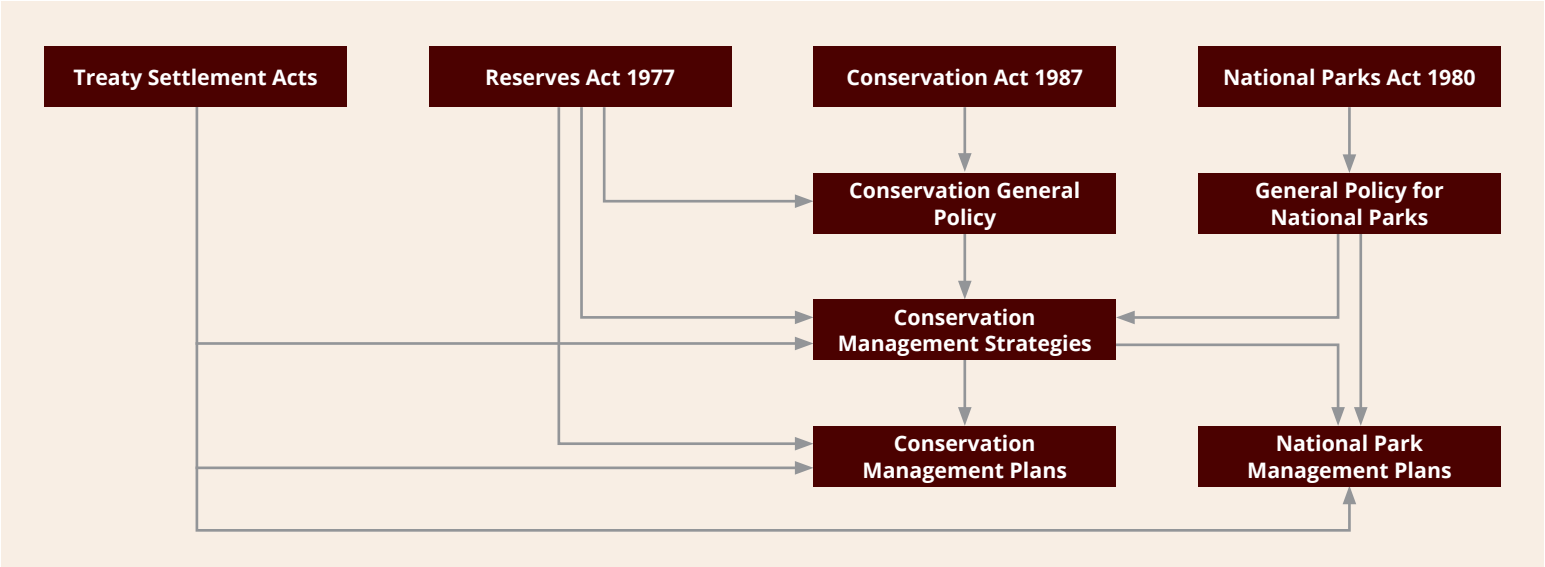


Figure 4.1 Hierarchy of conservation policy and planning documents (Department of Conservation)

General Policies

At the top of the hierarchy of planning documents in the conservation system are the General Policies, which are prepared under the Conservation Act and National Parks Act. The current Conservation General Policy, prepared under 17B of the Conservation Act, was published in 2005 with amendments in 2007 and 2019. As already discussed, it is currently undergoing a partial review on Te Tiriti matters. The Policy is wide-ranging and addresses Te Tiriti; public participation; natural resources; historic and cultural heritage; land acquisition, classification and disposal; conservation outside public conservation lands and waters; natural hazards; provision for public access and use; facilities on public conservation land; authorisations; research; CMSs and Conservation Management Plans; and international agreements and cooperation. The General Policy for National Parks, which is prepared under Section 44 of the National Parks Act, also dates from 2005 with an update in 2019. It addresses similar issues and is also under partial review.

Many of the chapters specify *what* should be included within CMSs and Conservation Management Plans on particular topics. They may also specify *how* these matters are to be addressed, including the outcomes to be set at specific places and the appropriate level of discretion to be provided for. Some of the provisions establish bottom lines or strict requirements. For example, Policy 4(1)(g) of the Conservation General Policy states that "[w]hitebait fisheries should be managed to prevent declines in species abundance and range".

Conservation Management Strategies

CMSs are intended to be mandatory 10 year regional strategies designed to implement conservation policies and establish objectives for the integrated management of natural and historic resources, including conservation land and species, within the relevant region. The Director-General determines the boundary of any CMS and therefore has discretion over how many CMSs apply across the country.[7] Currently there are 15. CMSs must comply with the relevant statutory provisions in place (including Te Tiriti settlement legislation) and with General Policy and they must identify and describe all protected areas managed by DOC with the applicable region.[8] They are also a mechanism through which DOC can set out how it will give effect to Te Tiriti within the region.

CMSs are binding on Conservation Management Plans and permissions and are a potentially powerful tool for strategic conservation planning at the regional level. The types of conservation areas that exist within the region are mapped and management objectives set out for each of them. For example, the Canterbury (Waitaha) CMS identifies a long-term vision for the area and describes its distinctive features, values and issues. It then focuses on the management of specific places and sets out specific policy requirements for activities such as vehicles, aircraft, mountain bikes, hunting and recreation which flow into the concessions regime (described in Chapter 6).

Conservation Management Plans

Management Plans provide more specific detail on how the objectives in the CMS will be met. They provide information on the conservation values to be protected at different sites and associated rules. A number of different types of management plans are provided for under various statutes. However, two are particularly relevant to the management of public conservation land: Conservation Management Plans and National Park Management Plans.

Conservation Management Plans may relate to any area managed by DOC under the Wildlife Act, Marine Reserves Act, Reserves Act, Marine Mammal Protection Act or Hauraki Gulf Marine Park Act (national parks have their own planning regime). They may also be required under Te Tiriti settlement legislation. Whether an area requires a Plan to be developed will be set out within the relevant CMS. Such Plans must comply with all the relevant provisions in the CMS.

Older CMSs often required large numbers of Conservation Management Plans, since they rolled over many of the pre-existing plans that had been in place since the 1970s to 90s for areas like forest parks, and historic and nature reserves.[9] However, most of these were intended to be revoked following the review and updating of CMSs. For example, the CMS for Canterbury (which was reviewed in 2016), notes that there had previously been 14 Conservation Management Plans in the region but all but two of these would be revoked or withdrawn following CMS approval.[10] Remaining plans are either for areas that require higher management direction, for example the Molesworth Recreation Reserve in the South Island's high country, or because they have been required under Te Tiriti settlement legislation. The Auckland CMS, for example, requires the development of a Conservation Management Plan for the Hauraki Gulf/Tīkapa Moana inner motu under the Tāmaki Makaurau Collective Redress Act 2014. Requiring plans under Te Tiriti settlement legislation is one way that iwi can implement co-governance arrangements.

As the number of Conservation Management Plans is reduced, CMSs will become the primary mechanism to provide direction for the management of conservation land outside of national parks.

National Park Management Plans remain mandatory under the National Parks Act and every national park is required to operate under a management plan. This underscores the high conservation values that exist within national parks, the increased protection that accrues as a result, and the higher degree of management and planning that is necessary at these sites.

Document	Statutory objectives
Conservation General Policy	• None specified
General Policy for National Parks	• None specified
Conservation Management Strategy	• Implement General Policies • Establish objectives for integrated management of natural and historic resources (including species managed by DOC) • Establish objectives for recreation, tourism and other conservation purposes • Establish objectives for the management of national parks
Conservation Management Plan	• Implement CMSs • Establish detailed objectives for the integrated management of natural and historic resources • Establish detailed objectives for recreation, tourism and other conservation purposes
National Park Management Plan	• Provide for park management in compliance with the National Parks Act

Figure 4.2 Objectives of conservation policy and planning documents

4.3 Development of planning documents

The process for developing the various policy and planning documents is set out in Figure 4.3. There are a number of required steps for most processes, with those to prepare CMSs being the most onerous. Conservation Boards are heavily involved in the development and review of all the strategies and plans. These are publicly notified with a submissions process. The legislation mandates an in-person hearings process for CMSs and National Park Management Plans, but the Director-General and Conservation Boards have discretion to hold a hearing for Conservation Management Plans.

There is considerable scope for draft documents to be revised, reconsidered and amended as they progress through the development and review process. They can also be referred back to other agencies for advice and recommendations in response to submissions, consultation and debate. All the relevant agencies (Conservation Boards, the Conservation Authority, the Director-General and the Minister) have powers to make amendments at various stages. This means that draft strategies and plans can go through

intensive review and redrafting as they make their way through the system and back and forth between the various agencies involved.

The resultant end documents are therefore very much a collective effort. This can assist in ensuring that all parties are heard and feel that their views have been taken into account. But it also considerably reduces the degree of transparency and accountability within the framework, potentially making the reasoning associated with specific decisions and the pressures influencing those results, unclear. As one interviewee noted:

> "with the wide range of agencies in play, including integration of more partnership-based management with iwi, it's unclear where Boards and the Conservation Authority sit in the planning system. There is significant work to be done on hierarchy in this space."

Neil Silverwood

Hokitika Gorge Scenic Reserve

Document	Statutory requirements for development	Approval
Conservation General Policy	• Director-General prepares draft • Public notice and submissions • Director-General hears submissions and may consult with others • Director-General prepares summary of submissions and public opinion, considers submissions, amends draft, and sends draft and summary to Conservation Authority • Conservation Authority considers draft and summary, and sends these to Minister with their comments	Minister of Conservation approves
General Policy for National Parks	• Director-General prepares draft in consultation with Conservation Authority • Public notice and submissions • Director-General provides comments and advice to Conservation Authority • Draft submitted to Minister for comment • Conservation Authority must "have regard to" views of the Minister	Conservation Authority approves
Conservation Management Strategy	• Director-General prepares draft in consultation with Conservation Board and such other persons as "practicable and appropriate" • Public notice, submissions and Director-General can obtain public opinion "by any other means" after consulting Conservation Board • Director-General and Conservation Board hear submissions • Director-General considers submissions and sends a summary and revised draft to Conservation Board • Conservation Board considers and may request Director-General to revise draft • Conservation Board sends draft and summary to Conservation Authority • Conservation Authority considers draft and other information provided and may consult with persons and organisations as it considers appropriate • Conservation Authority may amend draft • Conservation Authority sends draft and other relevant information to Minister • Minister considers and sends draft back to Conservation Authority with written recommendations • Conservation Authority may send draft back to Minister with further information for further consideration	Conservation Authority approves
Conservation Management Plan	• Director-General prepares draft in consultation with Conservation Board and such other persons as "practicable and appropriate" • Public notice, submissions and Director-General can obtain public opinion "by any other means" after consulting Conservation Board • Director-General and Conservation Board may hear submissions • Director-General considers submissions and sends a summary and revised draft to Conservation Board • Conservation Board considers documents and can request Director-General to revise draft • Conservation Board can send draft to Conservation Authority for consideration	Conservation Board approves OR Conservation Authority or Minister can instead require approval by Conservation Authority

National Park Management Plan	• Before preparing draft plan, Director-General consults with Conservation Board • Public notice of intention to prepare plan • Director-General prepares draft plan in consultation with Conservation Board • Public notice and submissions • Director-General and Conservation Board hear submissions • Director-General considers submissions and may amend draft and send to Conservation Board • Conservation Board considers draft and may return draft to Director-General for further consideration and revision • Conservation Board sends draft and summary of submissions to Conservation Authority • Conservation Authority considers draft and information provided, modified draft and refers it to the Minister • Conservation Authority has regard to the Minister's views	Conservation Authority approves

Figure 4.3 Process to prepare conservation management policies and plans

Raewyn Peart

Paradise Bay, Urupukapuka Island Recreation Reserve.

Historically the process for preparing CMSs has been a lengthy one. The Conservation Act sets out over 10 potential steps in the process. The document can be amended at multiple points. The Director-General, Conservation Board, Conservation Authority and Minister are all involved in considering draft versions of the document. Consultation can be undertaken at two different stages of the process by two different authorities (the Director-General in the first instance followed by the Conservation Authority). In practice, the process for CMS development and approval is divided into five phases:[11]

1. Project planning phase: a joint approach to review is determined by DOC, Te Tiriti partner and Conservation Board, the Ministers views are sought, and a project and communication plan is finalised

2. Drafting phase: this includes preliminary consultation with stakeholders, internal and external hui and workshops, and internal peer review to check for legal and other issues

3. Public notification and hearing phase

4. Revision and approval phase

5. Implementation phase: notification and debriefing, applying document to decision-making, monitoring and reporting

The Conservation Act does impose some time limits on the planning steps. The Director-General has eight months from the notification of the draft CMS within which to consider submissions, revise the draft and send that, and a summary of submissions, to the relevant Conservation Board.[12] In turn, Conservation Boards have six months to consider those revisions and refer the draft to the Conservation Authority. These times frames are not always easy to meet. For example, when the Canterbury CMS was reviewed, extensions were required when agreement could not be reached on a range of revisions, including several seen as inadequate by iwi.[13] Even once referred to the Conservation Authority, it can take up to a year for a CMS to be signed off due to various revisions and additions requested by parties.[14]

Conservation Boards continue to raise the problem of the "undue length of time taken to develop [a] new Strategy ready for public notification". The most recent CMS to be notified, for the Bay of Plenty, took more than six years "to get a draft close to going to public notification".[15] There is also ongoing confusion and "robust conversations" on what "should and should not be included" in CMSs that can lead to debate on fundamentals.[16]

"The delays are systemic. They stem from the nature of the relationships and negotiations that must take place and which take considerable time to work through ... Boards are not well resourced to undertake what is an incredibly time-intensive process."

"At the annual Board Chairs meeting there is always lots of discussion about CMS reviews. There is a huge amount of frustration about the difficulties in processing a review. It just cannot be so hard and continue to take so long."

"The CMS process is too rigid now. Changes were made to speed things up but it's preventing blue sky thinking and innovation. Things still remain a struggle and unclear. There are so many parties involved it's difficult to even know where the issues and problems lie."

A spotlight on preparation of the Auckland CMS

A CMS for Auckland had been put in place in 1995, and therefore was due for replacement in 2005. However, by 2005, work on a review had not progressed and a two-year extension was provided to allow more time. Formal project planning only began in 2006, and a further extension of three years was provided in 2007.[17] In 2010, the annual report for the Conservation Board noted that the CMS review was one issue where they felt "continuously frustrated". The new CMS "had still not been completed", and while members had made significant contributions, the length of the process meant that many had completed their term and moved on prior to the project reaching the consultation phase. A new extension to 2013 was discussed.[18]

This highlights the problem of lengthy processes where the individuals involved frequently change throughout the process, undermining the coherence, knowledge and experience being applied to the review. Several interviewees raised this issue, noting that very few, if any, Board members managed to be present for the entire length of their review. In this case, the delay was in part to allow "feedback on the Waikato CMS",[19] (which was also under review) to be considered. It was also due to lack of

clarity and ongoing debate over the detail required in the CMS and approach to be taken.[20] This led to a new approach to CMS structure and content being developed by DOC in 2010 "to deliver a more concise, strategic, place based document".[21]

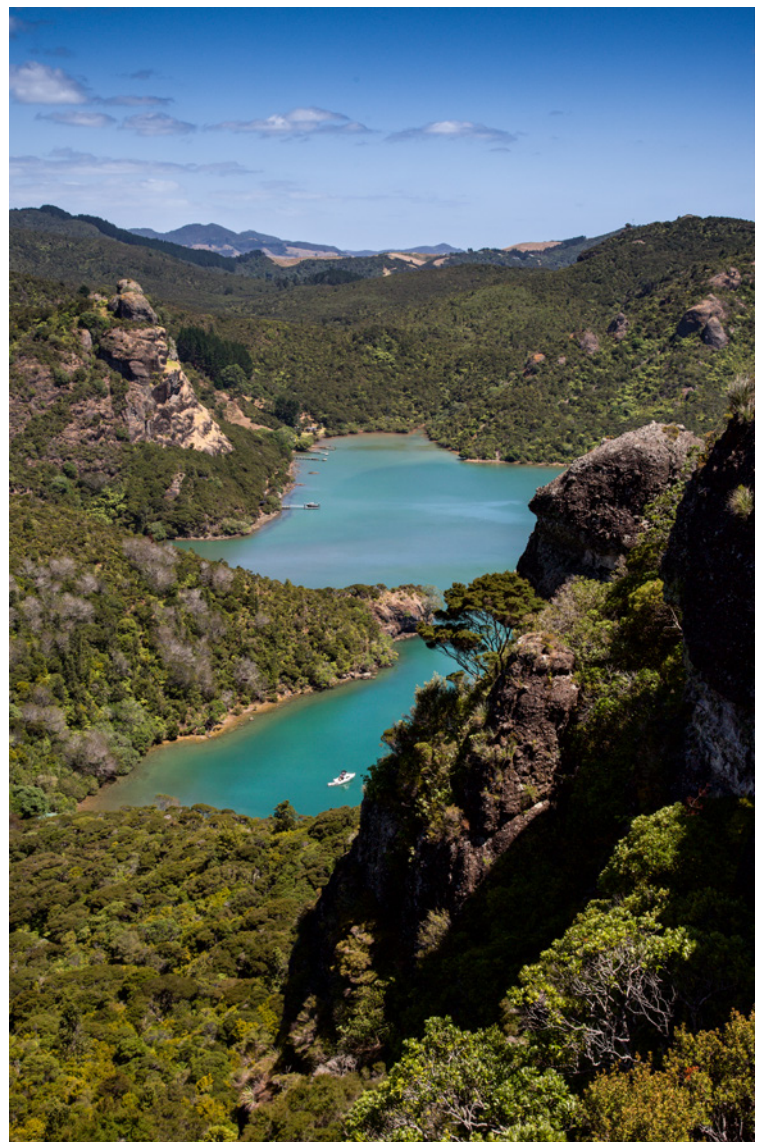
A new draft template was received by Conservation Boards and the review of the Auckland CMS restarted in April 2011. CMS workshops were underway by June and a new working draft CMS in place by March 2012. The CMS was publicly notified in March 2013. It took approximately another year for submissions to be reviewed and discussed through a series of workshops, with a final draft being sent to the Conservation Authority for approval in February 2014. In total it took "five years of work by the Department staff and Auckland Conservation Board members" to get it to this final phase.[22] The Conservation Authority then convened a committee to consider the CMS which was formally approved and implemented in November 2014.

From start to finish CMS revision and approval took eight years, and this was not an unusually complex or highly contested CMS. It was hoped that the updated template would assist to speed up this process. However, Conservation Boards still report that it is a "slow and frustrating process" and the template has been described as too "rigid".[23]

Role of Māori in plan development

There is no express reference to the role of iwi or hapū in the process of preparing conservation policies, strategies and plans apart from iwi authorities being notified of draft documents.[24] The provisions of section 17F of the Conservation Act, which apply to the preparation of CMSs and Conservation Management Plans, do refer to the Director-General preparing documents in consultation with "such other persons or organisations, as the Director-General considers practicable and appropriate" in addition to the Conservation Board. While the involvement of iwi and hapū would be covered under this generic head, it is clear that the process set out in the Act was not drafted with Māori front of mind. In particular, 'consultation' does not extend so far as co-drafting the document, which may be more aligned to a Te Tiriti partnership approach.

The National Parks Act provides for a similar process for the preparation of National Park Management Plans but lacks the catch-all consultation provision that features in the Conservation Act. This means there is even less discretion for iwi involvement in formulating these documents. And while the Director-General can delegate powers from time to time, section 58 of the Conservation Act only authorises such delegations to officers and employees of DOC and not to iwi/hapū or other stakeholders. Despite these unhelpful statutory provisions, DOC developed the Paparoa National Park Management Plan through a co-design process, but the resultant plan is now subject to judicial review proceedings in the High Court (see spotlight).



Raewyn Peart

Ranfurly Bay Scenic Reserve, Whangaroa Harbour.

A spotlight on the Paparoa National Park Management Plan

> "Paparoa represents the best we have done yet in terms of working with our Treaty partner, of supporting that relationship and developing a process for how we can write plans together." (*Interviewee*)

DOC has been making a concerted effort on the West Coast to undertake reviews of conservation documents on a partnership-based footing with iwi. This approach is viewed as necessary in order to meet the section 4 requirements under the Conservation Act. The Department has been working with Ngāi Tahu to co-design a process within the existing statutory framework that can enable the Department to "hold the pen jointly with our Treaty Partners."[25] As a result of this partnership, the Paparoa National Park Management Plan 2017 expressly recognises the rangatiratanga of Ngāi Tahu and Ngāti Waewae and aims to give practical effect to kaitiakitanga, consistent with conservation legislation and the Ngāi Tahu Claims Settlement Act 1998.

The Plan represented an attempt by DOC to integrate both Māori and non-Māori world views, and to address the economic and equity issues affecting iwi on the West Coast. It expressly provides for the "active and shared management and decision-making with Te Rūnanga o Ngāi Tahu and Te Rūnanga o Ngāti Waewae, in the management of Paparoa National Park and resources of importance to Ngāi Tahu/Ngāti Waewae" and "recognition of the kaitiaki rights and responsibility and associated mātauranga of Ngāti Waewae".[26] The aim is "to give practical effect to kaitiakitanga in Paparoa National Park, consistent with the legislation."[27] The Plan recognises and provides policies in support of:

- developing a mechanism to provide for shared consideration of authorisation applications prior to formal approval by the Minister or his/her delegate
- identifying opportunities for shared or devolved management to iwi of specific sites, areas or species of significance
- enabling Ngāi Tahu/Ngāti Waewae to undertake customary practices, including access to and use of cultural materials and mahinga kai and the development of mechanisms for including traditional management practices
- the protection of Ngāi Tahu/Ngāti Waewae values and enhancing Ngāi Tahu/Ngāti Waewae connection with the Paparoa National Park including communicating the history and values of iwi to Park visitors, and ensuring information provided is authorised by Te Rūnanga o Ngāti Waewae
- enabling Ngāi Tahu/Ngāti Waewae to explore and develop opportunities and to identify and implement mechanisms to support access and use of traditional lands and taonga to support intergenerational wellbeing of iwi
- improving access to and customary use of cultural materials and mahinga kai and establishing a customary authorisation system for native species, managed by Te Rūnanga o Ngāti Waewae
- taking measures to build iwi capability and capacity to manage the area (eg through knowledge sharing, training and employment)

A similar approach is being taken with the upcoming review of the CMS. The West Coast Tai Poutini Conservation Board has been asked to hold off its input until a process has first been designed with DOC's Te Tiriti partners.[28] It is not clear how this approach will fit within the statutory requirement for the Director-General to prepare the CMS in consultation with the Conservation Board, or how the respective roles of iwi (under section 4) and the Conservation Board will be reconciled. The current legislative framework is not well designed to support and facilitate this work.

The Paparoa National Park Management Plan has proven to be controversial. There has been significant internal conflict within the Conservation Board regarding both the adequacy of the content of the plan and the increased influence of iwi in its drafting. Concerns around a conflict of interest arising from Ngāi Tahu's dual role as drafter of the Plan, and major tourism operator in the area (given that the plan sets out the criteria for what activities are and are not permissible on public conservation land), have also been raised by some Board members in the media.[29] A number of interviewees felt that the new process had made the role of the Board unclear and reduced the level of independent oversight.

In its annual report, the Conservation Authority "acknowledged that this Plan had followed a new process with challenges". [30] But the Authority also underlined that the plan was an attempt to "pave the way for a real change in national planning", one that implemented section 4 and provided "a framework for the relationship between Treaty partners, the Department, the community and the West Coast Tai Poutini Conservation Board."[31]

Forest and Bird and Federated Mountain Clubs filed judicial review proceedings contesting the legality of the Paparoa National Park Management Plan and asking the High Court to review the decisions of DOC and the Conservation Authority in the preparation and approval of the plan. They claimed that the plan unlawfully derogates from the *West Coast Te Tai o Poutini Conservation Management Strategy* (2010) in allowing for recreational aircraft landings in Paparoa National Park.

In court, DOC acknowledged the derogation. In contrast, the Conservation Authority which had approved the plan, argued that the plan reflected the input of many groups, that persons had now applied for landing concessions (and that those applications would now be prejudiced), and that the CMS itself was due for review.[32] The Authority also argued that there was a "tension" in the way the plans dealt with the issue of landings and argued that the court should exercise its discretion not to grant relief.[33]

In its decision released in May 2021, the High Court affirmed that CMSs are higher in the planning hierarchy and ruled that there had been "a derogation from the CMS by the provisions of the Park Management Plan in so far as they related to aircraft landing in the park for recreational purposes."[34] The Court found that the CMS prohibition on this activity was clear. Further, the General Policy for National Parks provided that planning and management should preserve national park values including the protection of "natural quiet, as far as possible".[35] This reinforced the appropriateness of the CMS in protecting the intrinsic value of natural quiet.

The Court ruled that the invalid part of the Paparoa National Park Management Plan be struck out so that it was clear concessions could not be granted for aircraft landings for "recreational" purposes. The judge also issued a declaration, for avoidance of doubt, of the types of aircraft landing that are permitted, which included landings required for safety and park management purposes, animal control activities, utility servicing, work at the Pike River Mine and landings in support of Ngāi Tahu/Ngāti Waewae cultural purposes.

How a National Park Management Plan containing provisions that clearly contradicted the General Policy for National Parks and the CMS, came to be approved, remains unclear. But this case does serve to demonstrate a lack of robust compliance checks operating in this area.

Raewyn Peart

Tourism businesses, Franz Joseph.

Plan co-design processes, and the presence of iwi representatives on Conservation Boards and the Conservation Authority that sign off the plans, raises the delicate issue of conflicts of interest. Some interviewees were concerned about the potential drive from iwi to use and develop conservation resources and land and the growing influence and power of iwi-based corporations. They queried whether adequate protections were in place to manage conflicts of interest, so that there was a clear separation between the decision-maker or decision-making body, and applicants or beneficiaries of permits and concessions. We heard a range of views on this issue (see spotlight) which highlights the need for a more transparent framework to manage such matters.

A spotlight on views on potential iwi conflicts of interest

"The person from our iwi does a magnificent job, but he does get caught up in some conflicts of interest. In that part of the decision making, he has to step back and let others take the responsibility." (*Iwi interviewee*)

"The roles need to be clear. You can't have the same people making decisions, and it's inevitable that we will start to see more Māori looking for those commercial opportunities, and the balance is always very hard. This is why we must start from our collective values and ideals." (*Iwi interviewee*)

"There is certainly a need to clarify roles. If an iwi has a role in developing a plan, and then concessions are approved under that plan and they are amongst the applicants, that doesn't sit well with our values." (*DOC interviewee)*

"We all agree it's important to work in partnership. That's so extremely important. But there are occasions where it's felt that the commercial arm of an iwi is flouting the rules or trying to put pressure on us to change the rules. There is a tension between honouring section 4 whilst managing commercial pressures on conservation land. It may well be that section 4 is a mechanism to help iwi rebuild an economy and increase revenue from tourism, but when there are already so many other pressures on the conservation estate, it's a hard balance." (*Environmental interviewee*)

The Working Group of Iwi Chairs has identified the scope for increased conflicts of interest as an emerging issue. "Rangatiratanga was never just about money and I know for sure that kaitiakitanga wasn't either – it was about looking after each other and the whenua … even the whenua gets talked about by some of our people like it's just a resource …". The pathway forward in the Chairs' opinion was in setting out a clear, values based framework that "gets back to rights and looking after Papatūānuku", built upon Māori cultural values in order to ensure "economic balance as well".[36] Indeed, even the recently published review of the top 10 Māori businesses noted that, compared to the top 200 Businesses on the general listing, the kaupapa of the iwi-run businesses was likely to be more holistic in focus.[37]

The recent *Ngāi Tai Case*, the plethora of Te Tiriti settlement statutes, and increasing awareness of the need to engage more with tangata whenua, is also placing increasing pressure on iwi capacity. Consultation and engagement takes place at numerous places within the conservation system in addition to planning. It includes such matters as concessions, the establishment of new parks and reserves (including marine reserves), the review of classification of stewardship and other land, the development of animal control programmes, species management, the work of Conservation Boards, the Conservation Authority, Fish and Game and the Game Animal Council, and applications under the RMA. While some iwi are well placed to engage across all these areas, many are not. Capacity and resourcing is an ongoing issue.

Raewyn Peart

Piritahi Marae, Waiheke Island.

A range of interviewees noted that the workload on Māori is enormous and the system requires a degree of streamlining: "There needs to be more multi-agency collaboration to avoid iwi having to talk to 22 different agencies!". Many also discussed the difficulty of locating iwi representatives for consultation and advice, noting that although channels of communication and even designated representatives are identified, the workload and pressure on those persons was often untenable. This contributes to the delays and inertia in the conservation system and also creates disparities between those iwi with capacity to engage and those without.

> "There's a lot of settlement fatigue out there and iwi need to put people aside to help implement all those things. That's not always easy. We need more mechanisms in place to deal with this: whether through provision of employment opportunities, resourcing a co-management regime, training people such as through rangers programmes, secondments to government agencies and internships. There are lots of ways this can be done. At the moment resources go out on a needs basis to hot spots but something more planned and supported is needed". (*Interviewee)*

Smaller, less resourced and legally supported groups often take much longer to obtain their Te Tiriti settlements, and may struggle to find the capacity to engage in the many legal processes and consultations that take place within the conservation system. Hemopereki Hoani Simon has noted that consultation with Māori often takes the form of hui. Not only is there now significant 'hui fatigue', but this over-reliance on consultation alongside the capability and capacity issues that exist, has created an elite within hapū and iwi.[38]

In more remote areas of the country, this issue can be further exacerbated by a continual loss of people to other regions as they seek educational or employment opportunities. "The sad thing about our region is that if young people want a good future or tertiary education, then they move away. That puts a drain on the brain pool. And if you have to send people away to get those skills, then you also have to wait until they are ready to come back to start activating your people. That takes time".

> There is a need to provide greater support, funding and training to facilitate Māori engagement within the conservation system. In some situations, it may also be appropriate to provide compensation for the time spent by hapū and iwi.

Role of science

From our research and interviews, it became clear that many debates revolve around the adequacy of the evidence base underpinning decisions in planning and other processes. This was highlighted by the wide range of views expressed by interviewees on topics such as the impacts of helicopter flights on the values of national parks and the impacts of introduced species on indigenous biodiversity. These views were premised on very different claims about what the evidence or science constituted.

There is often a lack of sufficient scientific information on matters such as what species exist in an area, their population, range and status, and the extent of environmental impacts and their causes. This situation serves to exacerbate conflict – particularly when two opposing parties *seek to substantiate contrary lines of argument on a paucity of available evidence.* It makes decision-making especially difficult, because the basis for decisions can become highly contested.

This underscores the importance of having robust science to assist determinations in situations of high stakeholder conflict. This in turn necessitates prioritising research investment in such areas and obtaining a higher level of expert input and advice to inform decision-making. Our research has also highlighted the need for clearer policy guidance regarding:

- What constitutes sufficient scientific evidence
- The level of scientific consensus needed to proceed
- Appropriate options and action in the context of incomplete data or uncertainty (eg application of adaptive management or the precautionary principle)
- How to incorporate assessments of *risk and costs* (from not acting, as well as acting) where information is incomplete

A number of interviewees felt that increased levels of ecological, scientific and planning expertise was needed across all agencies, within DOC (especially at the regional office level), and on the Conservation Authority, Conservation Boards, Fish and Game and the Game Animal Council, to enable a more science-based planning system. "The system is full of people who know stuff all about wildlife management and just want their say, but decision making must be informed by research, data and strategic planning. It's a complex area and the legislation needs to require involvement on the basis of expertise and knowledge rather than interest groups".

4.4 Review of planning documents

In 2019, the Conservation Authority gave advice stating that: "A new approach to statutory management planning processes is required" to implement "fundamental change ... in order to tackle the growing number of overdue and outdated plans, and to ensure robust and relevant plans moving forward". [39]

CMSs and Conservation Management Plans may be reviewed in whole, in part, or simply amended, but section 17H(4) of the Conservation Act requires that they "shall be reviewed as a whole by the Director General not later than 10 years after the date of approval". In practice, substantive reviews seldom comply with the 10-year timeframe (see discussion below).

Raewyn Peart

Emerald Lakes, Tongariro National Park.

Amendments are usually minor in nature, such as to correct inaccuracies, yet the standard process for amendments and partial reviews is the same as for a full review. Where the Director-General or Conservation Board consider the amendment or review to be minor so that it would not "materially affect the objectives or policies" in the document or the "public interest in the area" the public notification and submissions phase may be bypassed, so that the process is streamlined.[40] In practice, almost all partial reviews and amendments are publicly notified in consideration of the public interest.

Many interviewees were concerned that a large number of conservation strategies and plans were well past their expiry dates. At present, seven out of the 15 CMSs are overdue for review (see Figure 4.4). Some, such as the CMSs for Nelson-Marlborough, the Bay of Plenty, Taranaki Whanganui, Chatham Islands, East Coast and Hawkes Bay have not been fully reviewed since the 1990s. Five are more than 10 years out of date. The Hawkes Bay Conservation Board is working with a 27 year old CMS.

Conservation Region	CMS date
Hawkes Bay	*1994-2004*
Nelson Marlborough	*1996-2006*
Bay of Plenty	*1997-2007*
Taranaki Whanganui	*1997-2007*
East Coast	*1998-2008*
Chatham Islands	*1999-2009*
Tongariro Taupo	*2002-2012*
West Coast Tai Poutini	*2010-2020*
Stewart Island	2011-2021
Northland	2014-2024
Auckland	2014-2024
Waikato	2014-2024
Southland	2016-2026
Canterbury Aoraki	2016-2026
Otago	2016-2026
Wellington	2019-2029

Figure 4.4 Date of Conservation Management Strategies (out-of-date plans italicised)

"There are so many old plans. Nelson Marlborough for example is 23 years old. A number of plans are in various states of amendment and review, and everything is so variable. There are places that have no hugely pressing issues to push the need for review along, and others where it is becoming urgent. The resources we have available to put into management planning constrains how much can get done, and there is an ongoing conversation about how to prioritise the plan review work necessary." *(Interviewee)*

A review of Conservation Board annual reports in areas struggling with older CMSs, makes evident the ongoing frustration at the repeated delays in the review process. As recorded in the *Bay of Plenty Conservation Board Annual Report* (2019) "throughout this time the Board has been required to work with the Department under a 22-year-old document. Clearly the 10-year planning process is no longer fit for purpose, with six years so far taken to get a draft close to going to public notification."

The Annual Report of the Chair of the Nelson Marlborough Conservation Board has expressed similar sentiments. "Our CMS review continues to be delayed due to limited capacity and priority setting beyond our control … This is not good enough. Our Board urges the Department to urgently look at immediately correcting this … our 2006 CMS is outdated by 13 years!"[41]

Interviewees spoke of the difficult and elongated review processes, the degree of stakeholder conflict during the development phase, as well as a lack of planning capacity and support. There were also significant concerns that the operational budget of DOC was simply inadequate to enable timely conservation planning. This situation can be very difficult for Conservation Boards. As one interviewee noted, "people walk out of meetings to take a breath – there is so much uncertainty and frustration".

Many of the older CMSs are considered to be no longer fit for purpose. Their age has direct consequences for the preparation of Conservation Management Plans and National Park Management Plans. This is because the CMSs are designed to provide the important linkage between national legislation and policy, and their implementation at the local level.

The inertia within the conservation system is also impacting planning for national parks. Nine out of 13 National Park Management Plans have not been through a full review within the 10-year time frame required under the National Parks Act (see Figure 4.5). National parks are considered the 'jewel' in the conservation crown, and the potentially outdated requirements and protections in place for these areas is especially concerning.

National Park	National Park Management Plan	Partial reviews and amendments
Kahurangi National Park	*2001-2011*	*2019, 2017*
Westland Tai Poutini National Park	*2001-2011*	*2008, 2014*
Egmont National Park	*2002-2012*	
Nelson Lakes National Park	*2002-2009*	
Aoraki Mount Cook National Park	*2004-2014*	*2012*
Tongariro National Park	*2006-2016*	*2011, 2018*
Arthurs Park National Park	*2007-2017*	*2012*
Fiordland National Park	*2007-2017*	
Abel Tasman National Park	*2008-2018*	
Rakiura National Park	2011-2021	
Mt Aspiring National Park	2011-2021	
Whanganui National Park	2012-2021	
Paparoa National Park	2017-2027	

Figure 4.5 Date of National Park Management Plans (out-of-date plans italicised)

Delays in updating and reviewing core management documents indicates that the current system is insufficiently responsive "to meet the ever-imminent impacts on the region's conservation estate through a rapidly changing world."[42] That even a partial review is almost as complex and time consuming as a full review, in terms of the procedural requirements, is problematic. It means that the documents are simply not agile enough to keep pace. Interviewees from Conservation Boards spoke of the difficulty in putting new standards in place to regulate things such as drones, e-bikes, aircraft landings, increases in visitor numbers, and increasing climate change impacts (eg glacial retreat) in affected areas. Many of these pressures are relatively new and were not contemplated when the documents were first put in place, some 20 or more years ago.

"The situation on the ground is always changing and evolving. New issues can arise that weren't considered when a CMS was signed off. And sometimes, even where an activity did exist, it wasn't as prevalent or a problem, but it becomes so and the system struggles to respond."

"The pace of change … e-bikes, drones … no plans were written with those in mind and there is little to tell us how we should deal with new things like this that come up."

Tourism operators have also been vocal in their frustration with the current planning delays, which they say can make it impossible for businesses to move quickly when new opportunities arise. The current situation creates business uncertainty, undermining longer term initiatives being developed.[43] Outdated plan rules can also prevent businesses from adopting measures to manage visitor pressure. For example, one tourism operator in Fiordland reported frustration at being unable to find a different place for his guests to disembark, in order to ease pressure on the crowed Milford Sound terminal, because the rules in the National Park Management Plan did not permit it.[44]

Neil Silverwood

Karst landscape, Mount Owen, Kahurangi National Park.

The *Tourism Futures Taskforce Interim Report*, released in December 2020, recommended systemic change including modernisation of the Conservation Act and a dedicated visitor planning framework with more integrated destination management.[45]

4.5 Content of planning documents

The statutory guidance for Conservation Management Plans and National Park Management Plans is brief. The Conservation Act simply provides that Conservation Management Plans implement the CMS and establish more detailed objectives for integrated management of natural and historic resources "for recreation, tourism and other conservation purposes".[46] The National Parks Act directs that plans "provide for the management of the park in accordance with the Act".[47]

Conservation Management Plans and National Park Management Plans vary significantly, depending on the era in which they were drafted. However, in general, they all set out objectives and policies to guide:

- Authorisations and concessions, such as what activities are or are not permitted and where eg guiding, whitebaiting, eeling, stock grazing, aircraft and vehicle access, boating, caving, mining or shingle extraction, structures and facilities
- Management of introduced species and pest control
- Visitor management
- Implementation of Te Tiriti requirements under section 4

The documents also identify and describe different places within the area covered by the plan and any site-specific management requirements. Historical information, and descriptions of the areas and values they contain, are also provided.

During the interviews, we heard concerns about the quality and adequacy of some conservation plans and strategies. As described above, they vary markedly in age, and a CMS or National Park Management Plan that dates back to 1996 is very different to one that has been reviewed recently. The variations that exist reflect changes in thinking and approach over the years, including changes to General Policies and how they are applied. Values, interpretations, priorities and practices have changed considerably over the last decade.

Some of the strategies and plans are of considerable length, and there is variation in quality – particularly as to the degree that clear identifiable standards and policies have been set. Interviewees noted that some CMSs and National Park Management Plans lacked sufficient detail, were next to impossible to navigate, and contained contradictory provisions. This meant that the content could be leveraged to support almost any position. Further, we were told that it was often unclear how documents related to each other, and which parts prevailed over others. In general, the longer the document the more blurred the lines, and the more difficult it is to locate the rules. For example, the Fiordland National Park Management Plan (2007) is 368 pages in length, in contrast to the more recent Paparoa National Park Management Plan (2017) which only has 138 pages.

The emphasis and approach also differs between plans. Historically, many plans were viewed as an information repository, a place to tell the story of a place. They contained extensive narrative content and broad visions. The Tongariro National Park Management Plan (2006), which is also one of the more lengthy plans at 324 pages, is one example of this approach. The plans also vary in their structure. They *look* very different and are dissimilar to navigate. For example, Mount Aspiring National Park Management Plan (2011) is highly structured. Objectives and policies are clearly labelled and numbered, and they are clustered into a stand-alone section for easy reference. The Paparoa National Park Management Plan looks completely different. It contains much more background information and general discussion of values and history and the importance of places. Conversely, in addition to providing objectives and policies, it also sets outcomes and milestones in some areas, with timeframes for achieving these – in accordance with the General Policy for National Parks.

While there is some merit in a flexible approach, such variability makes it difficult to compare plans and the standards they set, to ensure some consistency in approach. Some plans appear to use more "should" and "may" directions (rather than "shall"), in order to provide greater discretion, while others are stricter in what is required. For example, the Paparoa National Park Management Plan has provided for broad discretion across a range of matters. In relation to authorisations, the plan simply states that the decision maker "should not grant authorisations" that are "inconsistent with the objectives and policies in this Plan" or the visitor management zones it sets out.[48]

These documents must operate as statutory plans, yet the length, structure, varying approaches and subsequent lack of clarity can hamper their effectiveness in this area. Noting this, many interviewees thought that the purpose of plans was too unclear, and there was a need to make the

documents more user-friendly. This was so decision-makers, and others affected by the plans, could easily go to the section they needed and find the relevant provision. While it is important for decision-makers to be aware of historical and contextual information, some interviewees questioned whether these documents were the right place for such material.

"The plans are lengthy and they can be incredibly unwieldy documents to use in practice … at least with RMA plans, the policy sections are clear and they all have a number. In our plans, it's hard to even know what bits to look for. It all needs rationalisation."

"I think plans are important but we need to refine and simplify them. There are too many layers and it's difficult to ensure clarity, so that they have teeth when it comes to concessions or planning. It needs streamlining, to make it clear what parts take priority and prevail over others. For example, at present one section might say to retain the area in a natural state, yet another to provide for access. The reconciliation and alignment is often missing."

"Conservation plans are powerful documents. They are legally binding, so their accuracy and clarity is crucial to the system. Despite their authority, in practice many of the plans are not read that way and are not drafted to enable them to be applied in that way."

Some more recent plans are shorter, with clearer and numbered objectives and policies (eg Mount Aspiring National Park Management Plan 2011 and Whanganui National Park Management Plan 2012) and this is making the plans easier to navigate and their standards easier to identify.

The age of many of the CMSs and National Park Management Plans, the lack of clarity within many of these documents and the inconsistencies and variations across regions, raise concerns over the robustness of the planning regime as a whole.

There is a risk with the very old CMSs and plans, that the documents will no longer be used in practice, because it is too hard to do so. We received varied responses when we asked interviewees about the value of conservation plans and strategies. Some saw them as central and important documents and referred to them regularly. Others told us that no-one ever really looked at them. People working in areas which had very old CMSs were more likely to argue that the CMS framework needed to be abandoned – "after all they had essentially been operating for years without a CMS", and "doing fine" so "how necessary could they be?".

"Some of the CMSs are so old, so outdated, that they are impossible to work with and have become practically irrelevant. I wonder whether operations ever really looks at it, and would there even be any point in them looking at it anyway?" *(Interviewee)*

"The local DOC conservancy used to keep the rule book in the bottom draw and handy. These days those documents just go on the shelf. Applications and proposals come in and it's clear that many staff have no idea what those documents even are." *(Interviewee)*

Raewyn Peart

Red-billed gulls.

4.6 Summary of key planning issues

- The conservation planning framework, and many of the older plans within it, are no longer fit for purpose. This has practical, economic and environmental consequences.

Conservation plan development and review

- Processes for developing CMSs, Conservation Management Plans and National Park Management Plans are complex, protracted and lack transparency.
- Many planning documents are well out of date which is impeding effective management of the concessions system and on the ground conservation work.
- There is significant inertia within the planning system and it lacks the required agility to respond to changing needs, new technologies and pressures.
- CMSs and plans vary markedly from each other in length, clarity and the standards set within them. The differing formats and approaches makes them difficult to navigate and apply in practice.

Role of Māori in plan development

- The planning system was not designed with Māori front of mind and it lacks clear statutory mechanisms for working in partnership with iwi.
- The review and development of planning documents creates a significant workload for iwi, exacerbating capacity issues, that in turn add to inertia within the system.

Stakeholder conflict

- There is significant conflict and debate amongst stakeholders about the contents of strategies and plans which can further slow the review process.
- Adequate scientific data on the environmental impacts of use (or introduced species) on the conservation estate, is often lacking, which can serve to increase conflict.

Raewyn Peart

Raupatu, Egmont National Park.

Endnotes

1 Woollaston, 1990, *New Zealand Parliamentary Debates*, Conservation Law Reform Bill, (second reading, 8 March 1990), 505

2 Woollaston, 1990, *New Zealand Parliamentary Debates*, Conservation Law Reform Bill, (second reading, 8 March 1990), 505

3 Conservation Act 1987, s10(1)(a)

4 Woollaston, 1990, *New Zealand Parliamentary Debates*, Conservation Law Reform Bill, (introduction to the House, 10 August 1989), 500

5 Woollaston, 1990, *New Zealand Parliamentary Debates*, Conservation Law Reform Bill, (second reading, 8 March 1990), 505

6 *Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand* [2017] NZSC 106 at [131]

7 Conservation Act 1987, s17D(3)

8 Conservation Act 1987, s17D(7)

9 For example, the CMS for the Hawkes Bay, which is currently under review but dates back to 1994, provides for a number of Conservation Management Plans, eg Ruahine and Kaweka Forest Parks, Otatara Pā and Heipipi Pā Historic Reserves and Cape Kidnappers Nature Reserve

10 Canterbury (Waitaha) Conservation Management Strategy 2016, 8

11 https://www.doc.govt.nz/about-us/our-policies-and-plans/statutory-plans/conservation-management-strategies/conservation-management-strategies-cms-timeline/

12 Conservation Act 1987, s17F(j)

13 See Canterbury Aoraki Conservation Board, 2015, 16

14 See Canterbury Aoraki Conservation Board, 2015, 21

15 Bay of Plenty Conservation Board, 2020, 13

16 This was the case with the most recent Bay of Plenty CMS up for review, see Bay of Plenty Conservation Board, 2020

17 Auckland Conservation Board, 2007, Part 6

18 Auckland Conservation Board, 2010, 4

19 Auckland Conservation Board, 2010, 12

20 Department of Conservation, 2009a, 63

21 Department of Conservation, 2010a, 55

22 Auckland Conservation Board, 2014, 15

23 Canterbury Aoraki Conservation Board, 2015, 3

24 Conservation Act 1987, s17F(a)

25 Mark Davies, Director of Operations Western South Island, see West Coast Tai Poutini Conservation Board, 2020b, at 12.3

26 Paparoa National Park Management Plan 2017-2027, 25

27 Paparoa National Park Management Plan 2017-2027, 25

28 West Coast Tai Poutini Conservation Board, 2020a, 5

29 https://www.rnz.co.nz/news/ldr/433417/west-coast-conservation-board-at-loggerheads-over-new-conservation-minister

30 New Zealand Conservation Authority, 2018, 17

31 New Zealand Conservation Authority, 2018, 17

32 *Royal Forest and Bird Protection Society of NZ Inc v New Zealand Conservation Authority* [2021] NZHC 1195 at [72]-[75]

33 *Royal Forest and Bird Protection Society of NZ Inc v New Zealand Conservation Authority* [2021] NZHC 1195 at [72]-[75]

34 *Royal Forest and Bird Protection Society of NZ Inc v New Zealand Conservation Authority* [2021] NZHC 1195 at [88]

35 *Royal Forest and Bird Protection Society of NZ Inc v New Zealand Conservation Authority* [2021] NZHC 1195 at [92]

36 Matike Mai Aotearoa, 2016, 83

37 Deloitte, 2020, 31

38 Hemopereki, 2019, 5

39 New Zealand Conservation Authority, 2019

40 See National Parks Act 1980, s46(5) and Conservation Act 1987, s171(4)

41 Nelson Marlborough Conservation Board, 2019, 6

42 Bay of Plenty Conservation Board, 2019, 13

43 https://www.rnz.co.nz/news/business/419662/tourism-operators-call-for-overhaul-outdated-concessions-of-national-parks

44 https://www.rnz.co.nz/news/national/415438/fiordland-tourism-operators-frustrated-with-national-park-rules

45 Tourism Futures Taskforce, 2020

46 Conservation Act 1987, s17E

47 National Parks Act 1980, s45

48 Paparoa National Park Management Plan 2017-2027, Policy 3.2.3

5 Stewardship land

Northern Paparoa Range which is divided between the Paparoa Wilderness Area and a stewardship area.

Neil Silverwood

Much of the land transferred to DOC on its establishment was classified as 'stewardship' land. This was land that had not been fully assessed for conservation values so its end use could be determined. It was essentially a 'holding pen' category for conservation land until it was reviewed and its use for conservation or utilisation determined.

Although there are significant information gaps for stewardship land, due to the lack of assessment, it is widely acknowledged that areas of high conservation value exist within this category. In fact, of the some thousand 'priority areas for biodiversity' that have been identified by DOC, over a quarter of these (28 per cent) are situated on stewardship land.[1]

> Stewardship land comprises 30 per cent of the land administered by DOC, or some 2.5 million hectares. This represents nine per cent of Aotearoa New Zealand's land area.[2]

A review of Parliamentary debates in *Hansard* makes it clear that stewardship land was viewed as a statutory holding pen or land bank, leaving options open as to its allocation.[3] On this basis, provisions were placed in the Conservation Act to enable stewardship land to be disposed of (section 26), to be made available for land swaps under section 16A, and where areas of high conservation value were found to exist, to be reclassified to provide more robust protection.[4] These reclassification pathways not only help ensure that land of biodiversity or conservation value is identified and protected, but that land which lacks these values is released for development, especially in areas where it is needed to support economic growth.

Although the original intention was that stewardship land would be reviewed and reallocated, this does not imply that the classification itself would become redundant. Stewardship land is one of the few land designations (along with marginal strips under the Conservation Act and reserves under section 15 of the Reserves Act) that is available for DOC to use for land exchange purposes in order to achieve net conversation gains.

In addition, although stewardship land is often thought of as a residual and diminishing type of land, the designation is still actively utilised and land is still being *added* to the stewardship category. One of the more significant examples of this was the government's purchase of the St James Station pastoral lease in 2008, which led to the transfer of 79,300 hectares to stewardship land.[5] The stewardship land category remains a valuable option in such circumstances, since it provides a degree of immediate protection, pending more comprehensive review and reclassification.

The primary issue with stewardship land is not the utility of the land category itself, but the length and difficulty of the review process, and the adequacy of the land's protection during the interim. In this chapter we discuss the protection of stewardship land and its exchange, disposal and reclassification.

5.1 Protection of stewardship land

Under the Conservation Act, stewardship land is to be managed to 'protect' its natural and historic resources.[6] On the face of it, this signals that the values of the land are to be protected until such time as the land is reclassified; that it is being retained in a 'protective' holding pen. However, such protection is weakened by two factors:

- A lack of security, since stewardship land can be swapped for areas of private land or disposed of outright[7]
- A lack of additional criteria and direction on how the land should be managed, which is provided for other categories of conservation land

These two factors collectively reduce the degree of protection in place, since in assessing the treatment of stewardship land the courts look, not just to the specific management provision in the Act (section 25), but at how these areas are dealt with under other provisions of the legislation.[8] A 2013 report by the Parliamentary Commissioner for the Environment called for the review of stewardship land to be made a priority because it had "the weakest legal protection of all categories of conservation land, despite some clearly being of high conservation value".[9]

The historical framing of stewardship areas as a land bank, amidst reassurances that these areas would not be 'locked up' in perpetuity, has also contributed to the lowered societal value of the land and perception that it is more open to use and development than other conservation areas.[10] In her review, the then Parliamentary Commissioner for the Environment noted that weaker protection frequently sends the wrong signal to private sector actors, implying that stewardship land is the part of the conservation estate that is 'open for business'.[11] Applicants looking to use conservation land for purposes such as mining, grazing or the development of hydro-electricity

Neil Silverwood

Griffin Creek is located within a stewardship area in the Wanganui/Otira catchments and is the location of a run of the river hydro scheme.

schemes (see Mōkihinui spotlight), preferentially target stewardship areas because they are perceived as being less protected, and approval is therefore thought to be more likely. In 2005, the Director-General requested that stewardship land be referred to as "conservation areas" to assist in it being "seen to be on an equal footing with other areas held under the Conservation Act".[12] However, changing perceptions does not alter the weak legal protection in place.

The Parliamentary Commissioner also highlighted the lack of sufficient policy direction and guidance to assist with the consideration of applications to use stewardship land. The provisions in the Conservation Act are vague and the Conservation General Policy only mentions stewardship areas once, alongside a range of other classifications, and provides no specific additional guidance on how they should be managed.[13]

5.2 Disposal and exchange of stewardship land

As indicated above, unlike other categories of conservation land, stewardship land can be disposed of or exchanged for private land. Disposal can be undertaken by the Minister of Conservation under section 26 of the Conservation Act. This section contains no criteria or matters for consideration when making a decision to dispose of such land. However, it does prohibit the disposal of foreshore and any stewardship land that is adjacent to non-stewardship conservation areas unless it can be shown that its retention "would not materially enhance the conservation or recreational values" of that land, adjacent water (in the case of a marginal strip) or public access to it. This helps ensure that stewardship areas that operate as a buffer for high conservation areas, are retained. A proposal to dispose of stewardship land is required to undergo a public submission and hearings process (undertaken by DOC) under section 49 of the Conservation Act before the Minister makes his or her decision.

Despite the paucity of guidance within the Act itself, as to when disposal of stewardship land might be appropriate, the Conservation General Policy provides further criteria. Under Policy 6(c) land disposal may be considered where the land has "no, or very low, conservation values". It should not be undertaken when the land:

- has international, national or regional significance; or
- is important for the survival of any threatened indigenous species; or
- represents a habitat or ecosystem that is under-represented in public conservation lands or has the potential to be restored to improve the representation of habitats or ecosystems that are under-represented in public conservation lands; or
- improves the natural functioning or integrity of places; or
- improves the amenity or utility of places; or
- improves the natural linkages between places; or
- secures practical walking access to public conservation lands and waters, rivers, lakes or the coast.[14]

Section 16A of the Conservation Act applies to land exchanges. In order to authorise a land exchange, the Minister (following consultation with the Conservation Board), must be satisfied that the exchange "will enhance the conservation values of land managed by the Department and promote the purposes of the Act".[15] Unlike the provisions for land disposal, there is no requirement for public submissions or hearings on the land exchange.

Bernard Spragg

Red-billed gulls with chicks.

Policy 6 of the Conservation General Policy lists the factors that should be considered when the Minister decides to exchange (or acquire) new areas. Such exchanges can be undertaken to manage natural resources or historical or cultural heritage for conservation purpose; for the benefit and enjoyment of the public including public access; where the land has international, national or regional significance; or where the exchange will either:

- improve representativeness of public conservation land; or
- improve the natural functioning or integrity of places; or
- improve the amenity or utility of places; or
- prevent significant loss of natural resources or historical and cultural heritage; or
- improve the natural linkages between places; or
- secure practical walking access to public conservation lands and waters, rivers, lakes or the coast; or
- achieve any other purpose allowed for under the relevant Acts.

The list highlights the wide range of reasons that can be used as a basis to exchange land. In particular, the reference to "any other purpose allowed for under the relevant Acts" potentially brings into consideration matters such as the protection of sports fish and game (under Part 5A of the Conservation Act and the Wildlife Act) and tourism (section 6(6) of the Conservation Act).

In practice, DOC applies the broad test of whether a land swap would result in a "net conservation benefit".[16] Applying such a concept has its own challenges. It requires good knowledge of the values of the relevant parcels of land being swapped, information which is often lacking. In addition, "(n)ature does not invite easy accounting" and losses and gains that are not equivalent across space can lead to a net reduction in habitat availability, cause habitat fragmentation and disrupt ecological processes.[17]

Several land swap arrangements have drawn significant criticism, and some have been subject to judicial review proceedings. The leading case is the *Ruataniwha Case* which was decided by the Supreme Court in 2017 (see spotlight). In that case, the Director-General agreed to the land swap but it was subsequently overturned by the Supreme Court. In the case of the Mōkihinui hydro proposal, the land swap was turned down by DOC and the land was subsequently included in the Kahurangi National Park.

A spotlight on the Ruataniwha land exchange

The proposed Ruataniwha land exchange occurred as part of a proposal by the Hawkes Bay Regional Investment Company Limited to build a dam on the Makaroro River as part of a $900 million water storage and irrigation project. The project involved flooding 22 hectares of land in the Ruahine Forest Park, which had the status of 'conservation park' under the Conservation Act. The company approached the Minister of Conservation for a concession (in the form of an easement) that would permit use of the land for water storage.

An initial assessment of the land found that it was of high conservation value, containing ecologically significant areas. Some of these areas were considered acutely threatened, particularly the wetlands habitat and braided river gravels, which constituted a nationally rare ecosystem. Not only were the ecological values of the land considered to be of national significance, but it also contained nationally vulnerable species. The proposed flooding and easement would effectively destroy all of these ecological values. It was therefore evident that the concession would likely be declined and the application was parked.

Instead, the company proposed a land swap arrangement. This was to involve the transfer to DOC of 147 hectares of adjacent private farm land in exchange for 22 hectares of conservation park land. This was not a straightforward proposal for several reasons.

First, only stewardship land can be exchanged under the Conservation Act. The proposition therefore necessitated the change of status of the conservation park land to stewardship land prior to the land swap. This required a revocation of the conservation park status of the land under section 18(7) of the Conservation Act which required a public submissions and hearings process. Forest and Bird, which brought the initial court proceeding, was a submitter.

The hearings panel which heard the submissions considered the revocation of conservation park status in the context of the proposed land exchange. The panel was presented with a range of evidence on the ecological impact of the proposed land exchange and concluded that, overall, it would enhance conservation values of the land managed by DOC.

The Supreme Court held that a decision on changing the status of conservation land turned on "what is appropriate to protect the 'intrinsic values' of the land concerned" and could not be coloured by a proposed land swap that might occur subsequent to the revocation decision.[18] That is, the revocation decision could not be based on an expectation of future 'net ecological gain' through such an exchange. As the Director-General's decision (under delegation from the Minister) to revoke the status of the land was based on a net gain approach, it was found to be unlawful.

The Court concluded "if protected status can be revoked when net conservation gain can be achieved through exchange or sale, the scheme of the Act in withholding the ability to exchange or sell protected land is effectively undone."[19] This serves to highlight the high protection given to conservation land, under the Conservation Act, when it is not stewardship land (and weaker protection afforded the stewardship land classification).

Importantly, the Court went on to clarify that it considered policy 6(c) of the Conservation General Policy (dealing with land disposal) *would* apply in relation to stewardship land, so that "even stewardship land may not be disposed of... unless the land has no, or very low, conservation values."[20]

Neil Silverwood

Wetland on Cook River to Haast River stewardship land.

A spotlight on land exchange within the Mōkihinui River catchment

The Mōkihinui river catchment, situated on the West Coast, has long been at the centre of significant conflict. Classified as stewardship land and bordering the Kahurangi National Park, the catchment was controversially not included within the Park when it was established in 1996, despite its significant conservation values. A proposal was also put forward in 2006 for the area to be included as part of a Heritage Park but was subsequently put on hold.

> "The Mōkihinui River catchment contains a combination of geology, landforms, riverine habitat, vegetation, animal and plant life and related ecological processes not found elsewhere. The area has characteristic landforms and geological formations, such as the Mōkihinui Gorge, and extends from the mountains to almost sea level ... The diversity of forest types within the area supports a wide range of native birds, including whio, kākā, and kea. There is a nationally significant long-tailed bat population, four sub species of Powelliphanta snail, six reptile species, freshwater vertebrates and invertebrates and a variety of plant species."[21]

Conservationists were not the only ones with a vision for the catchment – the river had long been of interest to energy companies as a potential site for the generation of hydro-electricity. In 2008, Meridian Energy applied to build a hydro-electric dam on the Mōkihinui River. The project involved building a 80-metre high dam, flooding 300 hectares of public conservation land and creating a 14 kilometre long reservoir. The status of the land was a key factor in the company's selection of the site. The Project manager for the scheme was quoted as saying:

> "an important part of this project is that the area affected by the scheme is stewardship land.... [it's] not in a national park, it's not in an ecological reserve or specially protected area. Given all the hoo-ha about national parks recently, I think it's quite an important point."[22]

Meridian required resource consents from the West Coast Regional Council and Buller District Council, as well as a concession from DOC. These processes are not aligned, and the council consents were granted first, in 2010.

When considering the concession application, DOC assessed the conservation value of the area as high.[23] This was supported by earlier assessments, including a 2004 national assessment of rivers, that ranked the Mōkihinui as the seventh highest value river in the country due to its natural heritage value.[24] This was supported by the intact nature of the catchment vegetation and its environmental richness. The catchment also provided important habitat for blue duck (whio) as well as populations of threatened fish, including long-finned eel (tuna).[25] The relevant CMS identified the catchment as a "priority site for biodiversity management". Following DOC's evaluation, it became clear a concession would not be approved.

The stewardship status of the land not only influenced the choice of site, it also gave the company a second potential pathway to explore; the possibility of acquiring the catchment through a land exchange under section 16A of the Conservation Act. To this end, Meridian offered 794 hectares of private lowland coastal forest in exchange for the smaller 225 hectare parcel of land at the Mōkihinui Gorge. This triggered a further assessment process to determine whether such a swap would achieve a net conservation goal.

Despite the increased land area offered by the proposed exchange, DOC refused the land swap on the basis that it would not *enhance* conservation values. The assessment was complicated by the fact that the conservation value of the river itself was not considered, as it was administered by Land Information New Zealand. Even without consideration of the values attached to the river, and when measured against a far larger area of land, the exchange of the land at Mōkihinui was not seen as delivering a net conservation gain. This underscores the extremely high value of some stewardship land.

The defence of this land did not come cheaply. In order to protect the area from development, DOC spent $1.4 million appealing against the grant of resource consent.[26] As a subsequent review of stewardship land by the Parliamentary Commissioner for the Environment highlighted, "the Mōkihinui case illustrates that there can be big costs associated with not reclassifying stewardship land... Had Meridian not withdrawn its proposal, more would have been spent...".[27]

On 13 March 2019, the Minister of Conservation announced the 64,400 hectare addition of the Mōkihinui River catchment to the Kahurangi National Park. Crucially, and following the Conservation Authority's advice, 15 kilometres of its riverbed was included.[28] The transfer constitutes the largest reclassification of stewardship land to date.

5.3 Reclassification of stewardship land

The process of reclassifying stewardship land has been extremely slow. During the more than thirty years since DOC was established, only around 100,000 hectares of stewardship land (comprising less than 4 per cent of the total) has been reclassified.

Many interviewees highlighted the challenge of reclassifying stewardship land. Conservation groups have ongoing concerns about the inadequacy of protection accorded to high conservation value sites in this category, while developers have ongoing frustrations over the limits and restrictions in place and how difficult it remains to free up these areas for use. This makes stewardship land possibly the most contentious of all land classifications and a source of constant conflict and debate.

Reclassification of stewardship land (and other conservation land) into other conservation categories provided for under the Conservation Act is undertaken under section 18. The process involves a public hearings and submission process. In addition, the Conservation Authority and Conservation Boards have a statutory role in providing advice on the change of classification of conservation land. Stewardship land can also be classified into categories provided for under other legislation, such as national parks and reserves.

Policy 6(b) of the Conservation General Policy provides further guidance on how land reclassification should be undertaken stating that the classification of any public conservation land may be reviewed from time-to-time "to ensure the classification of such lands continues to either:

- give appropriate protection and preservation for their natural resources, and/or historical and cultural heritage; or
- give appropriate protection and preservation for their educational, scientific, community, or other special features, for the benefit of the public; or
- enable integrated conservation management identified in conservation management strategies or plans; or
- provide for access and enjoyment by the public where that is in accordance with the purposes for which the land is held; or
- reflect the values of public conservation lands that are present; or
- enable specified places to achieve conservation outcomes in the future".

Part of the reason for the reclassification project taking so long stems from the political nature of the review process. The redesignation of stewardship land attracts significant disagreement as to the values it holds and the purposes to which it should be put. In regions like the West Coast, where land is in high demand and 84 percent of the land is conservation land, its release is seen as vital to the region's development and its reclassification is highly contested.[29] It is also a resource intensive process. The land often needs to be surveyed and a scientific analysis undertaken of the species and ecosystems present.

Neil Silverwood

Alluvial Gold mine within stewardship land in the Totara-Mikonui Forest Conservation Area.

The West Coast is one of the regions with a large amount of stewardship land. Some commentators have warned that taking any systematic review to the West Coast is likely to be akin to a "red rag to a bull".[30] Indeed, during our interviews the review and redesignation of stewardship land was likened by several interviewees as "opening a can of worms" or the quintessential "pandoras box". The Conservation Authority has also called for caution against any wholesale review and does not support a major effort being expended to reclassify stewardship land. This is partly because of the potential implications for achieving net conservation gains – since stewardship land can be utilised by DOC for land exchange purposes whilst other conservation land cannot.[31] It therefore provides DOC with increased flexibility.

There are also frequently Te Tiriti claims and interests of iwi to consider. This last issue was brought up by several interviewees, who espoused the view that it was particularly unreasonable to retain land in this 'holding pen' category when it could be returned to iwi:

> "Stewardship land should come out of DOC ownership and be given back to iwi. Give it back, put the money in and use it to look after the people on the vulnerable edges of society, housing projects and the like."

> "A lot of stewardship land was put aside to allow for settlement and then not used for that. It should be returned"... "iwi have proven, Ngāi Tahu has shown, they can look after their whenua, they do not need to be patronised any more".

Collectively these factors contribute to significant inertia in the review process. A rationalisation of the conservation land classification system (described in Chapter 2), and more clarity on when land exchanges can take place, could help reduce the complexity of the system. Greater clarity on decision making affecting stewardship land could also assist, particularly if a large amount of unassessed land is to remain in this category for the forseeable future.

Upcoming review of stewardship land

The Government recently announced that it plans to enact legislation to assist in streamlining the review process for stewardship land.[32] The objective is to identify land of high conservation value and increase its protection, and also to identify land that has no or low conservation value, so that it can be considered for other uses. Cabinet decisions about the proposed legislation are due to be made later this year. Two independent panels of experts have been established to evaluate land in the north of the South Island and the West Coast. The review panels include technical experts and those with mātauranga Māori expertise. It is hoped new measures will remove ambiguity and provide greater clarity.

Underscoring the highly contentious nature of any such review, several parties have raised concerns about the process. Some environmental groups fear that the review will lead to the loss of conservation values. Forest and Bird consider that it would be more appropriate to grant all stewardship land higher protection as the regulatory default and then deal with exceptions on a case-by-case basis.[33] In May 2021, Ngāi Tahu announced they will be taking legal action against the government for lack of engagement regarding the protection of ecologically important land.[34] Ngāi Tahu state that they have been substantially excluded from the process despite the fact that a large portion of the land to be prioritised in the upcoming review is Ngāi Tahu takiwā (territory).[35] They consider that the review is in breach of section 4 of the Conservation Act and falls short of what is required in a Te Tiriti partnership. Any subsequent court decision resulting from the proceedings will likely provide further clarity on the application of section 4 to conservation decision-making.

5.4 Summary of key stewardship land issues

- A large proportion of land managed by DOC (30 per cent) is stewardship land much of which has not been assessed or appropriately classified.
- Reviews of stewardship land can be highly contested, especially in areas where there is little other land available for use and development (such as the West Coast).
- Stewardship land has less protection than other areas of the conservation estate, despite such land containing areas with high conservation values.
- Stewardship land is also under more development pressure, as concession applicants are more likely to target stewardship areas, due to their perception that approval is more likely.
- There is insufficient statutory or policy direction on the assessment of 'net conservation benefit' in the context of conservation land swaps.

Craig Potton

Port Fitzroy, Aotea Great Barrier Island where stewardship land was reclassified as conservation park.

Endnotes

1 Parliamentary Commissioner for the Environment, 2013b, 51

2 https://www.doc.govt.nz/about-us/our-role/managing-conservation/mining-on-conservation-land/no-new-mines-on-conservation-land-policy/

3 Cullen, 1987, *New Zealand Parliamentary Debates,* Conservation Bill (second reading, 24 March 1987), 479, 7996

4 Policy 6(b) of the Conservation General Policy provided guidelines for reclassification of land

5 Land Information New Zealand, 2019a, 21

6 Conservation Act 1987, s25

7 Conservation Act 1987, s16A and s26

8 *Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand* [2017] NZSC 106

9 Parliamentary Commissioner for the Environment, 2013b, 57

10 See for example the discussion of stewardship land in *New Zealand Parliamentary Debates,* Conservation Bill (Report of the Planning and Development Committee, 19 March 1987), 479, 7889 and also McLean, 1987, *New Zealand Parliamentary Debates,* Conservation Bill (second reading, 24 March 1987), 479, 8016

11 Parliamentary Commissioner for the Environment, 2013b, 57

12 Letter from Grant Baker for Director-General to the New Zealand Conservation Authority, 20 April 2005, discussed in Parliamentary Commissioner for the Environment, 2013b, 32

13 Conservation General Policy, 29

14 Conservation General Policy, Policy 6(d)

15 Conservation Act 1987, s16A(2)

16 'Net conservation benefit' is an approach that first started to be applied by the Government from around 2013 onwards in relation to specific proposals, one of the first being the Bathurst mine. See discussion in the *New Zealand Parliamentary Debates,* Questions for Oral Answer, Question to Minister of Conservation Nick Smith (24 June 2014), 699, 18768. The Parliamentary Commissioner for the Environment was the first to argue that the government needed clearer principles and processes for assessing net conservation benefit, see Parliamentary Commissioner for the Environment, 2013b

17 Brown, 2016, 37

18 *Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand* [2017] NZSC 106 at [111]

19 *Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand* [2017] NZSC 106 at [117]

20 *Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand* [2017] NZSC 106 at [58]

21 https://www.doc.govt.nz/news/media-releases/2019/mokihinui-river-catchment-land-to-be-added-to-kahurangi-national-park/

22 Parliamentary Commissioner for the Environment, 2013b, 33

23 See discussion in Parliamentary Commissioner for the Environment, 2013b, 42 and Royal Forest and Bird Protection Society, 2010

24 Chadderton et al, 2004

25 West Coast Conservation Management Strategy (Volume 1) 2010-2020, 200

26 Parliamentary Commissioner for the Environment, 2013b, 55

27 Parliamentary Commissioner for the Environment, 2013b, 55

28 Department of Conservation, 2019b, 82

29 https://www.scoop.co.nz/stories/HL1910/S00057/stewardship-land-review-a-red-rag-to-a-bull.htm

30 https://www.scoop.co.nz/stories/HL1910/S00057/stewardship-land-review-a-red-rag-to-a-bull.htm

31 New Zealand Conservation Authority, 2018, 2.22-2.23

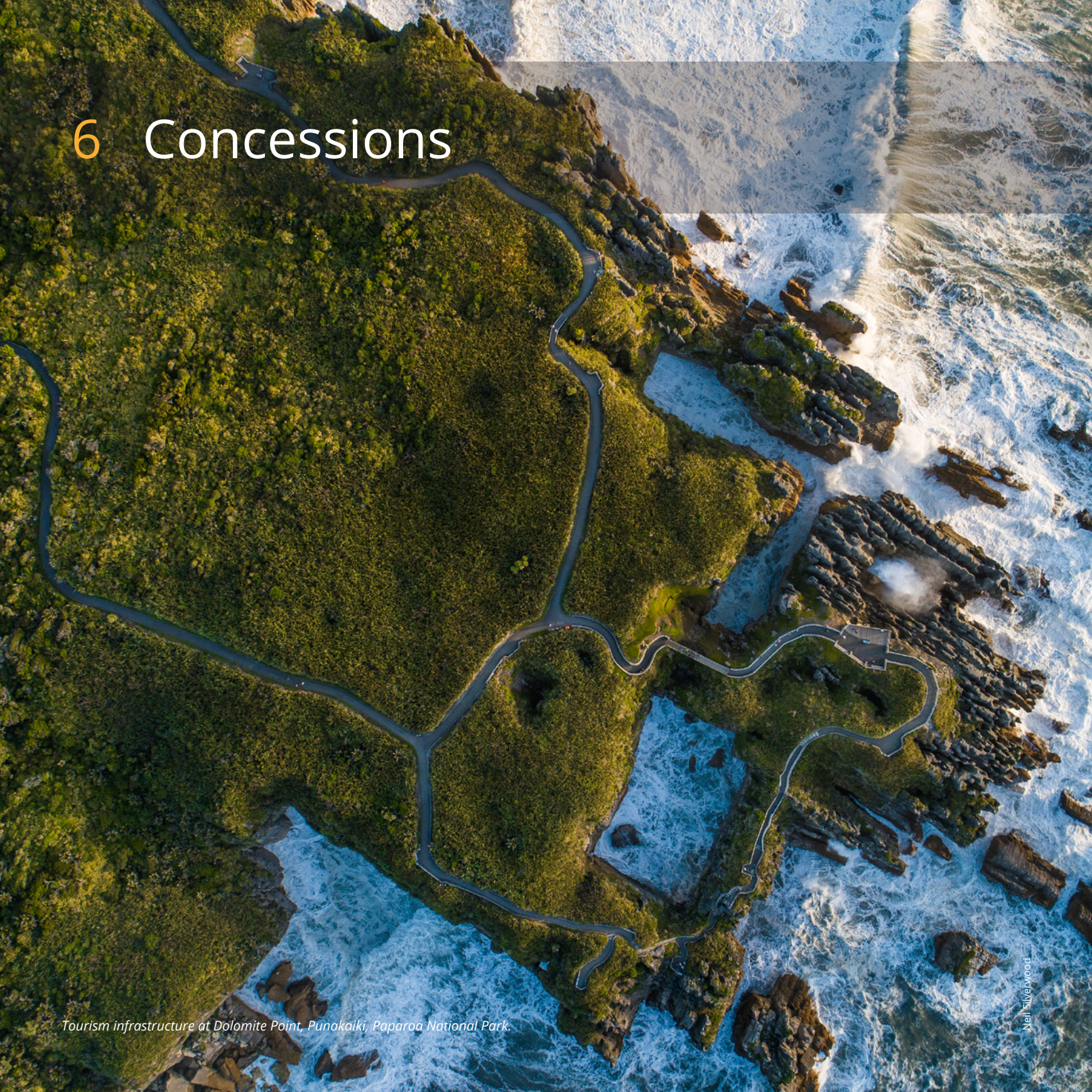
32 https://www.rnz.co.nz/news/national/443732/law-changes-considered-to-protect-ecologically-significant-land

33 https://www.rnz.co.nz/news/national/443763/ngai-tahu-launches-legal-action-over-conservation-land

34 https://www.rnz.co.nz/news/national/443763/ngai-tahu-launches-legal-action-over-conservation-land

35 https://ngaitahu.iwi.nz/te-runanga-o-ngai-tahu-challenges-governments-stewardship-land-announcement/

6 Concessions



Tourism infrastructure at Dolomite Point, Punakaiki, Paparoa National Park.

Neil Silverwood

Anyone wanting to undertake a commercial operation on public conservation land or within protected waters must apply for a concession to do so. The concessions framework is one of the most contested areas within the conservation system. It is here that commercial and conservation interests most frequently clash and where many of the important decisions affecting conservation take place. Such decisions determine what developments and infrastructure can be put in place, what activities are permitted (and at what levels), and what impacts will be tolerated.

The types of activities requiring a concession are wide-ranging and include using areas for grazing, aircraft landings, guided tours, skifield and other developments, pest control operations, beekeeping, filming (see spotlight) and commercial drones.[1] DOC does not require a concession to undertake activities that come within its statutory functions.[2] There are four types of concessions provided for under the Conservation Act (see Figure 6.1).

Type	Purpose	Term
Permits	Give a right to undertake an activity with no corresponding rights over the land	Can be granted for up to 10 years
Easements	Provide for a right of way access to property or for public work purposes	Can be granted for up to 30 years
Licenses	Give the right to undertake an activity and a non-exclusive interest in the land	Can be granted for up to 30 years and in "exceptional circumstances" for up to 60 years
Leases	Interest in land giving exclusive possession and allowing the leasee to carry out an activity on that land	Can be granted for up to 30 years and in "exceptional circumstances" for up to 60 years

Figure 6.1 Types of conservation concessions

Neil Silverwood

Garvey Creek Coal Mine, Victoria Forest Park, Reefton.

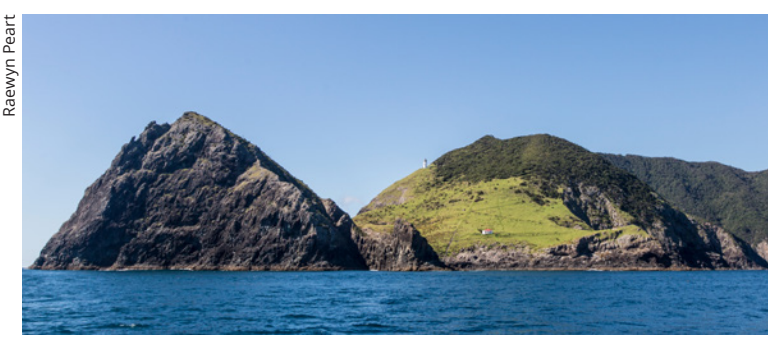
A spotlight on concessions for media

Section 17O(2) of the Conservation Act states that "no activity shall be carried out in a conservation area unless authorised by a concession" and defines "activity" to include any "trade, business or occupation". Until recently, news media required a permit to film on conservation land, on the basis that it was a commercial activity. This had drawn significant criticism. Media argued that they were representing the public interest and the requirement restricted their ability to report on conservation matters.[3]

A review of this requirement by DOC "found the rules around media permits were not fit for purpose given the advent of digital tools like mobile phones where visitors are curating their own experiences and sharing them on various web platforms. It also found the process for acquiring consent for the media was overly bureaucratic and unworkable for both the media and DOC staff."[4] As a result, in April 2021, the Department decided to waive the requirement for news media to obtain a permit in low impact situations in areas where the general public has free access. The review also highlighted the need to examine more closely how the legislation operates in this area and how it could be reformed to more clearly take account of the media's role.[5]

The controversy over media filming highlights both the age of the legislation, in not addressing a range of technology-related activities, as well as the very broad definition of "activity" under the Act. Section 17O(3) of the Conservation Act lists a number of activities that do not require a concession (including mining of Crown-owned minerals) and consideration could be given to explicitly including media on this list.

Raewyn Peart



Manawahuna Scenic Reserve, Cape Brett.

The concessions-related workload for DOC is significant with more than 4,600 active concessions in place. The time and resources required, not only to ensure robust consideration of applications and assessment of their potential impacts, but also to monitor and enforce them once granted, is substantial. There is also a high level of public scrutiny in this area, with individual concessions frequently being discussed and debated in the media or subject to legal challenge.

A spotlight on Conceding the Commons… Conceding Nature

In 2020, Federated Mountain Clubs released a report entitled *Conceding the Commons… Conceding Nature* which called for an urgent and comprehensive review of concessions management.[6] The main issues identified in that report were:

- A lack of detail and clarity in CMSs and Conservation Management Plans to guide concessions
- The complexity of the existing process manual, which is spread over a number of documents and is difficult for staff to use
- The legislative reforms designed to improve efficiency, streamline the system and reduce compliance costs, which altered the balance in favour of commercial interests
- Applications with insufficient documentation ("fundamental failings and gaps") sometimes progressing through the system
- Historical concessions "conventionalising" some activities so that new concessions are granted with less robust consideration
- Inadequacies in notification processes
- Lack of clarity around the definition of "activity"
- The expansion of projects in a gradual manner, by way of variations and changing conditions ('project creep'), and need to ensure variations are considered in the sum

- Lack of transparency, including clarity around how decisions have met all of the statutory criteria
- Lack of controls and rules on the treatment of financial inducements (eg creation of trust funds for recreational purposes) and how these are taken into consideration
- Inadequate monitoring and enforcement of concessions
- The 12-month limitation period for offences which makes taking action for breaches too difficult
- The lack of a requirement to consider an applicant's prior behaviour and any consent breaches, when considering concession applications or their variation

The Federated Mountain Clubs' report provides case studies and examples for each of these issues to demonstrate how they manifest in practice. It notes that, while Federated Mountain Clubs is in no "doubt that very many concessions ... are handled well in all respects", its long term experience is that the current regime, and how it is implemented, concedes too much to private commercial endeavours.[7]

6.1 Historical context

As has been previously noted, the Conservation Act was developed during a time when there was a move towards a more deregulated and user-pays approach to government. Parliamentary debates on the Conservation Bill make it clear that a multiple use approach was envisioned for conservation land, that would facilitate the continuance of existing activities such as grazing. As far as possible, the status quo position was to be preserved. Indeed, there was also an intentional shift made at this time away from the former focus on improving or restoring, towards "maintenance, so far as is practicable, in its current state".[8]

In 2009, further reforms were undertaken to increase the economic benefits which could be derived from conservation land. At that time, government initiated a 'business growth agenda', part of which was based on greater utilisation of natural resources. Amongst other things, this sought to "grow the number of new business opportunities on public conservation land",[9] within the rubric of a 'conservation economy'.

A spotlight on the 'conservation economy'

"The term 'conservation economy' refers to the contribution that conservation makes to the health, wealth and security of New Zealand's economy. One way to maximise the return on investment is to *enable* commercial activities on, or associated with, public conservation lands. DOC is moving to put in place a more commercial approach to how it engages with business and commercial activities. Particular areas of focus are improving DOC's ability to deliver positive commercial outcomes, building productive business partnerships that deliver conservation gains, and increasing net revenue flows, all in the context of enabling business opportunities that are consistent with conservation to raise New Zealand's prosperity."[10] *(DOC's 2010 Annual Report)*

DOC's 2009 *Statement of Intent* noted that the Government's driving goal would be to "grow New Zealand's economy" and underscored the role of the Department in contributing to that growth, and the "well-being and prosperity" of New Zealanders.[11] To that end, the Department planned to strengthen its contribution to tourism by streamlining statutory processes, fostering improvements in efficiency and cost effectiveness, taking "practical action to reduce its impact on the environment *where this makes economic sense*",[12] and supporting "investment in tourism infrastructure"[13] particularly "in places that are most likely to stimulate and support tourism".[14] DOC also promised to increase the role of the private sector in the provision of infrastructure and services on public conservation land.

Legal commentators, such as Valentina Dinica, have noted how uneasily this new economic focus sat with DOC's statutory objectives centered around conservation. Also, despite the promise that moves to promote economic development would be coupled with a focus on sustainability and creating synergies to produce conservation gains, policy development at this time centred around freeing up use, with "no new environmental and biodiversity objectives".[15]

As part of this shift towards a greater economic focus, a review of the concessions framework was initiated.[16] This 2009 review sought to identify mechanisms to support economic growth, particularly through enabling tourism opportunities on conservation land, as well as making the concessions framework "more effective and efficient".[17]

> "(T)he reality is that its [tourism sector's] profitability is tied to the state of New Zealand's natural, historic and cultural heritage. The broad context instructing this review and the action arising from it is that conservation is good for business, and business is good for conservation".[18]

The review had a heavy focus on "enabling appropriate business opportunities" on conservation land. Its outcome was a range of changes to the concessions system designed to provide "the shortest time allocation that could consistently be complied with" and "offer concession applicants significantly improved certainty".[19] While mechanisms still existed to enable decision-makers to 'stop the clock' in some circumstances (such as to obtain further information) and to undertake public consultation where considered necessary, those opportunities would now be "more tightly confined and controlled". The review concluded that it was taking too much time to process applications, citing delays occurring due to repeated requests for more information.

Changes subsequently made under the Conservation Amendment Act 2012 shortened the permitted timeframes for processing concession applications and required decision-makers to justify any extensions in timeframes set. They provided for a discretion *not to notify* concessions under 10 years in duration and increased the terms of concessions (eg from 5 to 10 years for permits). The default position was also changed to ensure that expired concessions would continue to apply pending the outcome of a replacement concession application.[20] A streamlined online application system for "conforming concessions" was also put in place to "cut red tape" and reduce costs, allowing tour operators to be granted a permit for selected walks in only five days.[21] This effectively created a 'permitted activities' category where concessions could be more rapidly granted.

Government argued that these changes would increase certainty for business owners while reducing application costs.[22] The Green Party opposed the Bill, arguing that it would "make it harder for the Department of Conservation to protect those fundamental environmental or ecological values when it is considering applications to use the Conservation estate for commercial purposes".[23] It also argued that the philosophical approach being adopted would tilt the balance against protection.[24] Further, the Green Party was concerned that enabling expired concessions to continue to operate, pending the outcome of a replacement concession, in combination with rights to request a reconsideration in the event of decline, could lead to increased risks, especially where the activity was a high impact one such as mining.[25]

Further changes were made in 2017 under the Resource Legislation Amendment Act. These reforms sought to better align the resource consent processes under the RMA with those for concessions under the Conservation Act and increase transparency by requiring greater public notification. This further streamlining initiative saw time frames for public submissions on major commercial development on conservation land halved from 40 to 20 working days. The Labour Party, New Zealand First and the Green Party opposed the changes. The Green Party produced a Select Committee minority report in protest at the reduced scope for public input:

> "Public notification can be the first opportunity for the public to consider the development and its impacts on biodiversity, landscape, and recreational values. Conservation land is held and managed on behalf of the public and our indigenous species. A longer submission period provides for better scrutiny of commercial development proposals and their effects."[26]

Collectively these changes have made the concessions applications process less costly and more timely for applicants. However, there is also a danger that the ability of the system to ensure positive conservation outcomes has been eroded.

6.2 Concessions within the planning framework

The concessions system is located within the conservation statutory and planning framework (see Figure 1.1) and concessions sit at the bottom of the planning hierarchy. Concessions must comply with the requirements of the Conservation Act (including the section 4 Te Tiriti clause) and any other relevant statute. In addition, concessions within national parks must be consistent with section 4 of the National Parks Act, which requires national parks to be "preserved so far as possible in their natural state" and for the public to have freedom of access.[27] The Conservation Act also requires concessions to be consistent with the relevant CMS and any applicable Conservation Management Plan or National Park Management Plan.[28]

In setting the broader policy framework for the conservation system, General Policies address the management of concessions. These policies should then flow through to CMSs. There is no requirement for concessions to be consistent with General Policies. The framework relies on these being implemented through CMSs and management plans. Where these documents are outdated or inconsistent, there is no

provision for General Policies to be directly applied or enforced within the concessions system.

CMSs typically set out various designations for conservation land within a region, and the values and management priorities that exist at specific sites. For example, CMSs often specify different aircraft access zones which determine where landings are, or are not, permitted. They will also typically identify 'visitor management zones' such as urban, rural, front-country, backcountry, remote and wilderness, based on an established 'recreation opportunities spectrum', that help guide what activities are appropriate in each area.[29] CMSs also contain detailed policy guidance for the consideration of different types of concessions.

The management plans are intended to provide even further detail, including information on the types of tourism activities, facilities and infrastructures that exist, and in some instances, the different volume or capacity indications (and restrictions) at specific sites. For example, plans may state for which tracks it is appropriate to grant concessions for guided mountain biking tours or electric power-assisted bikes where they are associated with a commercial activity, such as guiding. They may state the number of aircraft landing concessions and numbers of landings permitted in an area per day (or annually). They may also contain specific direction in relation to concessions for activities as diverse as commercial eeling, sporting activities or filming. This highlights the importance of robust, clear and up to date plans – they are essential for the effective operation of the concessions system. However, as noted earlier, many of the plans are now very dated and can be lengthy and difficult to navigate. This situation undermines consistency and clarity of standards within the concessions system and reduces the transparency of its local application.

The extent to which these documents actually fetter the Minister's discretion to grant concessions has also been contested (see spotlights below). In July 2016, DOC reviewed its system for assessing concessions against the statutory planning documents. This resulted in the development of new *Guidance on the Interpretation and Application of Statutory Planning Documents*.[30] This reiterates the view that "the Minister of Conservation's discretion cannot be fettered by the statutory planning documents" and that "the right to make the decision they wish cannot be restricted by these documents." It states that where the term 'should' is used in a statutory planning document, there is "a *strong expectation of the outcome* of the planning documents created" but that it "does not fetter the Minister's discretion, as the Minister is able to make a decision contrary to this", although only "where there is evidence of a special case or *exceptional circumstances*".[31] This approach serves to weaken the significance of the policy and planning framework and appears contrary to the approach taken by the Supreme Court in the Ruataniwha Case which highlighted the importance of planning instruments in ensuring consistency of decision-making by the Minister.[32]

A spotlight on the Haast Valley grazing consent

In February 2020, an application to graze 736 hectares of public conservation land along the Haast River was granted. This was the continuation of an historic grazing concession. The approval illustrates a lack of connection between the provisions in conservation policy and planning documents and the grant of concessions in practice.

In assessing impacts, DOC ecologists concluded that the grazing would "cause the continued decline of species" and "compromise the ability for restoration" in the area. In their opinion, the potential measures available to reduce the impacts of grazing would not be able to avoid, remedy or mitigate its effects on natural values. Both the DOC ecologists and the permissions advisor found the concession to be inconsistent with the Conservation General Policy and the West Coast CMS.[33]

The West Coast CMS contains a clear direction that the *primary consideration* in assessing a concession is the effects it would have on the values being protected. The CMS designates the Haast Valley as a "priority site for biodiversity management" noting that it sits within the Te Waipounamu South West New Zealand Heritage Area, which is also recognised as internationally significant. It also identifies the Haast river as a river of "national importance" and states that, at such sites, the priority is for "natural processes to occur as free from adverse effects from humans as possible". Despite this, the final decision on the concession made no mention of the site's special status.

In addition, the area to be grazed was adjacent to Mount Aspiring National Park and the applicable National Park Management Plan prohibited the grazing of cattle in the park. Although the concession area was not within the park itself, cattle had a history of roaming into the park from the adjacent area. Fencing the cattle in was difficult, because the area where the fence would need to be located was prone to flooding and erosion, due to

the Haast River changing course from time to time. In addition, the construction of a fence would require the clearance of heavily vegetated riparian areas at multiple sites, thereby further impacting on the natural values of the area.

Despite all these considerations, the concession was approved. It was granted on the condition that a fence was erected to ensure cattle could not enter the Mount Aspiring National Park. The term of the concession was also reduced from 15 to three years.

The applicant subsequently applied for a reconsideration of the fencing requirement, on the basis that it was impractical. When reconsidering the requirement, the Director-General concluded that "containing stock within the licence area would be difficult and probably impossible" and as "it is an offence under the Conservation and National Park Acts for stock to enter a conservation area or trespass on a national park" and there is no means to contain the stock within the licence area, "the licence which was granted on the basis that such containment was possible, is of no effect".[34] This begs the question of how the licence came to be approved in the first place.

Bernard Spragg

Saddleback.

A spotlight on the Routeburn Track concession[35]

In 2013, DOC granted a concessionaire permission to increase the number of overnight guided walks on the Routeburn Track within the Mount Aspiring National Park for a period ending in 2032. The increase breached the maximum number of persons permitted on the track as prescribed in the Mount Aspiring National Park Management Plan.

When the concession was granted, a complaint was laid with the Ombudsman by a member of the Otago Conservation Board. The consideration of the complaint provides further insight into the relationship between conservation policies and plans and the granting of concessions, and in particular, how binding the former are on the latter.

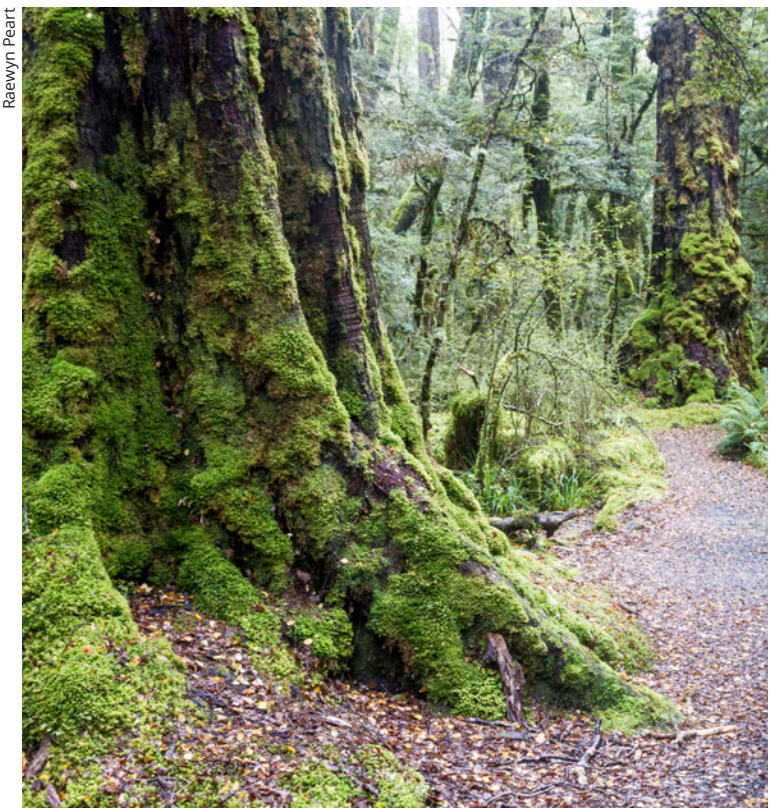
In responding to the Ombudsman's inquiry, DOC argued that the relevant provisions of the National Park Management Plan did not preclude the approval of increased numbers. This was on the basis that policy 8.5.2 of the plan, which states that the number of guided overnight walkers "should not exceed 92", did not fetter the Minister's statutory discretion. This was because policy 1(d)(ii) of the Conservation General Policy directs that the term "should" constituted only a "strong expectation of outcome without diminishing the constitutional role of the Minister or other decision makers". Policy 6.1.1.ii of the Mount Aspiring National Park Plan reiterated this definition and further added that the rule was only to be departed from in "exceptional circumstances". In this respect, the Department argued that the "exceptional circumstances" requirement was met. This was based on the fact that the track traversed several national parks, not only Mount Aspiring, and that if the combined capacity of the track was considered, the increase in numbers was supported.

The Ombudsman disagreed. He characterised the Department's reasoning on this point as having "no credible basis". He emphasised that the plan had set clear and specific limits and had been through a robust consideration of the context and appropriate level of restrictions needed. Given that the plan had gone through extensive public consultation, deviation from those limits was a serious matter. The Department had not evidenced any new or exceptional change in context that justified departure

from the general rule. Rather it "was totally unreasonable for the Department to make a decision that flew in the face of the limits set in the newly promulgated Mt Aspiring Plan". The Ombudsman underlined that "the scope of the statutory discretion is determined by the legislation conferring it and cannot be narrowed (fettered) or broadened by policy decisions."

The Ombudsman cited *Environmental Defence Society Inc v New Zealand King Salmon Co Ltd* [2014] NZSC for the proposition that decision makers must follow a "carefully structured legislative scheme" and "a hierarchy of planning documents". The Ombudsman agreed with the complainant that the decision made "a mockery" of the plan development process and undermined public participation in that process. The decision was found to be "unreasonable" and a public apology, as well as a review of the processes for handling applications for concessions in national parks was recommended.[36]

Raewyn Peart



Fiordland National Park

A spotlight on aircraft concessions within Fiordland National Park[37]

The Ngapunatoru Plateau, which is situated within the Fiordland National Park, is described as a "remote" setting in the Fiordland National Park Management Plan (2007). It is part of an area recognised as important to those seeking "a true wilderness experience". The Plan accordingly aims to protect the area by ensuring there are few encounters with other visitors, small group sizes, that it is relatively free of recreation facilities, and that access is generally non-mechanised. There is also an expectation that visitors will "be away from sights and sounds of human influence".[38]

The National Park Management Plan limits the number and frequency of glacier aircraft landings within the park. On the Plateau, it imposed a limit of 10 landings per day, by no more than five concessions, and a maximum of 500 landings per year. With the exponential growth of the tourism industry since 2007, demand exceeded the number of permitted landings. In response, DOC decided to issue concessions that exceeded the limits in the Plan. A total of nine concessions were issued (exceeding the prescribed limit of five). The concessions collectively permitted a total of 15 daily landings (breaching the limit of 10) and one concession alone was permitted 730 annual landings (breaching the limit of 500). In addition, a concession was issued that permitted 'unlimited' aircraft landings on the Plateau.

DOC was aware that the concessions breached the limits in the Plan but chose not to apply them on the basis that "there was no evidence of any significant adverse effects on other users of the Park".[39] Instead the Department proposed a 'trial' that would raise the daily aircraft landing limits on the Plateau even further.

There is no provision for such trials in the legislation. The trial was to be authorised through making a 'variation' to the terms of the existing concessions to increase the allowable landings for a period of two years. This was without public notification, on the basis that the change was of a "minor and technical nature and does not materially increase the adverse effects of the activity".[40] However, the limits were to be increased substantially. Eight concessionaires would be permitted 10 landings a day each (increasing the total daily permitted landings eight-fold) and one further concessionaire an additional 2,000 landings per annum (on its own a four-fold increase of the permitted level in the Plan).

Federated Mountain Clubs objected to the proposal due to its potential impacts on overflight noise in the remote area. But in 2016, DOC's decision to go ahead with the trial was affirmed. In response, Federated Mountain Clubs filed a complaint with the Ombudsman's Office, claiming that the trial breached the National Park Management Plan.

Part of DOC's justification for breaching the provisions in the Plan, was that the document was dated, and also that the aircraft limits for the Plateau simply reflected what had been occurring at the time the Plan was prepared and was not based on any assessment of effects. However, the Ombudsman noted that the Plan had explained the rationale for the landing limits, which "were set with potential growth in mind", and in response to steady increases in visitor numbers and the expectation of that continuing.

The Ombudsman found that the potential impact of the trial was that 'remoteness seekers' would be exposed to aircraft overflights and landings approximately every seven minutes on average. This reinforced the fact that the changes were neither minor nor simply technical in nature. In raising the daily aircraft limits in this way, the Department was bypassing the prescribed statutory process for reviewing the plan and circumventing the public consultation process that contributed to its development. DOC's decision was therefore found to be unreasonable and contrary to law.

While the trial was cancelled, in January 2019 (nine months after the decision), DOC confirmed to media that no new allocation system was yet in place and the landings were still not compliant with the Plan.[41] As at August of 2020 this situation had still not been resolved.[42]

Raewyn Peart

A Real Journeys tourism vessel moored at Deep Cove, Doubtful Sound, Fiordland National Park.

6.3 Grant of concessions

Concession processing

The framework for determining and approving concession applications is set out under Part 3B of the Conservation Act. Mining concessions have additional requirements (see spotlight). The approval process is complex. The decision-maker must consider a range of specific matters, ensure that the application complies with a host of statutory and planning documents (as outlined above), ensure the decision gives effect to Te Tiriti, and determine whether additional conditions might be imposed. Apart from the broad Te Tiriti requirement in section 4 of the Act, there is no specific provision for Māori rights or values to be incorporated or considered within the concessions scheme set out in the Act.

A spotlight on the concession application process

Concession applications must set out the nature of the proposed activity, identify the places it will be carried out, the duration of the concession sought, and include a description of the potential effects of the activity as well as any mitigation measures that will be taken (section 17S). After receiving the application, the Minister may:

- Return the application if it does not contain the necessary information (section 17SA)
- Require additional information to be provided (section 17SD)
- Commission further advice or reports necessary, at the applicants expense (section 17SE)
- Decline an application if it "obviously does not comply" or is "obviously inconsistent" with the Conservation Act or relevant CMS or Conservation Management Plan (section 17SB)
- Publicly notify the application and open it to submissions.

Public notification is *required* for all lease applications and any licence that will run for a term of more than 10 years. The Minister *may* also notify any other licence, permit or easement if, having regard to its effects, he or she considers it appropriate to do so (section 17SC).

In considering applications (under section 19U) the Minister must "have regard to" a wide range of matters including:

- The nature of the activity, structure or facility proposed
- The effects of the activity, structure or facility
- Measures that could be reasonably and practically undertaken to "avoid, remedy or mitigate any adverse effects of the activity"
- The information provided in the application, including any further information requested or reports commissioned
- Any relevant environmental impact assessment, audit or review
- Submissions received in response to the notification

The Minister *must decline* any concession application that is contrary to the Act or purposes for which the land is held (section 17U(3)) or inconsistent with the relevant CMS, Conservation Management Plan or National Park Management Plan (section 17W(1)). The Minister *may* decline an application on the basis that there is insufficient information or inadequate information to enable a proper assessment of effects, or where there are no adequate or reasonable methods that would enable the effects to be remedied, avoided or mitigated (section 17U(2)). The Minister may also decline an application where the effects it discloses have highlighted a problem in the strategy or plan, so that it would be more appropriate to review those documents (section 17W(3)). Where the Minister decides to approve an application, he or she has the power to impose conditions (section 17X).

A range of other matters are also provided for under Part 3B of the Act, including rights of applicants to request a reconsideration of their application (in whole or part, under (section 17ZJ), as well as the processes for changing the terms and conditions on an existing concession (section 17ZC) and for seeking continuance of a concession (sections 17ZAA and 17ZAAB).

There is no reference in the Act to considering an applicant's previous compliance history. Consideration of an individual's or companies prior environmental track record would enable greater vetting of applicants which is especially important for high impact and high risk activities such as mining.[43] For example, Mineralogy International has been granted eight permits for prospecting or exploration, many which include areas of conservation land. The company is reported to have a poor environmental track record in Australia, including illegally discharing into the Great Barrier Reef Marine Park and threatening to sue one regulator when instructed *not* to illegally discharge wastewater *again*.[44] Te Rūnanga o Ngāti Kearoa Ngāti Tuara has requested that New Zealand Petroleum and Minerals and DOC not permit the company to mine within their rohe (which includes conservation land) alleging that decision-makers have ignored their concerns and that this is a failure to uphold their Te Tiriti obligations.[45]

The Act directs that the Minister *shall* decline an application if the activity is contrary to the provisions of the Act or purposes for which the land is held. It also sets out more specific bases on which an application *may* be declined, although these are relatively few, very broadly worded and often highly subjective. Most of the considerations and requirements, in terms of what is or is not permitted, are set out in more detail within the relevant conservation strategy or plan. This underpins the importance of having robust standards and clear directions within those documents and the potential problems that arise where those documents are themselves outdated or contradictory (as discussed in Chapter 4).

Neil Silverwood

Stockpiled coal, Escarpment Mine, Mount Rochfort Conservation Area which is stewardship land.

A spotlight on mining concessions

Much mining activity takes place on or adjacent to conservation land. For example, between November 2017 and July 2020, seven applications for prospecting, 15 for exploration and 36 for mining were approved. The 36 mining approvals were split between 21 which varied access arrangements for existing mines, and 15 approvals for new mines.[46]

Mining is treated differently to other activities on public conservation land and the mining of Crown-owned minerals does not require a concession under the Conservation Act.[47] Instead, the Crown Minerals Act 1991 sets out the broad policy for prospecting, exploration and mining of such minerals and provides for special access arrangements for mining on conservation land. Under that Act, the Minister of Energy and Resources grants minerals permits and also considers applications for access to public conservation land (with the Minister of Conservation) when these areas are involved. In doing so, the Minister of Conservation is required to consider the effects of mining on conservation values, land and other activities on that land (section 61C(2)) and can publicly notify the application if these are considered to be significant (section 61C(3)).

Access arrangements, in the form of a concession for an easement under the Conservation Act, may also sometimes be provided to facilitate mining on adjacent land.

Historically, public conservation land has been less protected from mining than other activities, because it has been regulated under mining (rather than conservation-focused) legislation and the role of DOC is correspondingly reduced. The restrictions were tightened up in 1997, when the Crown Minerals Act was amended to prohibit mining on "protected land" listed in schedule 4 of the Act. This effectively banned mining in national parks, nature and scientific reserves, wilderness and sanctuary areas, marine reserves, notified Ramsar wetland areas, and a range of specific areas and scenic reserves. These restrictions mean that mining is more likely to be proposed in areas with lower levels of protection, such as stewardship land.

Many remain in favour of opening up schedule 4 land for prospecting[48] while others have sought to exclude mining from conservation land entirely. In November 2017, the Prime Minister announced there would be "no new mines on conservation land"[49] but this intention has yet to be implemented in law.

The concessions process can place a significant burden on iwi:

> "Capacity issues can impact on concessions. The system can get gridlocked because we need to consult with our Treaty partner. So each concession has to go through iwi. But it can be difficult for already overstretched iwi and hapū to keep pace and we can only move at a pace that's workable for our Treaty partner. That's the case across all concessions and planning. Where there are big commercial issues it can be a struggle to bring iwi together and it's easy to slide into gridlock, because if there are two rūnunga happy to go and two that are not, that stops the whole thing". (*DOC interviewee*)

A reoccurring complaint we heard from interviewees, particularly regulators, was that the current concessions framework is far too complex. There are multiple statutes, plans and strategies for applicants and submitters to understand and for staff to administer. As one interviewee noted:

> "When we started looking into the legal risk DOC is facing within the permissions framework, it highlighted the complexity of the problem. With so many pieces of legislation and sections in play, it is important that no aspect is overlooked. For every permission, we need to always ensure, not just that each aspect has been considered but that we can demonstrate that active consideration when signing things off. The process is laborious and far from efficient. Each piece of legislation that must be checked for compliance and consideration has its own decision-making framework and delegations."

Allocation of concessions

Concession applications are currently processed as they are lodged which means they are granted on a 'first come first served' basis. This approach can serve to embed the status quo, as once a concession is in place, it is more likely to be renewed. Even if a project was more environmentally friendly or innovative, or would serve to better support kaitiakitanga, there remains no effective mechanism to prioritise it in preference to others. As already noted, this issue was highlighted by the Waitangi Tribunal in the Wai 262 Report. This reduces opportunities to build synergies and make more strategic decisions to benefit conservation and Māori.

In his recent *Not 100% - But Four Steps Closer to Sustainable Tourism* report, the Parliamentary Commissioner for the Environment also reiterated the lack of a clear process for DOC to decide which operators should be favoured (in the context of limited concession opportunities) and the risk that high quality operators were being "locked out".[50] The need for more quality control and selectivity, to encourage and build greater net conservation gains, was noted by many interviewees.

The recently released *Tourism Futures Taskforce Interim Report – We are Aotearoa* similarly proposed a new concessions approach "which is an active tool to achieve visitor and conservation outcomes through prescribed higher standards" and better alignment of destination management and conservation planning.[51] It also highlighted the need to modernise the Conservation Act and provide for better concession management.[52]

The tendering process that does exist under section 17ZG(2)(a) of the Conservation Act gives the Minister the ability to tender the right to make an application, invite applications or "carry out other actions that may encourage specific applications". This only enables the Department to tender the *right to apply* for a concession, not to tender for the actual concessions themselves. It therefore adds an additional step to the normal applications process, creating additional complexity in an already complex system.

DOC has used these provisions to allocate concessions for specific resources or facilities. Recent examples include tendering concession opportunities at Titirangi farm park, to manage the pools and land at Morere Springs, and to use the Mess Building at Fort Takapuna Historic reserve in Auckland. Tendering has also been used to allocate beehive concessions (see spotlight). Interviewees highlighted the difficulty of current tendering mechanisms and inability to allocate concessions on a competitive, and more highly selective basis.

A spotlight on tendering for beehives

DOC has used a tendering process for beehive concessions on the West Coast and at the Kaweka Forest Park in Hawkes Bay. On the West Coast, applications were invited for the opportunity to place hives on conservation land. Applicants were asked to identify the values they would bring to conservation. Selection was based on identifying the applications that provided the best opportunity to manage and protect the values of the land (including the cultural values), a fair market return and/or value to conservation.[53]

The tender process only allocated a *right to apply for a concession,* and applicants had to subsequently file a full application under Part 3B of the Conservation Act. Success in the tendering process did not guarantee the grant of that application but enabled the Department to act as a gatekeeper in the process.

DOC staff interviewed noted that the process required a considerable amount of work and there was a need to provide clearer legislative pathways that could enable greater selectivity and control of the concessions' application and approval process.

Raewyn Peart

Ōkārito Lagoon on the edge of the Westland Tai Poutini National Park.

6.4 Variation and renewal of concessions

The processes in place for either modifying an existing concession or extending its term, are similar to the process for obtaining the concession in the first place, with some exceptions. For example, there are reduced notification requirements where an applicant only seeks to change the conditions of its concession. If the changes are "minor and technical" in nature, do not "materially increase the adverse effects" or location, or the changes lessen the effects or duration of the concession, notification is not required.[54]

The principal difference for an application to continue an existing activity (a renewal), is that the pre-existing concession is permitted to continue in force pending the outcome of that consideration. If the Minister declines approval, and the concessionaire applies for reconsideration (under s17ZJ(a)), that lapsed concession will continue to run until the Minister undertakes that reconsideration or declines to reconsider.[55]

We heard concerns that the variation process could be used to incrementally increase the size and environmental impacts of an authorised activity, without public notification, through a form of 'project creep'. EDS has previously documented similar approaches being used under the RMA, such as for the Simons Pass dairy conversion in the Mackenzie Basin, for which 80 consents were obtained over a period of 13 years.[56]

Bernard Spragg

New Zealand dotterel.

6.5 Charging for concessions

DOC is authorised to charge a rent or royalty from businesses that operate on conservation land under section 17Y of the Conservation Act. In alignment with a user pays system, this section provides that the rates may be fixed according to the market value. However, regard must be had to the circumstances relating to the nature of the activity, the effects of the activity on the purposes of the affected area, and any contractual conditions.

The annual activity fees charged for concessions are often calculated on a *percentage of revenue* basis. This approach is primarily used for assessing fees for accommodation, retail, tourism, guiding, ski fields and hydro power schemes.

Annual activity fees charged for concessions
(percentage of revenue)

Base rate:	Between 3.5 – 7.5% (dependent on the capital investment made)
Premium:	0 – 2.5% (depending on the uniqueness of the site)
Infrastructure:	0 – 1% (contribution to infrastructure maintained at the site)
Exclusivity:	0.5 – 1.5% (for exclusive access and right to keep public out)
Environmental compensation:	0 – 4% (compensation for potential adverse impacts)

Depending on these factors, the range of charges varies from 4 to 16.5 per cent of revenue. The individual variations that exist within this framework have been criticised as being too subjective and lacking clarity in practice, in comparison to a fixed fee system.[57] However, the framework does enable the specific context for each concession to be taken into account, and this is important as the underlying values of the land and potential impacts can vary markedly from concession to concession. But to operate effectively, it requires adequate information on which to base the calculations, and this is often not available. For example, the values present on stewardship land can be largely unknown.

The revenue generated from annual activity fees is classified as 'third party crown revenue' and so is paid directly to the Crown which then allocates revenue to DOC. This means that DOC does not directly receive revenue from such fees.[58] At present, the percentage revenue framework accounts for 30 per cent of all third-party Crown revenue from conservation land.[59] In 2019, revenue from concessions came to just over $27 million. However, almost all tourism-related concession fees were waived from 1 March 2020 to 30 June 2021, substantially reducing this amount.[60]

DOC is currently reviewing this framework and seeking input, following independent advice from Deloitte that changes are needed to the fee setting structure to help address subjectivity, clarity and complexity. In addition, DOC was advised to consider alternative methods for fee setting.[61] A range of options have been put forward including direct charging of standardised fees, addition of a royalty and the use of auctions to reveal the true value of rights as they come up for renewal. In addition, an economic value-added system has been proposed, that aims to generate excess returns which could be more directly attributed back to conservation. It has also been suggested that a separate regime may be more suitable for more complex or high capital investment concessions.[62]

The Tourism Futures Taskforce noted that "in many cases, DoC is constrained by legacy decisions and legislative restrictions which have created pricing decisions that simply do not reflect the real value of what is being offered."[63] The Deloitte review also suggested that more consistency in collecting financial information from concessionaries would assist to help determine overall market and industry benchmarks more accurately.[64] Given the ongoing resourcing issues experienced by the Department, there is a need to review DOCs funding system as a whole, including the mechanisms in place to generate additional revenue to support the Department's work.

6.6 Monitoring and enforcement of concessions

DOC is tasked with monitoring the over 4,600 concessions, a substantial task, given many are located in remote areas. In addition, until recently, the Department had very limited enforcement tools for dealing with offences. Collectively this has meant that the system has historically largely operated on trust. The problems within the monitoring and enforcement system were widely acknowledged and there was therefore cross-party support for the Conservation (Infringement Systems) Act when it was introduced in 2018 (see spotlight).[65]

With the rollout of a new enforcement system, DOC has been able to take a more proactive approach. The Department's website highlights that DOC is 'stepping up' tourism industry compliance and enforcement and has put commercial operators with existing concessions on notice that "if they breach the concession DOC is prepared to suspend or terminate under the terms of the concession contracts".[66]

Between November 2018 and April 2019 the Department conducted some 3,542 compliance checks of concessions operators, as part of its Te Wāipounamu compliance operation (in the Southern and Western South Island).[67] This work revealed that 21.9 per cent (776), or more than one in five concessionaires, were operating in breach of the conditions of their concessions. A small number, 4.3 per cent, were operating illegally without a concession at all. The compliance operation provided valuable insights into the high levels of non-compliance that have existed within the system. This type of information has previously been lacking. Parliament's Environment Committee, in its most recent 2019 annual review of DOC, raised concern at these poor levels of compliance and the need for further work in this area. The Committee was pleased to note that there are plans to extend such compliance checks to other parts of Aotearoa New Zealand.[68]

DOC's 2019 *Annual Report* had noted an apparent increase in compliance following these checks. This shows the potential value of a programme of regular, randomised, unannounced spot checks (in association with the new set of infringement fees) to increase the perceived risk of being caught, thereby improving compliance.

Raewyn Peart

Water taxi taking passengers to Te Whānganui-A-Hei Marine Reserve.

A spotlight on the Conservation (Infringement Systems) Act 2018

The Conservation (Infringement Systems) Act has provided DOC with much needed middle tier enforcement tools, including fines. Previously the options were limited to a warning at one end of the spectrum, and termination or suspension of the concession or criminal prosecution at the other: options unlikely to be used except in the most extreme cases.[69] This means that DOC staff can now issue infringement notices to commercial operators and concessionaires operating outside the scope of their concession.[70]

The new Act inserted section 51S into the Conservation Act. This sets out offences for conservation areas including undertaking non-permitted activities, interfering or damaging historic or natural features, erecting buildings or structures and generally carrying out activities without the required authorisation. The new Act also added section 48C which enables regulations to be put in place for infringement offences. As a result, the Conservation (Infringement Offences) Regulations 2019 were introduced, setting out new levels of fines. The fines are set at a relatively low level and within a narrow range, with fines for infringements of between $800 and $1,600.[71] This restricts the potential deterrent effect and ability of regulators to significantly escalate the level of fines for repeat offenders.

It is also important to note that breach of a concession is not in itself an offence. Offences arise from undertaking specific prohibited activities (such as taking of gravel, removing vegetation or erecting a structure) without permission. This means that most offences arise tangentially, rather than specifically due to a breach. More work could still be done in this space to improve and refine the enforcement pyramid.

The 12-month limitation period for prosecution, as set out under section 43(2) of the Conservation Act, is also an obstacle to effective enforcement. This section provides that proceedings must be lodged within "12 months after the date on which the offence *was committed*". As has been noted earlier, such is the scale and number of concessions in place – and the extent of the conservation estate – that there is insufficient resourcing and capacity to enable regular and timely monitoring of many activities. Damage and breaches often do not come to light until much later, especially when they occur in remote areas.

This restriction is out of step with other legislation. For example, the limitation period for offences under the National Parks Act is "12 months after the date on which the offence was *discovered*" (section 68). Similarly, under the Crown Minerals Act the limitation period under section 100 runs from "12 months after the date on which the contravention giving rise to the charge first *became known*".

Prosecutions under the Act can also be difficult. Prosecution attempts in relation to mining in Blackball Creek and Grey River notoriously failed in 2013, when the mine operator defended illegal damage caused to conservation land on the basis that additional land clearance and vegetation removal had been necessary for "health and safety" reasons.[72] Further charges failed due to insufficient evidence, since it was unclear which one of two mining companies had caused the damage. Absent regular monitoring (and capacity to conduct that monitoring) it is difficult to establish when infractions have occurred, gather the evidence necessary, or even locate who was responsible.

In granting any concession, the Minister may under section 17X(e) require the provision of a bond to ensure that any costs incurred by the Department are covered where a concessionaire either fails to carry out its relevant undertakings, or mitigate any adverse effects that arise which were unauthorized or not reasonably foreseen. The purpose of bonds is therefore to reduce risk to the Department, to ensure concessionaires cover the costs of any damage, and to ensure compliance. However, for the bonding system to work it is important that the financial calculations are correct, so that bonds are set at a level that will cover remedial work. This has not always been the case (see Mikonui Gold Mine spotlight).

Bonding calculations are only accurate if good management practices are in place. Regular monitoring is therefore crucial to ensuring any adverse effects do not escalate above what was envisioned. A study conducted in 2017 (of a relatively small sample of 20 concessions), found no statistical relationship between bonding and compliance, and speculated this was because they were "low or never paid" in practice.[73] It has also been suggested that a more structured regime that incentivises progressive or staged rehabilitation can also reduce risk. Again, this requires increased monitoring capacity and resourcing for that work to occur.[74] The types of activities that attract bonds are often challenging for the Department's limited management capacity and "capability, skills, systems and tools".[75]

A spotlight on bonding for the Mikonui Gold Mine

A 22 hectare open-cast gold mine on stewardship land at Mikonui, 31 km south of Hokitika, came to the attention of conservationists and media in 2020 when drone footage of the site, taken after 'restoration' work had been completed, showed what has been described as a "moonscape" landscape. "There's no topsoil, a gaping hole remains, and replanting, written as a concessions condition, wasn't done".[76]

The access document, which is a document signed by the company and DOC setting out the conditions on which access is approved, put in place specific conditions for the site's rehabilitation. These included recontouring of all areas and revegetation with indigenous plants – at a rate of 5,000 viable stems per square hectare. However calculations of the cost for this work, in order to set the bond, substantially underestimated the scale of the task. The backfilling and restoration work will likely cost "hundreds of thousands" more than the bond meaning that the company could simply 'walk away' from the site, forfeiting its bond, and leaving the taxpayer to pick up the excess cost.[77]

6.7 Summary of key concessions issues

- The processing and administration of more than 4,600 concessions, many with conditions attached that require monitoring, requires considerable time and resourcing by DOC.
- The 'conservation economy' approach which aims to enable use of the conservation estate to support tourism and economic growth, does not sit easily alongside other conservation goals of protecting inherent values.

Grant of concessions

- Amendments to the concessions system over the last decade, have reduced costs and increased certainty for applicants, but have also increased the ability of applicants to contest decisions and reduced the extent of public input and transparency within the system.
- Concessions cannot be declined for lack of compliance with General Policies meaning there is a statutory gap in this part of the planning hierarchy.

Neil Silverwood

Mikonui Gold Mine after it had been 'restored'.

- Although concessions must be consistent with the relevant CMS and planning documents, this requirement is not always complied with. There is tension between the need to adhere to planning documents, which have gone through an extensive public process, and the exercise of Ministerial discretion.

- A lack of clarity and conflicting provisions in CMSs and plans, and the age of these documents, complicates the concessions process which operates within a planning framework that is no longer fit for purpose.

- There is opportunity to 'game the system' by increasing the scope of a project through multiple variations and changes to conditions which avoid the need for public notification.

Allocation of concessions

- Most concessions are processed and approved on a 'first come first served' basis rather than being allocated to applicants which best support the purposes of the conservation system.

- The tendering provisions in the Conservation Act are not well-configured and serve to further complicate the concessions system.

- Current statutory tools do not accord iwi an appropriate degree of preference in the allocation of concessions as required by section 4 of the Conservation Act.

Monitoring and enforcement

- Monitoring and enforcement of concessions has historically been weak due to a variety of reasons including the scale and remoteness of the task, capacity issues and lack of effective enforcement tools.

- Recent legislative amendments to create infringement offences, and initiatives to increase monitoring, have led to increased compliance but implementation of the enforcement pyramid could still be improved.

- The 12-month limit for lodging proceedings under the Conservation Act, which runs from the time an offence is committed, is a significant impediment to taking enforcement action.

Raewyn Peart

Cattle grazing in the Haast River.

Endnotes

1 https://www.doc.govt.nz/get-involved/apply-for-permits/business-or-activity/

2 Conservation Act 1987, s17O(3)(d)

3 https://www.newsroom.co.nz/doc-reviews-nonsense-media-permits

4 https://www.doc.govt.nz/news/media-releases/2021-media-releases/outcome-of-doc-review-of-media-permits/

5 https://www.doc.govt.nz/news/media-releases/2021-media-releases/outcome-of-doc-review-of-media-permits/

6 Federated Mountain Clubs, 2020

7 Federated Mountain Clubs, 2020, *3*

8 Cullen, 1987, *New Zealand Parliamentary Debates*, Conservation Bill, (second reading, 24 March 1987), 479, 7995

9 New Zealand Government 2012, 23

10 Department of Conservation, 2010a, 51

11 Department of Conservation, 2009b, 5

12 Department of Conservation, 2009b, 33

13 Department of Conservation, 2009b, 28

14 Department of Conservation, 2009b, 6

15 Dinica, 2017, 1818

16 Department of Conservation, 2010b

17 Department of Conservation, 2010b, 7

18 Comments of the Director-General of Conservation, Al Morrison, Department of Conservation, 2010b, 2

19 Department of Conservation, 2010b, 7

20 Department of Conservation, 2010b, 8

21 https://www.doc.govt.nz/news/media-releases/2010/online-system-to-fast-track-guiding-opportunities/

22 See discussion in *New Zealand Parliamentary Debates*, Conservation Amendment Bill (third reading 23 August 2012), 683, 4747, 4758

23 Norman, 2012, *New Zealand Parliamentary Debates*, Conservation Amendment Bill (third reading, 23 August 2012), 683, 4755

24 Norman, 2012, *New Zealand Parliamentary Debates*, Conservation Amendment Bill (third reading, 23 August 2012), 683, 4756

25 Sage, 2012, *New Zealand Parliamentary Debates,* Regulatory Reform Bill (In committee, 22 August 2012), 683, 4672

26 Green Party Minority View in *Report on the Resource Legislation Amendment Bill 101-2* as reported from the Local Government and Environment Committee, 48-49

27 National Parks Act 1980, s49

28 Conservation Act 1987, s17W(1)

29 The data for this system is available online at https://catalogue.data.govt.nz/dataset/doc-cms-visitor-management-zones1

30 Department of Conservation, 2016b

31 Department of Conservation, 2016b, 1-2

32 *Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand* [2017] NZSC 106 at [131]

33 Decision support document for permission 63919-GRA, John B Cowan, notified concession, https://www.doc.govt.nz/contentassets/61eec4c8ec14439ea5e7e0ca1164bd3e/cowan-decision-support-document.pdf

34 Decision on application for reconsideration of the fencing conditions in grazing licence – Ref No 63919-GRA, 16 June 2021

35 Ron Paterson, Ombudsmen Act Investigation of DOC renewal of Routeburn Track concession, December 2014, (concession ref 361523)

36 Ron Paterson, Ombudsmen Act Investigation of DOC renewal of Routeburn Track concession, December 2014, (concession ref 361523) at [62]

37 Leo Donnelly, Ombudsman Act Investigation into aircraft landing limits trial on Ngapunatoru Plateau, 10 April 2018 at [22]-[24]

38 Fiordland National Park Management Plan, 5.3.6, Objective 1(e)

39 Leo Donnelly, Ombudsman Act Investigation into aircraft landing limits trial on Ngapunatoru Plateau, 10 April 2018 at [22]-[24]

40 Conservation Act 198, s17ZC(1)(a)

41 https://www.newsroom.co.nz/illegal-heli-landings-continue

42 https://www.newsroom.co.nz/doc-timid-weak-on-illegal-heli-hiking-fmc

43 This was one of the key recommendations made by Federated Mountain Clubs in its recent review. See Federated Mountain Clubs, 2020

44 https://www.newsroom.co.nz/greenroom/litigious-aussie-billionaires-mineral-permits-on-doc-land

45 https://www.newsroom.co.nz/greenroom/litigious-aussie-billionaires-mineral-permits-on-doc-land

46 https://www.newsroom.co.nz/greenroom/litigious-aussie-billionaires-mineral-permits-on-doc-land

47 Conservation Act 1987, s17O(3)(a)

48 Barton and Dlouha, 2014, 135

49 https://www.beehive.govt.nz/speech/speech-throne-2017

50 Parliamentary Commissioner for the Environment, 2021, 79

51 Tourism Futures Taskforce, 2020, 62

52 Tourism Futures Taskforce, 2020, 42

53 Department of Conservation, 2016a

54 Conservation Act 1987, s17ZC

55 Conservation Act 1987, s17ZAA(11)

56 See Peart and Woodhouse, 2020, chapter 8

57 Department of Conservation, 2021, 3

58 Department of Conservation, 2021, 1

59 Department of Conservation, 2021, 1

60 https://www.doc.govt.nz/news/media-releases/2020-media-releases/tourism-operators-provided-extra-relief/

61 Department of Conservation, 2021, 1

62 Department of Conservation, 2021, 3

63 Tourism Futures Taskforce, 2020, 45

64 Department of Conservation, 2021, 4

65 *New Zealand Parliamentary Debates*, Conservation (Infringement System) Bill, (first reading, 1 February 2018), 727, 1675

66 https://www.doc.govt.nz/news/media-releases/2019/doc-steps-up-tourism-industry-compliance-and-enforcement/

67 https://www.doc.govt.nz/news/media-releases/2019/doc-steps-up-tourism-industry-compliance-and-enforcement/

68 Environment Committee, 2020, 148

69 The importance of a cohesive enforcement pyramid has been emphasised by a number of legal scholars. The classic work in this area is that of Ian Ayres and John Braithwaite. See Ayres and Braithwaite, 1992, 35

70 https://www.doc.govt.nz/get-involved/apply-for-permits/managing-your-concession/compliance/

71 See Conservation (Infringement Offences) Regulations 2019, schedule 2

72 http://www.stuff.co.nz/business/industries/8996091/Illegal-mining-due-to-safety-issues-court-hears?rm=m

73 Brower and Ross, 2017, 15

74 See White et al, 2012, 280

75 Treasury, 2013, 4

76 https://www.newsroom.co.nz/rehabilitated-conservation-mine-a-desolate-wasteland

77 https://www.newsroom.co.nz/why-the-mikonui-mine-was-under-bonded

7 Species protection

The flesh-footed shearwater is listed as nationally vulnerable with its decline attributed to bycatch in fisheries.

Raewyn Peart

This chapter focuses specifically on the legal framework for protecting species in Aotearoa New Zealand. It reviews the status of threatened species and the protection of 'wildlife' more generally, before focusing on the protection of freshwater and marine species. The chapter then reviews the protection of species under the RMA before finally examining the management of introduced game species.

7.1 Historical context

The Wildlife Act is the main piece of legislation that protects species in Aotearoa New Zealand. It is now close to 70 years old, but its genesis dates back even further. During the Act's development during the 1950s, it was primarily seen as a consolidation measure for existing law, driven by the acclimatisation societies, rather than a reform.[1]

Tellingly, the vast majority of the Parliamentary debate on the Wildlife Bill, as recorded in *Hansard,* was centred around how 'game' species were to be managed and protected. The acclimatisation societies wanted more powers to ensure that people were paying for their hunting licences and that farmers were not able to profit from providing access. They also wanted a more highly regulated (and revenue generating) system to support their work.[2] In addition, there was considerable concern around dwindling duck numbers, prompting a call for more regulatory oversight and the provision for a more policed shooting season.

The Act was described as "An Act to consolidate and amend the law relating to the protection and control of wild animals and birds, the regulation of game shooting seasons, and the constitution and powers of acclimatisation societies."[3] Little mention was made of the need to protect indigenous species, other than to note that historically the "primary objective" under the Animals Protection and Game Bird Act 1921 had been the protection of game birds, but that there was growing public opinion over the "importance of the protection of native *bird* life".[4]

Despite the lack of discussion and debate over *how* this fundamental change in attitude was to be reflected in the new legislation, it was seen as significant, and did result in some modification of approach. For example, for the first time powers were provided to prevent game bird hunting in areas where "injurious animals" were being culled, in order to facilitate pest control operations.[5] In addition, provision was made for the establishment of wilderness areas where dogs and guns would be prohibited in order to protect wildlife. These kinds of provisions were new to the hunting community and the wildlife regulatory framework more generally.

The principal advocate for increased protection of native species during this era was Forest and Bird. *Hansard* Parliamentary debates on the Wildlife Bill record some of Forest and Bird's reservations about the legislation.[6] These included the treatment of different species within the schedules to the Act, in particular the lowered protection accorded some native species (under schedule 5) and higher degree of protection accorded introduced species. In response to the Society's concerns, deer, goats, possums and pigs were all moved to schedule 3 (animals that may be hunted or killed subject to conditions). This was seen as a compromise as the Society had sought to remove all protections for these species (a schedule 5 listing). However a schedule 3 listing at least enabled their populations to be restricted.

The categorisation of different species under the Wildlife Act remains essentially unchanged today. From amongst those species noted above, only possums have been transferred to the "not protected" category under schedule 5. Deer, goats, tahr, chamois and pigs were collectively moved to a new schedule 6 when the Wild Animal Control Act was introduced in 1977. They sit within a group of introduced animals highly valued by recreational hunting interests, whose presence is therefore maintained, so long as their impacts can be controlled or mitigated. Of the original 17 native bird species which were listed in the schedules (thereby reducing their protection) only a small number have since been removed; the New Zealand falcon (which could previously be killed if it harmed property) and kea (which was an unprotected species). Others have since been added, notably the spur-winged plover.[7] Still on the schedules are species such as grey duck, paradise shelduck, pūkeko, brown skua, little owl, silver eye, sooty shearwater, grey faced petrel, little shag, pied shag, black shag and weka.

At the time the Wildlife Act was introduced, Forest and Bird was also disappointed that the offences section in the legislation grouped together the hunting or killing of "absolutely protected wildlife or any game" to provide the same penalty, thereby making no distinction between the unauthorised killing of rare native species and game.[8]

Prior to the establishment of DOC in 1987, much of the effective operation of the Wildlife Act lay in the hands of acclimatisation societies, with the Wildlife Service undertaking protected species management functions. Forest and Bird was concerned that the administration of the Act was "formed almost exclusively of holders and ex-holders of licences to hunt", who would likely try to preserve harmful animals in order to maintain game populations, when the Society considered those animals should be exterminated in preference to protecting indigenous flora and fauna.[9] The Government defended the role of the acclimatisation

societies and the protections for introduced species on the basis that hunters were citizens of the highest character and in recognition of the "rights" of sportsmen.[10]

The three fundamental concerns raised by Forest and Bird over sixty years ago, at the time the Wildlife Act was introduced, remain core areas of debate today:

1. The degree of protection that should be accorded to highly valued introduced species
2. The role and recognition given to the hunting and fishing community (in contrast to other sectors) within the conservation system
3. The lack of recognition and elevated protection accorded to rare and endangered species

As indigenous biodiversity continues to decline, this balance is likely one that will need to be revisited. The Wildlife Act lacks mechanisms to facilitate this. It is telling that all interviewees, even those associated with Fish and Game, the Game Animal Council and the hunting and fishing community more broadly, considered the Wildlife Act to be outdated and in need, not just of reform, but replacement.

While DOC is now the primary administering body for conservation legislation and management of protected species, Fish and Game maintains a statutory role in the management of game species, the issue of hunting licences, and the monitoring and enforcement of the regulations (as rangers under section 38A of the Wildlife Act). This role under the Wildlife Act, and within the conservation system itself, remains a historical legacy stemming back to the acclimatisation movement.

7.2 Threatened species

Increased international awareness of the global biodiversity crisis, and national awareness of the threatened status of much of our indigenous flora and fauna, did not arise until decades after the Wildlife Act was introduced. Until relatively recently, there has been very little focus on threatened species, or awareness of how many indigenous species in this country might be at risk of extinction.

One of the first systematic assessments was undertaken in 1981 by Gordon Williams and David Given who compiled New Zealand's first Red Data Book, based on the IUCN's system of threatened species lists.[11] They identified 30 vertebrate and 62 plant species as threatened. They were also amongst the first to call for threatened species legislation and more effective protection of individual species. In 1986, the Wildlife Service updated the listing, although the lists at that time were still considered very incomplete and rudimentary.[12]

New Zealand's threat classification system arose independently of any statutory framework or legislative support. It was based on international practice and led by the IUCN Red List system. It remains largely disconnected from legislation in the conservation management system today. The current New Zealand Threat Classification System has been in use since 2011 and is a modified version of the ICUN Red List system.

IUCN Red list

The IUCN Red List of Threatened Species is a global database and classification system that provides information on the extinction risk of animals, fungi and plants. Assessors place species into the Red List categories based on a range of assessment criteria including range, population size, habitat and ecology, use and trade, threats and conservation actions.[13]

The New Zealand Threat Classification System categorises species according to their risk profile. This risk is forecast based on observed trends and likely pressures. It considers the current population size and number of breeding adults, the area of occupied habitat, predictions as to population rise and fall (depending on trends) and human-induced impacts. It is only as accurate as the data available and some species remain inherently data deficient.

The three core categories within the classification system are 'not threatened', 'at risk' and 'threatened'. The 'at risk' and 'threatened' categories have further sub-classifications within them (see Figure 7.1). *Threatened species* are those species which are considered to be at the greatest risk of extinction. Within that group, 'nationally critical' species face a severe and immediate threat of extinction, 'nationally endangered' species are at a high risk of extinction in the short term, while 'nationally vulnerable' species are facing an extinction risk in the medium term. *At Risk* species remain relatively common but may be vulnerable if declines continue. These species may be considered at risk because they are in decline, are increasing or stabilising after a decline, or have only a small population.

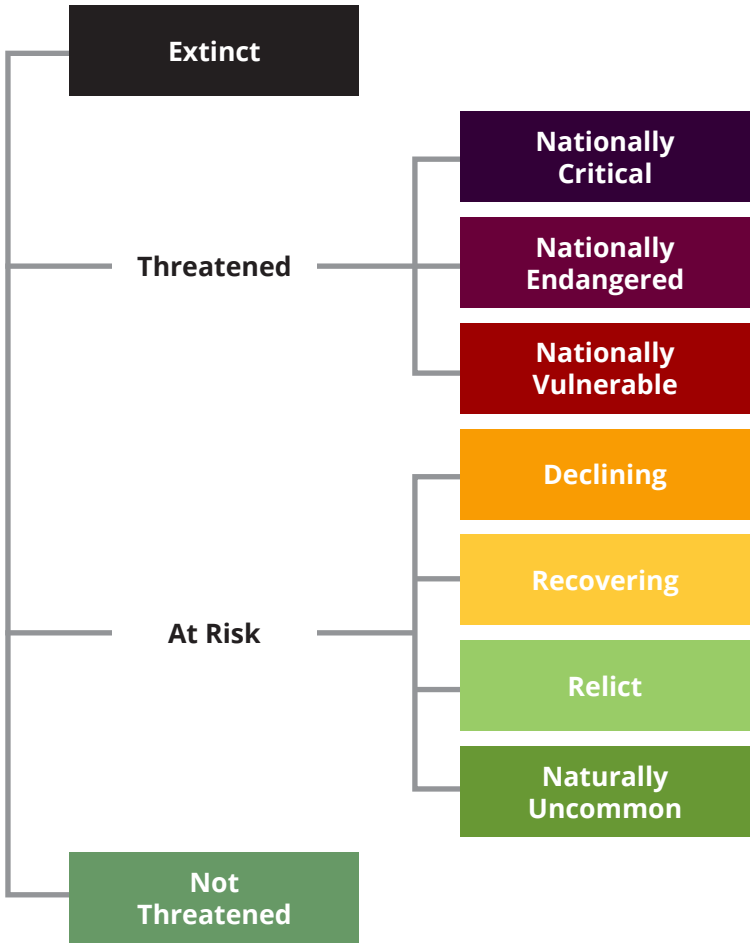


Figure 7.1 The New Zealand Threat Classification System (Department of Conservation)

These classifications are non-statutory and are not referred to in primary conservation legislation. Neither is the threat classification system incorporated into the Conservation General Policy which simply refers to threatened indigenous species in a general sense and states that management objectives "should" be incorporated into CMS and conservation management plans "where necessary".[14]

The New Zealand Coastal Policy Statement, under the RMA, is one of the few documents that formally utilises the classification system. Policy 11 directs decision-makers to "avoid adverse effects of activities" on "indigenous taxa that are listed as threatened or at risk in the New Zealand Threat Classification System lists", and "taxa that are listed by the International Union for Conservation of Nature and Natural Resources as threatened" amongst other things. In addition, section 39(1)(f) of the Exclusive Economic Zone and Continental Shelf (Environmental Effects) Act 2012 requires impact assessments to identify impacts on the "habitats of threatened species".

New Zealand remains significantly out of step with international practice for threatened species protection in having no dedicated threatened species legislation (see spotlight). Although species are classified according to their threat level, there is no formal listing process, and no statute that elevates the protection needs of listed species. There is also no legal requirement to develop a management or recovery plan for threatened species (or their habitat) or for ongoing monitoring. In turn, there has been little funding provision to enable these processes to occur.

Neil Silverwood

The Nelson cave spider is one of only three spider species protected under the Wildlife Act. It's stronghold is the Ōpāraro Basin where increasing visitor numbers may have contributed to a significant decline in spider numbers.

A spotlight on threatened species legislation in other jurisdictions

In Canada, the *Species at Risk Act 2002* requires government to prepare a recovery strategy for all threatened species, to identify threats to the species and its habitat, and to formally designate critical habitat necessary for species recovery and survival (section 58). It also sets out population and distribution objectives. This means that recovery planning is mandatory. One of the identified benefits of this framework is that it has "infused legality into the threatened species problem and allows harm to threatened species to be a justiciable issue."[15]

In Australia, the *Environment Protection and Biodiversity Conservation Act 1999* provides for the identification and listing of species and ecological communities as threatened, development of conservation advice and recovery plans for listed species, establishment of a register of critical habitat, and recognition of key threatening processes. The Act also makes listed species and ecological communities a priority for funding. It requires a list of threatened species to be established and anyone may nominate an indigenous species for listing. Once listed, the protection of that species is recognised as a matter of national significance and any action likely to impact it must be referred to the Minister and undergo an environmental assessment and approval process.

In the USA, section 4 of the *Endangered Species Act 1973* provides a procedure for listing species as threatened or endangered and for the designation of critical habitat of those species to be protected. Preparation of a recovery plan for both listed species and critical habitat is provided for.

Raewyn Peart

The population of Hector's dolphin is nationally vulnerable. Marine mammals were protected in 1978 but this has not stopped fisheries bycatch of the animals.

7.3 Protecting 'wildlife'

"Most native New Zealand birds have had ongoing full protection since at least 1910. Equivalent blanket protection for marine reptiles was granted in 1953, for marine mammals (under the Marine Mammals Protection Act) in 1978, and for hard corals in 2010 – a full century after birds. Absolute protection of marine fishes remains limited to nine iconic species and was initiated in the 1980s. This is similar in both timing and proportional extent to the protection history for terrestrial invertebrates: 29 species and two genera were granted absolute protection in 1980, with further species and genera added in 2010."[16]

The core legislation that provides species based protection in Aotearoa New Zealand is the Wildlife Act. This is our most spatially broad species-orientated legislation, covering all wildlife and extending across land, the territorial sea and the exclusive economic zone.

As already indicated, this 1953 Act is very dated, and stems from a different era; it predates modern concerns, such as the global biodiversity crisis and climate change, so makes inadequate provision for the protection and management of our most rare and highly endangered species. The balance it strikes between protecting introduced and indigenous species is also arguably out of step with the current priority to protect native wildlife, and this interface is increasingly becoming a space of conflict.

The Act starts by declaring in the broadest terms, under section 3, that "all wildlife is hereby declared to be subject to the Act and to be absolutely protected throughout New Zealand and New Zealand fisheries waters".

What is immediately apparent is that this broad protection makes no distinction between introduced and indigenous species, or common and rare species. The Act applies to all wildlife which is broadly defined as "any *animal* that is living in a wild state" and includes "any such animal or egg or offspring of any such animal held or hatched or born in captivity." However, there are a number of exceptions to this definition that make its operation far less clear in practice.

The first set of exceptions arises from how the term "animal" is defined. Under section 2, an animal means "any mammal (not being a domestic animal or a rabbit or a hare or a seal or other marine mammal), any bird (not being a domestic bird), any reptile, or any amphibian". Apart from the exceptions explicitly contained in the definition, fish and invertebrates are also excluded from the definition of animal.

In order for a species of fish or invertebrate to be protected under the Wildlife Act action must be taken (in the form of a Wildlife Order under section 8 of the Act) to formally declare it an animal and add it to the scheme of schedules to the Act. A listing of invertebrate and fish species that have been added to the Act can be found in schedules 7 (invertebrates) and 7A (marine species). Notably, there is no mechanism within the Act to protect freshwater fish species. Neither is there protection for marine species caught as bycatch.

A spotlight on the definition of 'animal'

The definition of 'animal' under the Wildlife Act is not based on any rational biological classification but is contextual, covering mammals (but not "domestic animals", rabbits, hares, seals or "other marine mammals"), birds (but not "domestic birds") and no fish species. The omission of fish is a significant point of difference with the Conservation Act where the definition of "animal" is more science based and refers to "any member of the animal kingdom other than a human being".

Both these definitions are different to that employed under the Animal Welfare Act 1999, which includes "any live member of the animal kingdom that is a mammal, a bird, a reptile, an amphibian, a fish" or "any octopus, squid, crab, lobster or crayfish" as well as any other member of the animal kingdom declared by the Governor-General by Order in Council. Interestingly, it also includes mammalian foetuses, any avian or reptilian pre-hatched young that is in the last half of its period of gestation or development, and marsupial pouch young (section 2(1)).

What constitutes a "domestic" animal under the Wildlife Act is even more complex. Under the Act, "domestic birds" include domestic fowl, duck, geese, turkey and pheasant; unless they are in a wild state; but do not include other birds (such as emu and ostrich) even where they are living in a domestic state. Cattle, sheep, horse, mule, ass, dog, cat, pig and goat are "domestic animals" unless they are "living in a wild state".

Conversely, the definitions change again under the Wild Animal Control Act where cattle, sheep, horses, mules, asses, dogs and cats are "domestic" whether or not they are living in a wild state. But the status of goats and pigs changes depending on whether they are living in a domestic state or in the wild. For example, under that Act a goat or a pig living in the wild, will be a "wild animal", where a horse, cow or sheep retain their status as "domestic" regardless of where they live. Many of these definitions make no sense from a linguistic or common usage perspective. There is, of course, reasoning behind the distinctions being made: under the Wild Animal Control Act the intention is to enable "wild animals" (wild goats and pigs) to be hunted but not "domestic" (eg horses, cattle) ones. But the regime is not inherently intuitive. Neither are the criteria for the classifications, or the rationale underpinning them, clear from the legislation.

When the Animals Protection Act 1960 was replaced with the Animal Welfare Act 1999, similar issues had to be worked through, since the definition of 'animal' under the earlier legislation was variable according to the *use* to which animals were being put.[17] The definition employed under the Animal Welfare Act now takes a more science based and consistent approach, with the detail on what is required across different contexts (research, transport, slaughter, safari parks etc) provided for within the Act. As a result, the regime is far clearer in its application, and the *rationale* for the requirements across different contexts more explicit. This demonstrates that greater clarity *is* possible on matters such as this.

In the conservation context, it is additionally important that there is greater standardisation of terminology, so that definitions do not change according to what statute is in play, especially when the statutes must frequently work in tandem. A fundamental question to be resolved is whether we should formally distinguish in law *introduced* and *native* wildlife.

Tanya Peart

Sandagers Wrasse. Unlike birds, fish are not classified as 'animals' under the Wildlife Act and therefore are not protected unless specifically listed in schedule 7A.

The main way the Wildlife Act makes distinctions between species, and provides for different levels of protection, is through schedules attached to the Act. These provide exceptions and modifications to the general rule of absolute protection for wildlife. There are currently eight schedules.

Wildlife Act schedules

- Schedule 1: lists wildlife that are declared game (eg pheasant, quail, black swan, pūkeko, partridge and more controversially shoveler, paradise shelduck (putangitangi) and the critically endangered grey duck (parera)). Fish and Game regional councils set the conditions, notifications and seasons for hunting these species under Part 2 of the Act.
- Schedule 2: lists partially protected wildlife (eg silvereye, little owl and Brown skua). These animals may be hunted or killed by occupiers of land where they cause injury or damage to land and property (section 5).
- Schedule 3: lists wildlife that can be hunted or killed subject to conditions (eg pheasant, quail, mallard duck, but also species such as sooty shearwater and weka in certain locations).
- Schedule 4: (now repealed) listed wildlife not protected except in specific areas or for specific periods.
- Schedule 5: lists wildlife that is not protected (eg possum, cats, ferrets, hedgehogs, rats, wallaby, blackbird etc)
- Schedule 6: lists animals declared to be "wild animals" under the Wild Animal Control Act (eg deer, chamois, goat, tahr and pigs).
- Schedule 7 and 7A: list invertebrates and marine species declared to be animals for purposes of protection.
- Schedule 8: lists wildlife not protected but which may be kept, bred or farmed in captivity under regulations (eg ferrets, stoat, polecat and weasels).

The specific listings within these schedules have been a matter of dispute since the Wildlife Act was first put in place. Concerns have long been raised around the level of protection afforded to introduced species or conversely over the use of schedules to lower the protection in place for certain indigenous species.[18] Species have also been moved between schedules. For example, in 2010 the spur-winged plover (an indigenous species) had its protection removed to allow its culling for aviation safety. The species is responsible for 37 per cent of bird strikes nationally (over 50 per cent at airports).[19]

There is no question that the system of using schedules provides a degree of flexibility and high specificity. However, whether introduced species should be protected under the same provisions that apply to rare and endangered native species is a matter for debate.

Controls on the cultural use of indigenous plants and animals has long been a matter of concern to Māori. Iwi often note that the current law elevates traditional western uses of nature (hunting and fishing of introduced species such as trout and salmon, and recreational pursuits), but fails to recognise mātauranga Māori perspectives and traditional Māori use of species in a similar way: including cultural harvest, use of native timber for carving and use of native bird feathers.[20] As discussed in Chapter 2, the Waitangi Tribunal in the WAI 262 Report recommended that provision be made for shared management of wildlife species in line with the partnership principle.

A spotlight on the management of game birds and native ducks

A number of indigenous duck species have a lowered level of protection under the Wildlife Act. Most controversial is the listing of grey duck under schedule 1 "game" since the species is in rapid decline and has been declared critically endangered. The grey duck is thought to be extensively hybridised with the introduced mallard, and the remaining true grey ducks look so similar to mallard that it is nearly impossible to prevent them being shot by duck hunters. It is also estimated that about 30,000 Shoveler ducks are killed every hunting season.[21] Again, protection is complicated by the similar appearance of female shovelers to the female mallard.[22]

The only indigenous species of duck that are legally protected are the brown and grey teals (pāteke and tētē moroiti), New Zealand scaup (pāpango) and blue duck (whio). The grey teal often flies with mallards and is shot in error by hunters. In recognition of the difficulty of avoiding killing them during the hunting season, in 2010 the penalty for taking one was *dropped* from $100,000 to $5,000 – to match the fines available for shooting game out of season.[23] Prosecution for the shooting of protected birds during duck hunting season is rare, in large part due to the difficulty of detecting such offending.[24]

Climate change, habitat loss, predation, overhunting and extreme weather events due to climate change are taking their toll even on the abundant mallard, so much so that the 2015 hunting season was shortened to one month, with bag limits for *all duck species* reduced. A subsequent 2017 study found that altering the hunting season dates had little impact on the numbers of birds killed. It was concluded that harvest and population size cannot be readily managed at present, since "hunters continued to hunt after the close of the short seasons" and there is insufficient enforcement, in part due to the large numbers of shooters and small numbers of Fish and Game officers.[25] Anecdotal evidence also suggested that hunters spend more time hunting during short seasons, thus harvesting a greater proportion of the population.[26] "Condensed hunter effort and success ... and non-compliance make it difficult to constrain harvest using season length regulations".[27]

The study found that reducing bag limits more substantially (less than two birds/day) could assist but that *this was outside the scope of existing regulations*. The study further found that illegal take represented up to 13 per cent of *reported* harvest and that this issue remained difficult to address without greater monitoring.[28]

A spotlight on section 71 of the Wildlife Act

Section 71 of the Wildlife Act directs that nothing in the Wildlife Act "shall derogate from any provision of any of the Acts specified in schedule 9". The courts have determined that where the Wildlife Act comes into conflict with one of these Acts, a balancing test operates, requiring harm to wildlife to be weighed against the benefits of that other legislation. Where the two Acts cannot be reconciled, the other statute will prevail over the Wildlife Act.[29] Schedule 9 currently includes a number of statutes such as the Government Roading Powers Act 1989 (removal of trees, roadside structures), Forest and Rural Fires Act 1977 (permits to light fires), Reserves Act and National Parks Act. This reduces the status of the Wildlife Act and the species-focused protection it seeks to put in place.

Authorising taking or killing of wildlife

Section 63 of the Wildlife Act is key to providing species protection. It states that "no person may, without lawful authority hunt or kill any absolutely or partially protected wildlife or game". Permits can be granted by the Director-General to hunt or kill protected species under section 53 of the Act. But other than stating that "the Director-General may from time to time in writing authorise any specific person to catch alive or kill for any purpose approved by the Director-General any absolutely protected or partially protected wildlife...", there is no other guidance as to when such authorisation should be granted and when it should be refused. There is also no provision for consultation with Māori or any other party and no public submission process. The spotlight on the Mount Augustus snail (see below) illustrates how these deficiencies in the Act are putting endangered species at risk.

Bernard Spragg

Pūkeko are declared game under Schedule 1 of the Wildlife Act.

A spotlight on the Mount Augustus snail

"Happy Valley had always been untouched, even by the neighbouring mines, which made it an oasis of biodiversity. The valley was clad with red tussocks and beech forest, carved with clear streams and native animals like kiwi."[30] In 1988, part of the valley which is located near Westport, had been recommended by DOC for protection for the nationally significant biodiversity values present. Forming a part of the adjacent ridge is Mount Augustus.

In 2004, the Department discovered a population of one of New Zealand's rarest creatures, *Powelliphanta augusta* or the 'Mount Augustus snail', present in the area. This is a species of large carnivorous snail that is slow breeding and relatively long lived. The snails live for around 20 years and do not attain maturity until they are five or six years old. To date, they have only been found in the Mount Augustus area.

In 2005, a substantial area of the snail's remaining habitat was 'accidentally' destroyed by mining activity. This left a surviving population of fewer than 1,000 individuals at one small five hectare site on the mountain.[31] That site now constituted the snail's last remaining habitat and population, and the species was critically endangered.[32]

However, the area was also full of coal, to the value of approximately $850 million.[33] Solid Energy (a former state-owned mining company) had a coal mining licence, issued under the former Coal Mines Act 1979. This Act was repealed by the Crown Minerals Act but the licence remained in force.[34] The area of the proposed mine's footprint contained 94 per cent of the snail's remaining range. The snail is protected under the Wildlife Act by virtue of it being listed in schedule 7 (where all *Powelliphanta* species are protected). Initially, both the Minister of Conservation and Minister of Energy considered no additional authorisation was required under the Wildlife Act for the impacts of mining on the snail population, since the mining licence provided sufficient lawful authority to proceed.

In 2006, Forest and Bird contested this view in court, arguing that permission was also required under the Wildlife Act. The High Court agreed, finding that the issue was one that necessarily involved questions of fact, and it was "likely, if not inevitable" that snails would be removed and killed. In addition, the impact of mining on the snail's habitat would affect the ability of the remaining population to breed and sustain itself "so that the population will be adversely affected".[35] As section 63 of the Wildlife Act prohibited the hunting, killing or disturbance of absolutely or partially protected wildlife without lawful authority, the court held that express permission by the Minister of Conservation was required before mining could proceed.

In April 2006, the Minister of Conservation gave the necessary permission for mining operations on the ridgeline. Permits were granted for 250 snails to be removed. Some of the snails were to be released into an adjacent site, although it was unclear whether a new population would establish in that area, given that the species had never expanded into that site historically. The main transfer site was also considered to only have sufficient habitat to support around 85 snails, and with a different altitude aspect, climate, soils and vegetation, the future of snails released at that site was uncertain. For this reason, permission was also given to take some snails into captivity, although it was also unknown whether the species could be successfully held and bred in captivity.

The sanctioning of the removal and relocation of a protected species was highly controversial. "It rationalised the decision to mine and legitimised an apparent need to 'balance' economic and environmental imperatives in a region where both are fragile".[36]

Activist group Save Happy Valley Coalition filed further court proceedings, seeking a number of declarations and enforcement orders in an attempt to halt the commencement of mining, but were unsuccessful. In his judgment, Dwyer J noted that "there is little doubt that from the scientific and environmental view, the snails should not be moved" and that the argument that the removal of the snails and destruction of their habitat was a "high risk strategy" was "an entirely reasonable" and "supported" proposition. "We record our disappointment at what has occurred".[37]

However, the Court found that the correct approvals were in place and that we "must assume that the Ministers responsible for the issue of the necessary permits have considered the matters

which they were required to take into account". It was not for the court to revisit the merits of those decisions. This was especially the case where the balance of convenience of doing so could result in "potentially massive losses to Solid Energy" for an unfounded, interim enforcement order.[38]

Solid Energy agreed to pay for the snails' upkeep, following their removal from the mine site, for a period of 10 years. This ended up costing the company around $200,000 per annum (to house the creatures in climate-controlled fridges and pay for their care), and a total of over $7 million for the entire programme.[39] But even after that 10-year period had run its course, there remained nowhere to relocate the snails to, as their habitat had been destroyed. "The snails have been in captivity longer than most expected, in a kind of purgatory, because there is still no verifiably safe habitat for them in the outside world". There are around 1,400 snails still in fridges today, some are nearing 30 years old and "without the fridges and DOC staff caring for them, the snails would be extinct".[40]

Neil Silverwood

The Denniston Plateau where some of the Mt Augustus snails were released has also been subject to coal mining.

Decision-making around the future of the Mount Augustus snail highlights the lack of direction, transparency and formal process that exist under the Wildlife Act and the broadness of Ministerial discretion. There is nothing in the Act preventing permissions being granted in the absence of data and knowledge, even where a species is critically threatened. In addition, Forest and Bird had asked to be consulted on the application, but the request was declined.[41] Critics have also noted the lack of appeal rights under the Act and what has been described as "a complete disconnect between the legislative framework and the Government's policy direction on protecting indigenous biodiversity as provided in the New Zealand Biodiversity Strategy".[42]

It is clear that the power available to the Director-General under section 53 needs to be more defined. At present it enables permission to be given to kill even critically endangered species. There is also a lack of linkage between the Wildlife Act and the Biodiversity Strategy, with no obvious discussion or consideration of the Strategy when making decisions under section 53. The 'biodiversity crisis' widely acknowledged today was not appreciated or a focus of government when the Wildlife Act was put in place. The term biodiversity is not even present within the legislation. This is one of the clearest areas where the Wildlife Act is especially dated and out of step with a modern conservation approach.

Enforcement provisions

The Act provides for different penalties for the taking of protected wildlife as opposed to the taking of game. For example, the taking of protected wildlife (which includes hunting, killing, disturbing or destroying) attracts a penalty of up to two years imprisonment or fine not exceeding $100,000 for individuals and $200,000 for a body corporate.[43] In contrast, the penalty for game offences are a fine of up to $5,000 for an individual or $10,000 for a body corporate.[44]

However, the offence of taking 'protected wildlife' and the penalty for it remains generic, with no distinction made between taking indigenous, non-indigenous, common, at risk or critically endangered species. Despite this, the status of a species does remain a factor for the judge to consider in sentencing, alongside a number of other matters, and the courts are starting to make distinctions on this basis. For example, in *Tawha v Fish and Game*[45] the Court noted that "offences involving sports fisheries are relatively serious, but in my assessment, not as serious as offences involving absolutely protected wildlife or marine mammals."

Overall, prosecutions remain rare and the sentences are often low in comparison to possible penalties in the Act. For example, in 2013, a man was convicted after driving through a colony of black-billed gulls (one of the most endangered gull species in the world) thereby disturbing the birds and destroying a number of nests and eggs.[46] The area was well signposted, and when asked to leave, the man drove over even more nests on his way out. He was sentenced to one month in jail. The case represents a rare example of a term of imprisonment being handed down by the courts, and was therefore viewed as a positive outcome, although the Act provided for a sentence of up to two years.

The Wildlife Act is one of the most outdated, and was overall the most universally criticised piece of legislation, within the conservation system. All interviewees that we spoke to agreed that it needed to be replaced as a matter of urgency.

7.4 Protecting freshwater species

A 2012 assessment of Aotearoa New Zealand's freshwater fauna concluded that the country has "one of the most endangered freshwater habitats in the world".[47] Our freshwater fish fauna is characterised as consisting of relatively few species, with a high level of endemism, and with a high proportion of introduced species. Freshwater biodiversity has continuously declined over the past century, being especially rapid over the last 40 years in response to accelerated land use intensification. While only one native fish species is extinct, many are now locally extinct throughout New Zealand.[48] The number of threatened or at risk species of freshwater invertebrates increased from 17 in 2005 to 82 in 2013.[49] A 2018 conservation status report put the number of threatened and at risk ('in decline') freshwater invertebrates at 88.[50] But there is simply insufficient data to evaluate many species. The 2018 report noted at least 178 species which were too "data deficient" for their threatened status to be known.

Under current classifications, 74 per cent of all Aotearoa New Zealand's native freshwater taxa are threatened or at risk[51] and 65 per cent are in "significant decline".[52] Proportionally, the country has more threatened freshwater species than most countries around the world and we are listed as one of the six global 'hotspots' where the proportion of introduced species to native freshwater species now exceeds 25 per cent.[53]

Despite this dire situation, it is not possible to protect freshwater fish under the Wildlife Act (as indicated above). The Freshwater Fisheries Regulations 1983 (made under the Fisheries Act 1983 but transferred to the Conservation Act by the Conservation Law Reform Act 1990) do specifically protect one freshwater fish species – the New Zealand Grayling (*Prototroctes oxyrhynchus*)[54] which is now functionally extinct. It remains the only fully protected freshwater fish in the country. Brown trout are thought to be linked to the Grayling's extinction, although the evidence on this is inconclusive as the species also disappeared from uninvaded rivers. The species was highly migratory and it is thought that predation and over-fishing at sink sources may have collectively been to blame.[55]

The Freshwater Fisheries Regulations give the Director-General a decision-making role in relation to fish passage when facilities like new culverts, dams or diversions on natural waterways are proposed.[56] In addition, the Regulations are used to manage introduced fish species including brown trout (*Salmo trutta*), rainbow trout (*Oncorhynchus mykiss*) and chinook salmon (*Oncorhynchus tshawytscha*).[57] Similar regulations control harvest of whitebait.

Impact of introduced species

"Trout and salmon decimate native species. Why is there such a role given to them? When we have a biodiversity crisis, why would we be doing that?! Where is the duty of active protection? Yes, it has resulted in some good work being done to protect our waterways, but in the conservation estate? It's the Pākehā way of interacting with nature that's protected, Māori ways of interacting are far less accommodated. These are basic equity issues we need to address". (*Interviewee)*

Invasive species are one of the many factors identified as contributing to the decline of our native aquatic fauna. Twenty-one introduced species of freshwater fish are now established. Many exotic species out-compete or actively prey on native fish species and more than 70 exotic plants have invaded our waterways.[58] Ecologists have been highly critical of the lack of control of introduced fish species, and the continual introduction and stocking of our lakes and waterways, despite increasing evidence that introduced species can adversely affect native fish and natural environments.[59]

Rainbow and brown trout are piscivores (carnivorous) and it is widely accepted that these species have reduced populations of native galaxids in many lakes and streams, both through predation and competition.[60] Their presence also reduces the resilience of many of our already vulnerable

native species. Ecologists have warned that the accidental release of another carnivorous species, such as pike, would pose a significant threat "to native species already decimated by brown and rainbow trout".[61]

Today, many threatened populations of endemic non-migratory galaxiid fish populations only exist upstream of natural barriers that exclude predatory trout.[62] There is evidence that brown trout can have a devastating impact on native fish. The classic study in this area was published in 1991 by Jellyman. The researchers investigated streams in Otago which had waterfalls of at least three metres high that brown trout cannot traverse. Above the waterfalls, native galaxiids were common and often thriving. Below the waterfalls, galaxiids were "repeatedly absent", and this was the case regardless of the land-use beside the streams. Citing more than 100 scientific papers, Jellyman and colleagues detailed the "significant deleterious effects on native biodiversity" of brown trout.[63] In 2008, brown trout were recorded for the first time in the upper reaches of the Coash Stream near Arthurs Pass and were found to have eliminated all galaxiids above the culvert.[64] Despite such evidence, trout receive greater statutory protection than indigenous fish species by virtue of the statutory recognition under the Conservation Act of the need to 'manage, enhance, maintain and protect' sports fish. This is presumably on the basis that the socio-economic benefits of freshwater trout fisheries outweigh their ecological impact.

There is no question that the value placed on species such as trout has provided an avenue for strong habitat conservation advocacy. However it is also clear that habitat protection alone will not ensure the maintenance of indigenous freshwater biodiversity, and that integrated management of invasive freshwater species will also be necessary. When New Zealand drafted its first Biodiversity Strategy in 2000, in order to partially fulfil its obligations under the Convention on Biological Diversity, debate highlighted the politically controversial nature of such labels as 'invasive' and 'pest' in relation to highly valued salmonid species.[65] As a result, the Biodiversity Strategy formally recognises the importance of 'valued introduced species' and the need to also protect them from new invasive arrivals. It also recognises that reaching a balance that protects valued introduced species, whilst also ensuring indigenous biodiversity thrives, remains "a key challenge".[66]

'Valued introduced species' are introduced species, including sports fish, game animals and species introduced for biocontrol, which provide recreational, economic, environmental or cultural benefits to society. (*Te Mana o te Taiao Aotearoa New Zealand Biodiversity Strategy 2020*)

Dean Nelson

Brown trout from a lake system eating a galaxiid.

A spotlight on the eradication of trout

The eradication of trout from Wellington's Upper Karori Reservoir and tributary streams, saw a dramatic improvement in native galaxiid fish and crayfish numbers and a shift in zooplankton composition.[67] However, achieving this involved intensive work. Native species remaining in the area were caught and held while streams were treated with rotenone. Any native species affected during the procedure were rescued and revived, being released back only once the waters were deemed safe.[68] Netting was also used to remove invasive species, but this needs to be conducted regularly to supress numbers in areas where they can easily migrate back.[69]

Eradication projects like this are relatively uncommon, are typically associated with restoration projects, and can be controversial amongst anglers. At a 2019 meeting of Fish and Game discussing the proposed work at Karori to eliminate perch, the acting Chair noted "that perch as a sports fish is important to some members of the public and needed to be treated with respect – as the fishery has 'value' to some even if not 'fished'".[70] Concern was also raised that the project be treated as a "unique situation being an isolated water body that the Karori reservoirs provided but providing a possible precedent was potentially contrary to the Fish and Game mandate to manage and enhance the sports fish resource".[71]

The perch were introduced to the lower part of the reservoir more than 140 years ago to create fishing opportunities. The eradication project, which has now been approved, will involve removal of more than 20,000 perch from the area.[72]

This Upper Karori spotlight highlights an inherent deficiency in the legislation. Under section 26ZI of the Conservation Act, the taking of sports fish without a licence is strictly prohibited and constitutes an offence. Similarly, the Freshwater Fisheries Regulations 1983 prohibit catching or keeping of sports fish except with the prior consent of Fish and Game. There is therefore a potential conflict between Fish and Game's role of promoting the interests of anglers and the issuance of licences for indigenous restoration projects.

Section 26ZI of the Conservation Act does provide an exemption for the taking of sports fish "for the purposes of scientific investigation or data collection" and the Director-General is authorised to reach agreements with parties "for the purposes of research and development work on freshwater fishery resources" under section 53(3)(a). While this may provide a work around for some restoration projects, the lack of a specific pathway for restoration and indigenous species protection work is problematic.

Coarse fishing

Coarse anglers fish for rudd, catfish, goldfish, tench, perch, eel, koi carp and grass carp. Many introduced coarse fish species are considered pests (eg catfish and goldfish) and some, like koi carp and rudd, are classified as noxious and invasive species.[73] As a matter of tradition, coarse fish anglers typically have a strong ethic against killing fish unnecessarily and prefer a catch and release approach. Although the practice of catch and release of pest fish is illegal, a 2015 survey of coarse anglers found that 91 per cent reported releasing fish caught.[74]

Rudd was introduced illegally in 1967 and strategically placed into lakes and ponds in the Waikato region. Often referred to as the 'possums of the waterways' their feeding habits endanger native plant species, destroy indigenous habitat, stir up sediment so impact water quality and remove food sources for native fish. They are classified as a noxious species – except in Auckland and Waikato where they are sports fish.[75]

Surveys of coarse angler opinion have found that most would like to increase their fishing opportunities, consider that the negative impacts of coarse fish have been exaggerated, and feel that Fish and Game should do more to manage coarse fish species.[76] There is also some resentment of the elevated status of species like trout as 'valued introduced species'. Trout is cited by this group as an example "of the subjective nature of freshwater restoration" of "how one introduced and arguably invasive species can become highly valued while another does not, despite evidence of similar environmental impacts".[77] This demonstrates that equity concerns, and the historical protections that exist for sports fish, are contentious even within the broader angling community. A recent survey found that coarse anglers agreed that the management of non-indigenous invasive fish would benefit from legislative review, driven in part by desire to create designated coarse fisheries and remove some of the requirements for killing on capture.[78]

The coarse fishing example elucidates the potentially 'slippery slope' that exists in this arena and the need for more objective and clearly articulated criteria to inform the designation of 'valued introduced species'. It also underscores the importance of a science (rather than subjective or anthropocentric) based approach, directed by robust assessments of the environmental effects and threat posed to indigenous habitats, flora and fauna.

Despite being widely accepted as important for freshwater species protection, the maintenance of natural connectivity, habitat enhancement and control of introduced fish are all inadequately supported by the legal framework. The Conservation Act does not directly address the responsibility of Fish and Game in relation to invasive species.

Indigenous freshwater fisheries

In contrast to the role Fish and Game plays in managing sports fisheries, the harvest of indigenous freshwater fisheries is managed by the government under the Conservation and Fisheries Acts. The freshwater species most regularly harvested are eels (tuna), lamprey (piharau), mullet, estuarine flounder, migratory galaxiids (whitebait), freshwater crayfish (kōura) and freshwater mussels (kākahi).[79] Eel, lamprey and whitebait are important customary fish species for Māori. Whitebaiting is also seen as an important part of the community culture in regions like the West Coast.

Eels are the target of the more significant indigenous commercial freshwater fisheries and are also subject to customary and recreational fishing. Commercial eel fishing is regulated by Fisheries New Zealand under the Fisheries Act. Eels have been introduced into the quota management system which allocates private rights in the harvest (individual transferrable quota) and sets a total allowable catch. In recent years, short fin and longfin eel have been managed as separate stocks. The industry is estimated to be worth $6.1 million per annum.[80] This fishery is impacted by habitat loss and degradation and the loss of fish passage up and down streams. DOC is responsible for eel habitat protection and regulation of commercial eel fishing in conservation areas, where it is prohibited without a concession.[81]

Whitebait fisheries are managed by DOC under two sets of whitebait fishing regulations: one for the West Coast[82] and one for the rest of New Zealand.[83] DOC took over these regulations from the then Ministry of Agriculture and Fisheries and they have not been substantially changed since the 1990s. The regulations do not control the harvest of fish, but focus on restricting catch methods and seasons. There is currently no licencing system or catch limit, so the size of catches is uncapped. In addition, whitebait can be freely sold on the market, with the economic return potentially incentivising large catches.[84] In recent years, major variations in whitebait runs have started to effect catch levels, and there has been a decline in the adult populations of whitebait species around the country.[85] The decline has not been attributed to any single factor: it is loss and degradation of habitat, fishing pressure, introduced species, loss of spawning sites and access to waterbodies (due to fish passage barriers like culverts).

There is a worrying lack of information on the state of indigenous fish stocks such as whitebait and publicly available catch records for the fishery are very limited.[86]

Indigenous freshwater fish law reform

In 2018, the government put forward the Conservation (Indigenous Freshwater Fish) Amendment Bill aimed at addressing some of the ongoing issues arising from the lack of regulation and protection of indigenous freshwater fish. The Bill proposed mechanisms to enable freshwater fisheries management plans to be put in place, in recognition of the need "to provide native fish with similar legal tools as those already available to protect native plants and animals in this country".[87] Existing regulatory powers were described as outdated and "not fit for purpose for the future", particularly as the pressures on fisheries such as whitebait and eel would only grow without further tools to regulate them.[88]

Whitebait, eel, mussels and lamprey fisheries, in particular, have seen reduced productivity and size over the last 50 years and there was growing public demand for measures to be adopted to address this decline.[89] There was also recognition that if no action was taken, the continued decline would inevitably lead to a ban being put in place to protect the species. The ability to better regulate fish passage was also seen as an important aspect of the new Bill, with existing regulations insufficient to deal with the issue.

The jurisdictional problems between the Fisheries Act and Conservation Act regimes were acknowledged during the indigenous freshwater fish reform process, with some areas of significant overlap between the two pieces of legislation being highlighted. This is because the ambit of the Fisheries Act is not limited to marine species but potentially applies to all "aquatic life" including freshwater fish.[90] At the same time, DOC has powers under Part 5B of the Conservation Act to manage indigenous freshwater fish. Between 2004 and 2011 DOC and MPI undertook a jurisdictional review of their respective roles in this area, but the issues remained unresolved. They were also put in the 'too hard basket' when the Amendment Bill was developed.[91] However, the resultant legislation recognised that specific regulations under the Fisheries Act take precedence over more general controls in the Conservation Act.[92]

Originally, the Amendment Bill contained much clearer direction on the priority to be accorded indigenous and introduced species, stipulating that where there was a conflict between indigenous freshwater and sports fish management plans, the indigenous plan would prevail (clause 5(3)). It also originally prohibited the taking of indigenous freshwater fish from conservation areas without express authorisation (clause 7). Both these provisions were highly controversial and opposed by anglers.[93]

Fish and Game stated that, while it supported efforts to provide better protection for indigenous freshwater fish, it was important that it "should not be at the expense of trout and other freshwater sports fish" or to the "more than hundred thousand anglers who value these fish for the recreational, cultural and economic benefits they provide".[94]

Fish and Game strongly opposed clause 5(3) which gave "freshwater fisheries management plans priority over Fish and Game's fish and game management plans". It was concerned that this would allow DOC "to remove

all trout and salmon from particular rivers and lakes" in order to establish areas that excluded trout, "even if those waterways have been identified as significant trout and salmon habitat". Fish and Game also argued that the regime under clause 5(3) reduced its right to be consulted as a manager of sports fish. As a result of this opposition, clause 5(3) was removed.

The Bill was also controversial because it enabled the regulation of whitebaiting and was widely viewed as an attempt to facilitate its ban on conservation land.[95] Transitional arrangements were incorporated into the original Bill to allow whitebaiting to continue in conservation areas for two years after the commencement date. This was to ensure that any changes would not disrupt the upcoming whitebaiting season, and to enable greater consultation before any new regime was put in place. The requirement for individual authorisations to take fish from conservation areas was also removed from the Bill.

However, the Conservation (Indigenous Freshwater Fish) Amendment Act 2019 did put in place a new section 26ZHA, which states that approvals allowing access to public land for recreational purposes are not approvals for recreational fishing of indigenous freshwater fish. Under section 26ZHB, no indigenous freshwater fish may be taken from a conservation area except in accordance with an authorisation under the Act. Section 26ZHD then provides for authorisation to be provided through public notice, specifying the type of fish that can be taken, from what areas and in what manner. This means that authorisation for harvesting of indigenous freshwater fish is now through a general regime rather than through an individual permissions system.

The Amendment Act, and the changes it made to the Conservation Act, were highly controversial. The National Party voted against the Bill and issued a minority view in select committee underscoring the importance of sports fishing to the recreational and tourism sector. It argued that the changes would negatively impact on the sports fishery and highlighted that "whitebaiting creates livelihoods and is a treasured recreational pastime for many New Zealanders".[96] It was the Party's view, that despite the transitional arrangements put in place and promised consultation, the new powers would be used to shut the fishery down.[97] The Government strongly refuted that there was an intention to shut down whitebaiting – only to ensure its ongoing sustainability.

There was also some dispute and debate over the science; including questioning whether whitebait as a species were actually in decline, arguing that insufficient evidence existed to establish which areas were spawning areas, and calling for more research and quantitative data to be gathered before moving to regulate in an attempt to manage the fisheries more sustainably.[98]

The highly emotive nature of much of the debate around whitebait, or of any regulations that might impact on trout and salmon fishing, reflects difficulties associated with restricting long-running practices, particularly in areas where they are seen as part of the fabric of local communities and culture.

A spotlight on the views of freshwater ecologists

Between 2015 and 2016 several groups of ecologists issued statements highlighting "major inadequacies" in the conservation legislation in relation to the protection of freshwater fish species.[99] Together these statements reiterated the same core points:

- Freshwater biodiversity is overlooked in comparison to terrestrial and marine environments
- Threats to freshwater species are multiple, driven by invasive species, water abstraction, agricultural intensification, pollution, climate change and urbanisation
- Freshwater reforms under the RMA pay little attention to protecting native species, instead focusing on water quality and economic development rather than biodiversity
- At least five threatened species of native fish are harvested commercially and recreationally (without appropriate data to ensure sustainable management) and increased protection for these species is especially urgent

Freshwater ecologists also called for:

- Legislative change to the freshwater fisheries legislation and regulations in order to protect endemic and native fish and invertebrates, especially those harvested commercially
- More systematic and robust systems for management and planning, including the establishment of monitoring and recovery plans for threatened freshwater fauna
- Increased habitat and ecosystem protection of rivers, riparian zones, lakes and catchment areas (including wetlands, estuaries and groundwater ecosystems)

These changes would require reform across conservation, fisheries and RMA contexts.

7.5 Protecting marine species

> "In contrast to the early absolute protection of many terrestrial animal species, exploitation of marine and freshwater species in New Zealand was managed initially through regulation of harvest season lengths and bag limits, rather than complete prohibition of harvest. This contrast between management approaches for terrestrial and aquatic species reflected a similar situation for protection of habitats, where creation of marine reserves in New Zealand lags about a century behind protection of land habitats."[100]

The marine environment is even more complex than freshwater due to the overlapping jurisdiction of fisheries and wildlife legislation. However, in contrast to the freshwater space, more species have been specifically listed for protection under schedule 7A of the Wildlife Act. The additional lever in this area stems from international law obligations and membership of bodies such as the Western and Central Pacific Fisheries Commission.[101] The Convention on Migratory Species has been particularly central to the scheduling of many species, including the great white, white pointer, white tip and basking sharks, since a listing under the Convention obligates the government to put protections in place.[102] International best practice guidelines under the Agreement on the Conservation of Albatrosses and Petrels is also helping to prompt the latest round of consultation on the National Plan of Action for Seabirds.[103]

We have already canvassed the weakness of the Wildlife Act in protecting species above. Of particular relevance to its application in the marine area, is the disjunct between the provisions protecting wildlife and those enabling authorisation of harmful activities, which came to light in the context of protected sharks (see spotlight below).

Raewyn Peart

West Coast whitebait stand.

A spotlight on the shark diving case

The 2019 Supreme Court decision *Shark Experience Ltd v Pauamac5*[104] examined the operation of the Wildlife Act in some detail. The case involved the relatively new practice of shark cage diving and the regulation of shark cage operators. The activity typically involves lowering divers in cages off the side of boats and throwing berley and bait to attract sharks. DOC required a permit to be issued for the activity under s53(1) of the Wildlife Act which can authorise catching alive or killing protected wildlife.

The case arose when commercial pāua quota owners (Pauamac5) contested the legality of a wildlife permit granted by DOC which purportedly authorized cage diving with great white sharks (which are absolutely protected under the Act) in Fouveaux Strait. Pauamac5 was concerned that the activity was endangering the safety of its paua divers as the activity risked teaching sharks to associate boats with food. Locals had reported increased shark aggression in the area.[105]

When considering the matter, the Court of Appeal noted that the Wildlife Act was problematic in a number of respects. It was over 65 years old and the way people choose to interact with protected marine species has changed considerably during that time. The Court also noted that, due to a number of ad hoc amendments over many years, even provisions within the Act "could not be expected to slip together with the neat precision of a new Act".[106]

Section 63A of the Act makes it an offence to hunt or kill any protected marine wildlife without lawful authority. Section 2 of the Act defines 'hunt or kill' as:

> **"**in relation to any wildlife, includes the hunting, killing, taking, trapping, or capturing of any wildlife by any means; and also includes *pursuing, disturbing, or molesting any wildlife*, taking or using a firearm, dog, or like method to hunt or kill wildlife, whether this results in killing or capturing or not; and also includes every attempt to hunt or kill wildlife and every act of assistance of any other person to hunt or kill wildlife"

The Court of Appeal found that shark cage diving amounted to 'pursuing' or 'disturbing' great white sharks for the purposes of section 63A and therefore was an offence under the Act.[107] Because only catching alive or killing protected species can be authorised under section 53(1) and not 'pursuing or disturbing', the Director-General was not able to authorise shark cage diving. This disjunct between sections 63A and 53(1) is a significant gap in the legislative regime which had not been previously acknowledged.

This finding was overturned by the Supreme Court which adopted a narrower interpretation of the term 'disturbing' which it defined as "an action which physically or mentally agitates a protected animal to a level creating a real risk of significant harm".[108] It allowed the appeal on the basis there was *insufficient evidence* to make a finding as to whether the practice of using shark cage diving attractants was an offence under section 63. Rather the lawfulness of shark cage diving had yet to be assessed more fully on a factual basis. The Court of Appeal declaration that shark cage diving was an offence under section 63 was set aside.

The lack of clarity in this case arose largely due to a mismatch of wording between sections 53 and 63, as "frequent amendment of the Act has caused it to lose some coherence". In addition, as the new practice of shark cage diving had not been formally considered or provided for, it did not fit neatly within any of the terms employed under the Act: it was not hunting or pursuing, and whether it was disturbing would require a factual exploration of events.

DOC has already noted that the court's definition of 'disturbing' will have wider implications for the types of activities that can and cannot be authorised under the Act.[109] "There are some activities (such as 'disturbing' wildlife) which the Director-General does not have jurisdiction to issue a permit for, whereas other more harmful activities (such as 'killing' wildlife) can be authorised.[110] There appears no logical reason for this distinction, other than being the result of poor drafting. This further serves to demonstrate that the provisions of the Wildlife Act are no longer fit for purpose.

In addition to the protection of scheduled marine species under the Wildlife Act, there is also targeted legislation to protect marine mammals (the Marine Mammals Protection Act). In 2012, EDS published an in-depth review of this legislation and found it wanting in a number of respects. The issues the review identified included the lack of clear purpose for the legislation and for marine mammal sanctuaries, no explicit Te Tiriti provision, no requirement to prepare marine mammals recovery plans when species were threatened, weak provisions to address fisheries bycatch and a lack of adequate tools to manage the range of pressures on marine mammals.[111]

Seven species of marine mammals in Aotearoa New Zealand are classified as threatened. They include the nationally critical Māui dolphin and nationally vulnerable Hector's dolphin and New Zealand sea lion.[112] These three species are particularly susceptible to being caught in fishing nets, as are common dolphins (which are not thought to be threatened). During the 2014-15 fishing year (the latest year for which estimates are available), it was calculated that between 50 and 189 dolphins and between eight and 17 sea lions were caught by fishers.[113]

Although the Marine Mammals Protection Act provides broad protection for marine mammals (against hunting and harassment), there is an exception for those killed as bycatch in the fishing industry. If no additional measures are put in place, an unlimited number of marine mammals can be killed by fishers so long as the deaths are "accidental, or incidental" to fishing and are reported in a timely fashion.[114] The Act does provide a mechanism to cap the number of marine mammals that can be killed in this way through the development of population management plans which can set a maximum allowable level of fishing-related mortality (ie a maximum number of marine mammals that can be killed in any year).

If such a limit is set in a population management plan, there is an obligation on the Minister of Fisheries under section 15 of the Fisheries Act to "take all reasonable steps" to ensure that the limit is not exceeded. This can be through issuing a *Gazette* notice under the Fisheries Act prohibiting fishing and/or fishing methods in specific areas where the marine mammals are present. Similar provisions were inserted into the Wildlife Act to manage fisheries interactions with seabirds. However, in practice, population management plans have been found unworkable and none have ever been finalised for a marine mammal or seabird species.[115] This has left any protection of these species from fisheries bycatch to the provisions of the Fisheries Act.[116]

Legal commentators have noted that the Fisheries Act is not an appropriate framework for protecting marine mammals or seabirds from bycatch because the Minister of Fisheries is operating within a statutory context that requires provision for the utilisation of fisheries, the procedural provisions under the Fisheries Act mandate consultation with the fishing industry, and wildlife protection measures are only to be implemented where shown to be "necessary" (under section 15(2)).[117] The Act has also enabled decisions protective of marine species to be struck down on legal technicalities (rather than on the substantive merits).[118] For example, the industry has successfully challenged set net bans to protect the Māui dolphin on the basis that the Minister failed to base his decision on the best information.[119]

In 2009, a Marine Animals Protection Law Reform Bill was put forward but failed at its first reading. The Bill proposed changes to the Marine Mammals Protection Act, Wildlife Act and Fisheries Act to strengthen definitions, set clearer objectives and principles for the protection of marine species, as well as monitoring requirements. The focus of the discussion was on albatross, New Zealand sea lion and Māui and Hector's dolphins.

Raewyn Peart

New Zealand sea lions are protected under the Marine Mammals Protection Act but are still caught in trawl nets. Their population is classified as nationally vulnerable.

A spotlight on jurisdictional overlap within the marine area

Biodiversity protection within the sea is particularly complex, with the courts noting the significant jurisdictional overlap that exists within the coastal marine environment.[120] Examples include the management of fisheries bycatch of protected species (which is potentially managed under the Wildlife Act and Marine Mammals Protection Act on one hand, and the Fisheries Act on the other) and spatial protection of the marine area (which can be undertaken under the Marine Reserves Act, Marine Mammals Protection Act, RMA or Fisheries Act). The situation is complicated by the different purposes of the relevant statutes operating within the area. The Fisheries Act pursues a 'sustainable utilisation' approach, which the courts have described as designed to "exploit the potential of fisheries resources to meet human needs over time" and "sustain fisheries resources".[121] The RMA has a 'sustainable management' purpose which is more balanced, with conservation legislation focused on 'preservation' and 'protection' (see Figure 2.2).

The Court of Appeal in *Attorney-General* v *Motiti Rohe Moana Trust and Ors* recently considered the interaction between the Fisheries Act and the RMA.[122] The case focused on whether it was possible for a regional council to spatially protect parts of the marine environment from the impacts of fishing activity through provisions in its regional coastal plan. The outcome turned on the wording of section 30(2) of the RMA which specified that a regional council and the Minister of Conservation must not perform certain functions "to control the taking, allocation or enhancement of fisheries resources for the purpose of managing fishing or fisheries resources controlled under the Fisheries Act 1996." The Environment Court had concluded that the Council was able to provide such protections, so long as the sole or dominant purpose was related to those set out under the RMA, such as having particular regard to the intrinsic values of ecosystems or the relationship of Māori with ancestral waters and taonga.

The Court referenced the Primary Production Select Committee's report on the Fisheries Bill, and noted the Committee's opposition to including a wider range of matters in the environmental principles clause of the Fisheries Act stating "the current interface reflects acceptance that fishing, like other activities, can be curtailed under the RMA and other statutes on the basis of effects on matters such as intrinsic and amenity values". [123]

The Court of Appeal reached a similar conclusion, holding that councils may control fisheries resources provided they do not manage them for Fisheries Act purposes. It noted that government had assigned regional councils the primary governance role for biodiversity in giving effect to New Zealand's international obligations under the Convention on Biological Diversity.[124] This means that regional councils can potentially play a larger role in the protection of marine biodiversity than they have to date.

7.6 Species protection under the Resource Management Act

The interface between the conservation system and the RMA is another crucial part of the species protection puzzle. In an already highly fragmented landscape, and in the context of continuing biodiversity decline, we need to connect the dots between the management of private land and the broader conservation management system. Private land uses, pollutants and downstream effects have a significant impact on the country's biodiversity. In recent years, agricultural intensification (especially conversion from sheep to dairy farming), subdivision and urban sprawl have all contributed to increasing pressures on already at-risk and highly vulnerable species.

Under section 6 of the RMA, "the protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna" is recognised as a matter of national importance. But species protection is only tangentially recognised through protection of broader biological diversity. Biological diversity is defined as protection of "variability among living organisms" including the "diversity within species, between species, and of ecosystems". There is still no National Policy Statement on Indigenous Biodiversity, despite several attempts by the Ministry for the Environment over many years to promulgate one, although the document may be released soon.

Under section 30 of the RMA, regional councils have as a function "the establishment, implementation, and review of objectives, policies and methods for maintaining indigenous biodiversity", and the control of land use for the purpose of "the maintenance and enhancement of ecosystems in water bodies and coastal water". The courts have held that the protection

of indigenous biodiversity is a core part of safeguarding the life supporting capacity of ecosystems, and that regional councils do need to take action in this regard.[125] However, implementation of these requirements remains disjointed. A 2015 analysis of policies within regional policy statements to protect threatened species revealed that the approach varies widely around the country.[126]

It is beyond the scope of this project to provide an in-depth examination of the operation of the RMA in terms of biodiversity outcomes.[127] The focus here is to examine the interface where the conservation system and RMA connect.[128] In relation to the protection of indigenous flora and fauna on private land, it is the intersection between the RMA and the Wildlife Act which is the most significant. The High Court has made it clear that resource consent under the RMA does not obviate the obligation to obtain authorisation under the Wildlife Act where protected species are impacted.[129]

Many large-scale developments, and certainly operations such as forestry, generally require permits under the Wildlife Act. Most common species are excluded from protection under the Act through listing in schedule 5. But strictly speaking, any time a person removes a tree in which native birds are nesting (such as tūī or kingfisher) thereby 'disturbing' the protected birds, an offence is committed under the Wildlife Act unless prior authorisation has been obtained from DOC.

In practice, these protections are not well known by property owners. Often it will only come to light when a resource consent under the RMA is required for the activity. The owner or developer is then required to undertake an assessment of environmental effects to accompany the consent application. Only large developments will typically engage expert ecological advice and undertake the kind of in-depth assessment necessary to identify the presence of vulnerable species – particularly less visible reptile, amphibian and invertebrate species. Even such in-depth surveys may not locate protected species on the site, and it is difficult to retrofit protection for such species if they are subsequently found, once a development has been consented (see the moko skink spotlight).

Bernard Spragg

It can be hard to reliably detect wildlife, such as skinks, on development sites. The Otago skink shown here is nationally critically endangered.

A spotlight on the moko skink and the Whangamatā marina development

The *Gunson v Waikato Regional Council*[130] case involved the marina development at Whangamatā. An initial assessment of the site had identified the protected moko skink in adjacent areas but not on the site itself. However, out of an abundance of caution, a permit was sought and granted under the Wildlife Act to allow any skinks found during the development to be captured, handled and held for relocation purposes.

The coastal permit, which was issued to authorise the reclamation work, included a condition requiring the development of a 'fauna management plan'. It was only during a survey conducted for the development of that plan that the existence of moko skink on the site was identified. By this time, all the relevant resource consents and permits were in place, and areas of skink habitat had already been sprayed with herbicide. It was unclear whether the skink had always existed on the site, and had simply not been discovered earlier, or whether it had moved onto the site during the period between the initial site survey and commencement of the construction phase of the project.

Proceedings were then lodged in the Environment Court, seeking an injunction to stop all activity that would affect the skink habitat, and a requirement that new resource consents be obtained. After considering all the evidence, the Court was unwilling to grant an injunction, due to the late stage in the development process and significant costs (around $25,000 per week) that would be incurred by the developer. It found that, while not overlooking the status of the skink, "the likely effect on the environment will not be adverse to the point that this Court would be justified in intervening at this time."[131]

This case highlights the importance of conducting rigorous site surveys early on in the process. Yet as the developer noted, sometimes "it is not possible in relation to a development project such as the present to predict all fauna that might be present on-site, particularly where there is a significant period between making application for consent and obtaining consent and/or between the grant of consent and the commencement of work under it". Where there is a lengthy delay between consent and construction, there may be a need to resurvey sites, as species composition and use of areas can change over time.[132] This is especially the case in relation to highly mobile species.

Raewyn Peart

A successfully translocated takahē with chick on Rotoroa Island, in the Hauraki Gulf. The population is classified as nationally vulnerable.

A spotlight on wildlife translocation

Translocation is the managed movement of live indigenous plants or animals from one location to another. Most salvage operations in Aotearoa New Zealand are motivated by requirements to mitigate the impacts of habitat clearance under the RMA.

Although frequently used, translocation projects have a low and varied success rate. Reintroduction biology is a developing science and wildlife translocations worldwide usually fall within a 26 to 46 per cent success rate. DOC has monitored more than 1,000 translocations and the success rates here varies between just 7 and 44 per cent. Much is dependent on the resilience and adaptability of the taxa involved. Lizards, in particular, are difficult as they breed slowly and can take several years to reestablish at a new site.[133]

Translocations that involve indigenous species usually require an approved translocation proposal and a permit from DOC.[134] A 2018 report noted that, despite this, many of the relocations that take place "do not meet usual translocation standards" set under DOC's guidelines.[135]

Iwi can also have serious objections to the relocation of indigenous species. For example, the relocation of the moko skink at Whangamatā was opposed by iwi as:

> "These skinks belong where they are, and nowhere else. They represent a living link with an indigenous past. The skinks are kaitiaki, and any development that drives them out is destroying the history and culture of the place, and attacking the mana and identity of tangata whenua".[136]

While relocation of species from a site may appear to be a convenient option that enables developments to go ahead, the effectiveness of this approach in practice, is less clear.

Once granted, a resource consent cannot generally be cancelled, even if information comes to light that is so significant that approval would not have been granted if it were known at the time. A review of conditions is the best that can be achieved. Under section 128 of the RMA, councils can review the conditions of consent where "the information made available to the consent authority by the applicant … contained inaccuracies which

materially influenced the decision … and the effects of the exercise of the consent are such that it is necessary to apply more appropriate conditions". Reviews can also be undertaken if provided for in the consent conditions.

These provisions could be used to undertake a consent review in order to impose stricter conditions to protect species identified during the construction phase. However, the review of conditions requires councils to have regard to the financial implications for the applicant of including any new condition.[137] And as highlighted in the moko skink case, courts are generally reluctant to take action if it has significant cost implications for the developer.

Even if the outcome of the review under section 132 identifies "significant adverse effects" the consent cannot be cancelled unless the review itself arose out of a conviction for an offence which contravened the terms of the consent.[138] This means the consent itself can only be terminated in very exceptional and specific circumstances. Despite these limitations, at least a review can be undertaken under the RMA when protected species are belatedly found on a development site. There are no equivalent powers to review conditions or cancel permits under the Wildlife Act.

Some commentators have suggested that the RMA needs to be amended to enable the termination of a resource consent upon review.[139] This would allow for a more adaptive management and precautionary approach. However, it would also create considerable uncertainty for developers. There have also been calls to rationalise the dual permitting regime, where consents are required under both the RMA and the Wildlife Act for the same activity. However, the RMA is likely to provide inadequate protection for protected and threatened species on its own, given the much broader purpose of the Act (sustainable management) and range of considerations applied to resource consent applications under section 104. Certainly, DOC is the institution with the greater practical and scientific expertise in this area.

Overall, the scheme under the RMA is broadly acknowledged as a weak point within the species protection system. There is a long track record of poor provision for wetlands and freshwater protection, authorisation of land clearance and habitat loss, and lack of adequate monitoring. These are all contributing to ongoing biodiversity decline.[140] The long-tailed bat spotlight highlights the need for RMA reform in this area and more robust protections for biodiversity to be incorporated into policy and planning under that legislation. In EDS's review of the resource management system, one of the proposals put forward was that the Act needs to provide clearer bottom-lines around biodiversity and habitat protection and this recommendation has been picked up by the Resource Management Review Panel.[141]

A spotlight on long tailed bats and subdivision development in the Waikato region[142]

Pekapeka, or the long-tailed bat, is one of Aotearoa New Zealand's only two native land mammals (the other being the lesser short-tailed bat). It has the highest threat ranking of nationally critical. The bats are widely distributed throughout the mainland and used to be common throughout the country. There is still much to discover about the species, but it is thought that they only produce one offspring each year, so are relatively slow breeding. The bats can fly at speeds of up to 60 kilometres an hour and have an extended home range of approximately 100 kilometres, feeding on insects like small moths, midges, mosquitos and beetles.[143]

The main threats to long tailed bats include logging of lowland forests, predation from cats, rats and stoats, and exclusion from roosts by introduced species such as possum, birds and wasps. Human pressures, such as subdivision, are also problematic for the noise and light disturbance they cause to these nocturnal animals. In addition, companion animals, in particular cats, are a key risk. In 2010, a single (feral) cat killed 102 bats within the space of one week at a site in Ohakune.[144]

In 2018, a resource consent application was made to subdivide a 105-hectare site in South Waikato, near the western bank of the Waikato River. Long tailed bats were known to inhabit and utilise the area, using the Waikato River as a corridor to cross between different parts of their habitat. The Director-General did not support the application because of the lack of sufficient information on the potential impacts of the development on the long-tailed bat population. DOC was concerned about "potential consequences for the long-term viability of the population" and that the habitat loss "may lead to a local extinction".[145]

The resource consent was ultimately approved by the Hamilton City Council with conditions that included setting aside the river margins and an ecological corridor as a 'bat priority area'. In response to matters raised in a memorandum from the Director-General, a condition also required appropriate authorisations to be obtained under the Wildlife Act. It was anticipated that these would be required for the translocation of lizards and disturbance of the bats.[146] The consent was subsequently appealed by a range of parties, including DOC and Forest and Bird, who considered

that the conditions imposed were inadequate to protect the bats. They sought greater controls along the margins of the bat priority area (to provide a buffer or transitional zone), removal of a road that was proposed to run adjacent to the river on the bats' flight route, greater set back of the buildings, reduction of light levels from the subdivision and a range of other measures to protect the bats and their habitat throughout the development phases.

During the case, it became clear that the relevant Regional Policy Statement was defective and had failed to identify significant habitat of long tailed bats within the Waikato region. The bat's habitat was also not shown as a significant natural area in the Hamilton District Plan 2017, which the Court noted was an "unfortunate oversight... requiring urgent redress". The weakness of these plans highlights the need for a National Policy Statement on Indigenous Biodiversity to provide clearer direction to councils on protecting biodiversity.

The Court concluded that the impact of car headlights had not been properly and fully considered, and that screens were necessary. It also found that controls were needed to ensure the noise and lights generated by the development, including the construction process, did not disturb the bat population.

The issue of cats was the most contentious. Cat numbers in the area were low, but the addition of 840 residents without controls would significantly increase the density of cats. Cats have a reasonably large range and most of the bat priority areas would fall within it. The Council argued that it would be difficult to enforce a cat ban within the subdivision, that monitoring would be reliant on reporting by others, and there would be difficulties in proving ownership of specific cats.[147] The Council preferred a district-wide approach to the issue. The Court disagreed, considering that a cat ban would be valuable on several counts; it would simplify policing and mean that owners could not complain about predation controls that killed or targeted wild cats. The Court considered that, in this case, a precautionary approach was required:

> "This is one of the most sensitive areas for bats ... if a cat ban is introduced and subsequently removed, that does not create any particular difficulties. The inverse of not introducing it and then seeking to introduce it if there is a significant predation on bats is that such retrospective action would be virtually impossible'[148] ... 'The imposition of an adaptive management regime in the primary decision was criticised by a number of parties. We can see the logic of this approach, but it is difficult to specify environmental bottom lines for an endangered species in retrospect.'[149]

This highlights the often irreversible nature of consenting in the face of uncertainty, where the risk is borne by critically endangered species. The cat ban will assist to protect not only bats but native birds and other wildlife in the area. Indeed, it is somewhat surprising that more cat bans have not been put in place out of concern for indigenous bird populations.

In the initial hearing, the commissioners made a number of important observations on the levels of protection in place for the bats under existing frameworks. They noted the importance of imposing similar controls on other development sites in the area and that much development did not have such checks in place. They also acknowledged the broader issues that remained out of scope, including "the ongoing encroachment of residential activities around the edges of the River" which could in any case still be "the final blow for the Bats."[150] This development was seen as only one manifestation of an issue occurring within a much wider catchment that needed to be addressed as a matter of urgency. The commissioners underscored that "avoiding disturbance on the river corridor from light and noise, providing suitable areas for roosting on the river and through its adjacent gullies and improving the habitat quality are all critical if the species is to continue in this area."[151]

The Environment Court agreed that there was clear evidence that "a unified catchment approach to the Bat's habitat and protection needs to be adopted... We note in particular that recent calculations accepted by experts at this hearing show an alarming decline in the bat population with a predicted continuing decline in current circumstances of between 6 percent and 9 percent per annum in the following years. This is alarming given that this species is threatened nationally critical, i.e., close to extinction."[152] On that basis, the Environment Court recommended that the council urgently establish a catchment-wide group to address these issues. The consent was ultimately granted with more rigorous conditions attached.

7.7 Managing 'wild animals' and game species

The Wild Animal Control Act centers around the management of a small number of species defined to be "wild animals" under the Act. This currently includes deer, chamois, tahr, goats and pigs.[153] That an entire statute exists dedicated to their control and management speaks to the historical and current value of these species. Animals in this category are those introduced mammal species that are most frequently hunted for food and sport, including through commercial hunting ventures, and whose numbers may also be controlled to reduce their impact on indigenous species and the environment more generally.

In appreciation of the high value accorded to these species by recreational and commercial hunters, the Act does not take an elimination approach. Eradication is only envisioned where it is shown to be both "necessary and practicable".[154] This is a significant concession and means that considerable argument and debate can center around the *necessity* of any control measures put in place for these species.

In addition to the control and local eradication of wild animals, the Act has three additional general purposes under section 4:

1. Ensuring concerted action is taken against damaging effects of wild animals

2. Coordinating hunting measures

3. Providing for the regulation of recreational hunting, commercial hunting, wild animal recovery operations and the training and employment of staff

The Act provides that any wild animal may be hunted or killed and taken into possession of any person in any part of New Zealand. This is subject to any other statutory restrictions that might be in place, as well as practical access requirements such as obtaining authorisation from a private property owner, or a licence from DOC if hunting on conservation land.[155] The Act enables the Director-General to declare designated *recreational* hunting areas. Commercial wild animal recovery operations are not permitted in these areas so long as hunters keep the animal numbers low.

The Act also provides for the development of 'wild animal control plans' which must comply with the relevant CMS for the region as well as any other statutory provisions in place.[156] This means that restrictions on wild animal numbers can be put in place under CMSs, again underpinning

Bernard Spragg

Red deer are managed as 'wild animals' under the Wild Animal Control Act.

the central importance of these documents in providing guidance for the management of the conservation estate.

Under subpart 3 of the Game Animal Council Act, the Minister of Conservation may designate a species of game animal in a specific area of conservation land to be a 'herd of special interest'. Once designated, a 'herd management plan' must be developed to secure "the expected benefits to be gained from managing the animals for hunting purposes". Herds may be considered for this special status on the basis of their special interest to hunters, their ability to be managed for hunting purposes and where hunting is consistent with "overriding considerations".[157] Those overriding considerations are defined under section 2 of the Game Animal Council Act to be the management of conservation land, Conservation General Policy, the relevant CMS and Conservation Management Plans, as well as any pest management strategy or wild animal control plans in the area. No formal proposals have yet been made to designate a herd of special interest.

Despite the original focus on *wild* animals, subsequent amendments to the Wild Animal Control Act have broadened its scope and it also now provides for activities such as deer farming and the operation of Safari Parks. Some interviewees questioned the appropriateness of these amendments and whether an Act designed for *control* of wild animals is the appropriate vehicle for governing, what are now mainstream, deer farming enterprises. Hunting sector interviewees that we spoke with also felt that the Act places too much emphasis on the damaging effects of wild animals, rather than positive benefits those species provide. This potentially undermines the ability of current frameworks to foster positive synergies that might exist between hunting and conservation.

The issues raised by interviewees in discussing the Wild Animal Control Act highlight the broader debate as to the appropriate balance between the management of introduced and indigenous species and their interface.

A spotlight on the control and management of Himalayan tahr

Himalayan tahr (*Hemitragus jemlahicus*) are large goat-like animals which are native to the central Himalayan ranges of India and Nepal. The species is listed as 'near threatened' on the IUCN Red List due to its declining population from hunting and habitat loss.[158] The species is adapted to cool climates and rock terrain enabling the animals to live in mountainous regions. In the Himalayas, they are mainly found on slopes ranging from 2,500 to 5,000 metres high. In their natural habitat, tahr are preyed on by snow leopards.

Himalayan tahr were first released in Aotearoa New Zealand during the early 1900s, by the Department for Tourism, for the purposes of recreation and tourism. By the 1930s, tahr numbers had increased, and the damage they caused to the natural environment became more apparent. The animals browse on tussock and other native sub alpine plants (including alpine buttercups and mountain daisies) and trample vegetation and compactable soils.[159] The first control operation by government employees was conducted in 1937.[160] Today tahr are found in the central Southern Alps, roughly between the Rakaia and Whitcombe valleys in the north to Lake Hawea in the south. Their range includes both Aoraki Mount Cook and Westland Tai Poutini National Parks.

In the 1970s, a commercial market for tahr meat was established and this led to the growth of an aerial meat harvesting industry. It also resulted in a significant decline in tahr numbers by about 90 per cent.[161] As a result of concerns about the decline, in 1983 a moratorium on commercial tahr hunting was put in place for all public conservation lands, except for national parks.[162]

By the late 1980s, the moratorium had enabled tahr numbers to increase once more and debate remerged on the best way to manage the population. A DOC discussion paper canvassed three main options: do nothing/status quo, sustained control or eradication.[163] The approach eventually selected was that of sustained control and, in 1993, DOC developed a Himalayan tahr control plan under section 5(1)(d) of the Wild Animal Control Act to give effect to that policy.[164]

At the time, the degree of impact the animals were having on the environment was unclear and there was inadequate data available to inform their management. As a result, the plan adopted a cautious approach. It was estimated that, in order to sustain the population for hunting purposes, at least 5,000 animals needed to be maintained. At the upper limit, it was considered that the maximum carrying capacity of the habitat, after which it would be unacceptably impacted, was around 50,000 individuals.[165] The plan set a target herd size of 10,000 individuals in order to achieve a balance between hunting needs and avoiding unacceptable environmental impacts. The population was to be largely kept in check by commercial and recreational hunters, with DOC only undertaking control activities if the population density exceeded that number.[166]

The objective of the plan was to ensure that target tahr population levels in any area were "consistent with an ecologically acceptable vegetation and estate condition" and acknowledged that there might be some particularly sensitive areas where that target level might be zero.[167] By focusing on what numbers were appropriate in what places, the plan sought to both protect important conservation values and a tahr resource for hunters. Critically, the plan also noted the importance of determining the correct target levels, the review of those targets from time to time, and the need to monitor tahr numbers and the condition of the conservation estate. This was reflected in the intention to review the plan after five years.

In practice, the remoteness and inaccessibility of the region, the high mobility of the species, and the intensive monitoring required to gain useful management information, made implementation of the plan challenging and it was not reviewed or updated as envisioned. The plan was implemented with varying amounts of control in different areas, depending on DOC priorities and available resources. As a result, the type of detailed data necessary for the management regime to operate effectively, was not able to be obtained.

It was vegetation monitoring undertaken by Landcare Research between 2011 and 2014, that first indicated that a significant increase in animal numbers had probably occurred, due to observed impacts on vegetation and threatened plants.[168] The

findings triggered more concerted monitoring by DOC. Following three seasons of monitoring, between 2016 and 2018, it became clear that tahr numbers had risen to around 35,000 animals, more than three times larger than the legal limit set under the plan. It was at this point that DOC determined a culling programme would be initiated.

Complicating matters further, however, was the development during this period of a niche tourist trade for visitors prepared to pay a premium for guided hunting tours where they can shoot tahr, especially bull tahr, as trophies. At the center of the debate that would emerge was the issue of whether male tahr should be targeted and culled. This had long been an issue of contention, and even the 1993 Plan contained a policy that identifiable males would not be culled.

The proposed programme put forward by DOC in 2018 aimed to cull 17,500 tahr (7,500 by the hunting sector and 10,000 by DOC) from conservation land, and an additional unspecified number from national parks. Included in the total was 3,000 males. This was highly contentious with the hunting community, representing not only a significant departure from previous policy, but one that could impact the burgeoning commercial hunting sector. Recent projections put the value of this trade at close to $100 million per year.[169] The matter culminated in a very public battle between hunting groups (spearheaded by the Tahr Foundation), DOC and the Minister of Conservation.

The Department subsequently undertook close consultation with the hunting sector. The eventual 2018/19 tahr control operational plan,[170] developed with considerable input from the Game Animal Council and the Tahr Plan Implementation Liaison Group (which included representatives of Ngāi Tahu, the Conservation Board, recreational and commercial hunting, farming, outdoor recreation and Forest and Bird), saw a change in approach. The Plan provided for a reduced number of 10,000 tahr to be culled. The focus of the cull was to be more firmly on national park areas, and only female and juvenile tahr would be targeted, in order to reduce the breeding population. Larger male tahr, which were more prized as trophies for the hunting sector, would not be culled.[171] A similar process was used to develop the 2019/2020 tahr control operational plan.

When DOC reconsidered its tahr management approach in 2020, and determined that culling effort needed to increase including culling male tahr (at least in national parks), the conflict reemerged. This culminated in the New Zealand Tahr Foundation (on behalf of the hunting sector), initiating judicial review proceedings to stop DOC implementing the 2020-21 operational plan. The Foundation challenged the Minister's decision to adopt the operational plan on the grounds that:

1. The decision was ultra vires of the Wild Animal Control Act and 1993 control plan which contemplate "a primary role for hunters in managing the tahr population" and that DOC is required to "have regard to the on-going economic basis for commercial and guided hunting of Tahr" but had not.

2. The Foundation had a legitimate expectation of "meaningful consultation" on decisions around tahr management and DOC had a duty to consult which had been breached.

3. The decision was based on insufficient information.

The Tahr Foundation underlined the value of the industry to the country and further benefits arising from wealthy tourists arriving on our shores to hunt these animals, noting that "New Zealand is the only country in the world with a huntable population of tahr".[172] It also pointed to the establishment of the Game Animal Council in 2013 as recognition of the legitimate interests of recreational and commercial hunters. The Foundation argued that "for a viable industry, a herd of close to 24,000 is required", so indicating that a herd size of 10,000 had now become unviable for the sector.[173]

The High Court found that the claim that the 2020-21 plan was ultra vires failed as there was no requirement in the Act for DOC to take into account the interests of the hunting industry.[174] The third ground, of inadequate information, based on a lack of assessment of the impact of the reduction in tahr numbers on the commercial tahr hunting industry, was also not made out. This was because there was no legislative reference to the well-being of the commercial hunting industry, so this was not a mandatory relevant consideration. However, the court did find that the Foundation had a legitimate expectation to be consulted

which was not met as DOC had failed "to provide a meaningful opportunity for consultation about the level of culling" proposed in the operational plan.[175] The Court directed the Department to reconsider the decision after consulting with interests represented by the Foundation and other stakeholders.[176]

DOC subsequently embarked on a consultation process with the Tahr Plan Implementation Liaison Group and concessionaires with a direct interest in the decision. An independent contractor was hired to chair the consultation meetings. DOC held meetings and underwent a submissions process (including 12 oral submissions).

Some of the submitters argued that hunting interests should be given equal weight with environmental protection. It was also proposed that "many of DOC's functions (such as animal control planning) should logically be delegated to the Game Animal Council" now that there was such a body with statutory grounding.[177] For their part, the Game Animal Council advised DOC to "avoid culling bulls in the national parks and certainly to avoid going out of the way to do so".[178] It argued that there was insufficient "scientific evidence to support the need for immediate culling of all tahr in the national parks" or to demonstrate "any environmental imperative" for such action.[179] The New Zealand Tahr Foundation also contested the environmental need for culling bulls.[180] The Foundation pointed out that hunters were amongst the largest users of national parks and that removal of this hunting resource would likely result in hunters avoiding those areas "ensuring the Department will have to do all control in the future". This last point underscores how reliant DOC is on the sector and on maintaining a good relationship for animal control purposes.

On the other side, the Conservation Authority, Conservation Board and Forest and Bird sought compliance with the relevant National Park Management Plan that aimed for "zero density" of tahr in national parks. They argued that extermination was consistent with the National Parks Act which states that parks shall be maintained so that native plants and animals be preserved and introduced plants and animals "as far as possible exterminated, except where the Authority otherwise determines". The Conservation Authority called on the Department not to compromise "the intrinsic value of our National Parks for the appeasement of the hunting sector" and in consideration of the legal and moral obligations in place.[181]

In response, DOC provided for a more adaptive management ('learning as we go') approach to be adopted, working in closer consultation with the Game Animal Council. However, the Department stood firm on the need for compliance with the National Parks Act and relevant plans (which required numbers to be kept to the lowest possible amount within national parks and ideally for the animals to be eradicated in these areas). DOC has given assurances that, outside of national parks, it will continue to avoid targeting tahr in popular recreational hunting areas and explore opportunities to improve hunting opportunities. In addition, the advice of the Game Animal Council will be considered in determining operational details.[182]

The tahr controversy is a salutary indication of the increased expectations and feedback loop created through insufficient monitoring and control. The Department's lack of capacity and resourcing to undertake the necessary monitoring and active control of tahr meant that the Himalayan Tahr Control Plan, a statutory plan under the Wild Animal Control Act, was never properly implemented. In turn, this led to an increase in numbers – and growth in a commercial, tourist-based tahr and trophy hunting sector reliant on those higher numbers of animals. This increased the stakes in play, the expectations of all parties concerned, and contributed to increased conflict.

The tahr spotlight also illustrates the lack of checks and oversight mechanisms in place to ensure there is compliance with legislation and planning documents within the conservation system, and that they are implemented and enforced in practice.

The introduction of the Game Animal Council Act, and establishment of the Game Animal Council, has increased the advocacy support, representation and expectations of the hunting sector within the conservation system. But at the same time, under the Wild Animal Control Act, DOC is not required to take into account the interests of the hunting sector or the well-being of the commercial hunting industry. Increased hunting sector scrutiny of the Department's implementation of animal control plans is providing a lever to drive more intensive monitoring and compliance in associated management areas. The broader implications of these changes on the conservation system remain unclear. That interviewees held highly polarised views, as to whether the conservation system has been strengthened or weakened as a result of the increased representation of the hunting sector, is

unsurprising given that the broader balance within the conservation system, between protection accorded to indigenous versus introduced species, itself remains highly contested.

Views on the management of indigenous versus exotic species

The perspectives of those fishing and hunting stakeholders we spoke to, including those within existing statutory bodies like Fish and Game and the Game Animal Council, highlighted the work that this sector does to support conservation. Although this Report has necessarily focused on the 'issues' that exist within the conservation system, so on the areas where conflicts and pressures arise most frequently, it is important to underscore that a range of synergies do exist.

As described in Chapter 3, Fish and Game has undertaken important conservation work over the years and is a major voice for freshwater advocacy in New Zealand. Similarly, DOC relies heavily on hunter support to achieve effective animal control across the vast conservation estate. A number of interviewees described the work of the Wapiti Foundation in Fiordland, which has provided high level management of these animals, resulting in a highly regulated, self-funding regime that puts money and resources back into offsetting measures like restoration and pest control to protect blue ducks and kea conservation programmes.

There were a number of core messages that came though clearly from our engagement with this sector. First, that DOC is inadequately resourced and has insufficient presence in the regions to undertake the kind of intensive management and to build the close relationships required on the ground, to protect biodiversity. A strength of the Fish and Game model is this increased presence at place, but this was not matched by the Department, which had left a significant implementation gap within the conservation system.

Secondly, in terms of capacity, it was felt that the Department was too heavily reliant on groups such as Fish and Game to advocate on freshwater issues and to collect data and undertake research, and on the hunting sector for animal control work. This lack of capacity has also put the system under strain.

The third strand related to the view that the existing system has tended to elevate polarized viewpoints. As one interviewee noted: "the biggest challenge is finding the reasonable centre ground. It's often the extreme factions fighting each other all the time; those that feel entitled to do as they please, to shoot anything that moves, and those that won't settle for anything less than complete extermination of all introduced species. It's hard to have a sensible discussion*, ideology does not help* and this is only going to get trickier."

A partial reason for this polarisation was seen as stemming from the fact that 'interest group' representation had a tendency to set up a competitive environment where all parties seek to achieve the maximum results for their sector rather than the best outcome for the country. It was encouraging that those we spoke to felt that existing conflicts over introduced and native species arose largely because of a lack of clear guidelines so that everyone was "starting from different places". This points to a need for far clearer legislative framing and roles.

There was a call for 'more science' and the need for a more science-driven approach to underpin the legislative framework. People also wanted to see a more nuanced, bespoke and 'mosaic' approach to species management. They saw solutions in permitting the right activities and species in the right places. This would enable the conversation to focus on questions of 'where' is it appropriate for introduced species to be, and what the condition of habitat and vegetation should be in the area. However, the ability to manage habitat and species in this more focused way is reliant on having detailed knowledge of the species which reside there – their populations and conservation status.

At the macro level, there was an encouraging level of agreement on central matters, including that existing protections for fish and other aquatic species were poor and had not 'caught up' with terrestrial species. Interviewees generally agreed that the Wildlife Act was outdated, unclear and in need of reform and that Aotearoa New Zealand requires some kind of endangered species legislation or amendment. There were also calls for greater support, funding and capacity for DOC. However, the devil was often in the detail. As one interviewee noted, "there are far more points of commonality than is often appreciated. Things are changing, people are more aware of the need to protect our native species, and we are closer than people think – no one wants to go backwards".

7.8 Managing biosecurity threats

As the preceding discussion on introduced species and the challenges they pose once established highlights, new organisms can pose considerable risk to indigenous flora and fauna. The Department's role in protecting biodiversity is inextricably connected with the control and management of biosecurity risks. The Department has biosecurity obligations over more than 400 pest free islands so that from a 'boots on the ground' perspective this biosecurity role is significant. The biosecurity function of the Department is not expressly recognised in the Conservation Act,

but the Department has a core role under the Biosecurity Act where it is responsible for advising MPI on any pests or diseases that are harmful or potentially harmful to indigenous flora and fauna or natural ecosystems because of the potential impact of these on conservation values.[183]

Most conservation legislation predates the introduction of the Biosecurity Act and may actively undermine its goals. The Biosecurity Act itself is has been subject to heavy amendment and is a statute that interfaces with a large number of other statutes including the Conservation Act, Fisheries Act, Wildlife Act, Wild Animal Control Act and RMA. These interfaces are highly complex and there is a lack of clarity and consistency as to the roles and responsibilities that exist across the biosecurity system.[184] A complication for the Department arises from the fact that the lead Ministry responsible for administering the Act is MPI, which has very different purposes and priorities.

Raewyn Peart

Cleaning station for Kauri Dieback disease.

A spotlight on Kauri Dieback disease

The complexity of the biosecurity system is well illustrated by the management and response to Kauri Dieback, a disease caused by a microscopic soil borne organism *Phytophthora agathidicida*. Kauri Dieback was declared an "unwanted organism" under the Biosecurity Act in 2008. Although the disease created a 'conservation' threat, the Kauri Dieback programme was led by MPI in "collaborative partnership" with a large number of partners including DOC, councils and iwi groups, through consensus-based decision making.[185]

A 2019 review of the programme found that the management and governance arrangements in place had contributed to the programme's failure to mitigate or stop the spread of the disease.[186] The review was highly critical of MPI's lead role, as the programme required conservation rather than primary industry related expertise and management skills.[187] The groundwork (such as track upgrades and pest control) were all primarily DOC and council matters, and it is clear from the Environment Committee's Report on the programme, that role clarity was a problem. Lack of consensus amongst programme partners also meant agreement could not be reached on a number of vital matters, including the development of a National Pest Management Plan. This led to highly variable regulation across regions and districts using the RMA and Biosecurity Act, and an inconsistent national approach to operational policy, planning, delivery, data and analytics.[188]

Legal impediments have also undermined a more strategic and coherent national response to Kauri Dieback. The Biosecurity Act does not give MPI the power to close sites to the public, so that any restrictions imposed must be done on a site basis by the relevant council or private landowner. Section 131 of the Biosecurity Act does allow for a Controlled Area Notice to be issued in relation to an area, but such Notices are designed to control the spread of organisms and organic material through restricting goods and equipment, rather than persons.

DOC has raised concern that there remains no established best practice in this area and highlighted the challenge of achieving "shared decision making across agencies that [have] separate

operational structures and mandates."[189] Forest and Bird has advocated for an independent dedicated agency to be established to ensure the Kauri Dieback threat receives appropriate attention.[190]

The process of developing a National Pest Management Plan is now underway and this should provide a better basis for managing the disease. The Plan will provide greater accountability through an annual operational plan and report to the Minister for Biosecurity. However, it is clear that the Biosecurity Act is not well designed to address the specific challenges posed by a disease such as Kauri Dieback.

A spotlight on *Pieris brassicae*

In 2010, a large white butterfly *Pieris brassicae* was discovered to be established in urban residential gardens in Nelson. The species was seen as a risk to Aotearoa New Zealand native brassica species, 81 of which are endemic and many which are threatened.[191] A response control programme was initiated by MPI to slow its spread. However, this was subsequently terminated when the expected 'benefit to cost ratio' was calculated and the benefit viewed as too small.[192] MPI's analysis was very different to the assessment made by DOC, which was centered on consideration of the potential harm the insect posed to indigenous species, given that Brassicaceae comprise 3 per cent of our indigenous flora.[193] DOC's different mandate, focused on protecting natural resources, drove a very different risk profile assessment in recognition that some of the species under threat were already classified as threatened or nationally critical.

With MPI having dropped the programme, DOC took over as lead, and initiated a full eradication-based programme in 2012. MPI operated in a support role, providing research funding and maintaining the New Zealand biosecurity hotline.[194] The programme implemented a cycle of 'plan-implement-monitor-report-review' and a technical advisory group of experts *led by DOC* produced associated plans, provided advice, conducted necessary research and reported results. The Department worked closely with AgResearch and Horticulture New Zealand which provided a strong science base and support.

The last New Zealand detection of P. *brassicae* was in December 2014, with the eradication program ceasing in June 2016 and the species declared eradicated later that year – just 6.5 years after it was first detected and four years after the eradication attempt commenced. [195] This made it the first species of butterfly ever to have been eradicated worldwide.[196]

The programme was not without its hitches. It began just as DOC was being restructured. This led to a significant drop in funding and reduction in field staff, whose numbers were initially halved, then cut to zero in mid-2015. The programme only recovered when its budget was renewed in July 2015 and many field staff were able to return. This demonstrates the practical risk to specific programmes by events such as restructuring and impacts of budgetary cuts.[197] Commentators have credited the success of the programme to effective planning, leadership, administration and data management as well as building close relationships with scientists and undertaking effective public engagement.[198] This highlights the importance of having the right agency lead and the value of a unified, science-based and resourced approach in response to urgent biosecurity issues.

In 2009, the Conservation Authority outlined a number of issues with the Biosecurity Act including:[199]

- A lack of clear statutory purpose, with biosecurity being potentially undermined by competing directions to prevent harmful pests and diseases from coming into the country and establishing, but also ensuring international trade and tourism are maintained
- A lack of clarity on institutional arrangements and roles that risked biosecurity issues "falling through the cracks" and the need for biosecurity leadership roles to be made "clear and unambiguous"
- The need for clearer criteria for determining the status of organisms and for determining their management (eg including regional or national management and funding)
- The need for greater clarity on the decision-making framework, particularly the provisions dealing with initiating plans which are

"driven by cost/benefit analysis" after taking account of the likely consequences of inaction or other courses of action. The Authority highlighted that outside of primary production, such values are difficult to assign an economic value to

The Biosecurity Act is now over 25 years old, and while it has gone through two substantive amendments, these were limited in scope. In recent years, there has been an increase in the number of biosecurity threats, and the Act is now under review in recognition of this changed context.[200] The terms of reference for the review note "growing concerns between the regulators and stakeholders over what the biosecurity system should achieve, and how it should operate." The review is considering how to make the regime more fit for purpose, including changes needed to clarify or develop clearer purpose statements and principles to guide decision making, the roles and responsibilities that exist across the biosecurity system, and the relationship between te ao Māori and the biosecurity regulatory framework.[201]

Raewyn Peart

Weka are listed on Schedule 3 of the Wildlife Act so can be hunted or killed in certain locations including the Chatham Islands.

7.9 Summary of key species protection issues

The Wildlife Act

- The Wildlife Act was designed for a different era and is no longer fit for purpose.
- No distinction is made between the protection of introduced and indigenous species or between the protection of common and endangered species.
- The definitions for 'wildlife', 'animal', 'domestic animal', 'domestic bird', 'wild animal' and 'hunt or kill' are complex and restrict the application of the Act.
- The lack of alignment in terminology and definitions across different conservation statutes makes the practical application of provisions for protecting species difficult to reconcile in practice.
- The Director-General's discretion to authorise the taking of wildlife under section 53 is very broad. There is minimal guidance for the exercise of the power, no public submission or appeal rights, and permissions cannot be subsequently varied or revoked once given.
- After recent case law, it is unclear whether the Director-General has jurisdiction to issue permits for 'disturbing' wildlife.
- The offence of taking wildlife makes no distinction in seriousness between taking introduced, indigenous or endangered species.
- New Zealand is out of step with similar jurisdictions in not having dedicated threatened species legislation.

Freshwater species

- Indigenous freshwater fish cannot be protected under the Wildlife Act and this is a significant omission.
- Introduced freshwater species have stronger statutory protections than indigenous species under the Conservation Act.
- There is no clear guidance on how to manage conflicts between introduced and native freshwater species.
- Unresolved jurisdictional overlaps exist between the Conservation Act and Fisheries Act for managing freshwater fisheries.
- When considering applications to eradicate sportsfish for indigenous species restoration projects, Fish and Game has conflicting roles, due to its statutory role of representing the interests of anglers and maintaining and enhancing sports fish.

Marine species

- The protections in place for marine species significantly lag behind those for terrestrial species.
- Protections under the Wildlife Act and Marine Mammals Protection Act for marine species are considerably weakened by the broad exemption for fisheries bycatch.
- The Fisheries Act is inadequate for the management of fishing effects on threatened species since its focus is not on protection but sustainable utilisation.

The RMA – Wildlife Act interface

- The RMA lacks the protective purpose of conservation legislation and is a weak point in the conservation system.
- The ongoing absence of a National Policy Statement on Indigenous Biodiversity represents a significant gap in the framework.
- Regional policy statements and regional and district plans have uneven, and often weak, provisions to protect threatened species.
- The requirement to obtain an authorisation under the Wildlife Act, in addition to consent under the RMA, is not widely known.
- Investigations prior to obtaining consent can be insufficient to identify the presence of protected species.
- Once resource consent is granted, it cannot be cancelled unless an offence has occurred, even if significant impacts on indigenous wildlife become evident.

Game or 'wild animal' species

- The Wild Animal Control Act and Game Animal Council Act have enhanced the protection of valued introduced species, the advocacy role of the hunting community and channels of communication between that community and the Department.
- The protection of valued introduced species *within the conservation system* remains controversial, and there needs to be clearer guidance as to where is it appropriate for introduced game species to be and at what densities.

Managing biosecurity risks

- The Biosecurity Act is now 25 years old and lacks a clear statutory purpose to guide decision making and clarity on the roles and responsibilities under it.
- There is need for greater statutory recognition and support of a leadership role for DOC under the Biosecurity Act, where biosecurity incursions threaten conservation values.

Raewyn Peart

Kuaka bar-tailed godwits feeding at Miranda before their flight back to the Arctic. They are classified as at-risk declining.

Raewyn Peart

New Zealand fur seals at the entrance to Doubtful Sound, Fiordland. Populations are recovering since the cessation of hunting.

Endnotes

1 Bodkin, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1698

2 Bodkin, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1698-99

3 The Wildlife Act 1953 (as enacted), http://www.nzlii.org/nz/legis/hist_act/wa19531953n31120/

4 Bodkin, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1698

5 Bodkin, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1698

6 Steward, 1953 and Bodkin, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1700

7 Miskelly, 2016, 33

8 The taking of protected wildlife attracts a penalty of up to two years imprisonment or a fine not exceeding $100,000 for individuals and $200,000 for a body corporate (Wildlife Act 1953 s67A). In contrast, the penalty for offences in respect of game are a fine of up to $5,000 for an individual or $10,000 for a body corporate (Wildlife Act 1953, s67E)

9 Stewart, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1700

10 Kearins, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1700-1701

11 Williams and Given, 1981

12 Seabrook-Davison et al, 2010, 55

13 https://www.iucnredlist.org/about/faqs#What%20is%20The%20IUCN%20Red%20List

14 Conservation General Policy, 4.1(b)(4)

15 For a discussion of the regime in Canada see Wallace and Fluker, 2016, 204

16 Miskelly, 2016, 101

17 Animals Protection Act 1960 (repealed), s2

18 Stewart, 1953, *New Zealand Parliamentary Debates,* Wildlife Bill (Report from select committee, 8 October 1953), 300, 1700

19 Miskelly, 2016, 63

20 For more general discussion of these issues see Lyver et al, 2019, Imoti et al, 2017 and Ruru et al, 2017

21 http://www.terranature.org/duckShoveler.htm

22 http://nzbirdsonline.org.nz/species/northern-shoveler

23 https://www.beehive.govt.nz/release/protection-status-changes-wildlife-act

24 In *Parlane v Department of Conservation* [2006] CRI-2005-419-174, Ellen France J in the High Court found a duck shooter guilty under section 63 of the Wildlife Act 1953 of hunting absolutely protected wildlife: two spur winged plovers, a little black shag and a white faced heron. The man's actions were only discovered after he was reported by a fellow hunter "annoyed about what was happening" and because he had admitted the shootings to a Fish and Game ranger. The penalties were: $500 plus $130 costs and $200 towards solicitor fees for the little black shag. For the charge involving the heron, he was fined $300 plus court costs of $130 and solicitor fees of $200. He was fined $100 on each of the charges relating to the plovers together with court costs of $130 and solicitor fees of $200

25 McDougall, 2017, 456

26 McDougall, 2017, 457

27 McDougall, 2017, 458

28 McDougall, 2017, 458

29 *Save Happy Valley Coalition Inc v Minister of Conservation* [2006] CIV 2006-485-1634

30 https://interactives.stuff.co.nz/2018/10/what-happened-here/

31 https://www.nzgeo.com/stories/who-failed-the-snails/

32 https://interactives.stuff.co.nz/2018/10/what-happened-here/

33 https://interactives.stuff.co.nz/2018/10/what-happened-here/

34 *Royal Forest and Bird Protection Society of NZ Inc v Minister of Conservation* [2006] NZAR 265

35 *Royal Forest and Bird Protection Society of NZ Inc v Minister of Conservation* [2006] NZAR 265 at [21]

36 Le Heron, 2019, 215

37 *Save Happy Valley Coalition Inc v Solid Energy NZ Ltd* C141/2006 at [22]

38 *Save Happy Valley Coalition Inc v Solid Energy NZ Ltd* C141/2006 at [17]

39 https://interactives.stuff.co.nz/2018/10/what-happened-here/

40 https://interactives.stuff.co.nz/2018/10/what-happened-here/

41 Crossan, 2007, 12

42 Crossan, 2007, 12

43 Wildlife Act 1953, s67A

44 Wildlife Act 1953, s67E

45 *Tawha v Fish & Game New Zealand* [2015] NZHC 1119 at [64]

46 https://www.stuff.co.nz/timaru-herald/news/communities/8675908/Jail-time-for-bird-killer

47 Freshwater Fish Specialist Group 2012

48 Elston et al, 2015, 9-10

49 Elston et al, 2015, 5

50 Grainger et al, 2018, 4

51 Elston at al, 2015, 9-10

52 Joy et al, 2019, 117

53 Joy et al, 2019, 117

54 Freshwater Fisheries Regulations 1983, clause 69

55 Perry G, 2019, 1747

56 See discussion of the Freshwater Fisheries Regulations 1983 in New Zealand Conservation Authority, 2011, 19

57 https://www.legislation.govt.nz/regulation/public/1983/0277/19.0/DLM92492.html

58 Elston et al, 2015, 6-7

59 Row and Wildling, 2012, 582

60 Row and Wildling, 2012, 583

61 Row and Wildling, 2012, 587

62 Gluckman, 2017, 41

63 Harvie, 2018

64 Harvie, 2018

65 Chadderton, 2003

66 Department of Conservation, 2020b, 31

67 Duggan and Collier, 2018, 320

68 https://www.doc.govt.nz/about-us/science-publications/conservation-publications/threats-and-impacts/freshwater/freshwater-restoration-and-eradication-of-trout-and-perch-at-zealandia/

69 https://www.stuff.co.nz/science/113254057/intensive-netting-suppresses-invasive-fish-improves-numbers-of-nz-species

70 Wellington Fish and Game Council, 2019, 6

71 Wellington Fish and Game Council, 2019, 6

72 https://www.stuff.co.nz/environment/124570484/zealandia-reservoir-to-be-drained-to-remove-a-tonne-of-pesky-perch

73 Collier and Grainger, 2015, 5

74 Duggan, 2015, 14

75 https://www.doc.govt.nz/nature/pests-and-threats/animal-pests/fish/rudd/

76 Duggan, 2015, 3

77 Duggan, 2015, 17

78 Duggan, 2015, 25 and 29

79 Department of Conservation, 2018a

80 https://niwa.co.nz/te-k%C5%ABwaha/tuna-information-resource/pressures-on-new-zealand-populations/commercial-tuna-fisheries

81 https://www.mpi.govt.nz/fishing-aquaculture/fisheries-management/freshwater-eel-fisheries/

82 The Whitebait Fishing (West Coast) Regulations 1994

83 Whitebait Fishing Regulations 1994

84 Department of Conservation, 2020d, 15

85 Department of Conservation, 2020d, 13

86 Department of Conservation, 2020d, 13

87 https://www.doc.govt.nz/news/media-releases/2018/freshwater-fishery-facts/

88 Department of Conservation, 2018a, 1

89 Department of Conservation, 2018a, 6

90 Fisheries Act 1996, s2

91 See Parliamentary Commissioner for the Environment, 2013a, 192 and Department of Conservation, 2018a, 6

92 The Conservation (Indigenous Freshwater Fish) Amendment Act 2019 amended the Conservation Act 1987. Section 26ZG(2)(c) of the Conservation Act, which deals with freshwater fisheries, now states that nothing in the Conservation Act shall apply to authorisations under the Fisheries Act 1996 "or any regulations made under that Act"

93 See Final Report Conservation (Indigenous Freshwater Fish) Amendment Bill 87-2 as reported from the Environment Committee (Commentary), 8

94 https://fishandgame.org.nz/threat-to-trout/the-threat-to-trout-posed-by-the-bill/

95 See *New Zealand Parliamentary Debates,* Conservation (Indigenous Freshwater Fish) Amendment Bill (Third reading, 16 October 2019), 741, 14417

96 Final Report Conservation (Indigenous Freshwater Fish) Amendment Bill 87-2 As reported from the Environment Committee (Commentary), at 8-9

97 Final Report Conservation (Indigenous Freshwater Fish) Amendment Bill 87-2 As reported from the Environment Committee (Commentary), at 8-9

98 This argument was raised by National Party members both in Parliament and in select committee, see comments of Sarah Dowie and Maureen Pugh in *New Zealand Parliamentary Debates,* 2019, Conservation (Indigenous Freshwater Fish) Amendment Bill (Third reading, 16 October 2019), 741, 14419 and 14430

99 See Elston et al, 2015, 9-10 and Weeks et al, 2016

100 Miskelly, 2016, 81.

101 Miskelly, 2016, 103

102 The Wildlife Orders protecting these species all cite the Convention on Migratory Species of Wild Animals 1979 as justification, requiring prohibition on taking them in New Zealand fisheries waters

103 https://www.mpi.govt.nz/dmsdocument/41956-Briefing-Appendices-NPOA-Seabirds-2020

104 *Shark Experience Ltd v Pauamac5 Inc* [2019] NZSC 111

105 https://www.stuff.co.nz/environment/102568009/sharks-meat-pies-and-government-accountability

106 *Pauamac5 Inc v Director-General of Conservation* [2018] NZCA 348 at [50]

107 *Pauamac5 Inc v Director-General of Conservation* [2018] NZCA 348 at [25]-[26]

108 *Pauamac5 Inc v Director-General of Conservation* [2018] NZCA 348 at [93]

109 https://www.doc.govt.nz/get-involved/apply-for-permits/interacting-with-wildlife/changes-to-wildlife-act-authorisations/

110 https://www.doc.govt.nz/get-involved/apply-for-permits/interacting-with-wildlife/changes-to-wildlife-act-authorisations/

111 Mulcahy and Peart, 2012

112 Baker et al, 2019

113 https://psc.dragonfly.co.nz/2019v1/

114 Marine Mammals Protection Act 1978, s26(4)

115 See Mulcahy and Peart, 2012, Chapter 7

116 The purpose of section 8(1) of the Fisheries Act 1996 is to "provide for the utilisation of fisheries while ensuring sustainability"

117 Wheen, 2012, 479-481

118 See *Squid Fishery Management Company v Minister of Fisheries* [2004] CA39/04 and *New Zealand Federation of Commercial Fishermen v Minister of Fisheries* CIV-2008-485-2016 at [19]

119 *Northern Inshore Fisheries Company Ltd v Minister of Fisheries* [2002] Decision CP235/01; *New Zealand Federation of Commercial Fishermen inc v Minister of Fisheries*, CIV-2008-485-2016

120 See for example *Attorney-General v Trustees of the Motiti Rohe Moana Trust* [2019] NZCA 532 at [6], [18] and [62]

121 *Attorney-General v Trustees of the Motiti Rohe Moana Trust* [2019] NZCA 532 at [50]

122 [2019] NZCA 532.

123 *Motiti Rohe Moana Trust* v *Bay of Plenty Regional Council* [2016] NZEnvC 240 at [13].

124 *Attorney-General* v *Motiti Rohe Moana Trust and Ors* [2019] NZCA 532 at [53] and [54].

125 *Oceania Gold (New Zealand) Ltd v Otago Regional Council* [2019] NZEnvC 41 at [133]

126 Elston et al, 2015, 9-10

127 For a review of this area see Brown, 2016

128 For a more in-depth review of biodiversity protection under the RMA see Brown et al, 2015

129 See *Solid Energy NZ Ltd v Minister of Energy* [2009] NZRMA 145

130 *Gunson v Waikato Regional Council* [2008] Decision A134/2208

131 *Gunson v Waikato Regional Council* [2008] Decision A134/2208 at[76]

132 Wallace, 2009, *22*

133 Department of Conservation, 2018b, 5

134 https://www.doc.govt.nz/get-involved/run-a-project/translocation/

135 Department of Conservation, 2018b, 7

136 Māori Party, 2008

137 Resource Management Act 1991, s131(2)(b)

138 See Resource Management Act 1991, s339(5)(b) and s128

139 Wallace, 2009, 24

140 Severinsen, 2019

141 Severinsen, 2019, 241

142 https://www.hamilton.govt.nz/our-services/planningguidanceandresourceconsents/publicly-notified-applications/2019%20Documents/Amberfield%20F8%20-%20Interim%20Decision%20of%20Env%20Court%20-%20Weston%20Lea%20v%20HCC%202020.11.06.pdf

143 https://www.doc.govt.nz/nature/native-animals/bats-pekapeka/long-tailed-bat/

144 https://www.doc.govt.nz/news/media-releases/2010/cat-nabbed-raiding-the-mothership/

145 https://www.hamilton.govt.nz/our-services/planningguidanceandresourceconsents/publicly-notified-applications/2019%20Documents/Amberfield%20F8%20-%20Interim%20Decision%20of%20Env%20Court%20-%20Weston%20Lea%20v%20HCC%202020.11.06.pdf

146 The legal proceeding in this matter directly considering authorisations under section 53 of the Wildlife Act 1953 was *Weston Lea v Hamilton City Council* [2019] ENV-2019-AKL

147 *Weston Lea v Hamilton City Council* [2019] ENV-2019-AKL at [107]

148 *Weston Lea v Hamilton City Council* [2019] ENV-2019-AKL at [110]

149 *Weston Lea v Hamilton City Council* [2019] ENV-2019-AKL at [119]

150 *Weston Lea v Hamilton City Council* [2019] ENV-2019-AKL at [124]

151 *Weston Lea v Hamilton City Council* [2019] ENV-2019-AKL at [125]

152 *Weston Lea & Ors v Hamilton City Council* [2020] NZEnvC 189 at [11]

153 Although there is provision for the Governor-General to declare further animals in this category by Order in Council.

154 Wild Animal Control Act 1977, s4

155 Wild Animal Control Act 1977, s8. See https://www.doc.govt.nz/parks-and-recreation/things-to-do/hunting/permits-and-licences/

156 Wild Animal Control Act 1977, s5A

157 Game Animal Council Act 2013, s16(1)

158 Ale et al, 2020

159 https://www.doc.govt.nz/parks-and-recreation/things-to-do/hunting/what-to-hunt/tahr/tahr-research-and-monitoring/

160 Christie and Andrews, 1964, 69

161 Parkes and Thomson, 1995, 5

162 Parkes and Thomson, 1995, 5

163 Parkes and Thomson, 1995, 6

164 Department of Conservation, 1993

165 Department of Conservation, 1993, 2

166 Department of Conservation, 1993, 2

167 Department of Conservation, 1993, 2

168 https://www.stuff.co.nz/national/111237741/the-truth-behind-tahrmageddon. Landcare research's finding and a study funded by DOC was formally published in 2017. See Cruz et al, 2017, 339

169 *New Zealand Tahr Foundation Inc v Minister of Conservation* [2020] NZHC 1669 at [2]

170 For example a copy of the 2018 Tahr Control Operational Plan is available at https://www.doc.govt.nz/globalassets/documents/parks-and-recreation/hunting/tahr-control-operational-plan.pdf

171 https://www.stuff.co.nz/timaru-herald/news/123518465/docs-tahr-culling-programme-ends-with-nearly-7500-reduction

172 *New Zealand Tahr Foundation v Minister of Conservation* [2020] NZHC 1669 at [20]

173 *New Zealand Tahr Foundation v Minister of Conservation* [2020] NZHC 1669 at [20]

174 *New Zealand Tahr Foundation v Minister of Conservation* [2020] NZHC 1669 at [54]

175 *New Zealand Tahr Foundation v Minister of Conservation* [2020] NZHC 1669 at [88]

176 *New Zealand Tahr Foundation v Minister of Conservation* [2020] NZHC 1669 at [92]

177 Submissions analysis Tahr Control Operational Plan 2020/2021 Reconsideration, 12 August 2020, 69, at https://www.doc.govt.nz/globalassets/documents/parks-and-recreation/hunting/tahr/submission-analysis-on-reconsidered-on-tahr-control-operational-plan-2020-21.pdf

178 Submissions analysis Tahr Control Operational Plan 2020/2021 Reconsideration, 12 August 2020, 36, at https://www.doc.govt.nz/globalassets/documents/parks-and-recreation/hunting/tahr/submission-analysis-on-reconsidered-on-tahr-control-operational-plan-2020-21.pdf

179 Submissions analysis Tahr Control Operational Plan 2020/2021 Reconsideration, 12 August 2020, 40, at https://www.doc.govt.nz/globalassets/documents/parks-and-recreation/hunting/tahr/submission-analysis-on-reconsidered-on-tahr-control-operational-plan-2020-21.pdf

180 Submissions analysis Tahr Control Operational Plan 2020/2021 Reconsideration, 12 August 2020, 37, at https://www.doc.govt.nz/globalassets/documents/parks-and-recreation/hunting/tahr/submission-analysis-on-reconsidered-on-tahr-control-operational-plan-2020-21.pdf

181 Submissions analysis Tahr Control Operational Plan 2020/2021 Reconsideration, 12 August 2020, 41, at https://www.doc.govt.nz/globalassets/documents/parks-and-recreation/hunting/tahr/submission-analysis-on-reconsidered-on-tahr-control-operational-plan-2020-21.pdf

182 https://www.doc.govt.nz/parks-and-recreation/things-to-do/hunting/what-to-hunt/tahr/tahr-control-operations/tahr-control-operations-faq/

183 Ministry for Primary Industries, 2018, 10

184 https://www.mpi.govt.nz/legal/legal-overviews-legislation-standards/biosecurity-legislation/biosecurity-act-1993-overhaul/

185 Russell, 2019, 6

186 Russell, 2019

187 Russell, 2019, 6

188 Russell, 2019, 4

189 Russell, 2019, 6

190 Russell, 2019, 6

191 Phillips et al, 2020

192 Brown et al, 2019, 364

193 Phillips et al, 2020

194 Phillips et al, 2014, 23

195 Phillips et al, 2020

196 https://www.newscientist.com/article/2114573-new-zealand-is-the-first-country-to-wipe-out-invasive-butterfly/

197 Phillips et al, 2020

198 Phillips et al, 2020

199 https://www.doc.govt.nz/about-us/statutory-and-advisory-bodies/nz-conservation-authority/submissions/review-of-key-parts-of-the-biosecurity-act-1993/

200 https://www.beehive.govt.nz/release/big-changes-biosecurity-system

201 https://www.mpi.govt.nz/dmsdocument/36057/direct

8 Drawing the threads together

Ōpāpara Road, Kahurangi National Park.

Neil Silverwood

8.1 Conclusions

There is a compelling and nationally significant need for New Zealand to rethink how it manages the conservation estate, threatened species and biodiversity. The conservation system – the collection of laws, regulations, policies and institutions – is extremely important to the country's environmental, social, economic and cultural well-being. This system, and its significance, goes well beyond simple protection of our natural and historic resources: it is also about how we manage those resources in partnership with Māori, as kaitiaki, and how we implement Te Tiriti. It is about how we balance and prioritise the interests of the many stakeholders and users of the conservation estate, some of which (such as the tourism sector) make a significant contribution to Aotearoa New Zealand's economy. It is also about how the interfaces and linkages with other statutory frameworks (such as the RMA and Fisheries Act) are managed and aligned, how we involve and engage with local communities, and how we deal with the broader public interest and equity concerns that arise in this context.

In focusing on the *issues* manifest in the conservation arena, this report has necessarily highlighted the failings and criticisms made of the conservation system. But at the same time, it is important to recognise the many significant strides forward being taken by DOC and others. Improvements have been made across the system, particularly in recent years. There have been reforms to improve the protection of indigenous freshwater fisheries and the development of the Biodiversity Strategy (and hopefully soon, a new National Policy Statement on Indigenous Biodiversity). The Department is continually working to improve relationships with Te Tiriti partners and develop a more partnership-based approach. New enforcement tools have been introduced and increased monitoring work is being undertaken to improve compliance. Templates are being developed to assist with planning, increased support is being provided, and more open lines of communication are being formed to enable our conservation institutions to work more collaboratively. The Predator Free 2050 project is making our protected areas safer for our rare and endangered species and the Jobs for Nature programme is supporting increased conservation work out in the field. The Department has also had its funding significantly increased in appreciation of the importance of this work to the nation.

A large number of reviews, reports, investigations and law reform initiatives, across a range of pressing issues, are also underway. They include a review of the tourism system, stewardship land, General Policies, and a raft of other legislation such as the Biosecurity Act, Crown Pastoral Land Act and RMA. We have seen efforts to improve tahr management and the regulation of whitebaiting. The Government's announcement of its intention to ban mining on conservation land, and the recommendations for reform arising out of the recent governance review of Fish and Game, also underscore that legislative changes are necessary in these areas. Significant work is therefore being done in this space – but is focused on particular pieces of the overall puzzle.

What this *Issues Report* makes clear is that piecemeal reform is unlikely to be sufficient to fix the deep systemic issues that exist within the conservation system. These are a legacy of years of ad hoc additions and reforms to the framework that have only served to increase the complexity, inconsistencies and lack of clarity within the system. There are fundamental deficiencies in the legislative framework that actively operate as barriers to progress and limit the scope of what can be done. Many of these simply arise as a byproduct of the very dated nature of much of the legislation.

There was not scope within this Report to canvass all of the issues that exist in the conservation system across all of the statutory provisions in place: this would have necessitated the task of reviewing, in detail, the more than 40 Acts that operate in this area. The focus has therefore been on understanding how the system as a whole is functioning and where the primary road-blocks are arising. This has identified three areas of significant concern:

- Systemic inertia and failures in the conservation planning and management system
- Continuing loss of biodiversity despite considerable conservation efforts
- A significant implementation gap in giving effect to the principles of Te Tiriti and fundamental misalignment between current conservation practice and mātauranga Māori

The planning and management system is broken

That the conservation management and planning system is broken, is evidenced by the age of many of our key planning documents, and the ongoing delays in the promulgation of updated CMSs and Conservation Management Plans. Significant inertia, conflict, statutory gaps and a lack of legislative clarity continue to undermine the operation of the conservation planning system. In turn, this undermines the concessions framework which operates within the planning system, generates increased legal risk for the Department and leads to the degradation of conservation values.

The lack of clear purposes in our conservation legislation, and the inherently unclear definition of 'conservation' itself, generates tension and conflict. Against that complex regulatory backdrop is layered a complex planning system, with multiple regulatory bodies, across a range of roles. Within each of those regulatory bodies, there is a diverse range of representatives, stakeholders and interest groups. These bodies are then required to consider the even more diverse range of interests and needs of the community and public at large. An unwieldly, conflict-laden system is almost unavoidable in such a context. It is extremely difficult to maintain clear bottom-lines, accountability and transparency within this context. The system needs to be redesigned and simplified.

Many of the people we spoke to considered it practically impossible to manage well within the current statutory framework, due to the presence of far too many moving parts and conflicting purposes.

> "DOC, the Conservation Authority and Conservation Boards have such a complicated context and statutory framework to operate within. The amount of effort that goes into planning is enormous, to ensure all the pieces [fit together] – every aspect of every statute, all the different types of land parcels, the alignment of plans and strategies, the sheer amount of consultation that has to take place. Then there are boundary issues, because rivers flow into and out of national parks. So do animals. Things don't just stop at the boundaries. The whole thing is just not set up to be feasible, to be enabling. It's no wonder deadlines are never met and DOC is so risk-averse." (*Interviewee*)

There is an urgent need for a more agile and fit for purpose planning framework, clearer guidance around the roles of our core conservation institutions and clearer processes to facilitate working in active partnership with iwi. Planning documents need to be easier to navigate and more consistent from place to place. The concessions framework also requires clearer direction and bottom lines and the Department needs more mechanisms to manage those concessions in a way that is able to foster greater synergies between uses and conservation outcomes. The interfaces of the conservation planning system and RMA also require closer alignment and coordination. With RMA reform currently underway, it is timely to reconsider this area of interaction.

Biodiversity continues to decline

Despite the best efforts of those involved in protecting Aotearoa New Zealand's conservation estate and indigenous species, biodiversity continues to decline and there is widespread acknowledgement that goals in this area have not been met.[1] The causes for this are multiple:

- Historical land fragmentation, and a lack of connectivity between our wild spaces, limits the places where our rare and endangered species can thrive. Migratory species are especially hard hit by these factors. Climate change impacts will exacerbate these issues. A more scaled, ecosystem-based approach is currently lacking

- Land use change, agricultural intensification, urban sprawl and development, and the downstream effects of these changes and increased degradation of land and waterways

- A failure to resolve conflict and prioritise protection in the face of economic pressures and ongoing stakeholder conflict, especially in relation to fisheries and agricultural impacts

- The impacts of introduced species and the inherent conflicts between protecting indigenous species and economically or highly valued introduced species

- A lack of dedicated threatened species legislation and a very old, unclear Wildlife Act, which is no longer fit for purpose

What these factors point to is a current *imbalance* within our frameworks and systems, that often prioritises economic and other concerns over protection, and fails to connect the green dots. To make any meaningful improvements to the status of our rare and indigenous flora and fauna, this needs to be addressed.

The Wildlife Act is not up to the task and species legislation in this arena is in urgent need of updating or replacement. Our threatened species need more robust protection and DOC is in need of a modern, fit for purpose, conservation toolkit to assist with threatened species management and planning. That existing frameworks provide the clear mandate, tools and resourcing to *maintain and enhance* introduced sportfish, but not our most precious and rare native species, is perhaps the clearest indication that fundamental reform and rebalancing is required in this area.

> "There are a wide range of values and interests around biodiversity, some of which compete. People making decisions about land/sea and resource management have to consider difficult trade-offs and costs, especially when considering the possible effects of productive land, sea or other resource uses on indigenous habitats. Our decision making and economic systems often fail to account for the value of nature – both in terms of money and other benefits, such as the physical, cultural or social wellbeing of people. If the full value of biodiversity and mātauranga Māori are not recognised or reflected in decisions about resource use in land, freshwater and marine environments, biodiversity is more likely to be negatively impacted. These trade-offs will only be resolved with more accurate valuing of biodiversity and ecosystem services and the social, cultural, economic and environmental benefits they provide to people."
> *(New Zealand Biodiversity Strategy 2020)*[2]

A system not designed to work in partnership with Māori

It will be apparent from the range of issues raised in this Report, that the failings of the conservation system across land management, concessions, species protection and conservation planning are also failures in relation to Māori and the Crown's commitments under Te Tiriti. This is because failure to protect indigenous flora and fauna, and this country's varied and unique habitat and landscapes, is a failure to protect the environment and settings in which mātauranga Māori is grounded. The two are inseparable and inherently connected.

Despite having one of the strongest Te Tiriti references of any legislation (under section 4 of the Conservation Act), which should infuse the entire system, there remains a significant implementation gap. None of the conservation statutory regimes were designed with Māori front of mind. Certainly, they were not designed to protect and preserve the connections and relationships that Māori have with conservation land and waters, and they can actively undermine these connections.

It should be noted that many Māori communities in Aotearoa *do* now play a core role in conservation, under a variety of governance regimes and geographic settings. DOC has entered into more than 40 conservation protocols, accords, relationship agreements and memoranda of understanding with tribal authorities allowing Māori to exercise some of their environmental responsibilities as kaitiaki.[3]

This country has also been first to craft groundbreaking new governance regimes that have given legal personality to aspects of our natural world. Under the Te Awa Tupua (Whanganui Claims Settlement) Act 2017 legal personality has been conferred on the entire Whanganui River catchment "from the mountains to the sea", recognising the landscape as a "living whole" that supports and sustains the health and well-being of people and communities along the river. "The Act is founded on holistic and long-term values shared by Māori and ecological science"[4] and the river is co-managed by the Crown and a number of different iwi that are historically associated with the river.

In addition, as part of a Te Tiriti settlement between the tribal federation of Tūhoe and the Crown in 2014, Te Urewera has ceased to be a national park and has instead been recognised as its own legal entity with the legal rights of a person under the Te Urewera Act. The legislation provides for a unique and context specific co-management framework that implements biocultural practices. Mount Taranaki is also to be granted legal personality.[5] But it is also true that much of this work has been driven by iwi through settlement negotiations, with the Crown more of a reactionary party than a proactive facilitator.

A review of the conservation law system provides the opportunity to build on innovative developments such as these, to apply a bicultural approach to conservation and develop a "whole-of nation vision for bicultural ecological restoration."[6] The kind of changes being sought by iwi and Māori in Aotearoa New Zealand are likely to be transformational in nature and will require innovative and collaborative problem solving processes and power sharing arrangements to be built. It may require the crafting of bespoke solutions to ensure that tikanga is also respected. This will require an open and frank national conversation. But until such changes are made, Māori will remain caught within the current, inherently abrasive national conservation system, forced to engage with and contribute to frameworks that often conflict with their ability to engage with the environment on their own terms.[7]

Consensus that reform is required

An encouraging and positive aspect of our review, was that it identified general consensus amongst regulators, environmental NGOs, scientists, Māori, stakeholder groups and other users of the conservation estate, that law reform is required to address the issues that exist within the conservation system. Universally, the interviewees we spoke to agreed there was an urgent need to re-examine our conservation frameworks and update them to more appropriately reflect modern values and needs.

It must also be highlighted that, even were the legislative deficiencies remedied; resourcing, capacity and budgetary constraints would continue to operate as barriers to achieving positive conservation outcomes. DOC is tasked with managing one third of the country's most precious spaces, but funding for this important work has always been problematic. If conservation is not adequately funded, and reliable funding streams are not established, then even the most well designed framework will not succeed. There is a need to reconsider the *value* provided by healthy ecosystems, flourishing biodiversity and a thriving environment and to appropriately support and prioritise them. Any legislative reform process needs to be accompanied by a review of the budgetary and financial mechanisms that support the conservation system, to ensure they enable long-term stable conservation management and planning.

Our country faces unprecedented change over the coming decades and ever increasing pressures such as climate change, the biodiversity crisis, new and emerging technologies – even global pandemics. We need a conservation management system that is able to respond to these pressures, that builds greater resilience and agility into our frameworks, that protects our valuable resources and wilderness areas, that provides for the wellbeing of our environment and the communities it supports, and that is capable of providing robust protection of our indigenous flora and fauna. It needs to be a system that not only protects, but actively fosters, the growth and restoration of our native species and habitats. And it needs to be a system that not only seeks to prevent and mitigate adverse impacts of use, but which promotes and builds synergies between that use and the country's conservation goals. This system needs to be robust, with clear bottom lines, yet adaptable and flexible. It needs to reflect the values of all New Zealanders.

This is no small task indeed. But the benefits that will accrue if we get this right will be substantial, not only for current, but also for future generations of kiwis.

Raewyn Peart

Red Crater, Tongariro Crossing, Tongariro National Park.

8.2 Summary of key issues

The legal framework

Overall framework

- Most core conservation legislation is now at least 40 years old and was crafted in a different era, to meet different needs, concerns and values. It predates most Te Tiriti settlement legislation, the climate freshwater and biodiversity crises, and the growth of Aotearoa New Zealand's international tourism market.

- Existing legal frameworks do not reflect a te ao Māori worldview. This means that the relationship-based system of values held by Māori is not currently reflected in law and can be undermined. This also disrupts the critically important cultural connections that exist between Māori and their lands and resources.

- The legal framework was developed on an ad hoc basis and is fragmented. The number of statutes in place, and inconsistencies and lack of alignment between them, makes them difficult to navigate and reconcile.

- The Conservation Act lacks a clear purpose, and there is a diverse range of purposes throughout the different pieces of legislation within the conservation system, some providing a stronger protective imperative than others.

- Core terms employed in the legislation lack definition, such as 'recreation' and 'tourism'.

- Much legislation within the conservation system fails to meet the requirements of the Public Services Act that legislation is clear, accessible and understandable by the public.

Te Tiriti o Waitangi

- Current legislation does not provide adequate mechanisms or processes to implement section 4 of the Conservation Act which requires decision makers to "give effect" to the principles of Te Tiriti.

- General Policies have also not adequately set out how section 4 is to be implemented despite a growing body of case law and Waitangi Tribunal reports providing further clarification on the matter.

- Te Tiriti settlement legislation has placed additional obligations on DOC and changed the nature of relationships between DOC and iwi. This has added significant legal complexity to the conservation system.

- The lack of statutory implementation mechanisms, and increasing legal complexity, creates legal risk and is making DOC's task of complying with section 4 particularly difficult.

Conservation land classification system

- The conservation land classification system is overly complex, with more than 20 different types of land designations across six different statutes.

- Navigating the requirements for multiple land types is a complex task for DOC. There is a need to rationalise the designations in order to simplify the system.

- No systematic review has been undertaken to ensure that land is appropriately classified, and as a result, some conservation values remain at risk.

Conservation covenants

- Covenanting regimes overseas provide for much greater levels of regulation, funding and incentives and a wider set of tools than those available under the QEII or Ngā Whenua Rāhui covenanting regimes.

- The QEII regime lacks sufficient funding to enable effective monitoring and enforcement and the QEII Trust has no statutory rights of access for these purposes.

- Ngā Whenua Rāhui kawenata are coming up for renewal in increasing numbers and the scheme is at a critical point. There is pressure for landowners to make their land more commercially viable and a need to review the support available to assist them to meet those aspirations.

- The fund faces a range of capacity, management and budgetary challenges.

Conservation institutions

- Many diverse institutions interface with the conservation system, some with unclear and/or conflicting purposes. This adds to the complexity, inertia and level of conflict within the system.

Department of Conservation

- The scale of the task that DOC is charged with is extensive – unworkably so.
- DOC has gone through a series of restructures and rounds of budget cuts that have impacted institutional resilience, knowledge and expertise.
- Unreliable funding streams have made long term planning and resourcing by the Department difficult.

New Zealand Conservation Authority

- The Conservation Authority was designed to be an independent 'watchdog' entity at a time of reduced public trust in the Government's management of conservation lands. Thirty years on, the context in which the Conservation Authority operates has significantly changed.
- The Authority's dual role of providing for stakeholder representation (through its wide membership), and providing expert advice to the Minister, creates some tension and lack of transparency.
- The Authority is responsible for approving policies and plans but is not involved in developing or hearing submissions on them. This creates a disjunct between the decision-maker and those impacted by decisions.

Conservation Boards

- There is a lack of clarity over the role of Conservation Boards and significant debate around their ongoing value.
- The role of iwi Board members, and what constitutes a conflict of interest when a Board decision impacts the commercial interests of their iwi, remains unclear.
- There are disparities in iwi representation between Boards due to the unevenness of Te Tiriti settlements around the country.
- The Conservation Board system is not well configured to provide for partnership with iwi.
- There is a lack of diversity amongst Conservation Board members, especially in relation to age, socio-economic background and ethnic diversity.
- Boards often deal with controversial and hotly contested issues without sufficient legislative and policy guidance.

New Zealand Fish and Game Council

- There is a weaker statutory objective of 'maintaining' or 'protecting' native species in contrast to sports fish and game, where the focus is on 'improving' or 'enhancing'.
- The recent governance review of Fish and Game found that Fish and Game regional councils are not paying regard to the impact on other natural resources and users, engagement with Māori and section 4 compliance is variable, and conflicts of interest are not well managed.
- Fish and Game has 'stepped into' the role of primary freshwater advocate and this is not always a good fit with its objectives or its Council members' interests (many of whom are farmers).
- The role of Fish and Game in advocating for introduced species, within the conservation system, is an unusual and sometimes uneasy fit.
- Fish and Game's advocacy for freshwater quality and ecological health is an important one given the large resource base of the organization and the extent of reforms currently rolling out.

Game Animal Council

- The establishment of the Game Animal Council has strengthened advocacy on behalf the hunting sector within the conservation system.
- The Council has also provided a mechanism through which the hunting sector can be more involved in conservation-related initiatives.

Conservation planning

- The conservation planning framework, and many of the older plans within it, are no longer fit for purpose. This has practical, economic and environmental consequences.

Conservation plan development and review

- Processes for developing CMSs, Conservation Management Plans and National Park Management Plans are complex, protracted and lack transparency.
- Many planning documents are well out of date which is impeding effective management of the concessions system and on the ground conservation work.
- There is significant inertia within the planning system and it lacks the required agility to respond to changing needs, new technologies and pressures.
- CMSs and plans vary markedly from each other in length, clarity and the standards set within them. The differing formats and approaches makes them difficult to navigate and apply in practice.

Role of Māori in plan development

- The planning system was not designed with Māori front of mind and it lacks clear statutory mechanisms for working in partnership with iwi.
- The review and development of planning documents creates a significant workload for iwi, exacerbating capacity issues, that in turn add to inertia within the system.

Stakeholder conflict

- There is significant conflict and debate amongst stakeholders about the contents of strategies and plans which can further slow the review process.
- Adequate scientific data on the environmental impacts of use (or introduced species) on the conservation estate, is often lacking, which can serve to increase conflict.

Stewardship land

- A large proportion of land managed by DOC (30 per cent) is stewardship land, much of which has not been assessed or appropriately classified.
- Reviews of stewardship land can be highly contested, especially in areas where there is little other land available for use and development (such as the West Coast).
- Stewardship land has less protection than other areas of the conservation estate, despite it containing areas with high conservation values.
- Stewardship land is also under more development pressure, as concession applicants are more likely to target stewardship areas as they perceive that approval is more likely.
- There is insufficient statutory or policy direction on the assessment of 'net conservation benefit' in the context of conservation land swaps.

Concessions

- The processing and administration of more than 4,600 concessions, many with conditions attached that require monitoring, requires considerable time and resourcing by DOC.
- The 'conservation economy' approach which aims to enable use of the conservation estate to support tourism and economic growth, does not sit easily alongside other conservation goals of protecting inherent values.

Grant of concessions

- Amendments to the concessions system over the last decade, have reduced costs and increased certainty for applicants, but have also increased the ability of applicants to contest decisions and reduced the extent of public input and transparency within the system.
- Concessions cannot be declined for lack of compliance with General Policies meaning there is a statutory gap in this part of the planning hierarchy.
- Although concessions must be consistent with the relevant CMS and planning documents, this requirement is not always complied with. There is tension between the need to adhere to planning documents, which have gone through an extensive public process, and the exercise of Ministerial discretion.

- A lack of clarity and conflicting provisions in CMSs and plans, and the age of these documents, complicates the concessions process which operates within a planning framework that is no longer fit for purpose.

- There is opportunity to 'game the system' by increasing the scope of a project through multiple variations and changes to conditions which avoid the need for public notification.

Allocation of concessions

- Most concessions are processed and approved on a 'first come first served' basis rather than allocating them to applicants who best support the purposes of the conservation system.

- The tendering provisions in the Conservation Act are not well-configured and serve to further complicate the concessions system.

- Current statutory tools do not accord iwi an appropriate degree of preference in the allocation of concessions as required by section 4 of the Conservation Act.

Monitoring and enforcement

- Monitoring and enforcement of concessions has historically been weak due to a variety of reasons including the scale and remoteness of the task, capacity issues, and lack of effective enforcement tools.

- Recent legislative amendments to create infringement offences, and initiatives to increase monitoring, have led to increased compliance but implementation of the enforcement pyramid could still be improved.

- The 12-month limit for lodging proceedings under the Conservation Act, which runs from the time an offence is committed, is a significant impediment to taking enforcement action.

Species protection

The Wildlife Act

- The Wildlife Act was designed for a different era and is no longer fit for purpose.

- No distinction is made between the protection of introduced and indigenous species or between the protection of common and endangered species.

- The definitions for 'wildlife', 'animal', 'domestic animal', 'domestic bird', 'wild animal' and 'hunt or kill' are complex and restrict the application of the Act.

- The lack of alignment in terminology and definitions across different conservation statutes makes the practical application of provisions for protecting species difficult to reconcile in practice.

- The Director-General's discretion to authorise the taking of wildlife under section 53 is very broad. There is minimal guidance for the exercise of the power, no public submission or appeal rights, and permissions cannot be subsequently varied or revoked once given.

- After recent case law, it is unclear whether the Director-General has jurisdiction to issue permits for 'disturbing' wildlife.

- The offence of taking wildlife makes no distinction in seriousness between taking introduced, indigenous or endangered species.

- New Zealand is out of step with similar jurisdictions in not having dedicated threatened species legislation.

Freshwater species

- Indigenous freshwater fish cannot be protected under the Wildlife Act and this is a significant omission.

- Introduced freshwater species have stronger statutory protections than indigenous species under the Conservation Act.

- There is no clear guidance on how to manage conflicts between introduced and native freshwater species.

- Unresolved jurisdictional overlaps exist between the Conservation Act and Fisheries Act for managing freshwater fisheries.

- When considering applications to eradicate sportsfish for indigenous species restoration projects, Fish and Game has conflicting imperatives, due to its statutory role of representing the interests of anglers and maintaining and enhancing sports fish.

Marine species

- The protections in place for marine species significantly lag behind those for terrestrial species.
- Protections under the Wildlife Act and Marine Mammals Protection Act for marine species are considerably weakened by the broad exemption for fisheries bycatch.
- The Fisheries Act is inadequate for the management of fishing effects on threatened species since its focus is not on protection but sustainable utilisation.

The RMA – Wildlife Act interface

- The RMA lacks the protective purpose of conservation legislation and is a weak point in the conservation system.
- The ongoing absence of a National Policy Statement on Indigenous Biodiversity represents a significant gap in the framework.
- Regional policy statements and regional and district plans have uneven, and often weak, provisions to protect threatened species.
- The requirement to obtain an authorisation under the Wildlife Act, in addition to consent under the RMA, is not widely known.
- Investigations prior to obtaining consent can be insufficient to identify the presence of protected species.
- Once resource consent is granted, it cannot be cancelled unless an offence has occurred, even if significant impacts on indigenous wildlife become evident.

Game or 'wild animal' species

- The Wild Animal Control Act and Game Animal Council Act have enhanced the protection of valued introduced species, the advocacy role of the hunting community and channels of communication between that community and the Department.
- The protection of valued introduced species *within the conservation system* remains controversial and there needs to be clearer guidance as to where it is appropriate for introduced game species to be and in what density.

Managing biosecurity risks

- The Biosecurity Act is now 25 years old and lacks a clear statutory purpose to guide decision making and clarity on the roles and responsibilities under it.
- There is need for greater statutory recognition and support of a leadership role for the Department of Conservation under the Biosecurity Act in relation to conservation matters.

Raewyn Peart

Visitor parking, Aoraki Mount Cook National Park.

8.3 Next steps

As noted in the introductory section, this Issues Paper is only the first phase of a broader EDS conservation system reform project. What we hope this paper makes clear, is that the system is not only dated and unresponsive to modern pressures; it is fundamentally broken. From a regulatory design perspective, it cannot work; it lacks the clarity and legislative alignment, the processes and implementation tools necessary, to support the work that needs to be done to protect our wild places and biodiversity.

The case for reform is urgent and level of support for change broad. We can and need to do much better.

With a clearer, more detailed, picture of the issues that exist and how these manifest in practice, work on Phase 2 of EDS's Conservation System Reform Project is now underway: the search for solutions and development of options for reform.

In Phase 2 of the project, the focus will move away from examining the issues that exist within the current conservation system to canvass possible solutions and options for reform. In Phase 2 we intend to analyse, in more detail, the conservation management system as a whole, taking a first principles approach. In this respect, we are following the approach pioneered in our Resource Management System Reform project which helped build the political support and social licence for reform.

The objective in Phase 2 is to put forward some specific and tangible recommendations for reforms to the conservation system. In doing so it will consider:

a) What values, priorities and purposes should underpin our conservation system?

b) What options would best implement and support those criteria?

c) What would the key statutes and statutory instruments of a reformed system look like? How could those statutes be linked and aligned?

d) What changes if any could be made to the current institutional arrangements to enhance the performance of the conservation system?

e) How could the system be made more agile and responsive to pressures emerging in the future?

Our work in Phase 2 will be informed by a consideration of the needs of regulators, the issues and concerns of key stakeholders and users of the conservation system, Te Tiriti, rangatiratanga and kāwanatanga, and the cultural context in Aotearoa New Zealand, as well as international best practice.

Phase 2 will take an open-minded, first-principles approach and objective view, that is informed by te ao Māori, science and by the practical realities evidenced on the ground. This will require in-depth consultation with key stakeholders and those involved in implementing conservation frameworks.

It is important that any proposals for reform do not shy away from, but rather highlight, the tough choices that must be made in this arena and the variety of factors that influence them, before justifying a particular model in response. This will require having the hard conversations, acknowledging the conflicts, inequities and pressure points that exist.

Critically however, Phase 2 will be about looking for the common ground and the aspects of the system that are working well. What must be retained? What is delivering gains? What are the synergies that exist that need to be supported and grown into the future? What procedural mechanisms and innovative solutions are needed to foster and transition these elements into any new framework?

The aim of Phase 2 is to develop options for a modern, state of the art conservation management system. While international best practice will be considered, the objective is to be innovative – to envision and craft a uniquely Aotearoa New Zealand based response to conservation governance, management, and delivery. A system that would recognise, value and protect the distinctive flora and fauna, and natural and historic character (our collective taonga) of this country. One that would implement and support the Crown's enduring partnership with Māori and recognise tangata whenua: iwi, hapū and whānau as rangatira and kaitiaki. One that would recognise the role of mātauranga. It will need to be a framework better able to meet the needs and reflect the values of New Zealanders today, while safeguarding the natural environment and its resources for future generations.

References

Cases

Attorney-General v Trustees of the Motiti Rohe Moana Trust [2019] NZCA 532

Buller Electricity Ltd v Attorney-General [1995] 3 NZLR 344

Gunson v Waikato Regional Council [2008] Decision A134/2208

Hawkes Bay Regional Investment Company Ltd v Royal Forest and Bird Protection Society of New Zealand [2017] NZSC 106

Motiti Rohe Moana Trust v Bay of Plenty Regional Council [2016] NZEnvC 240

New Zealand Federation of Commercial Fishermen v Minister of Fisheries CIV-2008-485-2016

New Zealand Māori Council v Attorney General [1987] 1 NZLR 641

New Zealand Tahr Foundation v Minister of Conservation [2020] NZHC 1669

New Zealand Waterways Restoration Ltd v Director-General of Conservation [2006] CIV 2005-485-1824

Ngāi Tahu Māori Trust Board v Director-General of Conservation NZLR 553

Ngāi Tai Ki Tāmaki Tribal Trust v Minister of Conservation [2018] NZSC 122

Northern Inshore Fisheries Company Ltd v Minister of Fisheries [2002] Decision CP235/01

Oceania Gold (New Zealand) Ltd v Otago Regional Council [2019] NZEnvC 41

Parlane v Department of Conservation [2006] CRI-2005-419-174

Pauamac5 Inc v Director-General of Conservation [2018] NZCA 348

Royal Forest and Bird Protection Society of NZ Inc v Minister of Conservation [2006] NZAR 265

Royal Forest and Bird Protection Society of NZ Inc v New Zealand Conservation Authority [2021] NZHC 1195

Save Happy Valley Coalition Inc v Minister of Conservation [2006] CIV 2006-485-1634

Save Happy Valley Coalition Inc v Solid Energy NZ Ltd C141/2006

Shark Experience Ltd v Pauamac5 Inc [2019] NZSC 111

Solid Energy NZ Ltd v Minister of Energy [2009] NZRMA 145

Squid Fishery Management Company v Minister of Fisheries [2004] CA39/04

Tawha v Fish & Game New Zealand [2015] NZHC 1119

Te Runanga o Muriwhenua Inc v Attorney-General [1990] 2 NZLR 641

Trans-Tasman Resources Limited v Taranaki-Whanganui Conservation Board [2020] NZSC 67

Weston Lea v Hamilton City Council [2019] ENV-2019-AKL

Weston Lea & Ors v Hamilton City Council [2020] NZEnvC 189

Publications

Ale S, S Sathyakumar, D Forsyth, X Lingyun and Y Bhatnagar, 2020, *Hemitragus jemlahicu: The IUCN red list of threatened species,* at https://dx.doi.org/10.2305/IUCN.UK.2020-2.RLTS.T9919A22152905.en.

Auckland Conservation Board, 2007, *Auckland Conservation Board annual report 1 July 2006 to 30 June 2007,* Department of Conservation, Auckland

Auckland Conservation Board, 2010, *Auckland Conservation Board annual report 1 July 2009 to 30 June 2010,* Department of Conservation, Auckland

Auckland Conservation Board, 2014, *Te Rununga Papa Atawhai o Tāmaki Makaurau-Auckland Conservation Board 1 July 2013 to 30 June 2014,* Department of Conservation, Auckland

Ayres I and J Braithwaite, 1992, *Responsive regulation: Transcending the deregulation debate*, Oxford University Press, New York

Baker C S, L Boren, S Childerhouse, R Constantine, A van Helden, D Lundquist, W Rayment and J R Rolfe, 2019, 'Conservation status of New Zealand marine mammals, 2019, *New Zealand Threat Classification Series 29*, Department of Conservation, Wellington

Barton A and J Dlouha, 2014, 'Mineral extraction or maintenance of the conservation estate in New Zealand: Which takes precedence?", in A Barton and J Jana Dlouha (eds), *Exploring regional sustainable development issues: Using the case study approach in higher education*, Grosvenor House, Surrey, 135

Bay of Plenty Conservation Board, 2019, *Bay of Plenty Conservation Board annual report 2018 – 2019*, Department of Conservation, Taupo

Bay of Plenty Conservation Board, 2020, *Bay of Plenty Conservation Board annual report 2019/2020,* Department of Conservation, Taupo

Brockington D, 2002, *Fortress conservation: The preservation of the Mkomazi Game Reserve*, Indiana University Press, Bloomington

Brower A and J Ross, 2017, 'Compliance with biodiversity compensation on New Zealand's public conservation lands', *New Zealand Journal of Ecology,* 42(1), 11-17

Brown K, C Phillips, K Broome, C Green, R Toft and G Walker, 2019, 'Feasibility of eradicating the large white butterfly (*Pieris brassicae*) from New Zealand: Data gathering to inform decisions about the feasibility of eradication', in *Island invasives: Scaling up to meet the challenge*, International Union for the Conservation of Nature, Gland

Brown M, 2016, *Pathways to prosperity: Safeguarding biodiversity in development*, Environmental Defence Society, Auckland

Brown M, R Stephens, R Peart and B Fedder, 2015, *Vanishing nature: Facing New Zealand's biodiversity crisis*, Environmental Defence Society, Auckland

Canterbury Aoraki Conservation Board, 2015, *Canterbury Aoraki Conservation Board annual report July 2014 to 30 June 2015,* Department of Conservation, Christchurch

Cadderton W, 2003, *Management of invasive freshwater fish: Striking the right balance*, Department of Conservation, Hamilton

Chadderton W, D Brown and R Stephens, 2004, *Identifying freshwater ecosystems of national importance for biodiversity: Criteria, methods and candidate list of nationally important rivers* (discussion document), Department of Conservation, Wellington

Christie A and J Andrews, 1964, 'Introduced ungulates in New Zealand', *Tuatata,* 12(2), at http://nzetc.victoria.ac.nz/tm/scholarly/tei-Bio12Tuat02-t1-body-d3.html

Clark B and J Mills, 2021, *Review of the governance of Fish and Game New Zealand and the regional fish and game councils,* an independent review prepared for the Minister of Conservation

Collier K and N Grainger (eds), 2015, *New Zealand invasive fish management handbook,* Lake Ecosystem Restoration New Zealand, The University of Waikato and Department of Conservation, Hamilton

Colmar Brunton, 2019, *Public sector reputation index 2019,* at https://static.colmarbrunton.co.nz/wp-content/uploads/2019/05/Public-Sector-Reputation-Index-2019-Report-FINAL.pdf

Colmar Brunton, 2020, *Public sector reputation index 2020,* at https://static.colmarbrunton.co.nz/wp-content/uploads/2019/05/Public-Sector-Reputation-Index-2020.pdf

Conservation Boards Review Panel, 2013, *Conservation Boards review: Final report of the Conservation Boards Review Panel*, Department of Conservation, Wellington, at https://www.doc.govt.nz/globalassets/documents/getting-involved/nz-conservation-authority-and-boards/conservation-boards-review-final-report.pdf

Crossan T, 2007, 'Should snails have standing? Towards an Endangered Species Act for New Zealand', *Resource Management Journal*, 12-17

Cruz J, C Thomson, J Parkes, I Gruner and D Forsyth, 2017, 'Long-term impacts of an introduced ungulate in native grasslands: Himalayan tahr (*Hemitragus jemlahicus*) in New Zealand's Southern Alps', *Biological Invasion,* 19, 339-349

Daugherty C and D Towns, 2019, 'One ecosystem, one national park: A new vision for biodiversity conservation in New Zealand', *Journal of the Royal Society of New Zealand,* 49(3), 440-448

Deloitte, 2020, *Analysis of the top 200 firms and top 10 Māori businesses: A report for the Productivity Commission*, Deloitte, at https://www.productivity.govt.nz/assets/Documents/32e1af4242/Deloitte-Top-200-firms.pdf

Department of Conservation, (undated), *Predator Free 2050: Discussion guide*, Department of Conservation, Wellington

Department of Conservation, 1993, *Himalayan thar control plan*, Department of Conservation, Christchurch

Department of Conservation, 2009a, *Department of Conservation annual report for the year ended 30 June 2009,* Department of Conservation, Wellington

Department of Conservation, 2009b, *Department of Conservation statement of intent 2009-2012,* at https://www.doc.govt.nz/globalassets/documents/about-doc/role/policies-and-plans/statement-of-intent/statement-of-intent-2009-2012.pdf

Department of Conservation, 2010a, *Department of Conservation annual report for the year ended 30 June 2010,* department of Conservation, Wellington

Department of Conservation, 2010b, *Concessions processing review: Final report April 2010,* Department of Conservation, Wellington, at https://www.doc.govt.nz/documents/about-doc/concessions-and-permits/concessions/concessions-processing-review-report.pdf

Department of Conservation, 2014, *Auckland conservation management strategy 2014-2024,* Department of Conservation, Auckland

Department of Conservation, 2016a, *Beehive expressions of interest west coast offering tender document,* at https://www.doc.govt.nz/Documents/about-doc/concessions-and-permits/beekeeping/beehive-eoi-west-coast-tender-document.pdf

Department of Conservation, 2016b, *Guidance on the interpretation and application of statutory planning documents*, at https://www.doc.govt.nz/globalassets/documents/about-doc/news/issues/guidance-statutory-planning-documents.pdf

Department of Conservation, 2018a, Conservation (Freshwater Fisheries Regulation) Reform Bill Regulatory Impact Statement, at https://www.doc.govt.nz/about-us/our-role/legislation/regulatory-impact-statements/conservation-freshwater-fisheries-regulation-reform-bill/

Department of Conservation, 2018b*, Guidelines for conservation related translocations of New Zealand lizards*, DOC Lizard Technical Advisory Group, Department of Conservation, Wellington

Department of Conservation, 2019a, *Te koiroa o te koiora: A discussion document on proposals for a biodiversity strategy for Aotearoa New Zealand,* Department of Conservation, Wellington

Department of Conservation, 2019b, *Annual Report for the year ended 30 June 2019,* Department of Conservation, Wellington

Department of Conservation, 2019c, *New Zealand's sixth national report to the United Nations Convention on Biological Diversity: Reporting for period 2014-2018,* Department of Conservation, Wellington

Department of Conservation, 2020a, *Climate change adaptation plan 2020/2021,* Department of Conservation, Wellington

Department of Conservation, 2020b, *Te mana o te taiao: Aotearoa New Zealand biodiversity strategy 2020,* Department of Conservation, Wellington

Department of Conservation, 2020c, *Annual report for the year ended 30 June 2020,* Department of Conservation, Wellington

Department of Conservation, 2020d, *Improving whitebait management: Te whakapai ake i te whakahaere īnanga: Discussion document,* Department of Conservation, Wellington

Department of Conservation, 2020e, *Giving better effect to the principle of the Treaty of Waitangi: Partial reviews of the Conservation General Policy and the General Policy for National Parks. A background paper about the process and main issues*, Department of Conservation, Wellington

Department of Conservation, 2021, *Review of percentage revenue framework: Summary of issues and options*, discussion document, Department of Conservation, Wellington

Dinica V, 2017, 'Tourism concessions in national parks: Neoliberal governance experiments for a conservation economy in New Zealand', *Journal of Sustainable Tourism*, 25(12), 1811-1829

Duggan K, 2015, *Perceptions of coarse anglers and freshwater managers and the impact of these perceptions on the management of non-indigenous invasive fish*, report to stakeholders and end users*,* Environmental Research Report No. 62, University of Waikato, Hamilton

Duggan I and K Collier, 2018, 'Management of non-indigenous lacustrine animals', in D Hamilton, K Collier, J Quinn and C Howard-Williams (eds), *Lake restoration handbook: A New Zealand perspective,* Springer Nature, Switzerland

Elston E, R Anderson-Lederer, R Death and M Joy, 2015 *The plight of New Zealand's freshwater biodiversity,* Conservation Science Statement No. 1, Society for Conservation Biology, Sydney

Environment Committee, 2020, '2018/2019 annual review of the Department of Conservation: Report of the Environment Committee, in *Reports of select committees on the 2018/2019 annual reviews of Government departments, Offices of Parliament, Crown entities, public organisations, and State enterprises,* Volume 1, 146, at https://www.parliament.nz/media/6382/2018-19-compendium-volume-1-final.pdf

Federated Mountain Clubs, 2020, *Conceding the commons.. conceding nature: A report by Federated Mountain Clubs of New Zealand on concessions under the Conservation Act,* Federated Mountain Clubs, Wellington

Freshwater Fish Specialist Group, 2012, *2012 annual report*, IUCN, Chester

Game Animal Council, 2020, *Annual report 2019-2020*, Game Animal Council, Te Puke

Glover J, 2019, *Landscapes review: Final report*, at https://assets.publishing.service.gov.uk/government/uploads/system/upload

Gluckman P, 2017, *New Zealand's fresh waters: Values, state, trends and human impacts,* Office of the Prime Minister's Chief Science Advisor, Auckland

Grainger N, J Harding, T Drinan, K Collier, B Smith, R Death, T Makan and J Rolfe, 2018, *Conservation status of New Zealand freshwater invertebrates 2018,* Department of Conservation, Wellington

Guil F, 2011, *Hunters and collectors: Red deer and transformations in hunting spaces,* thesis submitted in fulfilment of the requirements for the degree of Doctor of Philosophy, University of Otago, Dunedin

Hare K M, S B Borelle, H L Buckley, K J Collier, R Constantine, J K Perrott, C H Watts and D R Towns, 2019, 'Intractable: Species in New Zealand that continue to decline despite conservation efforts', *Journal of the Royal Society of New Zealand*, online

Harvie W, 2018, 'Beloved brown trout damage native fish, insects and waterways', *Stuff*, 5 February

Hemopereki H, 2019, *A literature review of important resource management issues relating to the proposed dredging of Ruapeka Bay, Ohinemutu, Rotorua,* A Report prepared for Bay of Plenty Regional Council, Waikato Institute of Technology, Hamilton

Joseph R, M Rakena, M Te Kuini Jones, R Sterling and C Rakena, 2018, *The Treaty, tikanga Māori, ecosystem-based management, mainstream law and power sharing for environmental integrity in Aotearoa New Zealand – possible ways forward,* report produced as part of the Sustainable Seas National Science Challenge, Te Mata Hautū Taketake – the Māori and Indigenous Governance Centre, Te Piringa-Faculty of Law, University of Waikato, Hamilton, at https://link.springer.com/chapter/10.1007/978-3-319-76956-1_5

Joy M, K J Foote, P McNie and M Piria, 2019, 'Decline in New Zealand's freshwater fish fauna: Effect of land use', *Marine and Freshwater Research*, 70, 114-124

Kos J, 2017, *Dart athwart the mountain torrents: The introduction of brown trout to New Zealand,* a thesis submitted in fulfilment of the requirements for the degree of Doctor of Philosophy, University of Otago, Dunedin

Land Information New Zealand, 2019a*, Enduring stewardship of Crown pastoral land: Discussion document*, Land Information New Zealand, Wellington

Land Information New Zealand, 2019b, *Summary of submissions: Consultation on enduring stewardship of Crown pastoral land*, Land Information New Zealand, Wellington

Le Heron E, 2019, 'Snail assemblages: Interrogating an environmental controversy involving *Powelliphanta augusta* and the mining industry in Aotearoa New Zealand', *Geographical Research,* 57(2), 215-229

Logan H and J Hutchings, 2018, *Future opportunities: QEII National Trust*, Henley Hutchings, at https://qeiinationaltrust.org.nz/wp-content/uploads/2019/02/Opportunities-for-QEII-final.pdf

Lyver P, J Ruru, N Scott, J Tylianakis, J Arnold, S Malinen, C Bataille, M Herse, C Jones, A Gormley, D Peltzer, Y Taura, P Timoti, C Stone, M Wilcox and H Moller, 2019, 'Building biocultural approaches into Aotearoa-New Zealand's conservation future', *Journal of the Royal Society of New Zealand*, 49(3), 394-411

Māori Party, 2008, 'Tangata whenua rally to protect foreshore', *Scoop,* 2 July

Matike Mai Aotearoa, 2016, *He whaakaaro here whakaumu mō Aotearoa: The report of Matike Mai Aotearoa – The Independent Working Group on Constitutional Transformation,* at https://nwo.org.nz/wp-content/uploads/2018/06/MatikeMaiAotearoa25Jan16.pdf

McDougall M, 2017, 'Harvest dynamics and annual survival of mallards and grey ducks', *Journal of Wildlife Management,* 81(3), 449–460

Ministry for Primary Industries, 2016, *Tai Poutini West Coast growth study opportunities report,* Ministry for Primary Industries, Wellington

Ministry for Primary Industries, 2018, *The New Zealand Government biosecurity response guide*, Ministry for Primary Industries, Wellington

Miskelly C, 2016, 'Legal protection of New Zealand's indigenous aquatic fauna: An historical review', *Tuhinga,* 27, 81-115

Mulcahy K and R Peart, 2012, *Wonders of the sea: The protection of New Zealand's marine mammals*, Environmental Defence Society, Auckland

Nelson Marlborough Conservation Board, 2019, *Nelson Marlborough Conservation Board Annual Report,* Nelson Marlborough Conservation Board, Nelson

New Zealand Conservation Authority, 2011, *Protecting New Zealand's rivers,* New Zealand Conservation Authority, Wellington

New Zealand Conservation Authority, 2013, *NZCA advice to the Director-General about DOC restructuring,* at https://www.doc.govt.nz/about-us/statutory-and-advisory-bodies/nz-conservation-authority/advice-to-the-minister-and-or-director-general/doc-restructuring-april-2013/

New Zealand Conservation Authority, 2018a, Annual report of the New Zealand Conservation Authority 1 July 2016 to 30 June 2017, New Zealand Conservation Authority, Wellington

New Zealand Conservation Authority, 2018b, *Stewardship land: Net conservation benefit assessments in land exchanges*, New Zealand Conservation Authority, Wellington

New Zealand Conservation Authority, 2019, *Advice on the use of a management planning template,* at https://www.doc.govt.nz/about-us/statutory-and-advisory-bodies/nz-conservation-authority/advice-to-the-minister-and-or-director-general/advice-on-the-use-of-a-management-planning-template/

New Zealand Government, 2012, *Business growth agenda progress report: Building natural resources*, New Zealand Government, Wellington

Ngā Whenua Rāhui, 2019, *2019 annual report to the Komiti,* Ngā Whenua Rāhui, Wellington

Norman R and D Gill, 2011, *Restructuring – an over-used lever for change in New Zealand's state sector,* Institute for Governance and Policy Studies Working Paper, Victoria University, Wellington

Otago Conservation Board, 2019, *Otago Conservation Board Poari Papa Atawhai-ā-rohe ki Ōtago, annual report 1 July 2018 – 30 June 2019,* Otago Conservation Board, Queenstown

Pannell J, H Buckley, S Bradley and D Norton, 2021, 'The significance of sheep and beef farms to conservation of native vegetation in New Zealand', *New Zealand Journal of Ecology,* 45(1), 3427

Parkes J P and C Thomson, 1995, *Management of thar*, Science for Conservation 7, Department of Conservation, Wellington

Parliamentary Commissioner for the Environment, 2013a, *On a pathway to extinction? An investigation into the status and management of the longfin eel*, Parliamentary Commissioner for the Environment, Wellington

Parliamentary Commissioner for the Environment, 2013b, *Investigating the future of conservation: The case of stewardship land,* Parliamentary Commissioner for the Environment, Wellington

Parliamentary Commissioner for the Environment, 2021, *Not 100% - but four steps closer to sustainable tourism*, Parliamentary Commissioner for the Environment, Wellington

Peart R, 2016, *The story of the Hauraki Gulf*, David Bateman Limited, Auckland

Peart R and C Woodhouse, 2020, *Te Manahuna Mackenzie Basin and landscape protection*, Environmental Defence Society, Auckland

Perry G, 2019, 'Assessing the role of off-take and source-sink dynamics in the extinction of the amphidromous New Zealand grayling (*Prototroctes oxyrhynchus*)', *Freshwater Biology,* 64(10), 1747-1754

Phillips C, K Brown, C Green, G Walker, K Broome, R Toft, B Vander Lee, M Shepherd, S Bayly and J Ree, 2014, *Pieris brassicae (great white butterfly) eradication annual report 2013/14*, Department of Conservation, Nelson

Phillips C, K Brown, C Green, R Toft, G Walker and K Broome, 2020, 'Eradicating the large white butterfly from New Zealand eliminates a threat to endemic Brassicaceae', *PLoS ONE* ,15(8)

Pinkerton N, D Marsh and F Scrimgeour, 2009, 'Funding conservation opportunities: Who should pay? What should they pay?', in B Clarkson, P Kurian, T Nachowitz and H Rennie (eds), Conference proceedings of the Conserv-Vision Conference, University of Waikato, 2-4 July 2007, University of Waikato, Hamilton

Pratt M, 2016, *Performance review framework: Follow-up review of the Department of Conservation*, State Services Commission, Treasury and Department of Prime Minister and Cabinet, Wellington

Queen Elizabeth II National Trust, 2015, *Briefing to the Primary Production Select Committee*, 30 July, Queen Elizabeth II National Trust, Wellington

Queen Elizabeth II National Trust, 2020, *Queen Elizabeth II National Trust annual report 2020*, Queen Elizabeth II National Trust, Wellington

Resource Management Review Panel, 2020, *New directions for resource management in New Zealand*, Ministry for the Environment, Wellington

Roosevelt T, 1916, *A book-lover's holidays in the open*, Charles Scribner's Sons, New York

Ross M, 2013, '*The politics of the resource curse: A review*', *SSRN Electronic Journal*

Row D and T Wilding, 2012, 'Risk assessment model for the introduction of non-native freshwater fish into New Zealand', *Journal of Applied Ichthyology,* 28, 582–589

Royal Forest and Bird Protection Society, 2010, *Submission to Local Government and Environment Committee on Petition 2008.83 of Quentin Duthie to reject mining proposals in national parks*, Royal Forest and Bird Protection Society, Wellington

Ruru J, P Lyver, N Scott and D Edmunds, 2017, 'Reversing the decline in New Zealand's biodiversity: Empowering Māori within reformed conservation law', *Policy Quarterly*, 13, 65–71

Russell D, 2019, *Briefing on Kauri Dieback: Report of the environment committee*, House of Representatives, Wellington

Seabrook-Davison M, W Ji and D Brunton, 2010, 'New Zealand lacks comprehensive threatened species legislation: Comparison with legislation in Australia and the USA', *Pacific Conservation Biology,* 16, 54-65

Severinsen G, 2019, *Reform of the resource management system: A model for the future*, Environmental Defence Society, Auckland

Taranaki-Whanganui Conservation Board, 2020, *Annual report 2019-2020*, Taranaki-Whanganui Conservation Board, Hamilton

Timoti P, P Lyver, R Matamua, C Jones and B Tahi, 2017, 'A representation of a Tuawhenua worldview guides environmental conservation', *Ecology and Society*, 22(4), 20

Tornell A and P Lane, 1999, 'The voracity effect', *American Economic Review,* 89(1), 22-46

Tourism Futures Taskforce, 2020, *Tourism futures taskforce interim report: We are Aotearoa*, Tourism Futures Taskforce, at https://www.mbie.govt.nz/assets/the-tourism-futures-taskforce-interim-report-december-2020.pdf

Tourism West Coast, 2017, *Tourism West Coast marketing plan 2017-2021,* Tourism West Coast, Greymouth

Treasury, 2013, *Budget 2014: Department of Conservation four year plan*, Treasury, Wellington

Waitangi Tribunal, 2011*, WAI 262: Ko Aotearoa tēnei: A report into claims concerning New Zealand law and policy affecting Māori culture and identity*, Waitangi Tribunal, Wellington

Waitangi Tribunal, 2012, *WAI 894: Te Urewera pre-publication part III: From self-governing native reserve to national park*, Waitangi Tribunal, Wellington

Wallace P, 2009, 'Where the wild things are: Examining the intersection between the RMA 1991 and the Wildlife Act 1953', *Resource Management Journal*, 21-25

Wallace P and S Fluker, 2016, 'Protection of threatened species in New Zealand', *New Zealand Journal of Environmental Law,* 19, 179-205

Walrond C, 2008, 'Acclimatisation', *Te Ara - the Encyclopedia of New Zealand,* https://teara.govt.nz/en/acclimatisation

Weeks E, R Death, K Foote, R Anderson-Lederer, M Joy and P Boyce, 2016, 'Conservation science statement: The demise of New Zealand's freshwater flora and fauna: A forgotten treasure', *Pacific Conservation Biology,* 22(2), 110-115

West Coast Governance Group, 2017, *West Coast economic development action plan 2017,* West Coast Regional Council, Greymouth

West Coast Tai Poutini Conservation Board, 2020a, *Minutes of meeting, 3 July 2020,* Department of Conservation, Hokitika

West Coast Tai Poutini Conservation Board, 2020b, *Minutes of meeting, 6 November 2020,* Department of Conservation, Hokitika

Wellington Fish and Game Council, 2019, *Minutes of the Wellington Fish and Game Council meeting*, 3 December 2019, Wellington Fish and Game Council, Palmerston North

Wheen R, 2012, 'How the law lets down the 'down-under dolphin': Fishing related mortality of marine animals and the law in New Zealand', *Journal of Environmental Law,* 24(3), 477-497

White B, G Doole, D Pannell and V Florec, 2012, 'Optimal environmental policy design for mine rehabilitation and pollution with a risk of non-compliance owing to firm insolvency', *Australian Journal of Agricultural and Resource Economics,* 56(2), 280-301

Williams G and D Given, 1981, *The red data book of New Zealand: Rare and endangered species of endemic terrestrial vertebrates and vascular plants*, Nature Conservation Council, Wellington

Endnotes

1 Hare et al, 2019
2 Department of Conservation, 2020b, 23
3 Lyver et al, 2019, 396
4 Daugherty and Towns, 2019, 440
5 https://www.nzedge.com/news/mt-taranaki-given-same-legal-rights-as-a-person/
6 Daugherty and Towns, 2019, 440
7 Lyver et al, 2019, 396

The conservation management system is crucially important to Aotearoa New Zealand. It provides front line protection for most of the country's remaining intact ecosystems, including the last remnants of now rare indigenous habitats and native species that rely on them for survival. It protects the environment in which mātauranga Māori evolved, which is vitally important for ensuring enduring cultural connections to land and water. The conservation system also directly supports people and communities, who use conservation spaces for aesthetic appreciation, and recreational enjoyment, and a growing conservation economy including a tourism industry supported by visitors seeking a wilderness experience.

This Report investigates the conservation system – the collection of laws, regulations, policies and institutions that are designed to conserve nature, and highlights current issues with its operation. It examines the conservation legal framework, conservation institutions, conservation planning, the management of stewardship land, concessions and species protection. It draws on an extensive literature review and numerous in-depth interviews with people directly involved in the system.

The Report concludes that there is a compelling and nationally significant need for Aotearoa New Zealand to rethink how it manages the conservation estate, threatened species and biodiversity. The conservation management and planning system is broken and needs to be fixed. Biodiversity continues to decline, despite best efforts. And the system is not designed to work in partnership with Māori.

Through identifying and describing current issues with the system, this Report makes a valuable contribution to the national debate on what changes are required and how to build an effective conservation management system for the future.

ISBN 978-0-9951186-4-5